

THE
PHILIPPINE
ISLANDS

1493–1898

VOLUME
L

BLAIR & ROBERTSON
1907

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*** START OF THE PROJECT GUTENBERG EBOOK THE
PHILIPPINE ISLANDS, 1493-1898; VOLUME 50 ***



The PHILIPPINE ISLANDS 1493-1898

Explorations by Early Navigators, Descriptions of the Islands and their Peoples, their History and Records of the Catholic Missions, as related in contemporaneous Books and Manuscripts, showing the Political, Economic, Commercial and Religious Conditions of those Islands from their earliest relations with European Nations to the close of the Nineteenth Century

TRANSLATED FROM THE ORIGINALS

Edited and annotated by EMMA HELEN BLAIR and
JAMES ALEXANDER ROBERTSON, with historical introduction and additional notes by EDWARD GAYLORD
BOURNE. With maps, portraits and other illustrations

Volume L—1764-1800



The Arthur H. Clark Company
Cleveland, Ohio
MCMVII

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CONTENTS OF VOLUME L

<u>Preface</u>	9
<u>Document of 1764–1800</u>	
<u>Events in Filipinas, 1764–1800</u> . [Compiled from Montero y Vidal's <i>Historia de Filipinas</i> .]	23
<u>Miscellaneous Documents, 1766–1771</u>	
<u>Financial affairs of the islands, 1766</u> . Francisco Leandro de Viana; Manila, July 10, 1766.	77
<u>Letter from Viana to Carlos III</u> . F. L. de Viana; Manila, May 1, 1767.	118
<u>Anda's Memorial to the Spanish government</u> . Simon de Anda y Salazar; Madrid, April 12, 1768.	137
<u>Ordinances of good government</u> . [Compiled by Governors Corcuera (1642), Cruzat y Góngora (1696), and Raón (1768).]	191
<u>Instructions to the secular clergy</u> . Basilio Sancho de Santa Justa y Rufina; Manila, October 25, 1771.	265
<u>The expulsion of the Jesuits, 1768–69</u> . [Compiled from various sources.]	269
<u>The council of 1771</u> . [Letter by a Franciscan friar]; Manila, December 13, 1771.	317
<u>Bibliographical Data</u> .	323

ILLUSTRATIONS

- [Plan of the city of Manila and its environs and suburbs on the other side of the river, by the pilot Francisco Xavier Estorgo y Gallegos, 1770](#); photographic facsimile from original MS. map (in colors) in Archivo general de Indias, Sevilla 35
- [Plan of the present condition of Manila and its environs, drawn by the engineer Feliciano Márquez, Manila, September 30, 1767](#); photographic facsimile from original MS. map (in colors) in Archivo general de Indias, Sevilla 83
- [Map of the river of Cagayan, showing town sites along its banks, 1720\(?\)](#); drawn by Juan Luis de Acosta; photographic facsimile 182,
from original MS map in Archivo general de Indias, Sevilla 183
- [Map of Manila Bay, port of Cavite, and Lake of Bay, showing depths of various parts of the bay, drawn by the engineer Feliciano Márquez, September 28, 1767](#); from original MS. map (in colors) in Archivo general de Indias, Sevilla 201
- [Map of Guam, one of the Marianas Islands](#), in Concepción's *Historia general* (Sampaloc, 1788–1792), vii, facing p. 145; photographic facsimile from copy in library of Harvard University 291

PREFACE

In this volume is a brief outline of events from the restoration of Manila by the English (1764) to 1800; and a group of documents relating to the more important topics in the first decade of that period. The condition of the islands and their people at that time is well described by the able and patriotic officials Viana and Anda; and the “ordinances of good government” are an important addition to our sources of information regarding the administration of justice in Filipinas. The most important event of that time was the expulsion of the Jesuits from the Spanish dominions, although its great significance in Europe was but feebly reflected in those remote colonies.

In a brief summary are noted the leading events in Filipinas from 1764 to 1800. Manila is restored to the Spanish authorities by the English on March 31, 1764; a few months before, Archbishop Rojo had died, in captivity. The brief term of the temporary governor, Torre, contains little that is noteworthy, outside of a controversy between the civil government and the religious orders, occasioned by the imprudent utterances of a Jesuit preacher. In July, 1765, arrives the new governor, José Raón, in whose term occurs the expulsion of the Jesuits from the islands, a matter treated more fully in a later document; he also publishes a revision of the laws compiled earlier by Arandia. The city of Manila first coins small copper money about this time. The old controversy regarding episcopal visitation of the regular curas is revived (1767) by Archbishop Santa Justa y Rufina, and it is complicated by Raón’s attempt to enforce the royal rights of patronage; bitter controversies arise, and are carried to the Madrid court.

After the capture of Manila by the English, the Moros had renewed their piracies, and ravaged the entire archipelago, year after year—even entrenching themselves and opening a slave market on Mindoró Island. Later, an expedition is sent to drive them out of this stronghold, which is successful. In 1770, the patriot Anda returns to Filipinas as its governor; he

brings suit against Raón and other officials for misconduct in office, which is proved against them; but they and their friends rouse bitter opposition against him, and hinder his labors for the country. Incited by reports of another English invasion, he strengthens the fortifications of Manila Bay. His appointment was unwelcome to the friars, and he makes official remonstrance against the abuses prevalent among them, and calls for corrections of these. Attempting to enforce the royal rights of patronage, all the orders save the Dominicans refuse to obey; but later royal orders (1776) make provision for more gradual secularization of the curacies in Filipinas, and somewhat modify the enforcement of the episcopal visitation—to secure which Santa Justa had convened a provincial council at Manila in 1771, which was afterward disapproved by the king. Difficulties arise with the Moros of Joló through the imprudence of an envoy sent thither by Anda, and through the military establishment made by the English on an islet near Joló. The Moros seize this fort by treachery (1775) and kill most of the Englishmen in it; this success emboldens the Moros to ravage the Spanish islands again. In the following year the king sends 50,000 pesos to Filipinas for building light vessels to follow up those pirates. The weight of Anda's official responsibility, and the constant attacks of his enemies, cause his death, October 30, 1776. He is succeeded by Basco y Vargas, an energetic, able, and conscientious officer. The auditors conspire against him, but he arrests them and ships them to Spain; he then devotes himself to the welfare of the country and the development of its resources. He makes all possible efforts to promote agriculture, industries, and commerce; founds the celebrated "Economic Society;" improves the schools, punishes highwaymen, reorganizes the army, and repairs the forts; visits the provinces in person, and informs himself of their condition; places the public revenues on a sound basis; and checks the Moro piracies for a time. Nevertheless, he is disliked and opposed by some of the citizens, and resigns his post as governor (1787); his temporary successor is Pedro Sarrio, who finds it necessary to allow the regular curas to resume their parish charges.

The next proprietary governor, Félix Berenguer de Marquina, assumes his office on July 1, 1788. After becoming acquainted with the condition of the islands, he sends to the home government proposals for the reforms which

seem desirable for Filipinas. Various events in his term of office are related, but there is little in them of unusual importance. In 1793 he is succeeded by Aguilar. New alarms of another English invasion oblige him to give attention first to the defenses of Manila and the improvement of the army. In the last days of 1796, a powerful Spanish fleet, commanded by Álava, arrives at Manila, sent thither for the defense of the islands in the war with Great Britain, which began in that year. Sailing to attack the English trading-fleet from China, Álava encounters a fierce hurricane, which drives him back to Manila. Endeavoring to improve the navy of the islands, and to reorganize the arsenals, he encounters official corruption and other difficulties, and is involved in long controversies with Aguilar and the royal officials at Manila. In 1797, the Acapulco galleon is wrecked soon after leaving Cavite, through "its commander's complete ignorance of nautical affairs," occasioning heavy loss to the citizens of Manila. Álava is compelled, by the continual danger of an attack by the English, to remain near the city for its defense; but he does all in his power to protect its commerce and improve the administration of its navy, and finally returns to Spain in 1803. On August 8, 1806, Aguilar dies, having held his office longer than any other governor before or since.

A detailed statement of the financial affairs of the islands in 1766 is furnished by the royal fiscal at Manila, Francisco Leandro de Viana. He aims to show how the Philippines can be made self-supporting, and even more, by proper retrenchments of expense and by increasing the revenues of government through the abolition of certain privileges and exemptions, the establishment of various monopolies, and, if necessary, the increase of the tributes paid by the natives. This last item produces 250,000 pesos annually; but nearly all of this is paid out for "the spiritual administration" of the Indians, so that, according to Viana, "the religious orders profit by and receive almost all the proceeds from the tributes." Hence the need of the royal situado each year from Mexico, to pay the civil and military expenses of the government. Viana enumerates the other profits derived from the Indians by the religious who are charged with their spiritual care, and mentions numerous other sources of income which they possess. In short, "all the profit of the islands accrues to the ecclesiastical estate;" the royal treasury is heavily indebted, and cannot meet the enormous expenses;

“the provinces are at the mercy of the Moros, and everything is in danger of total ruin, unless suitable remedies are applied in time.”

For this purpose Viana advocates various retrenchments of expenses, especially of those now incurred for the support of the ecclesiastical estate in the islands. He recommends that the exemptions of certain Indian chiefs and church servants from tribute-paying be abolished; that the “barangays” be suppressed, and the native villages reduced to parishes; that changes and reforms be made in the dealings of the provincial *alcaldes* with the crown; that offices be not sold, but granted as rewards of merit; that certain royal imposts be increased; that some privileges be sold at auction; and that monopolies be established on playing-cards, cock-fighting, and tobacco, not only in Manila but throughout the provinces and islands—to all of which the monopolies on wine and buyo might profitably be extended, which “would produce for the royal treasury enormous sums.” From all these sources, the royal treasury will obtain enough income “to maintain the islands with respectable forces, and to make good the expenses hitherto caused to the royal revenue,” without the necessity of increasing the tribute paid by the natives. But, if this last expedient be deemed necessary, he shows what will be the proceeds from increasing the tribute from ten reals to two, three, and four pesos respectively. The fiscal Viana shows himself to be a capable and honest official; but he evidently must contend with forces and conditions—greed for gain, official corruption, fraud, negligence and waste—that cannot be overcome without entire reform and reorganization of the colonial administration. With all his ability, he nevertheless regards the native peoples, as so many other European officials have done, as legitimate subjects for reckless exploitation; but in the light of modern thought and investigation his proposed expedients seem both short-sighted and ruinous. In some cases they would be diabolical, if their author could have realized what their effects would be, as with the proposed extension of the vicious monopolies (gambling, and the use of tobacco and wine) throughout the islands. He himself says, “Even the boys and girls use the said tobacco before they are old enough to exercise their reason.”

Another document of especial interest is a report by Viana (May 1, 1767) to the king and the Council of the Indies, apparently the final one sent by him

as fiscal. The subjects which it chiefly discusses are, the necessity of rendering trade free between the Spaniards and the Indians in the provinces, and that of instructing the natives in the Spanish language. As it is, the Indians seldom understand that language, outside of Manila, and dare not use it in presence of the religious. The latter, Viana says, are absolute despots in the islands, and, to conceal this from the authorities, they keep the natives in ignorance of the Spanish language; and they allow no Spaniard to enter their villages except by special permission of the cura, and for the time of three days only. He complains of their insolence, greed for dominion, disregard of all laws that do not suit their convenience, intrigues to prevent the enforcement of law, and oppression of the natives. These evils are incurable so long as the present mode of secular government continues. The interests of the king and his exchequer, and the government of the provinces, are shamefully neglected; the governor is indolent and covetous, seeks his own profit, and leaves business affairs to his secretary—who in turn neglects those which do not yield him gain. Viana urges that the superintendency of the exchequer be separated from the governor's office, as a partial remedy for the disorder and neglect which it has suffered; also the surrender of civil government in the provinces to the sole charge of the Audiencia, and the reduction of all the natives into parishes. He describes the intrigues within the orders which attend the appointments therein to the parishes under their charge, and claims that the missions are in consequence rapidly decaying. He renews his complaint of the despotic rule practiced by the friar curas, over both natives and alcaldes; and declares that the only cure for this will be, to subject the curas to episcopal visitation. Viana closes by urging that better governors be sent to the islands.

Further light on the condition of the islands after the English invasion is furnished by a notable memorial to the Spanish government, written by the patriot Anda (April 12, 1768). Far the greater part of this is devoted to the abuses resulting from the arrogance and lawlessness of the friars, with Anda's recommendations for measures to counteract those abuses; and to his text we add the helpful annotations made thereon by Dr. Pardo de Tavera. The inadequate and defective education furnished by the Manila universities leads Anda to recommend that they be abolished, and replaced by a secular foundation. He complains of the tyranny exerted by the

regulars over the secular clergy and over the Indians, their refusal to acknowledge the episcopal authority, their defiance of the secular government, their greed for gain (extorting all they can get from the Indians, although they receive large stipends and contributions from the government, and acquiring large estates, besides engaging in a lucrative trade), their persecutions of any Spaniards who attempt to visit or trade in the Indian villages, their protection of the infidel Chinese, their persistent neglect to teach the Spanish language to the Indians and their holding the latter in ignorance in order to retain their domination over them. The regulars also neglect their spiritual work, do nothing to check the vagrant life of many Indians, tyrannize over the *alcaldes*, and incite the Indians to hate the Spaniards. Anda urges that they be compelled to submit to episcopal visitation, to give up trade, to cease from meddling with all affairs of secular government, and to teach the Spanish language to the natives; and, if they prove contumacious, that they be expelled from the islands. At the end of the memorial, Anda touches on some other abuses which need correction: the choice of friars as bishops, the mismanagement of the royal storehouses, the undue expense of the *Acapulco galleon*, the failure to tax the production of gold, and the neglect to subdue the inland tribes of *Luzón*. He advocates the operation of the Philippine mines, revision of the commercial regulations, recoinage of money, reorganization of the colonial government, and more care in selecting the governors of the islands, with the grant to them of more power to correct abuses.

Of decided importance in this series are the ordinances of good government of Corcuera and Cruzat (with later additions), and those of Raón (revising those of Arandía, of 1768), which were intended for the guidance of *alcaldes*, *corregidores*, and other judicial officials. While in actual use they were never of the transcendental importance in executive, legislative, and judicial matters that might be imagined from their context, because they are for the most part merely a record on paper (especially those of Raón), and were almost entirely disregarded; yet they are valuable, as they show the Spanish treatment of natives, and reveal social and economic conditions. Although the source from which we translate and synopsize presents first the ordinances of Raón, we have preferred to follow the more chronological arrangement, and hence begin with those of Corcuera and Cruzat. The

ordinances of Corcuera, which were formulated in 1642, are revised by Cruzat, because such revision is demanded by the changed conditions that have come with the lapse of time. The first thirty-eight are the more valuable portion of these first ordinances, and are the result of the revision of those of Corcuera. They are much more clear-cut than most of the remaining twenty-three ordinances, some of which are vague and full of loopholes. As a whole, these first sixty-one ordinances regulate the conduct of the *alcaldes-mayor* in their official and private life in all lines—moral, religious, judicial, economic, etc. From them one obtains almost a full glimpse of the life of the times; he sees the canker of graft which was working in and through everything; gains a knowledge of the Spanish treatment of their wards, the natives, from the different standpoints of government paternalism, and individual rapacity, half-contempt, and cruelty of subordinate officials and others; notes the corrective measures that were taken, often halting and inadequate; and above all, is conscious of that peculiar method of Spanish legislation which, while apparently giving subordinate officials a free hand, drew them back to the center by threats of the *residencia*. The ordinances of Raón are ninety-four in number, many of which are repetitions of the foregoing, while some contain amendments and additions, and some again, are new. There is, for instance, considerably more legislation relating to the ecclesiastical estate in these later ordinances, which touch upon certain abuses common among them in their treatment of the natives and in their relations with the government. Less drastic, in many ways, than those of Arandía (of which no known copy is extant), they are more drastic than those of Corcuera and Cruzat, in the treatment of both religious and natives. The scheme of government outlined in both sets of ordinances is a simple and in some ways effective one, but its effects were never fully seen, because of the almost total disregard of the measures contained therein.

In 1771, Archbishop de Santa Justa issued instructions to the secular clergy which forcibly indicate the need of many reforms among them, in both their official and their private conduct.

One of the most important events in the history of Filipinas was the expulsion of the Jesuit order therefrom in 1768, an account of which is here

presented, prefaced by a brief statement of the expulsion of that order from Spain and its domains, and the causes of that measure; it proves to be the final stroke in the long conflict between the Spanish crown and the popes of Rome over the prerogatives of authority claimed by the former in ecclesiastical matters. The Jesuits had always upheld the principle of authority, as exercised by the Holy See, and were therefore opposed to the claims of the Spanish monarchs; moreover, the ideas of freedom brought from France in that period were already fermenting in Spain, and had great influence in the minds of Carlos III and his ministers; and they saw that the expulsion of the Jesuits from the Spanish dominions would remove the chief obstacles to their designs for governmental reforms and independence of papal interference. In Filipinas this expulsion does not proceed as desired by the Spanish court, with secrecy and promptness; the venal governor (Raón) warns the Jesuits of their fate, enabling them to make all preparations for their departure. Legal proceedings are therefore brought against Raón and his associates in their residencias, but some of them die before the suits are ended; and Anda, who instituted these by royal order, is nevertheless impeded in every way, and afterward sentenced to heavy fines, through the machinations of his enemies. A decree by the archbishop (November 1, 1769) censures the officious proceeding of an auditor, who seized and prohibited certain books hostile to the Jesuits.

A letter (December 13, 1771) from a Franciscan friar at Manila, relates various ecclesiastical disputes in connection with the diocesan council of 1771.

THE EDITORS

April, 1907.

DOCUMENT OF 1764–1800

[Events in Filipinas, 1764–1800](#). Compiled from Montero y Vidal.

SOURCE: Compiled from Montero y Vidal's *Historia de Filipinas*, ii, pp. 66–70, 115–140, 229–382.

TRANSLATION: This is made by Emma Helen Blair.

EVENTS IN FILIPINAS, 1764–1800

Archbishop Rojo, *ad interim* governor of the islands at the time of the English attack on Manila, died on January 30, 1764, a prisoner in the hands of the conquerors.¹ A few days later, Anda received despatches from Spain notifying him of the treaty of peace made with England, and he immediately entered into negotiations with the English for the surrender of Manila, which was accomplished on March 31 following. There was a dispute over the question of who should succeed Rojo in the government of the islands, an honor which was certainly due to the patriot Anda, who was, however, opposed by some of the citizens; but this was settled by the arrival of Colonel Francisco de la Torre, appointed governor *ad interim* of the islands, to whom Anda surrendered his command on March 17. The revolts and other disturbances in the provinces, consequent on the English occupancy, and their suppression, are noted in VOL. XLIX; cf. Montero y Vidal, *Hist. de Filipinas*, ii, chap. iii, and Ferrando, *Hist. PP. dominicos*, v, pp. 640–644, 651–740, for fuller accounts of these, and of the Chinese insurrection which then occurred. Ferrando makes (p. 739) the following interesting citation from an unnamed but “reliable” writer: “There died in this war some seventy Spaniards and two hundred and fifty natives, who, as good subjects, fought even unto death for their king. Before the insurrection there were in the province [of Pangasinan] 60,383 souls; and according to the computation which was made on May 13, 1766, there were in it only 33,456; consequently the loss for the entire province was 26,927 souls. Many of these inhabitants emigrated, others perished from their privations, and no small number were killed by the barbarians.”² During Torre’s temporary command the most important occurrence was a noisy controversy which was called forth by the imprudent and meddlesome utterances of a Jesuit preacher in Manila, Francisco Javier Puch, attacking government officials.³ The governor with the aid of the fiscal Viana, attempted to secure the punishment or rebuke of Puch, but the Dominican theologians took sides against them with the Jesuits;⁴ the dispute was carried to the court at Madrid, and produced long and bitter controversies and dissensions, and probably was one of the motives which influenced the king, some years later, to expel the Jesuits from his dominions.

On July 6, 1765, the new proprietary governor, José Raon, a military officer of high rank, relieved Torre; he appears to have been able but unscrupulous.⁵ He is most conspicuous for his revision of the “Ordinances of good government” drawn up by Arandía (see *post*, pp. 191–264), the revision being dated February 26, 1768; and for

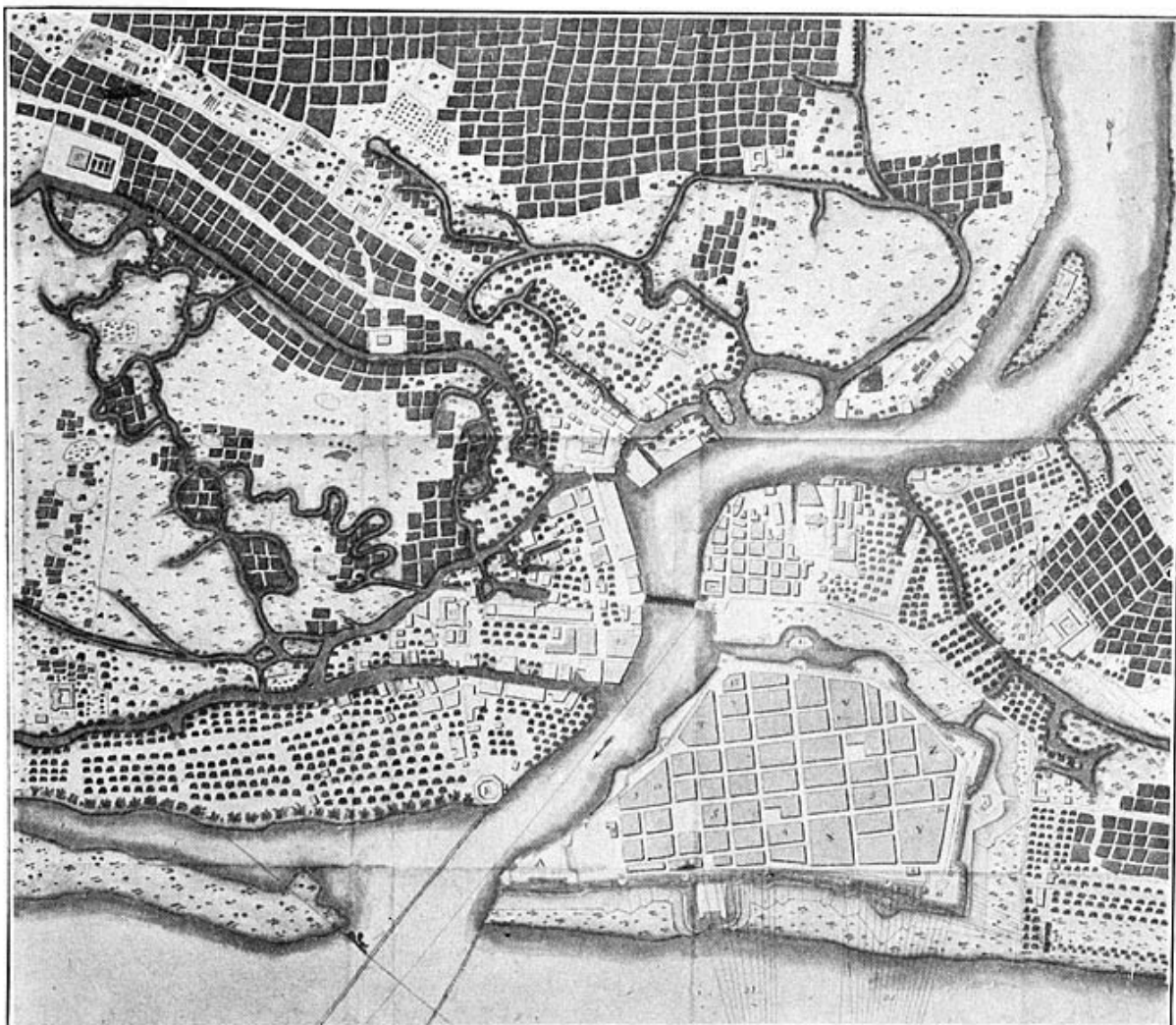
the expulsion of the Jesuits from the islands (1768), in pursuance of the orders received from Madrid dated March 1, 1767—which matter is related in detail in the last document of this volume. In 1769 he also decreed the expulsion of the Chinese from Filipinas, although this was not fully enforced. Early in October, 1766, the French astronomer Le Gentil, whose *Voyage* (Paris, 1781) is a valuable contribution at once to science and to the history of Filipinas at that time, arrived at Manila, commissioned by the French government to make observations on the approaching transit of Venus. “On account of the scarcity of copper money in Manila, the senior regidor of the municipal council, Domingo Gómez de la Sierra, in 1766⁶ requested authorization to make the said coins, with the name of *barrillas*, because their shape was that of a parallelogram. The government complied with this request, ordaining that only [the amount of] 5,000 pesos should be coined, to be used only in Tondo and Cavite. From that time, the Indians gave the name *barrilla* to copper coins.” “The municipal council again asked for authority to make the *barrillas*, for use in various provinces; and by royal decree of December 19, 1769, order was given to send from Mexico 6,000 pesos in cuartillos (that is, fourths of silver reals)—with the provision that the coin [previously] made should be gathered in, and that what should be necessary should be made with the royal arms, within the limits allowed to San Domingo, as appears in ley 8, tit. xxiv, [book iv,] of the *Recopilación de Indias*.” In 1766 there were two very fierce eruptions of the volcano Mayón, in Albay, occurring on July 20 and October 23; in the second, vast quantities of water were ejected, forming rivers and torrents, which destroyed some villages and many lives, and ruined many homes and farms.⁷

On July 22, 1767, the new archbishop, Basilio Sancho de Santa Justa y Rufina,⁸ took possession of the see of Manila, and immediately undertook to subject the regular curas to his diocesan visitation, thus reviving the Camacho controversy of 1697–1700 (see VOL. XLII, pp. 25–116) with the religious orders; but Santa Justa had the support of the civil authority, which had orders to enforce the royal rights of patronage. “The governor of the islands, on his side, communicated to the provincials of the religious orders rigorous commands that they must submit to the royal rights of patronage: that within a short time-limit they should present their lists of three names each [*sus ternas*] for appointments to all the curacies; and that in future they might not remove any religious from his post without informing the viceregal patron of the causes, whether public or private, for such action.” The Dominican province, in a provincial council of August 5, 1767, yielded to the archbishop’s claims, and during the following year he visited all the parishes administered by them; but some individuals refused to obey the council. The other orders obstinately resisted the episcopal visitation, declaring that they would abandon their curacies if it were enforced. Thereupon, the archbishop appointed

secular priests to the vacant curacies, including those of the Parián, Binondo, and Bataan, which were in charge of the Dominicans.⁹ As the number of Spanish priests was so small, the archbishop made up the deficiency by ordaining natives from the seminaries; but this measure caused great resentment among the regulars and their supporters, and Santa Justa himself was disappointed in its effects, as the native clergy were generally so unfit for the office of priest in both education and morals.¹⁰ Complaints to the king were made by both the religious orders and the archbishop, filled with mutual accusations and recriminations; and Raon withdrew his support from the latter, ceasing to press the claims of the royal patronage—influenced thereto, according to Montero y Vidal, by the intrigues of the Jesuits, who were enemies to Santa Justa. The support given by the Dominicans to the Jesuits in the Puch affair was censured by the Dominican general (Fray Tomás de Bojadors), who punished the Philippine provincial, Fray Joaquín del Rosario, and two of his brethren by depriving them of office and recalling them to Madrid. They availed themselves of various technicalities to delay their return for a long time; but finally two of them were sent from Manila late in December, 1778. Fray Joaquín del Rosario (his companion having died on the voyage) was captured by the English, but afterward regained his liberty and proceeded to Madrid, where the dispute was finally settled in an amicable manner.

After the capture of Manila by the English, the Moros renewed their piratical incursions, the Spanish authorities being so burdened with the insurrections of the natives and the Chinese, the lack of revenues, and the general disturbance of the colony's affairs, that they could do nothing to curb the insolence of the Moros. Those cruel pirates therefore ravaged the entire archipelago, even capturing fishing-boats in Manila Bay; and everywhere the coast villages were destroyed or depopulated, and the native population kept in continual terror of this inhuman foe. Bishop Ezpeleta, while temporary governor, had disbanded the little fleet at Iligan commanded by the Jesuits Ducós, which had been some check on the enemy, but Governor Rojo reestablished the Pintados fleet, with headquarters at Cebú; nevertheless, this could do little to restrain them. There was a general attack by the Joloans and Mindanaos,¹¹ well aided by the Tirones and Malanaos; and so insolent did they become that they captured two richly-laden champans on the Mariveles coast, and entrenched themselves at Mamburao, on Mindoro Island, and sold their Filipino captives to the Macasar traders who resorted thither. A small squadron was collected at Cavite, which conveyed over 1,200 men to attack this Moro fort;¹² after several days of skirmishing, the enemy fled, and the Spaniards seized their stronghold, finding therein sufficient rice and other property to more than pay the expenses of the expedition. Another Moro band, however, made amends for this loss by gaining

possession of the fort at Cateel, with all its contents; but on going to besiege that at Tandag they were repulsed and defeated, leaving behind all their arms and supplies.



Plan of the city of Manila and its environs and suburbs on the other side of the river, by the pilot Francisco Xavier Estorgo y Gallegos, 1770

[From original MS. map (in colors) in Archivo general de Indias, Sevilla]

In 1767 Anda went to Madrid, where he was praised and richly rewarded for his brave conduct during the English invasion; and the king made him a member of the Council of Castilla. Later, the post of governor of Filipinas was offered to him; he several times refused the honor, but finally yielded to the urgent request of the government, and in July, 1770 made his entry into Manila, where he was received with unbounded enthusiasm. His instructions made it necessary for him to institute legal proceedings against his predecessor Raon, who was accused of having warned

the Jesuits of their intended expulsion, and of having secreted important official documents. Raon was held a prisoner in his house, but died before the suit could be tried in court. In this suit were also included two auditors and the royal fiscal, and they and their friends attacked Anda bitterly, causing him numberless vexations in his efforts to fix on them the responsibility for misconduct in the affair of the Jesuit expulsion. It was reported in Spain that the English intended to make another attack on Manila; Anda therefore repaired the walls of the city¹³ and constructed ships, and within eight months had built and equipped twelve armed vessels of various sizes, besides several smaller craft. Notwithstanding this enterprise, the public revenues were greatly increased during the first year,¹⁴ and thus Anda was able to send several expeditions against the Moro pirates. An earthquake¹⁵ occurred on the night of February 1, which fortunately did no great damage.

“The religious corporations, notwithstanding the support which they generally lent to Anda during the war with the English, regarded with displeasure his appointment as governor of Filipinas. That strict magistrate, obeying the dictates of his conscience (which some persons attribute, but without sufficient grounds, to feelings of personal revenge), had addressed to the king on April 12, 1768, an exposition which treated of ‘the disorders which exist in Filipinas, and which ought to be corrected.’ In this document he points out most serious abuses among the friars; in the university, which was in their charge; among the Jesuits; among the Chinese, protected by the friars, who preferred them before the Spaniards, driving away and expelling the latter from their villages; and he censures certain frauds and practices in the public administration in specified branches of the civil service. The severity with which Anda laid bare those abuses drew upon him the hatred of the friars.¹⁶ In this document he demanded a remedy for the disorders which he denounced, pointing out the method by which this might be effected, and declared that ‘for the radical correction of these evils it is indispensable to draw up and introduce here a form of procedure which is clear, and capable of securing the just system which corresponds thereto, conferring upon the governor all the powers necessary for carrying it into execution, by those measures which prudence and the actual condition of affairs shall dictate to him.’ He added: ‘The choice of a zealous governor will materially contribute to laying the foundations of that great work; but it is necessary to reward him and give him authority, so that he can work to advantage, and without the hindrances which have often, by means of secret communications, cunning and disloyal maneuvers, and other malicious proceedings, frustrated the best and most carefully formed plans.’ This exposition¹⁷ by Anda was certainly taken into account, for in the ‘royal private instructions’ which were given to him when he was appointed governor of Filipinas we see that he was ordered to put an end to specified

abuses and disorders, the king using the same terms which Anda had employed in describing those evils.”

“The archbishop Santa Justa, a man of unparalleled firmness and energetic character, from the first moment assailed the new governor of Filipinas on the question of the diocesan visitation, to which the friars continued their opposition, and demanded his support in order to make it effectual. Anda, who regarded obedience to the laws as a rule of conduct, and who brought orders from the court to subject the regulars to the royal patronage, addressed an explicit communication to the superiors of all the religious institutes, requiring their obedience to the mandate of the sovereign, and assigning a definite term, which could not be prolonged, for the presentation of their lists of appointees, in order that the curacies might be filled in this manner. All the orders of regulars openly refused to yield obedience of this sort, excepting the Dominicans—who, more circumspect, and endeavoring to avoid the dangers which they foresaw in resistance, agreed to submit to this command—although many of the parish priests of the order soon were disobedient to this decision of their superiors.”

The archbishop convened a provincial council at Manila, which held six sessions during the period May 19–November 24, 1771; various matters of ecclesiastical administration came before it, the chief of which was the diocesan visit. In the fifth session, the subjection of the parish priests to the diocesan visitation and the royal patronage was ordained; and at the final one it was ordered that the decrees of the council should immediately be promulgated, declaring that those of the council of Mexico (which Urban VIII had ordered to be observed in Filipinas) were not now binding. In the first session the bishop of Nueva Cáceres, Fray Antonio de Luna (a Franciscan), became involved in disputes over the appointment of secretaries, and was expelled from the assembly; he then retired to his diocese, and during the entire period of the council opposed its proceedings, with protests, legal formalities, and official edicts. Bishop Ezpeleta of Cebú died soon after the opening of the council, and the government of that diocese devolved upon Luna, but, it seems, not its representation in the council. A secretary of that body, Father Joaquín Traggia, was sent to Madrid as its agent and bearer of its despatches; but the king refused to accept his credentials, and ordered him to go to his convent at Zaragoza, forbidding him to return to Filipinas. (Toward the end of this council, the archbishop, in concert with his suffragans, drew up a tariff for the parochial fees to be collected by the curas.) The religious orders finally secured, through influence at the court, the revocation of the order given to Anda in regard to the regular curas, which had resulted in many of them being removed from the Indian villages and replaced by native priests; but no change was made in regard to the diocesan visitation. The bishop of Nueva Segovia, Fray Miguel Garcia,¹⁸ claimed this right, and convened a

diocesan council in 1773; the only result was, to arouse a hot controversy between Garcia and the Dominicans, to which order he belonged. That order also had a dispute with the archbishop over his attempt to visit the beaterio of Santa Catalina; but in 1779 the king decided that this institution should continue to enjoy its exemption from visitation.

“By royal decree of November 9, 1774, it was ordered that the curacies held by the regulars should be secularized as fast as they became vacant. Anda suspended the execution of this command, and wrote to the court, specifying the evils which would ensue from the secularization of the curacies which the archbishop desired; and in consequence of this and of the urgent appeals of the Franciscans, Augustinians, and Recollects, the king ordered by a decree of December 11, 1776, that what had been decided on this point in the decree of November 9, 1774, should not be put into execution, and that affairs should be restored to their former status and condition, and their curacies to the religious; that the regulations for his royal patronage and the ecclesiastical visitation should be observed, but that the latter might be made by the bishops in person, or by religious of the same order as those who should serve in the curacies, and without collecting visitation fees. The king also directed in the said decree that efforts should be made, by all possible means and methods, to form a large body of competent clerics, in order that, conformably to the royal decree of June 23, 1757, these might be installed in the vacant curacies, thus gradually establishing the secularization that had been decreed.”

Anda took what precautions were available to restrain the Moro pirates, but great difficulties arose in his way. Ali-Mudin, whom the English had restored to his sway in Joló, and his son Israel (in whose favor the father had abdicated) were friendly to the Spaniards, with many of their dattos; but another faction, led by Zalicaya, the commander of the Joloan armadas, favored the English, who had established themselves (1762) on the islet of Balambangan¹⁹ in the Joló archipelago, which they had induced Bantilan to grant them; and the English were accused of endeavoring to incite the Joloans against the Spaniards by intrigue and bribery. Anda decided to send an expedition to make protest to the English against their occupation of this island, as being part of the Spanish territory, and entrusted this mission to an Italian officer named Giovanni Cencelly, who was then in command of one of the infantry regiments stationed at Manila; the latter sailed from Zamboanga December 30, 1773, bearing careful instructions as to his mode of procedure, and to avoid any hostilities with the English and maintain friendship with the Joloans. But Cencelly seems to have been quite destitute of tact or judgment, and even of loyalty to his governor; for he disobeyed his instructions, angered the Joloans,²⁰ who could hardly be restrained by Ali-Mudin from massacring the Spaniards, and at the end of three weeks was

obliged to return to Zamboanga. He was on bad terms with the commandant there (Raimundo Español), and refused to render him any account of his proceedings at Joló; and he even tried to stir up a sedition among the Spanish troops against Español. The English gladly availed themselves of this unfortunate affair to strengthen their own position in Joló, stirring up the islanders against Spain and erecting new forts. Later, however, the English at Balambangan showed so much harshness and contempt for the Moro dattos (even putting one in the pillory) that the latter plotted to surprise and kill the intruders; and on March 5, 1775, this was accomplished, the English being all slain except the commandant and five others, who managed to escape to their ship in the harbor. The fort was seized by the Moros, who thus acquired great quantities of military supplies, arms, money, and food, with several vessels.²¹ Among this spoil were forty-five cannons and \$24,000 in silver. Elated by this success, Tenteng, the chief mover of the enterprise, tried to secure Zamboanga by similar means; but the new commandant there, Juan Bayot, was on his guard, and the Moros were baffled. Tenteng then went to Cebú, where he committed horrible ravages; and other raids of this sort were committed, the Spaniards being unable to check them for a long time. A letter written to the king by Anda in 1773 had asked for money to construct light armed vessels, and a royal order of January 27, 1776, commanded that 50,000 pesos be sent to Filipinas for this purpose. This money was employed by Anda's temporary successor, Pedro Sarrio, in the construction of a squadron of vintas, "vessels which, on account of their swiftness and exceedingly light draft, were more suitable for the pursuit of the pirates than the very heavy galleys; they were, besides, to carry pilots of the royal fleet to reconnoiter the coasts, draw plans of the ports, indicate the shoals and reefs, take soundings in the sea, etc."

Notwithstanding the great services which Anda had rendered to his king and country, his enemies succeeded in procuring from the Spanish government the revocation of the sentences which had been pronounced in the suits brought by Anda (at the instance of that very government, and as its representative) against Raon and other corrupt officials; and Anda was condemned (by decrees in 1775–76) to pay the costs in these suits, and the further sums of four thousand pesos to the heirs of Raon and two thousand to the former fiscal, Juan Antonio Cosío. These unexpected and heavy blows, added to the strain of his official responsibilities and the annoyances caused by the attacks of his personal enemies, broke down Anda's health; and he died at the hospital of San Felipe, Cavite, on October 30, 1776, at the, age of sixty-six years.²²

Sultan Israel of Joló was poisoned by the followers of his cousin Ali-Mudin, son of Bantilan, who therefore assumed the government (early in 1778); immediately the

Moros renewed their raids on the Spanish provinces nearest them, and the expeditions sent against them by Sarrio could do little to punish them.

In July, 1778, the new proprietary governor arrived at Manila; this was José de Basco y Vargas, an officer in the Spanish royal navy. The officials of the Audiencia forthwith sent a remonstrance to the court, against their being subordinated to a man whose rank “gave him only the right to be addressed as ‘you’ while each one of the magistrates [of the Audiencia] enjoyed the title of ‘Lordship,’” and they asked for the revocation of Basco’s appointment: but of course this was refused, and they were rebuked for their officiousness. As a result, the auditors opposed all that Basco attempted, and even conspired to seize his person and put Sarrio in his place. That officer, however, refused to join them, and informed the governor of the scheme; in consequence, Basco arrested the recalcitrant auditors and other persons connected with their plans (including Cencelly), and sent them all to Spain.²³ Now free from hindrances, he devoted himself to the administration of the government, the welfare of the country, and the development of its resources.

“In a document entitled ‘A general economic plan,’ he extolled the advantages which are inherent in the promotion and development of agriculture, commerce, and industries. He offered therein to bestow rewards and distinctions on the persons who should excel in agriculture, in making plantations of cotton, of mulberry trees, and of the choicer spices, as cloves, cinnamon, pepper, and nutmeg; to those who should establish manufactures of silk, porcelain, and fabrics of hemp, flax,²⁴ and cotton like those that were received from the Coromandel Coast, Malabar, and China; to those who would undertake to work the mines of gold, iron, copper, and tin; to those who should make discoveries useful to the State; and to those who should excel in sciences, the liberal arts, and mechanics. He also circulated instructions in regard to the method of cultivating and preparing for use cotton, silk, sugar, etc. He also, in Camarines, compelled the planting of more than four millions of mulberry trees, which for several years yielded an excellent product; but these important plantations were abandoned after his term of office [expired].²⁵ He improved the schools, and aided the diffusion of knowledge by promoting the knowledge of the Castilian language. In order to repress the boldness of the murderous highwaymen who infested the roads in the provinces nearest to Manila, he appointed judges with power of condemnation [*jueces de acordada*]²⁶; these, accompanied by a counsellor and an executioner, by summary process tried the malefactors whom they arrested in their respective districts, and applied the penalty—a measure so efficacious that in a short time there was complete security everywhere. The Audiencia appealed against this measure, and the king issued a decree notifying the governor to abstain from meddling in the jurisdiction of that court. In acknowledging the receipt of this

sovereign command, Basco remarked that ‘unfortunately it had arrived too late.’ As war had been again declared between España and Inglaterra, Basco caused the fortifications of Manila and Cavite, and the forts in the provinces, to be repaired, changing a great part of the artillery therein for new pieces. He also reorganized the army. In 1778 the order for the expulsion of the Chinese was revoked, and a considerable number of them returned to Manila.

A royal decree of November 15, 1777, recommended the establishment of an institution in which vagrants and dissolute persons might be shut up. Accordingly, Manuel del Castillo y Negrete, minister of justice for the Philippines, drew up and printed (Sampaloc, 1779) a manual of ordinances for the management of a general refuge for poor persons, beggars, women of lewd life, abandoned children, and orphans. For this project he had obtained the opinions of learned persons, all of whom extolled it; and he sent this document to the king. Besides promoting all interests of morality, and the development of agriculture, industry, and commerce, Basco founded the noted “Economic Society of Friends of the Country.”²⁷ A royal decree dated August 27, 1780, had ordered him to convene all the learned or competent persons in the colony, “in order to form an association of selected persons, capable of producing useful ideas;” but when this decree arrived, Basco had already founded the above society. On February 7, 1781, the active members of the general tribunal [*junta*] of commerce had assembled, and agreed upon the constitution of the society, a number of them signing their names as its members—among them the Marqués de Villamediana, the prior of the consulate of commerce. “The body of merchants endowed the society with a permanent fund of 960 pesos a year, the value of two toneladas which were assigned to it in the lading of the Acapulco galleon.” The society was formally inaugurated on May 6, 1781, under the presidency of Basco, who made an eloquent address. Its first president was the quartermaster-general of the islands, Ciríaco González Carvajal; according to its first regulations, it contained the following sections: natural history, agriculture and rural economy, factories and manufactures, internal and foreign commerce, industries, and popular education. “Stimulated by Basco, the society undertook with great ardor to promote the cultivation of indigo, cotton, cinnamon, and pepper, and the silk industry, according to the orders published by the superior authority. The parish priest of Tambóbong, Fray Matías Octavio, taught his parishioners to prepare the indigo, presenting to the society the first specimens, which were adjudged to be of superior quality. In 1784, the first shipment of this article to Europa was made in the royal fragata ‘Asunción.’ The society also recommended that effort be made to attain perfection in weaving and dyeing. (The society declined greatly after the departure of its founder; and Aguilar roughly opposed it. In 1809 it was extinguished; two years later, orders were received for its reestablishment, but this was not

accomplished until 1819. In the following year, its constitution was remodeled; and in 1821 it founded at its own cost a professorship of agriculture and an academy of design, and established special instruction in dyeing. In 1824 it resolved to bestow rewards on the most successful farmers; and it introduced from China martins, to fight the locusts that were desolating the fields. In 1828 its constitution experienced another revision; but during more than half a century it gave hardly any sign of its existence. It had a flash of vitality in 1882, but soon fell again into a decline. To-day [about 1893] there is hardly any indication that Manila remembers a society of this sort; and, as it is not in the *Guía de forasteros* ["Guide for strangers"], it may be said that it has ceased to exist.)

"Filipinas had been, until the arrival of the illustrious Basco y Vargas in the country, a heavy burden on the capital, since every year the situado was sent in cash from México to meet the obligations of the islands. In order to free España from this sort of load, and to raise the country from its depressed condition, he conceived the vast project of stimulating the cultivation of tobacco, by establishing a government monopoly of it.²⁸ He communicated his plan to the Spanish government; and by a royal order of February 9, 1780, the monopoly of tobacco, similar to that which was in force in the other dominions of the nation, was decreed. He immediately published two proclamations, on December 13 and 25 respectively, in 1781, prohibiting the sale, traffic, and manufacture of tobacco; and on February 16, 1782, he issued (signed and sealed by himself), 'Instructions which are given to all the commanders or heads of the patrols, the provincial administrators, the market inspectors, and other persons who are under obligation to prevent loss to the revenue from tobacco.' These were directed to the prevention of smuggling, showing the way in which investigations should be conducted—including the houses of parish priests, the convents, colleges, and beaterios, the quarters of the soldiers, etc. He created a board of direction for this revenue, a general office of administration or agency, and subordinate offices to this in the provinces. Basco's idea was strongly opposed by various interests; but the governor's energy was able to conquer this unjust opposition, and the monopoly was organized on March 1, 1782; it constituted the basis of the prosperity of the exchequer in that country, and its most important source of revenue.

"The zealous governor visited the provinces in person, in order to inform himself of their needs and to remedy these, compelling their governors and other functionaries to fulfil their trusts as they should. He also organized various military expeditions to occupy the Igorrot country."

From the first, Basco did what he could to restrain the incursions of the Moro pirates; but he had many difficulties to encounter. He repaired the forts in Mindanao and the Visayan Islands; he built small vessels, and stationed them in Cebú, Iloilo, Zamboanga, and Calamianes, from which points they could more promptly set out to punish the Moros; and he sent an expedition to Mamburao, in Mindoro, which drove out the pirates who, as we have already seen, had established themselves there. These raids being thus checked for the time, trade began to improve; “and from Sámar alone, whose traffic with Manila had been paralyzed for more than ten years, forty-three caracoas went to the capital in 1779.” The sultan of Joló humbly asked Basco for peace, and returned to the Spaniards a small vessel captured near Antique by one of his dattos, “an unusual proceeding among the pirates.” The natives of Bulacan voluntarily offered (December, 1781) to pay for the cost of two vessels to sail against the pirates, and imposed on themselves for this purpose a tax of one-half a real a year on each tribute; this proving insufficient, they increased it, in the summer of 1784, with a ganta of unhulled rice per tribute. This example was immediately followed by the natives of Pampanga. In 1782, the Visayas were invaded by a Mindanao host; but on several occasions the Spaniards succeeded in defeating the pirates and sinking many of their boats. Basco conquered the Batanes Islands, north of Luzon,²⁹ and this enterprise for a time diverted his military forces from the Moros, who consequently increased their depredations on the Visayan natives and carried away many captives from Calamianes, Panay, and Negros.

By royal orders of July 17 and 26, 1784, the post of quartermaster-general of the islands was created, in accordance with a request by Basco; and that of deputy-intendant of the exchequer was united with it, independent of the superior government of the islands. It was placed in charge of one of the auditors, Ciriaco González Carvajal, also at Basco’s recommendation; and from this time the royal officials were styled “ministers of the royal exchequer.” Carvajal aided Basco greatly in establishing the monopoly of tobacco, and it was he who drew up the instructions to officials on this subject. In 1785, a dispute arose between them over the establishment of the tobacco monopoly in Camarines and Albay, each regarding this undertaking as the prerogative of his own office. Carvajal proposed that provincial intendancies should be created in Ilocos, Camarines, Cebú, and Iloilo; this was done, and approved by royal orders of November 24, 1786; but a year later the Spanish government suppressed Carvajal’s office, and these provincial intendancies as well.

In 1785, there was a revolt of the heathen Indians in Ituy and Paniqui, headed by a Calinga chief named Lagutao, who assembled over 1,200 men; but it was put down by a force of 300 musketeers sent from Cagayán, and Lagutao was killed in battle. A royal decree of February 25, 1785, ordered the immediate expulsion of all Chinese

from Manila,³⁰ allowing the governor to fix a place outside the walls where a small number of them might reside, under supervision; and another decree (April 1, 1785) approved the foundation of a colony of 200 Chinese on Lake Candaba, in Pampanga. At Carvajal's instance, a monopoly was decreed (November 4, 1786) on gunpowder in Filipinas. In the following year, instructions for the execution of this measure were issued (December 11); and about the same time the monopoly of wines was placed in control of the exchequer.

The constant opposition to Basco's reforms and efforts which he encountered finally wore out his patience, and he offered his resignation; at first it was not accepted, but he insisted, and the king allowed him to hand over the government of the islands to Pedro Sarrio. Basco embarked for Spain at the end of November, 1787, and for his eminent services was promoted in the navy, ennobled, and made governor of Cartagena. Montero y Vidal praises in high terms the character and achievements of this distinguished governor, who had secured for Filipinas greater benefits than had any other, establishing its revenues on a firm basis, introducing most important reforms, and advancing its material and moral progress; but he was assailed by "the envy, rivalry, spite, insane hatred, and lack of patriotism of the auditors, merchants, and other classes, who were governed by base motives and despicable passions, or by ignorance and covetousness."

The natives in northern Ilocos were displeased at the monopolies³¹ on tobacco and wines, and revolted; but the alcalde-mayor of the province went to meet them, with Fray Agustín Pedro Blaquier,³² cura of Batao, and persuaded the insurgents to disperse without bloodshed. Sarrio held the office of governor but six months. After the death of Archbishop Santa Justa (December 15, 1787), he found it necessary to allow the regular priests to resume the charge of the parishes, as is shown in the following extract from his letter to the king, dated a week after that event, explaining his reasons for this course: "First, because in temporal matters as well as in spiritual is seen a manifest and notorious difference between the villages administered by the regulars and those which are in charge of the seculars of Indian and mestizo (Sangley and Chinese) birth; these are almost the only ones dedicated to the cure of souls, for in all the islands hardly six curas can be named who are Spaniards or Spanish mestizos. It can be said, in general, that the villages which are under the direction of the regulars have adequate spiritual nourishment, which cannot be asserted of those which are in charge of the Indians and mestizos. These, when they receive the name of priest, are not thereby deprived of that innate negligence and indolence with which nature has endowed all these islanders; and hence it results that, given up to idleness, gambling, and other [like] pursuits, they abandon study, and begin to lose whatever fitness [for the office] they may have possessed at the

time of being ordained or receiving the curacy. The consequence of this is, that they grow remiss in their preaching and the instruction of their parishioners; these functions they are unable to discharge competently, not only because they are little used to books, but because not many of them are thoroughly instructed in the Latin and Spanish languages, in which those authors have written of whom the curas must avail themselves in order to distribute to their flocks the proper food of doctrine. Once possessed [thus] by ignorance, it is not astonishing that no greater impression is made on their minds by the rigid law of residence,³³ or that of the other obligations that are inseparable from the parochial ministry. On the other hand, accustomed from childhood to live in houses of bamboo or wood, they regard stone dwellings with indifference; and to this may be attributed the fact that some of them abandon the parish houses which formerly were the homes of the regulars, and make separate dwellings for themselves. Others, even though they live in the parish houses, take little pains to repair and keep them in good condition. This would be to some extent endurable if their neglect did not also extend to the church building and the ornaments which are used in the divine worship; for it is noticed that there is seldom a church in their charge which is sufficiently clean and well kept, since they do not make repairs in time, or apply to this purpose any of their perquisites. These they spend for their own use and on their own families, who inevitably remove from their own natal village to that of the curacy, and thus become even more slothful than they are by nature. They are quite unlike the regulars, who, being reared in different principles and trained in the purest teachings of our Catholic religion, generally have no other aim than that of the proper care of their churches.”

On July 1, 1788, the proprietary governor Félix Berenguer de Marquina assumed the reins of office, and all matters connected with the exchequer returned to their former condition. In a decree of March 29, 1789, he ordered that the appointment of the heads of barangay should be made by the provincial governors, after being proposed by the notables [*principalia*] of the respective villages. An expedition was sent out from Spain by the government in July, 1789, to make scientific observations and draw plans and maps of the coasts of Spanish America and the Marianas and Filipinas islands, with new sailing routes. One of its members was Antonio Pineda, a native of Guatemala and a Spanish officer, bearing official commission to study the flora of Filipinas and the condition of agriculture. Unfortunately he died while there (July, 1792), while making scientific observations in Ilocos; he was but thirty-nine years old. A monument was erected to him at Malate, but has been practically destroyed by the ravages of time. The archbishopric of Manila was administered, from October 16, 1789, by Juan Orbigo y Gallego,³⁴ a Franciscan, previously bishop of Nueva Cáceres. Marquina drew up, in January, 1790, a “Plan of reforms for the government of Filipinas,” which he considered necessary for the prosperity and

advancement of the islands, and in order that the yearly remittance from the Mexican treasury might be stopped. He proposed the fortification of Manila and Cavite, an increase in the military force, and an increased capitation tax on the Chinese in order to meet this greater expense for the army; also the opening of the port of Manila to all foreign commerce, and various changes in the Acapulco trade. He advised that Filipinas should be made a viceroyalty, and the viceroy be rendered independent of the Audiencia and of the religious orders. Other reforms proposed were: “The formation of a company of marines for manning the vessels sent out to cruise [against the Moros], and another of marine artillery for the same purpose; the reform of the chief accountancy by limiting its exorbitant powers; the establishment of an *acordado*,³⁵ or a sort of police, in the provinces, directed rather to intimidating and restraining [criminals] by means of vigilance than to punishing them with harshness and violence; allowance of fixed and decent salaries to the *alcaldes-mayor*, and putting a stop to their trading (which absorbed all their time, with great risks to impartial conduct and justice); the desirability of abolishing the odious monopolies on playing-cards and gunpowder; the transfer of the natives from the Batanes Islands to Cagayán, on account of the wretched condition of the former; and the advantage of occupying, in preference to the Batanes, the island of Mindoro—which was richer, and nearer to Manila, and [at the time] reduced to the utmost indigence by having been abandoned [by its inhabitants] and by the incursions of the Moros.³⁶ The colonization of various islands with Catalans, Valencians, and Galicians, in order that they might be preëminently devoted to agriculture; taking advantage of the gold placers, so abundant in the country, from which was obtained no less than 200,000 pesos’ worth of gold a year; the establishment of a mint, with which the exportation of gold from the country would be avoided. The increase of the cruising vessels, and distribution of these into three divisions, placing in each one a *panco*, in order to fight the pirates better; the necessity of conferring ample powers upon the governor (who had to establish all these improvements) without his having to be subject to the board of the royal exchequer, ‘since I know by experience that the opposition which I am accustomed to meet there is not actuated by zeal for the benefit of the royal service, but for personal ends;’ and the creation of another secretaryship, in order to attend to the crowd of matters which were a burden on the governor and captain-general.” He also proposed to place in one fund the revenues from tobacco, wine, and customs duties. On March 2, 1790, were published the regulations for the sale of wine under the monopoly arrangement; the dealers were declared exempt from *polos* and personal services,³⁷ must sell only pure wines, without any mixture of water, and must always keep a supply on hand.

A royal decree of May 14, 1790, ordained that the Chinese should pay a capitation tax of six pesos a year. In the same year the regiments of Pampanga and Zambales

and Bataán were formed, in order to increase the disciplined militia of the provinces. In July the governor received a letter from the king of Cochinchina, asking that two of his ships, then at Canton, might be aided on their arrival at Manila, with money to make needed repairs and buy a quantity of sulphur,³⁸ on the king's account; this was done, and afterward approved by the Spanish government. In October, the curacies of Ilocos—which, formerly held by the Dominicans, had remained vacant since Santa Justa's effort to enforce the diocesan visitation—were placed in the hands of the Augustinians, with the provision that the royal right of patronage should be observed in the appointments to these new ministries. The death of Carlos III occurred on December 14, 1788, but the official notification (despatched a fortnight later) did not reach Manila until July, 1790. In the following November the solemn proclamation of the accession of Carlos IV, and the oaths of allegiance to him, were celebrated at Manila with fiestas which lasted from the third to the twenty-first of that month. A description of these festivities was published (1791) by the Dominican Fray Manuel Barrios, a lecturer in Santo Thomás university, from which Montero y Vidal quotes liberally (pp. 329–338). They included, besides the splendid and solemn character of the ceremonies themselves, “a general illumination of the city during three consecutive nights, pontifical mass and *Te Deum* in the cathedral, levees at the palace, dances in the cabildo buildings, masquerades, banquets, fireworks, comedies, and even a bullfight.” The Filipino natives and the Chinese³⁹ also contributed to the festivities, with devices or entertainments peculiar to their customs. Thus says Barrios: “It ought to be understood that the taste of the Chinese, in the matter of spectacles and public diversions, is based on ideas that are very different from, or rather quite contrary to, our own. As proof of this, is sufficient the spectacle which they presented on this night, the first sight of which might astonish any European who might not have seen beforehand some diversion of this people. A lion spitting fire, more terrible than those which grow up in the deserts of Zaara [*i.e.*, Sahara], was followed by an enormous serpent, more than fifty cubits long, which made extraordinary movements and contortions on account of swallowing a globe of fire which floated before it through the air; and behind the serpent came another lion, no less fierce than the first. This spectacle was made even more terrible by the confused din of the gongs, which the Chinese beat without ceasing. The lions fought each other, with the greatest ardor and pertinacity; and the serpent performed many pleasing movements and evolutions, causing admiration of the skill with which so huge a mass moved about so swiftly. Finally, the two lions began to swell, and brought forth an abundance of fireworks; and it would be unjust to the Chinese if I did not state here that this display, although of short duration, was very handsomely designed. One of the lions being now set on fire, it began to run around through the plaza, with an incredible velocity, which spectacle gave much pleasure to those present. On the following day the Chinese presented a comedy in Royal Street,

Binondo, which, begun at three in the afternoon, lasted until four the next morning; and even then they say that it was a short one compared with what they are accustomed to. During the following nights they went out through the suburbs, and there was no street through which the huge serpent did not move, to the intense delight of the people who followed it.” On this occasion the royal consulate (of commerce) of Manila distributed 3,000 pesos in alms to poor widows and orphans, and doweries to penniless girls. One Pedro Galarraga displayed both ingenuity and profuseness; “he diverted the crowds of people, and carried to the stars the name of his august sovereign, by means of a large aerostatic globe, which crossed the bay and was lost to sight among the clouds. The festivity was crowned by the liberality of the said Don Pedro, who flung to the people a quantity of coin bearing the stamp of the new monarch; and on the following day he also distributed these to all persons of distinction.” Finally, the rector of Santo Thomas and the Dominican provincial had a celebration of their own, with fireworks, a dance at the palace performed by the students of that university, and the recitation of a poem before the governor and all the distinguished personages of Manila, eulogizing the loyalty of that city and its people.

Marquina took much pains to have the obras pías honestly administered. He ordered that the nipa houses which still existed within the walls of Manila should be torn down, as being both a disfigurement and a danger to the city. During his term of office, a severe epidemic of smallpox was experienced in Filipinas; and he gave large sums to the parish priests to relieve the poverty caused by the pestilence. The islands were ravaged by the Moros year after year, the naval force of the Spaniards doing little more than to remain on the defensive; and in 1789 Marquina wrote to the king saying that the continual warfare of the Moros was “an evil without remedy.” Mahomet Sarpudin, the successor of Ali-Mudin II, was very crafty and deceitful, and, while professing to be a friend of the Spaniards, he sent out Illano pirates against the merchant vessels, some of which were captured by Mahomet’s own followers. Marquina met with much trouble in his government, from “class interests” and from the ingratitude of those whom he had helped; he resigned his office, “and returned to España poor and disheartened.”⁴⁰ The king made him Viceroy of Mexico.

Marquina’s successor was a military officer, Rafael María de Aguilar y Ponce de León; he began his duties as governor on September 1, 1793. From the first, he was desirous of checking the Moro raids; but reports came that the English were going to attack Filipinas again, and his first efforts were directed to the defense of Manila and Cavite. He raised a force of 10,000 armed men, forming companies of Spaniards and of mestizos, and stationed detachments in outpost batteries in the environs of the city. He strengthened the walls, and tore down houses which menaced them; and

increased the naval forces, also establishing a naval station and lookout on Corregidor Island. The English learned of Aguilar's preparations to receive them, and concluded not to go near Manila; "but they allied themselves with the Joloans, inciting them to invade the Visayas." Marquina's "plan for reforms" was sent back to the islands, the king asking that it be considered by the royal officials there, who should send him a report and their decision as to its advisability; "but as it attacked objects so powerful in the islands as the regular orders, the Audiencia, and the comptroller and officials of the exchequer, it is useless to show what report would be that sent out [by them] in regard to the plan of Marquina, which was in many respects extremely clear-sighted." In 1794 a shipyard, independent of that at Cavite, was erected in Binondo, its principal purpose being to construct vessels with which to follow up the Moro pirates; it was called La Barraca ("the barracks"),⁴¹ and was "famous for the enormous expenses which were suspected in the construction work carried on there." It was placed in charge of Juan Nepomuceno Acuña, and its directors were, *ex officio*, the royal officials. On Christmas Day in 1796, a Spanish squadron of five vessels arrived at Cavite, commanded by an officer of high rank, Ignacio María de Álava;⁴² it was sent for the defense of the islands in case of another war with Great Britain—which indeed was declared soon after the fleet's departure, the news of it reaching Manila in March, 1797. Álava set out with his squadron on April 19, to attack the English fleet which was on its way from China to London, little dreaming that a powerful squadron of their enemy was so near. But an unexpected hurricane arose just before the fleets met, and nearly wrecked the ships of Álava, which after a hard struggle made their way back to Manila with broken masts and torn rigging. A royal decree of September 24, 1796, ordered the transfer of the shipyard at San Blas⁴³ in California to the port of Cavite, in order (to quote from the decree) "that a shipyard may be formed there of sufficient capacity to protect the settlements in that colony from European forces and from the piratical raids of the Mahometans who occupy the neighboring islands, and to assist with doubled power and resources our squadrons in South America and Asia." At its head was placed Juan Villar, a competent and experienced constructor from the shipyard at Havana, furnished with competent foremen to work under him, and with "plans and specifications suitable for every class of vessels;" and provision was made for the immediate construction of lanchas carrying guns and mortars. "This measure was the origin of the arsenal of Cavite."⁴⁴ The royal officials were angry that the management of La Barraca, with its opportunities for profit to themselves, should be taken from them; and they refused to allot to Villar the salary to which he was entitled—that which he had received at Havana, and one-half more for going to Manila in the royal service. This brought on heated controversies between Aguilar and Álava, which lasted a year and a half before they were settled, Villar and his

subordinates meanwhile residing in Manila; finally, Álava carried his point, and Villar was placed in his post at Cavite, with the salary which he ought to receive. In 1796 the grenadier regiments of Luzón and Batangas were created, as a part of the provincial disciplined militia; also five battalions of militia, the Malabar company at Cavite being abolished.⁴⁵ In the same year there was felt in Manila and in many other provinces of Luzón one of the greatest earthquakes which has ever occurred in the archipelago; and in October, 1797, another calamity was the loss (on the coast of Albay) of the galleon San Andrés, laden with a rich cargo for Acapulco—"due to its commander's complete ignorance of nautical affairs;" he was a merchant of Manila, instead of an experienced navigator. In 1799 Aguilar published (January 30) a decree prescribing the method for making the registration of the natives for the punctual collection of the tributes; and another (October 30), prohibiting the exportation of small silver coins. The home government recommended (August 5, 1799) to the governor of Filipinas that he encourage the cultivation of the mulberry, cinnamon, pepper, cacao, and cotton. In that year, the fragata "Pilar" arrived from America with \$1,200,000 for the aid of the islands. "In 1800 Aguilar ordained that no public work should be commenced without the previous knowledge of the government of the islands, in order to avoid their being constructed with injurious consequences to the natives, as was found to be the case in many places. Also, by edict of July 19 in the same year he prohibited the construction of vessels having more than fifteen cubits of keel, without the permission of the authorities, obliging the owners, under penalty of 200 pesos fine, to comply with the plans which would be furnished to them for a moderate sum by the [government] shipbuilder Don José Blanchic." Álava and his squadron were unable to do much toward checking the Moro raids, being continually detained at Manila on account of the threatened attack on that city by the English; but that officer vigorously organized and regulated the naval station at Cavite, made excursions into the provinces in order to become better acquainted with the resources and topography of the island, and protected the commerce of Filipinas with China and Nueva España. A royal decree of September 27, 1800, ordered him to establish a naval bureau at Manila, "with the full powers of command and jurisdiction prescribed in the Ordinances of the navy and subsequent royal orders," which he should place in working order before his return to Spain; its objects were, "the defense of the Filipinas Islands, improvement in the construction of the vessels, knowledge of the hydrography and navigation of those seas, and the management of the arsenal at Cavite;" and for its first chief was appointed Captain Ventura Barcáiztegui. When Álava undertook to execute this commission, Aguilar refused to surrender La Barraca to him, as also the men and vessels of the privateer force which had been organized earlier to punish the Moros—alleging that this fleet had its own rules and was not affected by the naval Ordinances; and that the internal defense of the islands belonged to him, as being captain-general therein. Álava had to yield, and

established the naval bureau as best he could with the scanty means at his disposal; he also drew up regulations for its administration. He left Manila, to return to Spain, on January 6, 1803. In 1806 Aguilar, being seriously ill, surrendered his office of governor to the king's lieutenant on August 7, and died the next day, after thirteen years' rule; (this is the longest term of a governor's office during the entire history of the islands).⁴⁶

¹ This résumé of events during the latter part of the eighteenth century is compiled from Montero y Vidal's *Historia de Filipinas*, ii, pp. 66–70, 115–140, 229–382; that work is mainly annalistic. Of those which we have used in former volumes, Murillo Velarde's stops at 1716, and Concepción and Zúñiga at the siege of Manila (evidently for the prudential reasons, connected with persons still living, which Zúñiga frankly assigns in his own case); Montero y Vidal is therefore the only writer now available who follows the thread of secular events connectedly throughout the later history of the islands. Wherever possible, we have used his own language—which, in long citations, or special phrases, is distinguished by quotation marks. [↑]

² On March 27, 1765, Viana declared (*Respuestas*, fol. 113) that the natives of Pangasinan ought to be compelled to pay all arrears of tribute due since the last collection made before the English invasion; that the village notables should not be exempted; and that each tribute ought to pay two reals extra to reimburse the government for the costs of putting down the rebellion in that province. Later (fol. 134), he estimates that the tributes in that province are the same as before the war; “for, although it is certain that a great many of the insurgents died, it is also evident that the reduction [of the province] prevents the concealment of the tributes which was formerly practiced by the heads of barangay.” [↑]

³ Puch specified the *alcaldes-mayor* (VOL. XLIX, p. 337, note 208)—cf. what Viana says of those officials in his “Memorial” (VOL. XLVIII), chapter v, sections 34–38—but his remarks were considered as reflections on higher officials. [↑]

⁴ Ferrando (v, pp. 9–16) says that Puch was engaged, by order of his provincial, Father Bernardo Pazaengos (more correctly written Pazuengos), and at the urgent requests of other pious persons, in conducting a sort of mission in the city, “with the object of correcting the many vices which had been introduced into Manila during the invasion by the English;” and in one of those sermons he made the utterances which brought him into trouble. The Audiencia resolved to notify the provincials of all the orders and the dean of the cathedral that they must order their subordinates to conform to the laws in regard to their preaching; and the Jesuit provincial in particular, that he also take care that Puch should give satisfaction to the Audiencia and the public for his reflections on government officials. Pazuengos laid the case before the heads of Santo Tomás university, and, as their decision was in his support, he answered the Audiencia that he had ordered the priest hereafter to obey the law cited by the Audiencia; but that he declared Puch to be “immune and exempt from blame” in regard to the remarks made in the sermon before mentioned, and protested that he did not intend to censure in the least the acts of the Audiencia. He added that, if this were not enough, he would send Puch to the Mindanao missions. This aroused Viana's anger, first “against the Jesuits, and afterward against all the other orders; and he finally issued an official opinion filled with calumnies and invectives, which might rather be called a defamatory libel.” At this all the orders took up the matter, especially resenting Viana's attitude because they had supported the government so

loyally during the English invasion: the superiors held a special conference in the convent at Tondo, and agreed to draw up a remonstrance to the king against the fiscal's unjust attack on them, demanding that he investigate the whole affair and decide it according to justice. Ferrando condemns Puch's imprudent remarks, but regrets that the matter had not been settled by his superior, instead of dragging the other orders into the quarrel and thus eventually causing trouble at court for all of them, especially for the Jesuits. Ferrando adds (p. 24): "We have also another key to explain the hostility which certain persons at that time manifested toward the religious orders in these provinces over seas, in the sinister Pleiad of ministers who then surrounded the Catholic king. Aranda, Roda, Campománes, Azpuru, and Floridablanca all had connections, more or less evident and close, with the French encyclopedists and philosophers of that time, and all emulated Tanucci in regard to regalist doctrines"—that is, maintaining the rights and prerogatives of the state as against the church (Gray's *Velázquez Dictionary*).

In regard to this last statement, cf. Manuel Danvila y Collado, in his *Reinado de Carlos III*, ii, pp. 561–564: "Religious intolerance, still great in the reign of Felipe V, tended to extinction in succeeding reigns. In the almost half a century during which he occupied the throne, there were in España twelve inquisitors-general; and such was the hold which the Holy Office possessed in public opinion that, in order to entertain the new king, a solemn *auto de fe* was held in 1701, which he declined to attend. Nevertheless, he protected the Inquisition, because Louis XIV had advised him to support it as a means of maintaining tranquillity in the country; he availed himself of it to inspire respect for the oath of fidelity which was given to the new monarch; he repressed the Jewish worship which, again and secretly, had been propagated in España after the annexation of Portugal; but it was the general opinion that rigor against the heretics diminished after the advent of the house of Bourbon. The sect of Molinos was persecuted and punished with severity; even Macanaz, the enthusiastic defender of the royal prerogatives, was banished from España, for political rather than religious motives; and the third volume of the *Historia civil de España*, by Fray Nicolás de Jesús Belando, who dared to defend the regalist idea, was prohibited. These rigorous proceedings diminished during the reign of Fernando VI, who permitted Macanaz to return to España, and who established as a principle that the coming of the Bourbons to the throne of the Españas was to produce a complete modification of the system of the Holy Office ... Even the Concordats of 1737 and 1753, by recognizing the royal prerogatives of the crown of España, authorizing the taxes on the estates of the clergy, and reforming various points of discipline, allowed the admission of some ideas which ignorance or superstition had until then deemed irreligious or favorable to impiety. The *Diario de los literatos* also enlightened many people in regard to knowledge of the books which were being published, and the judgment which ought to be formed of them; and the weekly sheets gave acquaintance with foreign works which no one knew of, and which were a preparation for the interesting literary transformation of the epoch of Fernando VI; while at the same time the rigors of the Inquisition were relaxed, in harmony with the change which had been produced in public opinion. Indeed, from that time the Holy Office occupied itself only with persecuting the Jesuits and the Free Masons (who had been excommunicated by the bull of Clement XII of April 28, 1738, renewed on May 18, 1751). ... There certainly is no room for doubt that, partly through the progress of public opinion and partly through the knowledge which was obtained here of the works of Diderot and D'Alambert—and especially of the *Encyclopedia*, begun in 1751, and concluded in 1772—it became the fashion and people were proud to have acquaintance with the tendency of the philosophy proclaimed by the French freethinkers—but they did not comprehend that this philosophy necessarily led to revolution, and with it to the loss of all property rights (which

was the foundation of its influence in society), and the annihilation of all political influence within the state.... The Spanish nobility were seduced by the philosophic or Encyclopedistic propaganda of France.”

The official opinion by Viana regarding the Puch episode may be found in a MS. volume entitled, *Respuestas dadas por el fiscal de S. M.*, fol. 22v–26; it is apparently Viana’s own original record of his official opinions delivered to the Audiencia during the year 1765, and is in the possession of Edward E. Ayer, Chicago. This book furnishes valuable information regarding conditions in the islands after the departure of the British forces. ¹

⁵ Le Gentil (who sojourned in Manila from 1766 to 1768) relates in his *Voyage* (t. ii, pp. 199, etc.) various incidents to show this; and Raón even displayed to Le Gentil the magnificent presents which he had received from the officers of a French ship which came to Manila in evasion of the prohibition of foreign trade there. Raón was also condemned, in his residencia, for having revealed to the Jesuits, beforehand, for a large sum of money, the news that their expulsion had been decreed, and for other acts of disobedience to the royal commands regarding that expulsion. ¹

⁶ This date is incorrect, for the fiscal gave his assent to the manufacture of *barrillas* on February 16, 1765. This is shown by the entry for that date in Viana’s *Respuestas* (MS.), fol. 89; he makes the express stipulation that these *barrillas* be used only for petty payments, and not for important transactions. From fol. 108v it appears that these coins were immediately made, but in too great haste, and were called in by the authorities, late in March. ¹

⁷ See Jagor’s description of the great volcano of Mayon and his ascent of it (September, 1859), with a list of its known eruptions, in his *Reisen*, pp. 75–84. Cf. Le Gentil’s description of it and of this eruption (*Voyage*, ii, pp. 13–19); he cites at length a letter from the then alcalde of Albay. Its summit was considered inaccessible until two young Scotchmen made the ascent in April, 1858. ¹

⁸ Santa Justa belonged to the Order of Escuelas Pías (see VOL. XLVIII, pp. 52–54, note 10). See list of writings by this prelate, in Montero y Vidal’s *Hist. de Filipinas*, ii, pp. 228, 229, 318; also in Vindel’s *Catálogo biblioteca filipina*, pp. 380–389; they are mainly pastoral letters, and memorials to the Spanish government. ¹

⁹ When Raón insisted on enforcing the royal rights of patronage, the orders all resisted him, repeating the arguments which they had alleged to Arandía in the like case. The Dominicans declared that they could not obey the governor’s commands until they could receive orders from their superiors in Europe; Raón refused to wait, and the provincial declared that his curas would rather surrender their ministries, but would continue to serve therein until the governor, as vice-patron, should command that these be surrendered to other curas. “This was sufficient to make the archbishop hasten to deliver to the secular clergy, first the ministries of the Parián and Binondo, and afterwards those of the province of Bataan, notwithstanding that he could have no cause for complaint against our religious, who without resistance or opposition had accepted his diocesan visit, as he himself confessed in letters to the king and the supreme pontiff. He found a pretext for proceeding to the secularization of the curacies in Bataan, in the banishment of the Jesuits, whose expulsion from the islands occurred at the same time as the events which we are relating.” “As the ministries in the island of Negros were left vacant in consequence of the expulsion of the Jesuits, the governor addressed himself to our provincial, asking for ministers to occupy those vacant posts. The latter excused himself from this, on account of the lack of religious; and the archbishop made this a pretext for informing and counseling the governor that, since the

Dominicans had offered their resignation of the doctrinas in the province of Bataan, on account of the controversy over the right of patronage, the religious who were ministering in that district could be sent to the island of Negros. He offered to provide secular priests in their place, and availed himself of this opportunity to despoil our religious of the curacies or ministries of Bataan. In effect, this was done; and our religious were compelled to abandon to the seculars this province of the archbishopric, in order to go to learn a new dialect and minister to strange peoples in the inland of Negros.” “The bishop of Cebú had no secular priests capable of replacing the Jesuits (as deserving as persecuted), who were administering the island of Negros and the province of Iloilo,... consequently, our religious began to minister in the villages of Iloilo, Himaras, Mandurriao and Molog, in the island of Panay; and those of Ilog, Cabancalan, Jimamaylan, and Guilgonan, in that of Negros. With great repugnance the province took charge of an administration of which the Jesuit fathers had been despoiled in so unworthy a manner; and not only on this account but on that of the great difficulties which arose from this separation of provinces and villages, in the regular visiting of them and in intercourse and the supply of provisions, our fathers abandoned those ministries at the end of some years; and in the meantime the bishop of Cebú undertook to transfer their administration to the secular priests. Thus it was that by the year 1776 our religious had departed from all those villages.” (Ferrando, *Hist. PP. dominicos*, v, pp. 39, 42, 43.) ¹⁰

¹⁰ “All the curacies of the banished Jesuits, those of the Dominicans and Recollects, and those of the Augustinians in Pampanga, were handed over to the secular clergy. In order to fill so many curacies with ministers for instruction, the archbishop was obliged to ordain so many Indians that it became one of the most reprehensible abuses that can be committed by a prelate. On account of this it was a common saying in Manila that rowers for the pancos could not be found, because the archbishop had ordained them all.” (Buzeta and Bravo, *Diccionario*, ii, p. 279.)

The result was a great disappointment to the archbishop himself, as may be seen by his exhortations and pastoral letters addressed to them; some of these may be found in Ferrando, *Hist. PP. dominicos*, v, pp. 51–61. He recounts their ignorance, neglect of duty, sloth, vicious practices, cruel treatment of the natives, and even thefts from the churches entrusted to their care; he reproaches, exhorts, commands, and threatens, and calls them to account before God for their transgressions. From Ferrando (pp. 59–60) we translate Santa Justa’s “Instructions to the secular clergy” in 1771; it will appear later in this volume. ¹¹

¹¹ Forrest makes the following statements about the laws and government of the Mindanao Moros (*Voyage to New Guinea*, pp. 277, 278):

“Though laws are similar in most countries, each has some peculiar: the principal of Magindano are these. For theft, the offender loses the right hand, or pays threefold, just as among the Mahometans of Atcheen. For maiming, death: adultery, death to both parties: fornication, a fine. (The industrious Chinese seem to be excluded from the benefit of law: those in power often forcing *kangans* upon them, and making them yearly pay heavy interest. The ordinary punishment of incontinence in female slaves to their masters, is cutting off their hair; which was a custom in Germany, in former days.) Inheritance goes in equal shares to sons, and half to daughters; the same to grandchildren. Where are no children, whole brothers and sisters inherit. If there are no brothers or sisters, or nephews, or nieces, or first cousins, the Sultan claims it for the poor. It is the same, ascending even to the grand-uncle. If a man put away his wife, she gets one third of the furniture; also money, in proportion to his

circumstances. A child's name is not given by priests, as in the Molucca islands, and in other Mahometan countries. The father assembles his friends, feasts them; shaves off a little lock of hair from the infant head, puts it into a bason, and then buries it, or commits it to the water.

"The form of government at Magindano, is somewhat upon the feudal system, and in some measure monarchical. Next to the Sultan is Rajah Moodo, his successor elect. Then Mutusingwood, the superintendant of polity, and captain Laut, overseer of the Sultan's little navy, are both named by the Sultan. There are also six Manteries, or judges named by the Sultan, and six Amba Rajahs, or asserters of the rights of the people: [elsewhere, Forrest calls them "protectors of the people's privileges"]; their office is hereditary to the eldest son. Although the Sultan seems to act by and with the advice and consent of the Datoos, not only of his own family, but of others; yet, this compliance is perhaps only to save appearances. When he can, he will doubtless be arbitrary." ¹

¹² Montero y Vidal gives no date for this expedition, but the reader would infer that it occurred about 1766. Later, he ascribes this proceeding to Governor Basco; so he has either confused his data, or neglected to state whether (as is possible) the pirates were twice expelled from Mamburao. ¹

¹³ "*Plan of the present condition of the city of Manila, and of its environs and suburbs. Explanation.*—A. Royal fort. B. Small bastion of San Francisco. C. San Juan. D. Santa Ysabel. E. San Eugenio. F. San Joseph. G. Ancient redoubt. H. Bastion of the foundry. I. A kind of ravelin. J. Bastion of San Andres or Carranza. K. Bastion of San Lorenzo of Dilao. L. Work of the reverse. M. Bastion and gate of the Parian. N. Bastion of San Gabriel. O. Bastion and gate of Santo Domingo. P. Bastion and gate of the magazines. Q. Bastion or stronghold of the fortin. R. Royal alcaiceria of San Fernando. S. The cathedral church. T. San Domingo. V. San Francisco. X. San Agustin. Y. The church of the former Society of Jesus. Z. San Nicolas de Recoletos. 1. San Juan de Dios. 2. Royal chapel. 3. Santa Clara. 4. Santa Ysabel. 5. Santa Potenciana. 6. Beaterio of the former Society, and now of Buena Enseñanza [*i.e.*, good teaching]. 7. Beaterio of Santa Cathalina. 9. College of San Phelipe. 10. College of the former San Joseph. 11. College of Santo Thomàs. 12. Royal hospital. 14. Convent, parish church, and the capital village of the province of Tondo. 15. Parish church of the village of Binondo. 16. Parish church of the village of Santa Cruz. 17. Parish church of Quypo. 18. Convent and parish church of San Sebastian. 19. Convent and parish church of the Parian. 20. Chapel of San Anton, a chapel of ease. 21. Convent and parish church of Dilao. 22. Parish church of San Miguel. 23. Hospital of San Lazaro. 24. Ruined convent of San Juan de Bagombaya. 25. Hospital of San Gabriel. Here the Sangleys are treated. 26. Convalescent hospital of San Juan de Dios. 27. Mayjalique, a former estate of the Society of Jesus. 28. Palace where the Governor resides. 29. Royal Audiencia and accountancy. 30. Houses of cabildo. 31. Battery of the English. 32. Spanish battery." [Below is given the scale to which the map is drawn: 700 varas to 13 cm. The size of the original MS. map is 94 × 64 cm.] ¹

¹⁴ Cf. Anda's earlier management of revenues: "Anda insisted that his successor should review the accounts of his administration; and the result of the expert examination was, that in spite of the war which Anda had maintained, and of the fact that he had paid for whatever expenditures were necessary, he had consumed only the comparatively insignificant sum of 610,225 pesos. Thus out of the 3,000,000 pesos which he received by the ship 'Filipino,' the large amount of more than 2,000,000 found its way into the treasury." (Montero y Vidal, *Hist. de Filipinas*, ii, pp. 115, 116.)

On January 14, 1765, Viana rendered an opinion (see his *Respuestas*, fol. 67v–74) regarding the protest made by the citizens of Manila against the royal order that they must contribute 180,000 pesos for the king’s needs; he rebukes their selfishness, timidity, and lack of loyalty, but advises the governor to convene the citizens, and ask them for spontaneous and loyal offerings to meet the needs of the royal treasury. The contribution demanded was to be repaid by lading-space on the Acapulco galleon, with which arrangement the citizens were dissatisfied; but Viana refutes their objections, and reminds the Audiencia of the expenses for troops, administration, etc., which are necessary for the protection and defense of those very citizens. In this document, Viana states that of the money saved from the treasure brought to Manila by the “Filipino,” 1,000,000 pesos was distributed among the obras pías, and half as much to the citizens; and that later Torre ordered that all of it be handed over to the latter. [↑]

¹⁵ See also Le Gentil’s account of the earthquakes which he experienced while at Manila (*Voyage*, ii, pp. 360–366). He states that the Spaniards distinguished two kinds of earthquakes: *terræ moto*, a trembling which “makes itself felt from below upward;” and *temblor*, when the trembling is felt in undulations, like those of the sea.

A list of the earthquakes which the Philippine Islands (and especially Manila) have suffered was made by Alexis Perrey, and published in the *Mémoires* of the Academy of Dijon, in 1860. (Jagor, *Reisen*, p. 6.) [↑]

¹⁶ See, as an instance of this, the citation made by Mas (*Informe*, i, part ii of “Historia,” pp. 18, 19) from a MS. by Martínez Zúñiga, complaining of Anda’s conduct toward the friars. Mas, however, cordially endorses most of Anda’s conduct while in command in Filipinas. [↑]

¹⁷ See this document, *post* (Anda’s *Memorial*). Montero y Vidal cites a section from it, and compares several paragraphs of another one with the royal instructions, to show their similarity; see his *Hist. de Filipinas*, ii, pp. 239–244. [↑]

¹⁸ Fray Miguel Garcia, bishop of Nueva Segovia, died at Vigan, on November 11, 1779. [↑]

¹⁹ The present lists of the islands contain no such name as Balambangan. As Montero y Vidal says that it was next to Cagayán de Joló (now Cagayán Sulu) it may be the islet now called Mandah, just north of the former; its area is one-half a square mile. [↑]

²⁰ When the Chinese were expelled from Manila in 1758, many of them went to reside in Joló, where some 4,000 were found at the time of Cencelly’s expedition; these took sides with the Joloans against the Spaniards, and organized an armed troop to fight the latter. (Montero y Vidal, *Hist. de Filipinas*, ii, p. 265.) [↑]

²¹ “The Datos at once feared the vengeance of the English, and declared Tenteng unworthy of the rights of a Joloan and an outlaw from the kingdom with all his followers. The Sultan wrote to the governor of Zamboanga, assuring him that neither himself nor the Datos had taken part in this transgression; and he asked the governor to send him the *Curia filípica* and the *Empresas políticas* of Saavedra, in order that he might be able to answer the charges which the English would make against him. (This sultan Israel had studied in the college of San José at Manila.)” Tenteng repaired to Joló with his booty and the captured English vessel; “these were arguments in his favor so convincing that he was at once admitted.” He surrendered to the sultan all the military supplies, besides \$2,000 in money, and divided the spoils with the other datos; they received him with the utmost enthusiasm, and raised the ban from his head. “About the year 1803, in which the squadron of General Álava returned to the

Peninsula, the English again took possession of the island of Balanbangan; and it appears that they made endeavors to establish themselves in Joló, and were instigating the sultan and datos to go out and plunder the Visayas, telling the Joloans that they themselves only cared to seize Manila and the Acapulco galleon.... In 1805, the English embarked on thirteen vessels and abandoned Balanbangan.” (Mas, *Informe*, i, part ii of “Historia,” p. 16.)

Montero y Vidal says (pp. 380–382) that the English attacked Zamboanga (1803) on the way to Balambangan, but were repulsed with great loss. They had at the latter place three ships of the East India Company, and five ships belonging to private persons; the garrison included 300 whites, 700 Sepoys under European officers, and 200 Chinese. “In a short time the greater part of these forces abandoned Balambangan to go to Batavia.” “The English, after burning the village and the fort, abandoned Balambangan, on December 15, 1806, doubtless on account of the insignificance of that island.” [↑]

²² Regarding Anda’s birth, see VOL. XLIX, p. 132, note 74. According to Montero y Vidal (*Hist. de Filipinas*, ii, p. 281), he studied at four different schools (jurisprudence, at Alcalá) taking several degrees, including that of doctor in law. He opened an office in Madrid, and attained great fame as an advocate. In 1755 he received an appointment to the Audiencia of Manila, of which post he took possession on July 21, 1761.

Anda was succeeded *ad interim* by Pedro Sarrio, “who found himself obliged to compel the obras pías to lend some money to the government” (Mas, *Informe*, i, part ii of “Historia,” p. 21). [↑]

²³ A full account of this controversy, with the text of some of the official documents therein, may be found in Mas, *ut supra*, pp. 23–28. [↑]

²⁴ By a royal decree of January 12, 1777, it was ordained that the Indians should devote themselves to the cultivation of flax and hemp; this must have originated from a suggestion by Anda. [↑]

²⁵ Zúñiga thus relates the result of this experiment in the village of San Pedro Tunasan (*Estadismo*, i, pp. 29, 30): “The owner of these lands is the college of San José in Manila, which has there a good stone house, and a Spanish manager who attends to the collection of the rent from the tenants. The land is quite fertile; it produces abundance of mangas, cocoanuts, oranges, lemons, camias, balimbins, buyo, sugar, and various other kinds of trees and garden produce. Also there are a good many mulberry trees, and silk is made in the farm buildings. When the Economic Society was established in Manila, when Señor Basco was governor, the rector of the college gave orders that all the land adjoining the farm should be planted with mulberry trees; and, as this tree grows as easily as a weed in this country, in a short time were seen around the house extensive and beautiful plantations of these trees, which could produce an abundant harvest of excellent silk. Silkworms were imported from China, and it was seen that they multiplied readily. Not only on this estate, but in all directions, the promotion of this industry was taken up with ardor. A considerable quantity of silk was made; but on selling it the owners found that they lost money in cultivating this article. When a calculation was made of what the land which the mulberry trees occupied could produce, it was found that even when it was planted with nothing more than camotes it yielded them more than the silk did; add to this the care of the worms and the cost of manufacture, and it will be found that those who devote themselves to its culture must inevitably lose. In other days the promotion of the silk industry had been considered at Manila; and an old printed sermon has been found, written by an Augustinian father, who stated therein the measures which had been taken to introduce into the

Filipinas islands an industry which could be very profitable for them. The father preacher exhorted the inhabitants to devote themselves to an occupation which could be so useful to the nation; but those who directed the Economic Society of Friends of the Country took good care to keep that quiet, so that the farmers might not be discouraged by seeing that in other days the cultivation of this product had been attempted, but had been abandoned because, without doubt, no benefit resulted to the producers. But, no matter how many precautions were taken, and efforts made to persuade those who might devote themselves to this industry that much profit could be obtained from it, every one abandoned it. The rector of San José alone continued to manufacture the silk that was yielded from the mulberry trees which he had planted, although at last he had to abandon his project. The silkworms multiply well in Filipinas, and are in a condition to make silk throughout the year; and, as the mulberry trees are always in leaf, silk is yielded all the time. There is practically not a month [in the year] when some silk cannot be obtained—very different from España, where it is necessary to stop gathering silk throughout the winter, as the trees have no leaves. Notwithstanding all these advantages, as we are so near China, which furnishes this commodity very cheaply, it cannot yield any profit in these islands—where, besides this, the daily wages which are paid to workmen are so large, and what they accomplish is so little, on account of their natural laziness, that it is not easy to push not only this but even any other industry in this country.” [↑]

²⁶ *Acordado*, literally, meaning “decision;” *lo acordado*, “decree of a tribunal enforcing the observance of prior proceedings.” Mas says that these magistrates were appointed in imitation of those who performed such functions in America. [↑]

²⁷ See Jagor’s note on this association (*Reisen*, pp. 307, 308). [↑]

²⁸ “Only one plant of those that were carried to the Filipinas Islands was introduced, and its cultivation directed, by the government; this was the tobacco. Perhaps there is no other which is more enjoyed by the natives, or more productive of revenue, than is this plant. So important for España is its utility that it alone, if his Majesty’s government promotes its maintenance intelligently, can become a greater resource than all the other incomes of the colony.” “Tobacco is the most important branch of the commerce of these islands; its leaves, which in all the provinces are of excellent quality, in some of them reach such perfection that they cannot be distinguished from those of Havana. The government has reserved to itself the right to sell tobacco; its manufacture is free only in the Visayas, but in all the island of Luzon this is subject to the vigilance of the government. Nevertheless, the proprietors or growers are permitted to cultivate it in Pampanga, Gapan, Nueva Ecija, and in the province of Cagayan; but the government buys from them the entire crop at contract prices.” “To the far-seeing policy of the captain-general Don José Basco is due the establishment of this revenue, one of the richest in the islands. Its direct result, a short time after it had been established, was that the obligations of the colony and its political existence, far from depending, as before, on an allotment made in its favor by the capital, were advantageously secured; and in the succeeding years this branch of the revenue displayed a very notable increase, with well-grounded indications of the greater one of which it was susceptible. In 1781 this income was established; and at the beginning of 1782 it was extended to the seventeen provinces into which the island of Luzon was then divided. It is easy to estimate the resistance which was encountered in establishing this revenue—not only through the effect of public opinion, which immediately characterized the project as foolhardy, but through the grievance which it must be to the natives and the obstacles continually arising from the contraband trade. Certainly it was hard to deprive the natives suddenly of the right (which they had enjoyed until then) of

cultivating without restriction a plant to the use of which they had been accustomed from infancy, being regarded among them as almost of prime necessity. But there was no other means, if that worthy governor's economic idea was to be realized, than the monopoly, which should prohibit simultaneously in the island of Luzon the sowing and cultivation of the said plant, reducing it to the narrow limits of certain districts, those which were most suitable for obtaining abundant and good crops. If to this be added the necessity imposed on the consumers of paying a higher price for a commodity which until then had been easily obtained, we must admit that the undertaking was exceedingly arduous and hazardous." "At the outset, districts were set aside in which its cultivation was permitted: Gapan, in the province of Pampanga; some districts in Cagayan, and the little island of Marinduque—although in these last two places only an insignificant amount was harvested. Notwithstanding the difficulties which surround every new enterprise, from the year 1808 the net profits which the monopoly annually produced exceeded 500,000 dollars [*duros*]." (Buzeta and Bravo, *Diccionario*, i, pp. 51, 173, 438, 439.)

See Jagor's interesting account of the tobacco monopoly (especially in the middle of the nineteenth century), in his *Reisen*, pp. 257–270. One of his notes (p. 256) states that the income from this monopoly was \$8,418,939 in the year 1866–67; another (p. 259) cites authorities to show that tobacco was first introduced into southern China from the Philippines, in the sixteenth and seventeenth centuries, "probably by way of Japan."

The idea of establishing the tobacco monopoly had been urged by Viana in 1766 (see pp. 109, 110, *post*). [↑]

²⁹ The title given to him was "Conde de la Conquista de las islas Batanes" ("Count of the Conquest of the Batanes islands"); and the principal village in those islands bears the name of Basco. [↑]

³⁰ Regarding the Chinese in Filipinas, see (besides many documents in this series) the following works: Mallat, *Les Philippines* (Paris, 1846), ii, chapters xxii, xxvii, xxix; Jagor, *Reisen*, pp. 271–279; Rafael Comenge's *Cuestiones filipinas*, part i, "Los Chinos" (Manila, 1894); F. W. Williams, "The problem of Chinese immigration in further Asia," in *Report*, 1899, of American Historical Association (Washington, 1900), i, pp. 171–204; *China en Filipinas* (Manila, 1889), articles written mainly by Pablo Feced; *Los Chinos en Filipinas* (Manila, 1886). [↑]

³¹ When the tobacco monopoly was established in Cagayan, the natives so resented this measure "that many of them abandoned the province and went to Manila" (Buzeta and Bravo, *Diccionario*, i, p. 438). [↑]

³² Agustin Pedro Blasquier (Blasquier) was born at Barcelona in 1747, and entered the Augustinian convent there at the age of twenty-one. In 1772 he arrived at Manila, where he completed his studies; and was then sent to Ilocos. Later, he held important offices in his order; he was made assistant to the bishop of Nueva Segovia (1795), and succeeded to that office four years later. He died at Ilagan while visiting his diocese, December 30, 1803. He was of scholarly tastes, possessed a fine library, and left various MS. writings. [↑]

³³ Apparently meaning the obligation of the cura to reside in the home belonging to the parish, provided for his use. [↑]

³⁴ Huerta gives his name (*Estado*, p. 437) as Juan Antonio Gallego or de Santa Rosa, and Orbigo as the place of his birth (1729). He came to the islands in 1759, and after serving in both the missions and Manila, spent the years 1771–79 as procurator of his province to the court of Madrid. Returning to Filipinas, he took possession of the bishopric of Nueva Cáceres (which had been vacant during thirteen years) on April 27, 1780. In his first official visit of that diocese he showed so much devotion and zeal that even the hardships of travel in mountains

and forests there did not prevent him from completing his task, and he was the first bishop to set foot in the Catanduanes Islands. After nine years of this service he was promoted to the archbishopric of Manila, where he was beloved for his virtues. He died at Santa Ana, on May 15, 1797. Montero y Vidal says (*Hist. de Filipinas*, ii, p. 353) that this prelate was “very peaceable, and of excellent character; learned, and plain in his habits; on which account he had no enemies.” ¹

³⁵ See note 26, p. 50, *ante*. An opinion rendered by Viana on April 22, 1765 (*Respuestas*, fol. 126v, 127), shows that the institution of the Santa Hermandad had been transplanted from Spain to the Philippines. It seems that the “alcalde of the Hermandad,” also styled the “provincial alcalde of Manila,” claimed that he ought not to be obliged to go outside of Manila in the exercise of his office (which, by the way, was one of those classed as saleable). The fiscal decides that the alcalde is under obligation to act within the municipal territory and jurisdiction of Manila, which includes all the land within five leguas of the city; that outside that limit he may send a suitable deputy, instead of going in person; that the laws of the kingdom do not fix any definite limits for the jurisdiction of the Hermandad, and that the wording of the alcalde’s commission is ambiguous in the same matter; and that the Audiencia is competent to settle the present question. Viana therefore recommends that suitable action be taken by that court, who are reminded that the aforesaid alcalde receives no salary and his agents [*quadrilleros*] no pay, and therefore he cannot be compelled to go outside of Manila when he maintains and arms these men entirely at his own expense. “The said office can never be of public utility unless it be placed on some other footing.” ¹

³⁶ Montero y Vidal cites (*Hist. de Filipinas*, ii, p. 361) the following from Fray Nicolás Becerra’s *Estado general de la provincia de S. Nicolás de Tolentino de padres Agustinos descalzos de Filipinas* (Sampaloc, 1820): “Before the invasion of the Moros, Mindoro was the storehouse of Manila, on account of the great amount of rice harvested in it. In that epoch—truly a fortunate one for this island, for our order, and for the State—so great was the number of inhabitants that they formed fourteen large ministries (curacies) and one active mission; all this was the result of the careful attention and apostolic zeal of the Recollect fathers, who took into their charge the furtherance of Mindoro’s conquest, at a time when its reduction had only been begun. Then came its desolation by the Moros, leaving it without inhabitants or ministers; and for the two ministries of Calapan and Naujan which remained, and which this province resigned, the illustrious archbishop appointed two clerics. These administered those parishes during twenty-nine years, that is, until the year 1805, at which time Mindoro returned, by special favor of the superior government, to the administration of the Recollect fathers.” Montero y Vidal also states (*ut supra*) that in 1803 Aguilar created a corregidor for Mindoro, with special charge to persuade its remaining inhabitants—who in fear of the Moros had, years before, fled into the interior of the island—to return to their villages on the coasts. He made his headquarters at Calapan, the chief village of Mindoro, and soon the natives returned to their dwellings, while the Moros seldom troubled that region. ¹

³⁷ “Besides the tribute, every male Indian has to serve 40 days in the year on the public works (*pólos* and services), a week for the court of justice (*tanoria*), and a week as night-watch (guard duty). The *pólos*, etc. consist in labor and service for state and community purposes—the building of roads and bridges, service as guides, etc.” This requisition may, however, be commuted to a money payment, varying according to the wealth of the province—usually \$3, but sometimes as low as \$1. “The *tanoria* consists in a week of service for the court of justice, which usually is limited to keeping the building clean, guarding the prisoners, and similar light duties;

but those who in turn perform this service must spend a week in the government building, on call. One may buy his freedom from the tanoria also, for 3 reals; and from the patrol, for 1¾ reals.” (Jagor, *Reisen*, p. 295.)

On pp. 90, 91, Jagor says that the moneys collected for exemption and pólos were in his time sent to Manila, and in earlier days appropriated by the gobernadorcillos (sometimes with the connivance of the local alcalde himself); but that they ought to be spent in public works for the benefit of the respective communities where the money was collected. He instances this use of it in the province of Albay (in 1840) by the alcalde Peñaranda, who spent the money thus collected for roads, which Jagor found still tolerably good, although the apathy of later officials had neglected to repair them when injured and to replace worn-out bridges. [↑]

³⁸ Spanish, *azufre*; in another sentence, apparently misprinted *axúcar* (“sugar”). The former reading is more probably correct. [↑]

³⁹ Regarding the Chinese in the Philippines, see *Reports of the Philippine Commission*, as follows: 1900, vol. ii (testimony taken before the Commission; consult index of volume); 1901, part ii, pp. 111, 112; 1903, part iii, pp. 619–631; 1904, part i, pp. 707–711. Also the recent *Census of the islands*, especially vols. i and ii. See also the works mentioned *ante*, p. 57, note 30. [↑]

⁴⁰ Mas says (*Informe*, i, part ii of “Historia,” p. 37): “Marquina was accused of selling offices through the agency of a woman; he suffered a hard residencia, and was not permitted to depart for España except by leaving a deposit of 50,000 pesos fuertes, with which to be responsible for the charges made against him. At Madrid, he was sentenced to pay 40,000 pesos.” Mas also states that during the terms of Basco and Marquina (in all, fifteen years), over 1,500,000 pesos fuertes were spent in building and arming vessels to chastise the pirates. [↑]

⁴¹ Thus named from the barrack or sheds of San Fernando; the locality was originally a *barrio* of Binondo called Santísimo Niño, destroyed by a conflagration in the time of Basco. On this account, the spot was appropriated by the government, in order to establish thereon a shipyard or dock for the vintas. (Barrantes, *Guerras piraticas*, p. 163.) [↑]

⁴² It was Álava’s expeditions which gave Father Martínez de Zúñiga the opportunity to examine the condition of the islands which he used so well in his *Estadismo de las Islas Filipinas*; for he accompanied Álava therein, at the latter’s request. [↑]

⁴³ “The naval department at San Blas was established to aid the government in its efforts to occupy vacant coasts and islands adjoining its settled provinces, especially the west coast of North America. Arsenals, shipyards, and warehouses were established. All orders given to expeditions passed through the hands of its chief. It was, however, on the point of being abandoned, when Father Junípero Serra’s suggestions in 1773, on its usefulness in supplying the Californias, led to its being continued and carefully sustained.... Conde de Revilla Gigedo during his rule strongly urged removal to Acapulco; but it was not removed, and in 1803 remained at San Blas without change.” (Bancroft, *Hist. Mexico*, iii, p. 420.) [↑]

⁴⁴ Mas says (*Informe*, i, part ii of “Historia,” p. 47): “In that same year 1800,... the king ordered that the arsenal called La Barraca should be abolished, and that only that of Cavite should remain, in charge of the royal navy. The execution of this decree was the cause, in 1802, of a dispute between the governor-general, Aguilar, and General Álava.”

See Barrantes's fuller account (*Guerras piraticas*, pp. 200, 201, 217, 249–263) of the arsenals at La Barraca and Cavite, and the controversies over them. According to this authority, the naval affairs of those places, as also of Corregidor Island, were in bad condition; the service was inefficient, the methods and tools were antiquated, and lack of discipline prevailed—to say nothing of the fraud and “graft” already hinted at. [↑]

⁴⁵ In 1797 the following military forces were maintained in Filipinas: Infantry regiment of the king, created at the conquest of those islands, composed of two battalions on the regular footing; infantry company of Malabars (created in 1763), containing one hundred men; squadron of dragoons of Luzón (created in 1772), containing three companies, in all one hundred and sixteen men; corps of artillery, of two companies, and containing two hundred and six men. There were also bodies of provincial militia, both infantry and cavalry, one being composed of mestizos; and an invalid corps, created in 1763. (*Guía oficial de España*, 1797; cited in Vindel's *Catálogo biblioteca filipina*, no. 123.) [↑]

⁴⁶ The Spanish régime in Filipinas lasted 333 years, from Legazpi's first settlement until the acquisition of the islands by the United States. During that time, there were 97 governors—not counting some twenty who served for less than one year each, mostly *ad interim*—and the average length of their terms of office was a little less than three and one-half years, a fact which is an important element in the administrative history of the islands. [↑]

MISCELLANEOUS DOCUMENTS

1766–1771

[Financial affairs of the islands, 1766](#). Francisco Leandro de Viana; July 10, 1766.

[Letter to Carlos III](#). F. L. de Viana; May 1, 1767.

[Anda's Memorial](#). Simon de Anda y Salazar; April 12, 1768.

[Ordinances of good government](#). [Compiled by Governors Corcuera (1642), Cruzat y Góngora (1696), and Raón (1768).]

[Instructions to the secular clergy](#). Basilio Sancho de Santa Justa y Rufina; October 25, 1771.

[The expulsion of the Jesuits, 1768–69](#). [Compiled from various sources.]

[The council of 1771](#). [Letter by a Franciscan friar;] December 13, 1771.

SOURCES: The first of these documents is translated from a MS. copy (probably official duplicate of above date), in possession of Edward E. Ayer, Chicago; the second, from Viana's MS. book, *Cartas y consultas*, fol. 39v–46, in possession of E. E. Ayer; the third, from Pardo de Tavera's publication (with many annotations), *Memorial de Anda y Salazar* (Manila, 1899), from a copy belonging to James A. Robertson; the fourth (partly translated and partly synopsized), from José Felipe Del-Pan's *Ordenanzas de buen gobierno de Corcuera, Cruzat y Raon* (Manila, 1891), from a copy in the Library of Congress; the fifth, from Ferrando's *Historia de PP. dominicos* (Madrid, 1871), v, pp. 59, 60, from a copy belonging to E. E. Ayer; the sixth, compiled from Danvila y Collado, Crétineau-Joly, and Montero y Vidal, as indicated in the text—the archbishop's decree being obtained from a printed copy (dated 1770) in the Archivo Historico Nacional, Madrid; the seventh, from a copy of the original Latin MS. sent to the Editors by a friend in Germany.

TRANSLATIONS: The text of the third, and of the fourth, is translated by James Alexander Robertson; the seventh, by Rev. T. C. Middleton, O.S.A.; the remainder, by Emma Helen Blair.

FINANCIAL AFFAIRS OF THE ISLANDS, 1766

Statements of the amount contributed to his Majesty by the natives of the Philipinas Islands; that which is spent in their spiritual administration; what the ecclesiastical estate receives from the king and from the Indians; and the economies which the royal treasury can practice, and the augmentations which it can receive, in order to maintain these dominions with respectable forces, without the necessity of the royal situado which comes annually from Mexico—and with the advantage that the royal exchequer can in the future make good the expenditures incurred during the 202 years which have elapsed since the conquest of the said islands. By Don Francisco Leandro de Viana, a student in the old college of San Bartholome el Mayor of the university of Salamanca, and formerly rector of the said college; graduated as a licentiate by the chapter of Santa Barvara; a member of the Council of his Majesty; his fiscal in the royal Audiencia of Manila, and promoted to the post of alcalde of criminal cases in that of Mexico.

STATEMENT I

The number of tributes in these Philipinas Islands, and the amount that they produce yearly

By the official statement which I sent to his Majesty with my report and advices of July 14, 1760, it appears that there were one hundred and seventy-eight thousand, nine hundred and seventy-one whole tributes of Indians, at the rate of ten reals each. It also appears that there were eight thousand, one hundred and sixty-nine and one-half whole tributes of mestizos, at the rate of twenty reals each, which are equivalent to sixteen thousand, three hundred and thirty-nine whole tributes of Indians. Adding this item to the aforesaid one, they make a total of one hundred and ninety-five thousand, three hundred and ten tributes; and adding those paid by the blacks, the grand total, stated in round numbers [*numero cerrado*] for greater convenience in this reckoning, is placed at two hundred thousand whole tributes belonging to the royal crown.

Tributes: 200,000

A whole tribute comprises two persons, and the two hundred thousand tributes aforesaid produce to the royal exchequer, at the rate of ten reals which each one pays, the sum of two hundred and fifty thousand pesos every year.

Note

The whole tributes belonging to private encomiendas number eighteen thousand, one hundred and ninety-six and three-fourths, according to the general statement of accounts of this royal treasury for the past year of 765. From these the encomenderos collect one peso for each tribute, and the king two reals; on this account, although the number of tributes belonging to the crown and to the encomiendas exceeds two hundred and ten thousand, at ten reals each, only the two hundred thousand above stated have been considered [in this account]; and their value is placed at two hundred and fifty thousand pesos, which is the utmost that the natives of these islands pay for the benefit of the royal treasury.

STATEMENT II

What the king expends in the spiritual administration of the Indians, and what is received on this account by the ministers of the doctrinas and the missionaries.

1. For the cash stipends which his Majesty pays, at the rate of a hundred pesos for every five hundred tributes, the curas and the ministers of the doctrinas receive, according to the number of the two hundred thousand tributes, the sum of forty thousand pesos.
2. For the stipends in rice, at the rate of a hundred fanegas (each of forty-eight gantas) for every five hundred tributes, at one peso a fanega—which price was established by the royal officials in the papers granting the contribution for wine used in masses—his Majesty pays, and the aforesaid curas and ministers receive annually, the sum of forty thousand pesos.
3. For the wine for masses and oil for the lamps¹—as appears in the respective documents therefor, of which account is given to his Majesty—this annual expense is fixed at the sum of seventeen thousand, one hundred and ninety-three pesos, six tomins.
4. For the transportation of these supplies, the cost to the royal treasury is moderately estimated at two thousand pesos.
5. For the cash stipends of forty-one religious who are missionaries, at the rate of one hundred pesos each, his Majesty pays the sum of four thousand one hundred pesos.
6. For the stipend in rice of a hundred fanegas (each of forty-eight gantas) to each missionary, at one peso a fanega (reckoned at the lowest price), his Majesty pays the further sum of four thousand one hundred pesos.

7. For the supplies of cash and rice which are paid monthly to one hundred and ninety-two Indians as escorts, who assist thirty-two of the said missionaries, at the rate for each one of one peso in cash and twenty-four gantas of rice in the hull (estimated at four reals), these amount to the sum of three thousand, four hundred and fifty-six pesos.

8. For the supplies of medicine and clothing, and for the support and comforts of sick religious, the expense is placed at five thousand pesos.

9. In some villages which contain a small number of tributes, his Majesty pays the same stipends as in the villages of five hundred tributes, for which reason what is paid by the king exceeds the amount which was estimated for the number of two hundred thousand tributes, by the sum of one thousand pesos.

10. For the stipends which his Majesty pays to the chaplains of the fortified posts—who usually are the religious who are in charge of the native villages at the said posts—are paid one thousand, six hundred and eighty pesos.

11. For the expenses of the religious who come from España to these islands—who each five years average forty-six and one-half each year—estimating these at a thousand pesos for each person, the religious orders receive and the king spends forty-six thousand, six hundred pesos.

12. For the stipend of the archbishop, the prebends of his church, and the contribution that is given to it [for its expenses], the royal treasury expends nine thousand, eight hundred pesos.

13. For the stipends of the three suffragan bishops of Zebu, Nueva Segovia, and Nueva Caceres, for the contributions which are made to these three churches, and for other stipends to their ministers, his Majesty expends twelve thousand, four hundred pesos.

The total amount of these items is 187,229 pesos, 6 tomins.

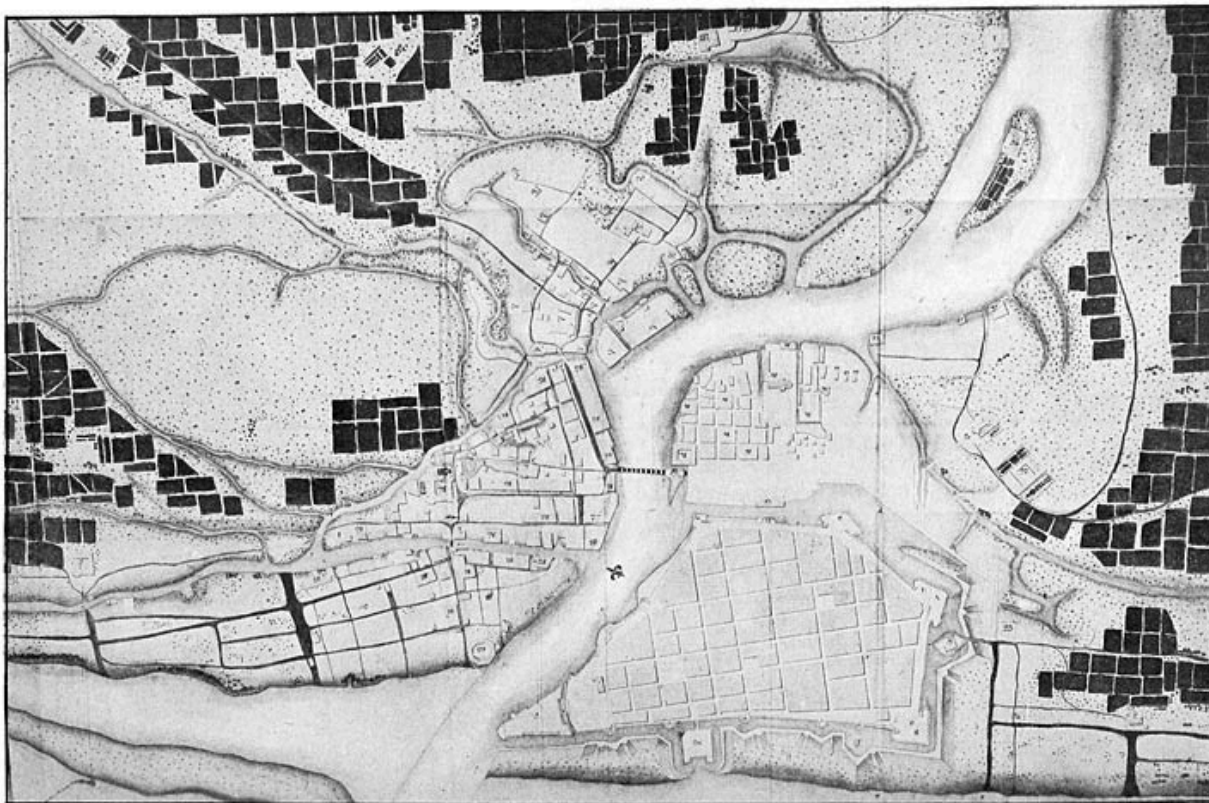
Summary

	<i>Pesos</i>	<i>tomin</i> s
The king receives from the Indians, as in statement i	250,000	
The ecclesiastical estate receives from the king, as in statement ii	187,229	6
Net balance in favor of his Majesty	62,770	2

STATEMENT III

What should be deducted from the aforesaid 62,770 pesos, 2 tomins, as necessary expenses of the provinces of these islands.

1. The three per cent which his Majesty pays to the alcaldes-mayor for the collection of the tributes, calculated on the two hundred and fifty thousand pesos, amounts to the sum of seven thousand, five hundred pesos.
2. The pay of alcaldes, corregidores, and magistrates in the provinces of these islands amounts to the sum of seven thousand, five hundred pesos.
3. As in all the provinces the tribute is regularly paid half in money and half in kind, it is necessary to transport the said commodities from the villages to the capital; this expense costs the royal treasury, according to a fair estimate, the sum of six thousand pesos.
4. For one thousand, two hundred and ninety-eight men employed in the fortified posts the royal treasury spends, according to the pay [-rolls] of their respective garrisons, the sum of twenty-two thousand, four hundred and ninety-three pesos, two reals.
5. For fifteen thousand, five hundred and ten rations of unhulled rice, of twenty-four gantas each, estimated at the prices of two, four, and six reals, in proportion to the scarcity or the abundance of [the supplies in] the said fortified posts, the royal treasury spends seven thousand, one hundred and seventy-four pesos, six tomins.
6. For one thousand and forty-five uniforms for the said garrisons, estimated at the low price of three pesos each, the royal treasury spends three thousand, one hundred and thirty-five pesos.
7. For the consumption of balls, gunpowder, muskets, cannon, etc., estimated moderately and at the lowest price, there is an expense of five thousand, five hundred pesos.



Plan of the present condition of Manila and its environs, drawn by the engineer Feliciano Márquez, 1767

[From original MS. map (in colors) in Archivo general de Indias, Sevilla]

These indispensable expenses amount to the sum of fifty-nine thousand, three hundred and three pesos, which, deducted from the sixty-two thousand, seven hundred and seventy pesos, two tomins, of the net balance contained in the summary of statement ii, leaves only three thousand, four hundred and sixty-seven pesos, two tomins, in favor of the royal treasury.

Summary

	Pesos	tomins
What the king receives, as in statement i	250,000	
What is spent, as in statements ii and iii	246,532	6
Balance in favor of the royal treasury	3,467	2

Note

1. In the expenses of the fortified posts the forts of Manila and Cavite are not included; neither are the forts of Romblon, Cuió, Acutaya, Culion, and Linacapan, for these five

forts are maintained at the expense of the natives in the respective localities, and without further cost to the royal treasury than some supplies of arms and gunpowder. Nor are the forts included which have been built since the end of the year 753, since their fixed charges and annual expenses do not appear in the book which was formed in the said year with the descriptions of the fortified posts.²

2. Attention should be directed to the following items: The exemptions from tribute which are usually granted to the villages in the cases for which the laws provide; the amount of what is not collected; that which is lost through the failure of the officials to render account, and through the omissions of the royal officials to collect as they should; the salaries which are paid to the said royal officials and to the subordinates of the established accountancy, mainly for the accounts and collections of the royal revenue in the provinces; the costs of transporting the proceeds of the said tributes to this capital; the losses of the vessels which convey the said goods, commodities, or products in which the said tributes are levied, according to the different production of the provinces; the pay of workmen [Tag., *bantayes*], and other petty expenses which are paid from the royal revenue in each province; the cost of the vessels which go out to cruise against the Moros, in the defense of the said provinces; and many other expenses, to ascertain and compute which would require tedious labor. But, as this report aims to show how much the king receives from the Indians and what he spends on their account, the aforesaid general computations are convincing that the royal treasury spends in these islands much more than what they produce; and that the ecclesiastical estate—or, to speak more accurately, the religious orders—profit by and receive almost all the proceeds from the tributes.

3. On this account the royal situado has been necessary in these islands, in order to pay the following expenses: the salaries of the governors, the ministers of the royal Audiencia, and their subordinates; the officials of the royal treasury; the soldiers in the garrisons of Manila and Cavite, with all their followers; the arsenal of Cavite; and numberless expenses which have grown since the retrenchments which were decreed by Señor Cruzat. And as the situado and the income-producing monopolies are not sufficient for all the said expenditure, the islands have been and will be in the most wretched condition, and in the utmost danger of being ruined, unless some remedy be applied.

STATEMENT IV

What the curas and ministers receive from the Indians

1. On account of the three reals which each whole tribute pays to the curas and ministers for the feasts of Corpus [Christi], the patron saint, and the monument at Holy Thursday, they receive from the two hundred thousand tributes the amount of seventy-five thousand pesos; and [therein] are not included the heads of barangay, the officials of the villages, and other persons exempt from tribute, who also pay the said three reals.

2. As for the value of the casual fees and parochial dues, although it is the general opinion that those same ministers of doctrinas regulate these at one peso for each tribute, it is estimated that from this source are received only one hundred and seventy thousand, four hundred pesos.

The total of these sums is 245,400 pesos.

Summary

	<i>Pesos tomins</i>
The ecclesiastical estate receives from the king, as in statement ii	187,229 6
Also from the Indians the aforesaid sum of	245,400
Total amount	<u>432,629 6</u>

Note

Thus, what the ecclesiastical estate receives from the king and from the Indians, for only the spiritual administration of the latter, amounts to the sum of four hundred and thirty-two thousand, six hundred and twenty-nine pesos, six tomins, without including what is produced by the chaplaincies founded in the churches of some ministries, or by the confraternities—which are worth much, on account of duplicated offerings, since in them are enrolled not only the living but the dead. Nor [does it include] the wax for novenaries, masses, and other services which through devotion are offered by the Indians and mestizos; or the offerings at the sanctuaries, to which in all the provinces many people repair with wax and offerings for masses; or the sure revenue [from the charge] of fifteen pesos for every feast of the numberless visitas and chapels which are in all the villages (more than those which are celebrated in the principal churches); or the amounts received, at the burials, from the distinction of the silver from the wooden cross—so that, although in a certain village there may not be a silver cross, there are two of wood, and one of them is distinguished from the other by the amount of the fees [imposed for its use].

Nor have there been included in the said item the five hundred pesos which are annually paid from the royal treasury to the convents of Manila in order that they may support one or two religious who are versed in the dialects of the provinces; or the alms which they

receive from the charitable foundations [*obras pías*] of the Misericordia, and from those which have been founded in each order; or the proceeds from the leasing of their lands acquired by donations, chaplaincies, and legacies; or the premium or interest from the funds of the confraternities, etc.

Likewise should be added the fees for burials, which, although they belong to the fabricas of the churches, are received by the curas and ministers of the doctrinas, and they are not willing to render account of these to the vice-patronship.

Besides that which is for the spiritual administration, the religious orders in these islands receive enormous amounts of money every year from the proceeds of the houses, mills, ranches, and other properties which they possess, here and in México; for they collect some rents that are exorbitant for the cultivated lands, exacting more than twenty per cent of the actual value of the said lands.

Comparison

	<i>Pesos tomins</i>
All that the king receives from the Indians, without deducting the items mentioned in the notes on statement ii, amounts to	250,000
All that the ecclesiastical estate receives, not including the items mentioned in the notes to this statement iv, amounts to	432,629 6
That which the ecclesiastical estate receives exceeds what the king receives, by the sum of	182,629 6

It is, then, apparently fully proved that what these Indians contribute to the king is not sufficient for the necessary expenses of their spiritual administration; since, even without counting the cost of the fortified posts (which serve only for the benefit of those same Indians), it is evident that the net balance which remains in favor of the royal exchequer, after deducting the expenses mentioned in statement ii, is lost, through the causes which are stated in the second note on statement iii. From this it follows: First, that all the profit of these islands accrues to the ecclesiastical estate. Second, that in order to aid the Indians the royal revenue has been burdened, to the injury of other vassals, with the charge of the royal situado which comes annually from Nueva España, in order to maintain the forts, troops, and courts, and meet other expenses of the royal treasury here. Third, that the latter is heavily indebted, because the royal situado and the monopolies of the royal exchequer are not sufficient for so enormous expenses. Fourth, that for lack of funds the king's service is neglected, the forts are defenseless, the provinces at the mercy of the Moros, and everything is in notable danger of total ruin, unless suitable remedies are applied in time.

On account of this, I have established in my “Demonstration of the wretched and deplorable condition of the Philipinas Islands,”³ etc., the necessity of maintaining them with respectable forces, and [suggested] the expedient of augmenting the tribute on account of the obligation which every vassal is under to contribute to his king what is necessary for maintaining the kingdom in peace, justice, and union, and defending it from enemies.

Even without the necessity of increasing the tribute, I have been of opinion, and still continue in the firm persuasion that these islands could support themselves alone, and save to the royal revenue the remittance of the situado. Desiring to demonstrate this truth—which has been taught to me by the experience and continual application of eight years—I will set forth the economies and augmentations which this royal treasury can observe in order to supply its urgent needs, and to support these islands more gloriously, and to the greater advantage of the royal exchequer.

STATEMENT V

The economies which the royal exchequer can practice, and the augmentations which it can receive, in what the curas and ministers of doctrinas collect from the king and the Indians.

1. In the paper of suggestions which I presented to the government [here], and sent to the commander⁴ Frey Don Julian de Arriaga with my report of July 22, 1764, there was a discussion of the saving which the royal exchequer will be able to make by paying to each cura and minister of a doctrina one stipend only, and not so many as correspond to every five hundred tributes. For, since the cura is only one, it does not seem just, even when the curacy is one of two thousand tributes, that four stipends be paid to him; but he should content himself with one, the royal exchequer saving the rest. The amount of this will reach annually some twenty thousand pesos, very nearly. I have made representations on this point to the royal Audiencia, in order that they may settle this by an ordinance.

2. Each stipend for a village or mission is fixed at a hundred pesos in money, and two hundred cavans of rice; if all this be paid in cash, and not in the said produce, regulating this [amount for the rice] by the price in each province, the negotiations of the curas and ministers with the alcaldes will be avoided, and the royal treasury will save each year at least fifteen thousand pesos in the stipends of curas, ministers and missionaries. It should be remembered that the abuse of paying the stipend in rice was introduced in violation of the law (ley 26, título 13, libro 1 of the *Recopilación de Yndias*), as I have represented in the *expediente*⁵ of ordinances which is pending in the royal Audiencia.

3. The fabricas of the churches have for funds the fees from the burials, and the eighth part of the occasional fees, with the others which I have stated in the document which treats of this subject, besides the [governmental] contribution of wine; and with the said funds there is a superabundance for paying the cost of the wine for masses and the oil for the lamps—which are set down as expenses of the royal exchequer in the third and fourth items of statement ii. These amount to nineteen thousand, one hundred and ninety-three pesos, six reals.

4. In the aforesaid paper of suggestions, and in the report of June 5, 760, the reasons were set forth why the king should not pay the cost of the missions which come from España to these islands; for the religious orders are rich, although they deny it. Thus the royal exchequer could save what is mentioned in the eleventh item of statement ii, which amounts each year to forty-six thousand, five hundred pesos.

5. The impost of the three reals for each tribute for the feasts of Corpus [Christi], the patron saint, and the monument, was granted by the provisor of this archbishopric at the instance of the religious orders, in the year 1697; and in that of 704 it was included in the provincial ordinances by Señor Zabarburo. This contribution is excessive, and the cost of the feasts is very small because the natives make the decorations of branches and furnish much wax; and the two feasts of Corpus Christi and the patron saint usually are held on the same day. For these reasons Señor Molina commanded, in his bishopric of Nueva Caceres, that no payment should be exacted from the Indians on account of these feasts, further than half a real for each tribute, considering that this sum was sufficient to pay for their celebration. The same was the practice of Señor Arevalo, who succeeded him in the same bishopric; but Señor Matos, the last bishop there, did not act thus. It is also an intolerable burden to the Indians that at the time when they go to make their confessions, in order to fulfil the annual injunction, the said contribution is collected from them; and most of them are persuaded, through their stupidity and ignorance, that they are paying for the confession. All this I have explained in the *expediente* of ordinances which is pending in the royal Audiencia. It would therefore be expedient that the said three reals be collected by the alcaldes-mayor, who should give to the curas and ministers a third part of the proceeds, setting aside the other two thirds for the maintenance of the fortified posts. Thus the royal exchequer would have the benefit of this saving of expense, and would be increased by fifty thousand pesos, which is two-thirds of the proceeds of the three feasts, as is stated in the first item of statement iv.

6. The royal exchequer can save the cost of furnishing the medicines, clothing, support, and comforts for the sick religious; for the returns from the ministries are large, and the religious orders are rich. This saving, as is said in the eighth item of statement ii, amounts to five thousand pesos.

The total of all these items is 155,693 pesos, 6 reals.

Thus the royal exchequer can save expense, and increase its funds every year by the sum of one hundred and fifty-five thousand, six hundred and ninety-three pesos, six reals, the amount of the six previous items, which correspond to the costs of the spiritual administration of the Indians. This should be deducted from the amount which the ecclesiastical estate receives, for this very purpose, from the king and from the Indians—which, according to the summary of statement iv, reaches the sum of four hundred and thirty-two thousand, six hundred and twenty-nine pesos, six tomins—and there still remains, in favor of the ecclesiastical estate, two hundred and seventy-six thousand, nine hundred and thirty-six pesos.

Summary

	Pesos	tomins
The ecclesiastical estate receives from the king and from the Indians, as in the summary of statement iv	432,629	6
Deducting the amount of the savings which are stated in the preceding lines,	155,693	6
There remains, in favor of the ecclesiastical estate, a net balance of	276,936	

Note

The escorts which are furnished to the ministers are, at most, proper in the first years of a mission; but ordinarily this is a useless expense, by which the religious orders profit—or rather their missionaries, who take no other escorts than their own servants; nor do they need escorts, especially in the well-peopled missions. Most of these are such, because many Indians from the villages take refuge in the missions, either fleeing from justice, or for not paying the tribute. Thus could be saved the cost of the said escorts; and even the stipend for every mission after twenty-five years from its establishment, by causing the people to be brought into villages.

STATEMENT VI

Other increases and savings which the royal exchequer can make, in the various directions which are here stated.

1. It is assumed that there are, at the lowest figure, six thousand heads of barangay in the provinces of these islands; for although, by the ordinance, each headship ought to have forty-five entire tributes, it is certain that there are few which reach that number, and that

there are many of five, eight, ten, and twenty tributes. Therefore, assigning to each headship, on the average, at most thirty tributes, they make the six thousand above stated, the number of tributes [in them being] one hundred and eighty-three thousand, three hundred and thirty, the lowest computation that can be made of headships and of tributes. As three persons in every headship are exempted [from paying tribute], the royal exchequer is deprived of the value of nine thousand entire tributes, which, at the rate of ten reals, make eleven thousand, two hundred and fifty pesos. Therefore, by abolishing the said headships, and making the *governadorcillo* or headman of each village responsible for the collection of the tributes therein (as is done in Nueva España), or by allowing the said headships and decreeing that those who hold them shall pay tribute (as they formerly did, by order of the visitor, Auditor Don Joseph Arzadun), this increase in the tribute will result to the advantage of the royal exchequer, by the sum of eleven thousand, two hundred and fifty pesos.

2. It is generally the case that the heads of *barangay* keep back from the king, at a very low estimate, at least ten tributes each, on account of the dispersion of the houses of the Indians, which renders almost impossible any exactness in the tax-lists which for this purpose are committed to the said headships. Therefore, if the reduction of the villages into parishes⁶—which I have continually urged, and shall ask from this government—could be effected, not only would the aforesaid collection of the tribute be greatly facilitated, especially if it were committed, as I have said, to the *governadorcillos* and leading chiefs; but the tax-lists would be exactly drawn up by the *alcaldes*, and the said ten tributes in each *barangay* which have been mentioned would not be kept back from the king. This, estimated for the six thousand [headships], would come to the number of sixty thousand tributes; at the rate of ten reals each, the royal treasury would enjoy an increase from this source, which would reach the sum of seventy-five thousand, five hundred pesos.

3. By order of the above-mentioned visitor, no exemption from tribute was enjoyed by the officials of the villages, except by the *governadorcillos* and headmen; and counting six exempt persons [each] in three hundred and sixty villages alone—without including the *visitas*, which also have their officials—they make the number of two thousand, one hundred and sixty, which make one thousand and eighty tributes. These, at the rate of ten reals, amount to one thousand, three hundred and fifty pesos; consequently, by taking away these exemptions the royal exchequer will be increased by this sum.

4. The singers, sacristans, and doorkeepers of the churches in the villages are paid from the communal treasury of the Indians, and have their fees at all the feasts, burials, etc.⁷ By exempting them from *polos* and personal services, and taking away their exemption from the tribute, [there would be gained] two thousand and thirty-eight and one-half whole tributes, which in the general [statement of] accounts for the year 765 are reckoned as exempted on account of the service of the churches in the villages tributary

to the crown; the increase to the royal exchequer would be two thousand, five hundred and forty-eight pesos, one tomin.

5. Those who are for the same reason exempted in the villages of private encomiendas, according to the said general statement, number one hundred and ninety-six and one-half whole tributes. By abolishing this exemption, the increase to the royal treasury will be two hundred and forty-five pesos, five tomins.

6. The confusion in the accounts of the royal revenue in the provinces; the arrears [in despatch of business] which they experience in the offices; the increased losses of ships, with goods belonging to the royal account, which are made a pretext [for not settling their accounts]; losses by fire; uncollectible charges; negligence in pushing the collections that ought to be made; and other damages which follow from the said confusion—all these are reckoned at thirty thousand pesos a year. If the debits and credits were in money, and not produce, and the alcaldes were obliged to supply the royal storehouses, transporting at their own account the commodities from the provinces—these being placed to their credit, according to the stipulation made with each one—with the rest which I have presented before the royal Audiencia and superior government, the royal exchequer would render available the said sum of thirty thousand pesos.

7. Likewise I have asserted in the royal Audiencia that the Indians ought not to be paid for the conveyance of their tributes, [when paid] in kind, from their villages to the capital of their province, as being contrary to the laws (ley 1, titulo 9, libro 8, and ley 63, titulo 5, libro 6, in the *Recopilación de Yndias*) which treat of the tributes of the crown, and plainly show the obligation of the Indians to carry their tributes to the said capitals—differently from the tributes of encomiendas and from general appraisements, which are mentioned in ley 44, titulo 5, libro 6, in which it is commanded that the tributes be paid in the villages. Consequently, if the aforesaid conveyance is at the cost of the Indians, as seems just, and not at that of the royal exchequer, not only will the frauds arising from such entries in the accounts of the alcaldes be avoided, but his Majesty will save the expense which is mentioned in the third item of statement iv, which amounts to the sum of six thousand pesos.

(In case the method which is suggested in the sixth item preceding this be established, the said sum will inure to the benefit of the alcaldes-mayor, who should at their own account and risk render a statement, with payment, of the entire proceeds of the tributes; and in the obligation or contract with each one the said benefit should be kept in view, in order that it may inure to the benefit of the royal exchequer.)

8. There has always been an outcry in España against the purchase of public offices in the Yndias, notwithstanding that these have been placed on sale only in the exigencies of

the crown. If the sale of these offices on the royal account is a question involving much scruple, it necessarily follows that it would be an injustice to sell them on the account of those who have authority to make appointments to those offices *ad interim*.

Consequently, by reestablishing the oldtime method—by which the candidates for the posts of alcalde must present themselves before the royal Audiencia with documentary evidence of their merits, in order that three qualified persons might be presented to the superior government, in the first, second, and third places respectively, for each post of alcalde—the dangers arising from the sale of offices which has been practiced in some governments would be avoided; and the selection [of officials] would be more conformable to justice and less mercenary (as I represented to his Majesty in the year 760). The royal exchequer could thus save the salaries of the alcaldes and magistrates (as is done in Nueva España), which saving would amount, as in the second item of statement iii, to the sum of seven thousand, five hundred pesos.

(If the alcaldeships were knocked down to the highest bidder in the auction-hall, together with the farming of the tributes, it would result in even greater profit to the royal exchequer.)

9. The offices of commander and military officers of the ship which goes annually to Acapulco are bestowed on citizens of this city; and the appointments to these offices can be made without giving them the salaries which hitherto they have enjoyed; for they are sought not so much for the salaries as for the honor, and for the free passage, with comfortable berths and conveniences, [which is furnished to officers]. Consequently the royal exchequer could save the amount of the said salaries, which exceeds ten thousand pesos.

10. In the paper of suggestions and the report which I cited in the first item of statement v, are mentioned the many advantages which would result from the establishment of guilds [*gremios*] which I propose; and from the increase of the royal revenues by the half-annats from the officials [of the crown]; and by the duties of one-fifth on silver and gold. These metals are wrought, at the will of the silver-smiths, of various standards and degrees of purity, contrary to the provisions of the royal decree of March 17, 1735; and as I cannot fix the exact amount for the aforesaid duties, a moderate estimate is made, at the lowest [standard], that the increase of the royal revenue would amount to some seven thousand pesos.

11. In each village there is a *governadorcillo* or headman, a deputy (and, if the village is a large one, two or three), a constable (and likewise two others, in large villages), an inspector of grain-fields [*juez de sementeras*], another of palm-trees, and a notary. In the *visitas* of the villages there are likewise deputies, constables, and inspectors of grain-fields. The large villages are more numerous than the small ones. If we allow for each one of the three hundred and sixty villages one headman or *governadorcillo*, only one

deputy and one constable, one inspector of palm-trees and another of grain-fields, these make in each village, on the average, six offices which annually pay the half-annat, by a custom which was introduced into these islands in violation of the law of the Indias, which exempts the Indians from this royal impost. But in the settlement of its amount there is an unusual variation and difference, by which in the provinces of Tondo, Bulacan, Balayan, and Laguna de Bay (which are close to Manila) a *governadorcillo* pays twelve pesos, a deputy six pesos, and the constables, inspectors, and notaries four pesos [each]; while in the other provinces which likewise are close to this capital—Pampanga, Batahàn, and Cavite—a *governadorcillo* pays six pesos, a deputy four pesos, and the constables, inspectors, and notaries three pesos [each]. In all the other and remote provinces, a *governadorcillo* pays only one peso, six granos; a deputy, six and one-half reals; and the constables, inspectors, and notaries, three and one-half reals. From this it results that each village in the four first-named provinces pays thirty-four pesos, and each village in the three other provinces close by pays only twenty-two pesos; and in the thirty-seven villages of these three provinces the difference which there is between paying twenty-two pesos each and (as in the former) thirty-four, is four hundred and forty-four pesos—which is the increase for the said royal impost, if the payment is fixed at thirty-four pesos.

12. The seven provinces above mentioned have one hundred and eleven villages, and to fill up the complement of three hundred and sixty there remain in the remote provinces two hundred and forty-nine villages. Each one of these pays only five pesos, one tomin; and by ruling that they shall pay twenty-two pesos this impost will be increased by sixteen pesos, seven reals in each village. Multiplying this by two hundred and forty-seven, the number of villages, the said increase will amount to the sum of four thousand, two hundred and one pesos, seven tomins; and by equalizing [the payments of] all the provinces, at the rate of thirty-four pesos for each village, the aforesaid increase will rise to seven thousand, one hundred and eighty-nine pesos, seven tomins.

13. In my report of May 10, 760, in which I demonstrated the defective foundation of the commerce here, I proposed the increase of sixty thousand pesos every year, [in the amount of the permission?] his Majesty to permit the return of the silver from Acapulco with the impost of eight to ten per cent; and it is certain that the ten per cent will produce to the royal exchequer annually, on the average, one hundred thousand pesos, which is the amount in which the royal officials at Acapulco are interested.

14. In a report of June 25 in the same year, I proposed that the *boletas* should be applied to the benefit of the royal exchequer;⁸ this increase would be at least fifty thousand pesos.

15. In a report of June 5 of the same year, I proposed to save the expense of one [university] chair of civil law [*Instituta*], which would yield an increase of four hundred

pesos.

16. In a report of July 14 of the same year was mentioned the abandonment of the sale of [papal] bulls; and it was shown that this could produce at each publication at least one hundred pesos, which would be an annual increase of fifty thousand pesos

17. The contract for working the iron mine called Santa Ynes⁹ was knocked down to the highest bidder at the royal auctions, before the late war, and afterward its operation ceased entirely. Consequently, by working the said mine on the royal account, on the terms which I proposed in the cited paper of suggestions, and in a written statement which I presented to the government (from which no action has yet resulted), the royal exchequer will gain the increase and profit of more than fifty thousand pesos.

18. By reestablishing the farming or monopoly of playing-cards, either (preferably) by contract or by its administration or the royal account, as is commanded by the royal decrees of February 5, 730 and November 28, 1734, it could produce in all the provinces more than twenty thousand pesos, at the lowest estimate, in increase of the royal revenue.

19. By establishing the monopoly of cock-fighting¹⁰ in these islands (as in Mexico), with the charge of one grano for each Indian who resorts to the said sport, and reckoning forty-eight granos (which make four reals) for forty-eight times¹¹ when each, at the least, would bet each year, four hundred thousand persons would share [in contributing to] the royal exchequer two hundred thousand pesos, at the least reckoning. For it is certain that there are more than eight hundred thousand souls who are able to bet on the cocks, and that, on account of their vicious dispositions and extraordinary addiction to this sport, it might be reckoned that each one would gamble more than eighty times a year; in that proportion the proceeds of this income, which here is estimated at only two hundred thousand pesos, would exceed four hundred thousand pesos.

20. By establishing similarly the monopoly of tobacco,¹² there would be an enormous increase in the royal revenue, since in the form of snuff [*polvos*] it is used by nearly all the Spaniards (both ecclesiastical and secular) in the islands. By establishing monopoly shops in the villages of the provinces, the consumption [of snuff] would be great; but that of leaf tobacco and cigars would be incomparably greater yet, on account of being used by more than a million of souls; for it is certain (as is the case) that even the boys and girls use the said tobacco before they [are old enough to] exercise their reason [*antes de tener vso de razon*]. It can be asserted without exaggeration that this traffic would produce more than four hundred thousand pesos.

21. In a report of June 5 of the aforesaid year 760, I explained the increase which the royal revenues might obtain, and in the cited paper of suggestions I proposed the means,

by which the monopolies of buyo and wine [13](#) could be augmented by more than a hundred and thirty thousand pesos; for it is certain that if these were extended to all the provinces (they now have no wider limit than five leguas from this capital) they would produce for the royal treasury enormous sums.

22. The casting of plows is permitted to one person only, who is appointed by the government; if this were sold at auction it certainly would produce, at the lowest estimate, the sum of seven hundred pesos.

Thus the savings and increases of revenue contained in this sixth statement would produce to the royal treasury the aforesaid sum of one million, one hundred and fifty-seven thousand, one hundred and thirty-nine pesos, five tomins every year.

Summary

	Pesos	tomins
The savings and increases of revenue contained in this statement amount to the sum of	1,157,139	5
Those contained in statement v amount to	155,693	6
Total	1,312,833	3

Accordingly, the savings and the increases mentioned in the two foregoing statements are worth to the royal exchequer the sum of one million, three hundred and twelve thousand, eight hundred and thirty-three pesos, three reals; and even if it be reckoned at no more than a million, this annual product will be more than enough to maintain the islands with respectable forces, and to make good the expenses hitherto caused to the royal revenue, without the necessity of increasing the royal tribute from the Indians. And, in case it be thus increased, in the following statement will be set forth the value of the said increase.

Note

1. In the said savings and expenses have not been included the royal customs duties—on which I made a report to his Majesty under date of March 4, 760—because they are at the present time levied and collected with great increase of the royal revenue, time having confirmed what was contained in the report here cited. For, notwithstanding that the collections are now made on the Spanish ships only at the rate of three per cent, the royal exchequer has an increase of two hundred per cent, more than in past times when these duties were levied, either really or nominally [*se exigia, ô se aparentava la exaccion*], at eight per cent.

2. Reference can be made to the information which I furnished to his Majesty under date of June 5 in the aforesaid year of 1760, in which were discussed the savings which the royal exchequer could make in various directions, especially in the timber-cutting and in the royal storehouses, for the damage that the royal interests suffer [therein] is very evident; but no definite amount is set down for the value of the said savings, nor are they included in this account, since it is difficult to compute them.

3. For the same reason, the large retrenchments have not been included herein which can be made in the ribera of Cavite, and in the stricter examination of the accounts pertaining to military supplies, provisions, implements, and reserve supplies for the Acapulco ships and other vessels belonging to his Majesty; for there is great waste, and little care is exercised in what is furnished for consumption.¹⁴

These and many other economies can be facilitated only by disinterestedness, zeal, and application to the affairs of the royal service.

STATEMENT VII

What can be produced for the royal exchequer by an increase in the tributes

In statement i is reckoned the number of two hundred [thousand] whole tributes, at the rate of ten reals each, which is the amount that they actually pay. This computation was made by reducing the tributes of mestizos to tributes of Indians, and in the same sense ought the increase which is discussed in this statement to be understood; for, although the mestizos pay twice as much tribute as the Indians, and consequently the increase ought to be double, the number also is duplicated, in order to avoid discrepancies and to facilitate the greater perspicuity and clearness of these statements by the definite number of two hundred thousand tributes, at the rate of ten reals each. As this is a very moderate rate, it can be increased in such ratio as shall be considered necessary; for this reason, I have set down separately in the following columns the amounts by which the royal treasury will benefit from an increase in the tributes—from ten reals to sixteen, which are two pesos; to twenty-four reals, which are three pesos; and to thirty-two reals, which are four pesos.

Increase in tribute,	of 6 reals	of 14 reals	of 22 reals
	pes.	tom. pes.	tom. pes. tom.
The increase of 6 reals, of 14 reals, and of 22 reals in each one of the 200,000 whole tributes which statement i mentions, amounts, as seen in the respective columns, to	150,000	350,000	550,000

Increase in tribute,	of 6 reals		of 14 reals		of 22 reals	
	<i>pes.</i>	<i>tom.</i>	<i>pes.</i>	<i>tom.</i>	<i>pes.</i>	<i>tom.</i>
The said increase in each one of the 9,000 tributes mentioned in item 1, statement 6, amounts to	6,750		15,750		24,750	
The said increase in each one of the 60,000 tributes mentioned in item 2, statement 6, amounts to	45,000		105,000		165,000	
The said increase in each one of 1,800 tributes mentioned in item 3 of said statement amounts to	870		1,389		2,970	
The said increase in the tributes mentioned in item 4 of the said statement amounts to	1,528	7	3,567	3	5,605	7
The said increase in the tributes mentioned in item 5 of the said statement amounts to	147	3	343	7	540	3
Total	204,236	2	476,551	2	748,866	2
<i>Summary</i>						
The increase of 6 reals, of 14 reals, and of 22 reals in each tribute, according to the respective columns of this statement, amounts to	204,236	2	476,557	2	748,866	2
The increases and savings contained in the summary of statement 6 amount to	1,312,833	3	1,312,833	3	1,312,833	3
Total amount of the increases and savings of the royal revenue every year	1,517,069	5	1,789,384	5	2,061,693	5

Thus the increases and savings which the royal exchequer can practice in these islands, without increasing the royal tributes from the Indians, will be worth each year the sum of one million, three hundred and twelve thousand, eight hundred and thirty-three pesos, three tomins, as is shown in the items of statements v and vi.

If the tribute is increased from ten to sixteen reals (which are two pesos), the savings and increases will bring into the royal treasury the sum of one million, five hundred and seventeen thousand, and sixty-nine pesos, five tomins.

If the tribute is increased from ten to twenty-four reals, the said savings and expenses amount to the sum of one million, seven hundred and eighty-nine thousand, three hundred and eighty-four pesos, five tomins.

And if the tribute be increased to thirty-two pesos, the said savings and expenses amount to two millions, sixty-one thousand, six hundred and ninety-nine pesos, five tomins.

Note

All these computations of the savings and increases which this royal treasury can gain each year have been made without including in the totals the actual product of the tributes and other branches of the royal revenue in these islands; therefore, adding the said product to the total of the savings and increases which are here mentioned, there will result a greater amount than that which has been estimated. No matter how gloomily people may talk, the aforesaid statements are convincing that, even if these estimates are made lower, these islands can, notwithstanding these reductions, be maintained by their own resources alone; and in the future the royal exchequer can make good the great sums which the islands have hitherto cost, with the special advantage that the fortified towns and military posts can be put into very respectable condition, and be made superior to the forts of any hostile nation whatever.

I protest and swear that I have understood the matter thus, and that, because I consider it feasible, judging from the experience of my office, I have [here] devoted myself to demonstrating more specifically that which in general is contained in the work entitled “Demonstration of the wretched and deplorable condition of the Philipinas Islands,” etc., which last year I presented before this superior government, and of which I rendered account to his Majesty, whose royal mind will consider what is most expedient for the glory of his monarchy, the conservation of these islands, and the advantage of the royal exchequer. It is to those ends that the savings and increases of revenue are directed that are found in these statements—which are the children of the zeal, affection, fidelity, disinterestedness, and assiduity with which I have devoted myself to the affairs of the royal service. Manila, July 10, 1766.

DON FRANCISCO LEANDRO DE VIANA

¹ These expenses were paid from the royal treasury, “at the rate of 34 p. 3 r. for every cura or religious, every year” (Viana *Respuestas*, fol. 161). [↑]

² *Explanation of “Plan of the present condition of Manila and its environs:”*—“1. Royal fort. 2, 3, 4, 5, and 6. Small bastions of San Francisco, San Juan, Santa Ysabel, San Eugenio, and San Joseph. 7. Ancient redoubt. 8. Bastion of the foundry. 9. A kind of ravelin. 10. Bastion of San Andres or Carranza. 11. Bastion of San Lorenzo de Dilao. 12. Bastion and gate of the Parian. 13. Works of the reverse [*obra de revez*]. 14. Bastion of San Gabriel. 15. Small bastion and gate of Santo Domingo. 16. Small bastion and gate of the magazines. 17. Fortin. 18. Parish church and convent of the Parian. 19. Chapel of San Anton, a chapel of ease. 20. Convent and parish church of Dilao. 21. Parish church of San Miguel. 22. Hospital of San Lazaro. 23. Ruined convent of San Juan de Bagumbaya. 24. Ruined parish church of San Tiago. 25. Parish church of La Hermita. 26. Ruined hornwork of fascines. 27. Royal alcaizeria of San Fernando. 28. Parish church, convent, and large village of Binondoc. 29. Hospital for Chinese. 30. College, parish church, and village of Santa Cruz. 31. Parish church of Quiapo. 32. Convent and parish church of San Sebastian. 33. Convent, parish church, and village of the capital of the province of Tondoc. 34. Convalescent hospital and island of St. John of God. 35. House of Mayjalique. A. Masonry bridge of Maloza. B. Masonry bridge of San Lazaro. C. Masonry bridge of

Dilao. D. Ruined house of Balete. E. Ruined edifice. F. Powder magazine. G. Ruined cavalier. Manila, September 30, 1767.

DON FELICIANO MARQUEZ”

[Below follows the scale of the plan, which is 500 varas to 9½ cm. The size of the original MS. map is 110 × 54 cm.] ¹

³ For the “Demonstration” here cited, see VOL. XLVIII, in which it is the final document. In the library of Edward E. Ayer, of Chicago, is a MS. book containing copies of letters by Viana written in 1767; the first of these (dated January 5) is addressed to the Marqués de Esquilace, and mentions the despatch to him and to the king, in the previous year, of copies both of the “Demonstration” and of the present statement of “Financial affairs of the islands.” He also relates how he has been actuated in his official duties by his zeal for the royal service, and has always upheld the rights of the crown; and in consequence he has been the mark for the hatred and enmity of all those who live by plundering the royal treasury, and who desire a fiscal who will allow them to do so without any opposition. The above-mentioned documents have, he says, “raised a furious tempest, the anger of those who fear the loss of their own profits, on which loss depends the rightful increase of his Majesty’s interests, and the saving of iniquitous expenditures.” Of the religious orders in the islands, he says: “They have great power, and much wealth which is acquired through what they unjustly collect from the royal exchequer and the Indians. No one dares to incur the hostility of the religious, for all fear the direful results of their power; and under pretext of a false piety, painted with the bright colors of the true, they have been wont to obtain whatever they have claimed. For this reason they have, ever since the conquest of the islands, burdened the royal exchequer with the increasing and numerous expenses occasioned in behalf of the said religious orders, instead of securing economies for it.” He claims “the glory of being the first one who, by dint of close application, has discovered the ‘philosopher’s stone’ for the enrichment of these islands and the royal exchequer.”

Viana also relates in this letter the enmity of Francisco Salgado against him, because he has, by insisting on the rights of the crown, secured sentences against Salgado in two lawsuits—one denying his claim for 36,000 pesos in the iron-mine contract, and the other compelling him to pay into the royal treasury the sum of 28,000 pesos, due from him as farmer of the wine monopoly—notwithstanding this man’s wealth and his persistent efforts to corrupt the royal officials. “This is a very unusual thing in Manila, where rich persons, like Salgado, know the method of making their iniquitous dealings secure, by dint of presents and bribes, which are frequent. It is by this means that the said Salgado succeeded in gaining the good will of the present governor of these islands [*i.e.*, Raón], by offering him 20,000 pesos in cash (as is well known and notorious) in order that the wine monopoly might be awarded to him at its sale, for the sum of 24,000 pesos in each year. I opposed this, proving by documents that the said monopoly produced more than 54,000 pesos, after deducting all expenses; and that the poverty and the urgent necessities of the royal treasury protested against the sacrifice of the 30,000 pesos of which the exchequer would be deprived every year.” He says that the governor tried to secure the award at that low rate to Salgado; but Viana appealed to the royal Audiencia, in which the case was pending when he wrote, and Raón and Salgado were both afraid of losing the great profits which otherwise they would have gained. He implores the minister “to exert his influence to check the rapidity with which these islands are hastening to their utter ruin.” Further reports and letters by Viana in regard to the Salgado affair are found in this book (*Cartas y consultas*), at fol. 6–11, 15–23, 30–37; the wine monopoly was finally sold for 40,000 pesos a year, thanks to Viana’s persistent efforts. ¹

4 Spanish, *baylio*, meaning a knight commander of the Order of Malta—*i.e.*, the Knights of St. John of Jerusalem. The following word is spelled “Frey” because it denotes a member of a military order. (Velázquez.) ↑

5 *Expediente*: this word has numerous meanings in Spanish, some of which are difficult to define in English. In this case it apparently means “the collection of all the papers belonging to a subject or business;” it may also denote “a summary or abstract, a legal process, official acts, or judicial inquiry.” Another meaning is, “any subject, claim, importunity, or analogous matter submitted to investigation, and depending upon a decision or warrant.” (Dominguez.) The law here referred to (Felipe IV, June 18, 1658) provides that the religious who are charged with the instruction of the Indians shall receive “a stipend of 50,000 maravedis in each year for each doctrina of 400 tribute-payers, which rule shall be inviolably observed.” ↑

6 Spanish, *vajo de Campana*, literally, “under the bell,” *i.e.* of the church. In an opinion rendered on April 17, 1765 (*Respuestas*, fol. 121, 122), Viana recommends that the Audiencia issue strict orders to the corregidor of Tondo to proceed to the reduction of the Indians dispersed through his province into villages—providing them with suitable dwelling-places from the lands belonging to the respective villages, or from the vacant crown lands. He enumerates the advantages (the religious ones being most important of all) which will follow to the Indians as well as to the government from this change; and asks that the religious ministers be charged not to interfere with the secular authorities in carrying out this plan, but rather use their influence to persuade the Indians to submit to it quietly. This plan is but the beginning of his scheme to bring about, as fast as it can be secured, the reduction of all the natives in all the provinces to obedience to Spanish dominion.

On fol. 132v, 133 are opinions regarding applications which were made soon afterward by certain persons or communities to be exempted from the enforced reduction to village life; Viana refuses to entertain these, insisting that all the natives must be brought “under the church bell,” in order that they may be instructed in religion, that their souls may be saved. (Cf. fol. 146, 147, 156, 162, 185.)

He also urged (fol. 139), on May 9, 1765, that all unsettled Indians in the province of Cagayan should be returned to their respective villages. ↑

7 See the tariff established by Archbishop Camacho (VOL. XLII, pp. 58–64.) ↑

8 Viana had said, in an official opinion rendered on January 14, 1765: “Notwithstanding these arguments [among which Viana mentions the frauds committed in the sale of these boletas], the royal junta of the exchequer would not have decided upon the application of the galleon’s lading to the benefit of the royal treasury if the necessity had not been most urgent, and this measure indispensable; and the distribution would have continued, in accordance with the favor bestowed by our kings and sovereigns to the commerce here—which has no right of justice to the boletas, nor is his Majesty under obligation to distribute them, since they have been assigned [to the citizens] by his royal clemency as a mere favor and benefit, and as alms. No one ought to be surprised that this favor, this benefit, and this alms should be suspended when there are no funds, and no means for paying it, and when it is applied in order to meet the unavoidable expenditures of the royal treasury, and to the payments which in justice must be made to the troops and other people employed in the royal service and the defense of these dominions. For it would not be just that for the sake of distributing the boletas, to which there is no obligation in justice, there should be failure in paying the claims which by every rule of law are due, and to meet the expenses which are unavoidable for the conservation of these islands.” (*Respuestas*, fol. 73.) It is evident from this that the above measure was put into force temporarily, at least, in

1764, as a necessary expedient in the distressed condition of the islands after the English evacuation; and that Viana now recommends it as a permanent regulation. ¹

⁹ There is an interesting statement in Viana's *Respuestas*, fol. 151–155, regarding the iron mine of Santa Ynes and its early history. One Francisco Salgado claimed to have discovered it, and tried to operate it for some time; but he finally abandoned the work, and it (or rather the right to work it) was sold, some years afterward, by the government to the highest bidder. Viana says of this mine: "It is called a mine, but more properly is a quarry of rocks containing iron, with which rocks the mountains of Santa Ynes abound; and in order to obtain them no vein is followed, nor is there need for tunnels, as there is in the mines." Salgado sold considerable iron from Santa Ynes, including 2,000 picos of it to the royal storehouses at four pesos a pico, instead of the current rate of ten pesos; this low price was claimed by the royal fiscal as the right of the crown, in the term of Ezpeleta as governor. In 1765, Salgado was claiming from the government 36,000 pesos, to reimburse him for the losses he had met in operating Santa Ynes; but Viana sturdily opposed this, saying that the mine naturally belonged to the crown, and that Salgado had forfeited any rights which he might have had therein, and did not make any claims to the mine at the time when it was placed in the hands of Francisco Casañas and Juan Solano, as he should have done in order to render them valid at the present time; moreover, he had made various misrepresentations of the matter at different times, and ought to be punished for falsehood.

In fol. 158, 159, Viana states that (in 1765) Casañas is dead, and Solano pays to the royal treasury five hundred pesos a year. Viana is anxious to prevent the abandonment of the mines (which he fears in view of the losses and injuries caused by the late war), since they contain enough iron to supply all India, and ought to be operated for the benefit of the royal treasury, thus saving the great expense which it incurs in buying iron from China, and preventing the drain of so much money from the islands. He therefore proposes that some two hundred Chinese be placed at work in the mines to operate and develop them, and build the necessary furnaces and other appliances; this will also reduce the population of the Parian, and will cost nothing to the treasury save the rations for the Sangleys, who should be compelled to cultivate the lands near the mines and raise most of what is needed for their support and that of their families (for the married ones should be selected for this colony). They should be placed under a manager of skill and energy, with twenty-five or thirty soldiers at his disposal. From this enterprise, "numberless advantages would ensue for the king and for the public. The consumption of iron in the islands amounts to from 80,000 to 100,000 pesos' worth annually; and even the most ordinary sort, that from China, costs seven to eight pesos a pico for bars, and twelve to thirteen when wrought into nails, balls, etc." By the above plan the cost of producing the iron would be reduced to about three pesos a pico. All the Sangley ironworkers should therefore be seized, and transported to the mines. ¹

¹⁰ "In the eastern part of the Philippines, cock-fights must have been unknown in Pigafetta's time; he saw the first gamecocks in Paláuan." (See Pigafetta's mention of these fights, in VOL. XXXIII, p. 211.) "In the 'Ordinances of good government' of Hurtado Corcuera, in the middle of the seventeenth century, gamecocks were not mentioned. In 1779 they first added to the revenue from taxation; and in 1781 the government farmed the right to collect entrance-money in the cockpits (*galleras*, from *gallo*, "cock"), for \$14,798 a year. In 1863 the revenue from these places made an item in the budget of \$106,000." A special ordinance regarding cock-fights was dated at Madrid, March 21, 1861; among its provisions is permission for this sport to be held on Sundays and feast-days, from the conclusion of high mass until sunset. "The craving to gain money without work they can with great difficulty withstand, and many are, through the passion for gambling, drawn into borrowing money at usury, embezzlement, and theft, and even highway

robbery; the bands of robbers on both sea and land consist, for the greater part, of ruined gamblers.” (Jagor, *Reisen*, p. 22.) ¹

¹¹ Spanish, *vecinos*, which is probably a clerical error for *tiempos*, as indicated by the context. The implication in “forty-eight” is, apparently, that the cock-fight would be a regular holiday amusement. ¹

¹² This recommendation by Viana was carried out later by Governor Basco (see pp. 53–55. *ante*). ¹

¹³ In some of Viana’s official opinions (*Respuestas*, fol. 114v–117, 128–132), he gives advice regarding the farming-out of the wine monopoly. He protests (March 27, 1765) against the action of the board in charge of this matter, who proposed to give this privilege to Andres del Barrio (the only bidder at the auction), for 16,000 pesos a year for five years. He states that it had at the previous sale brought 26,000 pesos, when the amount consumed was the same as at present; and the farmer’s returns from this monopoly ought to be even more now, since the regular soldiery now number 2,000, against less than 1,500 at the last sale, and some years hardly 1,000, while the net profit of this trade, if it be carried on with energy and business ability, ought to average over 30,000 pesos a year. Viana also protests against granting the monopoly on buyo to Pedro Tagle (also the only bidder) for 10,000 pesos, when the board had decided to offer it for 12,000 in order to dispose of it more easily, while the royal officials had valued it at 14,000. The board made reply to these objections, with arguments which Viana characterizes as weak, and proceeds to demolish with his usual energy. He complains that they acted without even notifying him to attend their proceedings, when they ought to be aware that he, as fiscal, is a member of the board. They have cited the prices first paid for the wine monopoly (10,000 and 15,000 pesos respectively; cf. VOL. XLVII, pp. 118, 119), without considering that those were for the term of three years only, while the present term is five years; and the prices paid before the English war were, at the last sale, 26,000 pesos, and at each of the two preceding ones 20,500. He states that the Spaniards of the city are poor, and consume little wine from the monopoly shops; but this is not the case with the soldiers, nor with the natives, who now are receiving higher wages than before the war, and are comparatively rich through it since they are selling all kinds of supplies at higher prices than ever before. Viana says that Francisco Salgado, the last holder of this monopoly, began it without any means of his own (having lost all he had in working an iron mine); but at the end of the five years he had gained from the monopoly 200,000 pesos. He estimates that the expenses of administering the business are 40,000 pesos annually, and adding to this 26,000 for the government dues, and 40,000 for the contractor’s gains, the total amount of the business is 106,000 pesos a year. If the Acapulco galleon and its successful voyages could be depended upon more certainly, the Spaniards would have more money to spend, and the wine monopoly would be even more profitable. Viana makes an interesting comparison between the administration of monopolies in the islands and that in Spain, where the circumstances are so different that, as he says, the laws of Castilla on this point are “absolutely impracticable” in the Philippines; moreover, in Spain the monopoly must be considered in connection with the impost of alcabala, “which is not collected on anything in these islands.” He urges that the board at least restrict the term of the monopoly of wine to four years, if they sell it at the rate of 16,000 pesos; and that for six years the rate be made 20,000. Also, that if the buyo monopoly be sold for 10,000 the term be made four years, and the rate be 9,000 [*sic*] for six years. If they will not do this, these monopolies should be administered by the government directly, and not farmed out at all. (From an entry dated May 10 (fol. 141v), it appears that the wine monopoly was purchased by Theodora Fagoaga.)

Apropos of his statement regarding the alcabala, cf. what he says on fol. 134, regarding a request made by the alcalde-mayor appointed for the province of Pangasinan, who asked a reduction of alcabala and bonds [*fianzas*] (presumably required for his faithful administration of that office). Viana advises against such reduction, saying of the alcabala,

“There is the same reason for paying the same amount as in the past, because the commerce is the same; and the said impost is not so much for alcabala as for the privilege of trading allowed to the alcaldes-mayor, relieving them from the oath which they formerly took.” [↑]

[14](#) Probably the worst of these abuses were checked by the formation of a naval bureau by the decree of 1800 (see “Events in Filipinas,” *ante*, last paragraph). [↑]

LETTER FROM VIANA TO CARLOS III

Sire: By a royal decree dated at Madrid on August 4, 1765, your Majesty ordered that this royal Audiencia should take pains to secure the observance of the laws (24 and 25, título i, book vi) in the *Recopilación de Indias* with regard to the trade and intercourse of the Spaniards with the Indians; and that it should report to your Majesty upon the other things contained in the copy of a letter from the venerable dean and cabildo of this holy church,¹ in which they chiefly set forth the request that your Majesty will deign to issue stricter orders so that the Indians may learn the Castilian language.

As the aforesaid report has not been despatched by this Audiencia—which is composed of two auditors, and there is only one of integrity, and zeal for the royal service—I have deemed it inseparable from my obligation to inform your Majesty² of what the experience of about nine years as fiscal has taught me regarding the aforesaid points, and to make known the zeal with which I have labored, to the end that in this particular the laws and your Majesty's royal decrees might be carried out. For this it is necessary to assume (in confirmation of the statements in the above-mentioned letter) that the despotism of the ministers of the doctrinas is absolute, so that they are almost the only ones who command in these islands; and that they govern at their own will the villages and provinces, without recognizing your Majesty or obeying any laws or royal decrees save those which suit their own interests and opinions. It is evident and notorious that they do not obey any of the rest, except as they please. This is proved by the fact that there is no law or decree or ordinance which is observed by the said ministers of doctrinas in questions of the royal patronage, in the administration of the sacraments to the sick, in the *tanorías* and other matters in which their comfort is concerned, and, above all, in the schools, for instruction in the Spanish language.

All this lawless conduct (which results from the absolute sway of the ministers of doctrinas) will be evident to your Majesty from the copy which

I enclose of two fiscal opinions, which are literally transcribed from the official records belonging to the year 765; the originals are found in the respective *expedientes* preserved in the office of the court secretary of this Audiencia. In these is told sufficient to give some idea of the despotism of the said religious, on whom nearly all the people of these islands are dependent—some through fear, and others through unjust acts of compliance and tolerance which at the present time make it exceedingly difficult to check that despotism. This will never be accomplished unless the governor and the ministers of the Audiencia proceed unitedly and with equal firmness, without yielding to the religious, and with inflexible zeal for the fulfilment of the laws and the municipal ordinances of these islands. But for this end it would be indispensable to confer the public offices of the provinces on men tried and true, who would fulfil their obligations; and not on persons who, buying the said offices in Manila, undertake to fill them by inflicting so many injuries [on the natives] that their very infractions of law oblige them to depend absolutely on the religious, and to maintain the latter in their possession of authority over the Indians and over the *alcaldes*. From this beginning it results that neither the orders of the governor nor of the Audiencia take effect, and that all the measures which are conformable to the laws and to your Majesty's royal decrees prove futile; for there is a false show of fulfilling them, which leaves these matters in the same confusion which attempt was made to remedy.

In the laws of the Indias, in the former "Ordinances" of these islands, in those which were drawn up by Governor Don Pedro Manuel de Arandía³ and in repeated royal decrees, this matter of the instruction of the Indians in the Spanish language is especially enjoined; but, notwithstanding this, the notion of the said religious has prevailed that the Indians shall remain ignorant of the said language, in order to keep them more dependent [on the fathers], and in order that no Spaniard may obtain information of what is going on in the villages. There are innumerable instances which have occurred, of the curas of doctrinas punishing the Indians who talked with the Spaniards in our language. In the villages close to this capital there are many Indians who understand the said language very well, but when they are in the presence of any religious they reply in their own Tagal language to the Spaniards who ask them questions in Castilian, through their fear of

the father; and the latter never speaks to the Indians in Spanish, even though they may be proficient in it. This is convincing that the intention of the religious orders is certain and evident, that the Indians shall not know our language, so that they may be more secure of the doctrinas not being taken away from them, of the bishops not attempting to visit them, of the non-enforcement of the laws (none of which are enforced) of the royal patronage, and of the continuance of the despotism with which they govern the Indians in both spiritual and temporal matters, without fear of any noticeable result. For thus they find themselves necessary, and they mock at the zeal of a governor, of an archbishop, of a fiscal, and of all those who mourn the entire non-observance of the laws; and as these officials and the ministers of the Audiencia are seldom united to procure the enforcement of the laws, because the religious orders do not neglect to mislead some of them, the latter are always sure of a victory through this disunion (which is very frequent), when the same spirit of courage and firmness does not animate the minds of all [the officials] for the fulfilment of the laws and of your Majesty's royal ordinances. Through your royal complaisance, I have continually inveighed against the main points in the opinions of the curas of doctrinas, which are opposed to the laws and ordinances; and especially against their persistent endeavor that the Indians shall not know our Spanish language—as your Majesty's royal mind will be informed by the copy which I enclose. As contributing to fuller information on this point, and confirming it, I will state that in the year 762 I, as fiscal, made the same claims in this royal Audiencia which the venerable dean and cabildo set forth to your Majesty in the year 764.

There is equal proof for what I demanded regarding the trade of the Spaniards with the Indians. It is grievous to see that no one dares to carry on this trade; for, however strict may be the orders which have been issued, not only by your governors but by this Audiencia, the curas of doctrinas have many means for rendering them ineffective. They dissuade the Spaniards from going to the Indian villages, where, as a rule, they are treated with incredible contempt, and are denied even the food which they need (and for which they offer money), because neither the *governadorcillo* nor any other Indian dares to sell it without permission from the father minister. Not only does the father usually deny this, but he stirs up the anger

of the Indians against the Spaniard—whom they call *Castila*; the name of Castilian has thus become exceedingly odious among the natives, and they regard every Spaniard with dislike, if indeed not with hatred. To see a Spaniard in their villages appears to them such a novelty that all the inhabitants—old persons, the youths, and the children—sally out to look at him, with loud yells and uproar, in which one can only hear, “*Castila! Castila!*” and amid the annoyance of being surrounded by Indians, without being able to understand them, the Spaniard has no other resource than to go in search of the father of the doctrina, and humiliate himself before him with the same abjectness as the said Indians show, in order that the reverence shown to this despot may furnish him with lodging and food, and render his life safe. This would not happen if the Castilian language had been extended into the provinces, for experience shows that every Indian who understands it feels much affection for the Spaniards; and the natives aid them wherever they meet them, if they are not in the presence of the fathers of doctrinas.

It is no less certain that many of the fathers trade in the villages which they administer, and that for this reason also they are undertaking to hinder, by the aforesaid means, the trade of the Spaniards. All this will seem as incredible to your Majesty as it seemed to me until my official duties, and the things that I myself have seen in the provinces through which I have traveled, proved its truth to me; and even more than what is notorious and public to all who have lived in these islands for some time can be told to your Majesty by Doctor Don Simon Anda y Salazar, who certainly was often undeceived, by experience, in regard to the aforesaid intentions of the religious.

I, Sire, would not dare to write on subjects so delicate, and so difficult to explain, if I were not fully convinced of what I have stated above, and of the fact that this abuse has not been nor will it be remedied, while a governor little acquainted [with his duties] in the early years of his term casts into oblivion the measures taken by his predecessor, or revokes them, through the persuasions of the religious; and when he reaches the point of being undeceived he comes to the last years of his government, and the measures that he takes then have the same fate as those already mentioned,

on the arrival of his successor. The same thing occurs with the ministers [of the Audiencia] who have recently arrived at this city; for, under the influence of the said religious, they regard as recklessness and impiety that which afterward, with some experience, they recognize as zeal for the royal service. This disunion and lack of agreement in their opinions would not be experienced if the laws were punctually observed, and if the “Ordinances for the provinces” were established as law—which would regulate all these matters, and not allow freedom for failure in supporting them, as they ought to be supported, by an opinion that is equally firm in all the governors and ministers. For nothing so injures good government as the attempt of those high officials to temporize with every one, and not incur any one’s ill-will; and to look out for their own profit, to the detriment of the general good. It is notorious, at the same time, that for the said reasons whatever concerns his Majesty and the public is in almost utterly desperate condition; that the laws and royal decrees are not held in due reverence and respect; that they are transgressed with reckless readiness; that seldom is justice administered, on account of the intervention of influential persons; and that only where there is no advantage for self—as is the case in the affairs of poor people—are the laws observed. From this abuse—offensive to the supreme power of his Majesty, which usually is not obeyed in these islands, where a spirit of greed is the sole ruler with absolute dominion—it results that zealous and upright ministers are the only ones who are persecuted; and that those who remain inactive, and are susceptible to presents, and can be led into unlawful yielding and compliance, are popular with the citizens.

Another of the more important causes which occasion the said abuse is, that since the Audiencia has no cognizance of the affairs of the provinces in regard to their government, and as the governors on account of their military profession (in which alone they have been trained) have not the necessary knowledge of the laws and of the “Ordinances of good government,” or of municipal regulations, it results that an upright governor does not come to a resolve about anything, for fear of making some mistake; another, more resolute, goes headlong into measures to which his associates persuade him; and another governor, with interested motives, works for his own advantage. As a general rule, all or most of the governors are bewildered with the multitude of affairs which present themselves; they

do very little work, and in nothing do they act with less vigor than in the government of the provinces; and enactments are made at the pleasure of the governor's secretary, and occasionally of the assistant judge [*asesor*]. Here these usually are venal and have little sense of honor; and they attend only to such business as brings them gain, and not that of their office, which yields them nothing. These serious and notorious difficulties can be avoided only by separating from the government the superintendency of the *exchequer*⁴ which is the department of business that is most neglected, and is most worthy of attention—and establishing ordinances, which shall be enforced without deviation, for the secure furtherance of the royal interests, and of the administration of justice in the provinces, leaving the absolute cognizance of the latter to the royal Audiencia, and of the former to an intendant, and forbidding them to the governors, who have more than enough field for action in military and purely political affairs in which to display their zeal. Then they would devote themselves to these important matters belonging to their profession, which are those which have seemed to them to merit least attention and care, because their application to other business produces them more gain.

If these departments of the government were separated in the above manner, there would be an invariable method of procedure in the two tribunals of the Audiencia and the intendency. For in the former, even if one or another minister should pass away, there would remain others, who could instruct the new officials, so that the said method should never be changed without evident necessity, justified by documents and by unanimous opinions; and in the intendency the same thing would occur, by means of the practical knowledge which would pass from some royal officials to others, and from some subordinates to others. Especially should be left to parties [in controversies] free recourse by appeal to the royal Audiencia from all the acts and measures of the intendant; and he, with the ministers [of that court], should proceed to the choice (by a majority of votes) of the [provincial] governors, corregidores, and *alcaldes-mayor*. Thus, likewise, would be avoided the sale of those offices, which is frequent; and the merit and services of the citizens would be rewarded, so that they might have some stimulus in regard to their conduct and valor, and be encouraged to serve your Majesty by these hopes—which are entirely lacking to them at

the present time, in which he alone is preferred who gives most for the offices.

In regard to the “Ordinances for the provinces,” I have systematized those which Doctor Don Simon de Anda y Salazar can show you; he carried with him a copy of them, which I drew up with the knowledge and experience which I have acquired by dint of constant application. Thus far they have been neither approved nor censured by the royal Audiencia, in virtue of the royal decree which your Majesty addressed to that body, that they should frame and arrange some ordinances, keeping in mind the articles of the late governor Don Pedro Manuel Arandía, and those of the reverend father in Christ the bishop of Nueva Caseres;⁵ but as the said ordinances cannot be framed without [incurring] the resentment of the ministers of doctrinas, and opposing their despotism and their designs (which aim at the overthrow of the ordinances which I composed), that court has left the matter in suspense for more than three years. And it will remain in this condition, at the pleasure of the senior auditor in the said Audiencia, on whom alone it depends, unless the efforts of those zealous ministers Don Manuel Galvan and the above-mentioned Don Simon de Anda, and those which I have exerted in the duties of my office, can secure the settlement of a business of so great importance—in which are included the two points which I have already mentioned, the trade with the Indians, and their instruction in the Castilian language.

There is another matter not less important, the reduction of the villages and houses of Indians into parishes [*debajo de Campana*], which I have continually recommended, and still urge; for I am of opinion that without such reduction we shall have neither Christians nor good vassals, as it is impossible for the Indians, while dispersed, to be instructed in the mysteries of the Catholic religion. Living, as most of them do, without government either spiritual or temporal, they readily abandon both their religion and their vassalage, as experience has proved. This would be corrected by the said reduction, and, as a result, the Indians would become more civilized; they would go to church frequently, the children would attend the schools, and their instruction in the Castilian language would be facilitated, and with it our trade. If schools for the instruction of boys and girls were established

in the chief towns of the provinces, as I recommended to the superior government, religion and the Christian church would flourish in these valuable dominions—whose natives are susceptible of great religious and social progress, if zeal and care be displayed for that which has hitherto been neglected.

As for the royal interests in these islands, I have the satisfaction of having sent to your Majesty a work entitled, “Demonstration of the deplorable and wretched condition of these Philipinas islands,” etc.; and another containing seven demonstrations⁶ showing the products yielded by these dominions and the expenditures of your Majesty therein; and the great retrenchments of these, and the increase [of revenues], which might be established—which would reach every year the amount of more than one million, three hundred thousand pesos, without including the increase of the tributes or counting the present receipts of this royal treasury. In regard to these two works, however great an outcry may be made by the indignation which the religious have conceived against me on account of the advantages of which they would be deprived by the [royal] approbation of the second work, I trust that the royal and just mind of your Majesty will be gratified by the zeal with which I have discovered the “philosopher’s stone” with which these islands can yield to your Majesty more than what their maintenance has cost for two hundred and three years.

In the present report I have expressed myself at some length, bringing in the points just mentioned because I think that they help to a more intelligent understanding of the two most important matters, the trade of the Spaniards with the Indians, and the knowledge by the latter of the Spanish language. To understand better the ideas of the ministers of doctrinas, it only remains for me to say, through love for the truth, that among them there are some religious of exemplary virtue, who are included [in my censure only] in what concerns their spiritual administration, in other matters fulfilling [their obligation of] obedience to their superiors, and not meddling with worldly affairs; but I cannot avoid giving, in conclusion, a brief account of the manner in which the ministries are filled in their chapter-sessions.

The factions among the religious are notorious, and sometimes scandalous; and they are engaged during the entire year in activities for the chapter-session. The faction which gains the upper hand shares among its adherents all the ministries which have the right to vote, and those of the greatest profit and ease; and the rest are distributed among those of the opposite faction, who go as exiles to the mountains, and especially to the missions. This is the reason why so few souls are converted among the pagans; because no longer are selected for missionaries the religious who have a vocation [for that work], and zeal, but those who have no influential friends and those who are unable to attend the chapter-sessions.

The provincial-elect supports those of his faction, on account of the importance to him of their votes for the next chapter; and he overlooks or permits more than what is right. He makes—with ostentation, and with greater authority than that of a bishop—the visitation of the ministries under him; and even if the Indians complain of any extortion, it is not corrected except when the religious [in that village] belongs to the opposite faction. Some complaints reach the tribunals of this city, and, however justified they may be, the provincial does not punish them, except when that suits the interests of his faction; but there are very few who complain, because it is an article of faith, so to speak, among the Indians that the father ministers possess an absolute power and dominion, which compels them to endure or perform whatever the fathers command them.⁷ And since in each province, even though it may be of wide extent and contain many villages, there is no Spaniard save the alcalde, and he also fears the said fathers, they are despots; and the Indians are unable to do anything save what their father minister tells them to do. For these reasons, the entire secular government of these provinces remains at the disposal and pleasure of the curas of doctrinas, whose maxim is that which the religious orders most observe, as well as their provincial superiors. In order to fill that office, they give up administering the Indians, but at the end of the provincialate they return to the said administration, in which the same despotism belongs to them. This is absolutely without remedy, and will be so while the curas of doctrinas, besides what I have already said, cannot be subjected to the visitation of the ordinaries. If that were the case, they would prevent any ecclesiastic from taking part in secular affairs, and from oppressing the Indians—not

allowing them to compel the natives, contrary to the ordinances of the provinces, to supply fish for the support of the cura; or to pound the rice (in which they employ the young Indian women); or to furnish the other polos or tanorías which they have established, contrary to the laws and the said Ordinances. The ordinaries would also prevent the frequent abuse of their causing the sick to be carried to the church in order to give them the viaticum—as is done notwithstanding the Ordinances and many royal decrees which prohibit this; they would take pains to see that the indulgences of the bull [of the Crusade] were preached; they would visit the brotherhoods and the confraternities. They would take inventory of the incomes of the respective churches, according to the laws of the royal patronage, in order to know how they are spent, in regard to which also I have advanced what your Majesty will find in the *expediente* for the wine monopoly. They would keep close watch over the schools, to see that instruction be given in the Spanish language. They would restrain the occupation of some religious in the business of trading; and trade would become free to the Spaniards, who thus would have the opportunity which hitherto they have lacked for trafficking in the provinces. With this traffic the Indians would become accustomed to dealings and intercourse with the Spaniards, whose name is now most odious to them; for by this means their curas keep them in greater subjection—if it is not, indeed, a sort of vassalage; it goes so far as to dominate the wills of the Indians, and to make them as hostile to the Spaniards as, in general, the religious are. Finally, with the said visitation of the ordinaries, and the subjection to it of the curas of doctrinas, a remedy would be provided for almost all the abuses and the usages that are practiced in the ministries—which are today the same that were related to your Majesty by the venerable Bishop Palafox, which appear in his arguments in favor of the secular clergy—the reverend bishops proceeding with the pastoral zeal which without doubt would actuate them if they were not members of the orders, and with harmony and agreement with the government as vice-patron. For, with the two branches [of the government] united, having the same object, and punctually observing not only the visitation but the law of the royal patronage in the presentation or removal of curas, it is very certain that the Indians would be relieved of heavy burdens; the religious would not be so despotic; and they would devote themselves to the care of their parishioners in spiritual affairs,

without meddling in secular matters. The good government of the provinces would be established; trade with the Indians would be introduced and promoted; and by means of this trade, and of instruction in the Spanish language, mutual kind feeling would be engendered between the two peoples, and there would be an end to the detestation with which one regards the other. Above all, Sire, it would be known that your Majesty is the sovereign of these islands, in which, it can be asserted, the religious do not recognize your Majesty; for they observe or heed hardly any of the laws, the royal decrees, and the Ordinances which regulate, the above-mentioned matters. At the same time, they are exceedingly jealous and exacting that all the laws which treat of advantages, stipends, and contributions to them shall be executed.

But even all that is here mentioned will not be enough for the amendment of the many evils which demand it, unless all [the officials] are encouraged and animated by the [right] spirit in the governor of these islands, on whose good or evil conduct depends the good or the bad behavior of almost all the people who compose this colony. This government has in its charge a multitude of affairs, which on account of their extent overtax the ability of one person alone, and on this account they are entrusted to many—but with this distinction, that when the governor is able, assiduous in his duties, vigorous, and just in his dealings (traits which unfortunately have been seldom seen in these islands for many years past), such also are those who assist him; and they take pains to secure his approval as much as they fear to displease him. But when the governor is a man of limited ability, indolent, or dominated by avarice (which is most frequently the case), all his associates have these same failings and vices. Moreover, all business then depends on the governor's secretary; nothing is attended to, save what yields [him] some profit, and everything is neglected which concerns your Majesty, the government of the provinces, the proper management of the royal exchequer, and the public welfare. In these matters, the earnest zeal of neither the fiscal nor of some other upright ministers is sufficient, for since they are such they oppose what is unjust, and obtain no other result than many vexations, and the grief of seeing that these islands are going headlong to their final ruin. Hence it may be concluded that only a governor who is able, industrious, and very disinterested, in conjunction with

reverend bishops of like zeal, assiduity, and disinterestedness, can constitute the effectual check by which the curas of doctrinas may be kept within bounds, by subjecting them to the [episcopal] visitation, and to the enforcement of the laws of the royal patronage; and by stationing in the provinces alcaldes who are men of honor and who fear God, who will be vigilant for the laws and ordinances—as they will be if, free from uncertainty as to their authority, they have no cause to fear the religious. But, on the other hand, if they have cause for such fear they will neglect everything, and only busy themselves in what encourages their covetousness, with acts of extortion and violence which seldom are punished, because they are hidden in the residencias; and because the governor, who regularly sells these offices to the persons who give most for them, permits their acts of injustice, which he would punish if the appointment were a disinterested one and in accordance with the royal intention of your Majesty. By these facts it seems to be demonstrated that the main root of all these evils is in the inefficiency, indolence, and, most of all, the covetousness of the governors; and that the remedy for them lies alone in the division of the [governmental] business, as I have already stated, or else, if this division be not made, that the governors be men who are able, assiduous, and disinterested. For such will cause all the members [of the government] to follow the example of their head; and the laws, the royal decrees, and the ordinances will be obeyed, so that your Majesty may be recognized as sovereign lord of these dominions, and a thoroughly good government will be established which can preserve these Christian lands, with benefit to the royal treasury, as I have had the honor to represent to your Majesty. For otherwise it does not seem probable that the royal orders of your Majesty will be productive of results, for experience shows that such has not been the case hitherto with the many pious and excellent provisions contained in the wise laws of the Indias, and with the repeated royal decrees by which, at various times, those laws have been confirmed. These have not yet been fulfilled, nor will they be, unless disinterestedness rules, and unless there is punishment for covetousness—for this is what ruins and upsets everything, and, by force of defying and insulting upright ministers, causes the latter to live without freedom to execute justice, and to render the worthy tribunal of the Audiencia useless and inactive; for the iniquitous proceedings of some governors, and especially of the present

one, have reduced this court to the utmost humiliation, as the numerous transactions of which I have given account to your Majesty prove. May God preserve the Catholic royal person of your Majesty for many years, as is needful for the monarchy. Manila, May 1, 1767.

[FRANCISCO LEANDRO DE VIANA, fiscal of the royal Audiencia.]

¹ This letter, as appears from the royal decree above cited, was dated July 15, 1764, and was written by the officials of the vacant see of Manila—in answer to a despatch from the king (November 2, 1762) to the late Archbishop Rojo, in which “he was thanked for the visitation which he practiced in his diocese, and charged that the Christian doctrine must be taught to the Indians in Castilian;” and the cabildo answered that the numerous laws on that point were always disobeyed by the curas from the orders, for reasons similar to those here charged by Viana (cf. the memorial by Anda, *ante*, sec. 12). See Pardo de Tavera’s *Memoria de Anda y Salazar*, pp. 87, 88. [↑]

² This document is obtained from Viana’s letter-book, *Cartas y consultas*, fol. 39v–46, being the last letter therein. This fact, coupled with his statement in the last sentence (which indicates that his position under the unscrupulous Raón had by that time become untenable), suggests the probability that he returned to Spain in the summer of 1767. Certain references to Anda indicate that Viana did not, when writing this letter, expect to return so soon to Spain; but the necessity of that step doubtless became evident soon afterward. Anda embarked for Spain on January 10, 1767. [↑]

³ Referring to those of Corcuera and Arandía, which are presented in this volume, *post*. [↑]

⁴ This reform was accomplished under Basco, in 1784–85; sec p. 50, *ante*. [↑]

⁵ Or Camarines, both names being used for the diocese. But one would expect the mention in the text to be Cebú instead, alluding to the temporary government of Ezpeleta; the mention of Nueva Cáceres may be a *lapsus calami*. [↑]

⁶ This document immediately precedes the present letter; the “Demonstration” is at the end of VOL. XLVIII. [↑]

⁷ In 1765, certain trees which had been planted by the Indians on the highway of Mayhaligue were torn up by order of the procurator-general of the college of San Ignacio, Manila. Complaint was made of this, and the matter investigated; it appeared that the Indians had planted the trees by order of the alcalde-in-ordinary, but the Jesuit claimed that he did not know this. Viana’s official opinion in the case (see his *Respuestas*, fol. 62v–63), dated December 23, gives the argument on both sides at some length, and concludes (in a somewhat sarcastic tone) by deciding that the Jesuits doubtless were

not aware that the trees had been planted by official order, but nevertheless had no right to tear them up; and recommends that they be compelled to restore the trees to the highway, at the expense of him who first destroyed them. ¹

ANDA'S MEMORIAL, 1768

Abuses or disorders which have been fostered in the Filipinas Islands under the shelter of religion, and at the cost of the royal treasury, which ought to be cut down at the root, so that the governors who may be sent to those parts, if they are good may be better, and if bad may not be worse—and, at least, so that they may not have any excuse; so that religion may be established on its sure principles of purity, in order that the king may be owner of those domains (until now he has been owner in the matter of expense); and finally, so that his Majesty's vassals, both Spaniards and Indians, may be vassals of their king alone, and may be relieved from the abominable slavery which they have borne for about two hundred years.¹

FIRST ABUSE

It is an abuse, and a very great one, for a city so reduced as Manila to have two universities for the small student body [*estudiante y medio*: literally, “student and a half”] therein, without other object or idea than the rivalry of the Thomist and Jesuit schools, to the so great harm of the state, and of religion, as has been seen in all parts, in so many clamorings and scandals.²

It has been said that there is a student and a half, not because there is no more, but because I mean by that that there are eighty or ninety (and there are no more) for the two universities.

In the beginning there was a secular university as in España, but the two orders did not rest until they destroyed it;³ and they, having remained alone, scarcely furnish subjects for the eight canonries, two raciones, and two medias-raciones, of the cathedral.

It is to the interest of all the orders that a secular ecclesiastical estate shall not be fostered, or [even] exist; for in this manner, since there is no one [else] to be obtained, they continue in the possession of the curacies, and the king continues his former and most detrimental burden of sending missionaries at his own cost, who become there so many other enemies.

On account of the abovesaid, the two universities in great harmony and accord have introduced the settled plan of furnishing an instruction of mere ceremony, in order thus to disappoint even the small number of students.

In the university of Santo Tomás there is one professorship of institute law, and another in the university of the Society. Who will believe that when I was in Manila there were not more than three advocates who had graduated from those universities? namely, Don Santiago de Orendain, Don Domingo de Aranas, and Don Luis de Luna—the first two professors, but with scarcely any pupils.

It is a fact that the bar in Manila is superabundantly supplied. Notwithstanding that, if advocates did not go from Mexico to gain their livelihood the business [of the courts] would cease for lack of defenders, notwithstanding the two universities—who through their shrewdness and influence prevent the students from pursuing that career, as very few are inclined to that of theology.⁴

Remedy for this evil

The university of the Society having been extinguished by their expulsion, the same ought to be done with that of Santo Tomás; for, otherwise, the same difficulty remains. Suitable professors ought to be sent from here,⁵ who will maintain themselves with the same incomes,⁶ and suitable seculars, in order that they may be given the curacies near Manila. In view of this reward there will be no lack of students to attend it; and in a few years, the hard yoke of all the regular estate, hitherto possessing almost all the curacies and maintained by the king, notwithstanding the rich fees or dues [therein], will be shaken off.⁷

SECOND ABUSE

It is an abuse that, although the spiritual administration belongs by right to the secular clergy, and the regulars possess it precariously *ad nutum* [misprinted *mitum*] *regis propter inopiam clericorum in principio*,⁸ the greatest promotion which an unemployed secular obtains in Filipinas is to be the servant or deputy of the fathers.⁹ Thence it results that the latter abound in so great wealth, collectively and singly, and the former suffer from necessity; and all of them are the sons of Spaniards and Indian women, and all vassals of the king. In view of this disclosure, what father will spend and what son will work without even a remote hope of reward?

Remedy for this evil

Since the reign of Don Fernando VI (in the years 53 and 57), all the curacies in both Americas have been taken from the regulars as fast as the latter have died. Let the same be done in Filipinas, and that will be in accordance with all right. The true religious will surely give thanks, the curacies will return to their center, and the ecclesiastical estate will be aided by what is in justice due to it.

THIRD ABUSE

It is an abuse that since the regulars have possessed the curacies for so many years and with so many troubles [ensuing therefrom], they have not, although the country is so wealthy and their fees and parish dues are so heavy, thought of relieving the king of the hard and intolerable burden of paying them a stipend in money, with rice, wine for the mass, and oil; and, in those curacies which they call missions, even the escorts for the guard of the father—who runs no risk and for that reason is not accustomed to have any escort, although the king always pays for them.¹⁰

What vassal who has even the most lukewarm regard and respect for his king could keep still when the curacies of Binondo, Santa Cruz, and the Parian (which are under the cannon of Manila), and that of Tondo, which are, with but little difference, worth to the regulars, the first, six or seven thousand pesos in obventions, and the others but little less, nevertheless draw from the king the stipend in the things mentioned above?

Remedy for this evil

To create a university, as has been said, to send clergy for its beginning, and to make current the tithes—of which hitherto in Manila it is only known that they are inserted *in corpore juris*,¹¹ nothing more. By this just provision the king will save three hundred thousand pesos; the army will find that they can be supported with that amount; and the difference between these two investments will be evident, since the soldiers defend the king, and the regulars are his enemies, of which the past war was a good example.

FOURTH ABUSE

It is an abuse that amid the many and heavy fees which the regulars charge the Indians they exact fees for confession, and, in the [very] act of making the confession, one and

one-half reals in order to comply with the precept, under the pretext of the three feasts, namely, Corpus Christi, the titular saint, and Holy Thursday; for even if that is not simony, at least *est res pesimi exempli*.¹² It is certain that the Indian believes that he pays for confession, and it is also a fact that if he does not pay he is not confessed.

As soon as the English took possession of Manila, they learned of such a custom, and thereupon cast great contempt on our religion, and persuaded the Indians to follow them, for among them there was no such practice, nor could there be—which was an error and a manifest deceit.¹³

From this custom, abuse, or offering, two hundred pesos are obtained in some villages, and in others three hundred, four hundred, and even more, according to the population.

The abovesaid feasts result so cheaply to the father that with twenty pesos he pays the expenses of all three of them; for the adornment of the church and of the line of march is made by the Indians; wax is no expense to the father, or very cheap; he or his associate preaches the sermon; and, let him preach what he will, he never gets beyond a discourse spoken in a language which either the preacher does not understand, or, if he does understand it, he does so very poorly and with great errors.¹⁴

Remedy for this evil

To decree that this abuse cease entirely; for it is less inconvenient that there should not be such feasts than that, under the pretext of those feasts, occasion be given for so serious a scandal; a thousand expedients that are proper will be found without using this one, which touches a most sensitive point in religion.

FIFTH ABUSE

Since the discovery of the two Americas, the king has been seignior of them in temporal matters, and in spiritual, royal patron and pope, and as such has made appointments to all the secular and ecclesiastical employments of the cathedrals, with the advice of the auditors; and the curacies are filled by the vice-patrons, with preceding examination and proposal by the ordinary. In this matter there is seen the monstrosity in Filipinas that, excepting the prebends of the cathedral, all the curacies are given by the provincials to their subjects without examination, proposal by, or notice to, the ordinaries or the vice-patrons, with absolute despotism and independence, despoiling the king and ordinaries of the so well-known right that belongs to them.

Remedy for this evil

Until seculars are provided, the provincials must cause their subjects, by right and the councils, to subject themselves to examination and proposal by the ordinary to the vice-patrons; and it is an intolerable abuse that the provincials make those appointments without giving notice to the latter.

SIXTH ABUSE

It is an abuse, born of the preceding, that the archbishop of Manila and the three bishops of Nueva Cáceres, Nueva Segovia, and Cebú, residing in their dioceses, may be bishops *in partibus*, since, under pretext of the exemption of the regulars, they may not ask the latter how they administer their obventions or how they live, which in truth is the height of scandal.

Remedy for this evil

The venerable Palafox, in La Puebla, conquered the regulars by a formal judgment that as parish priests they must remain subject to the ordinary; but after his removal to Osma those who were expelled succeeded in nullifying this and other just decisions. The same thing was obtained in Manila by Archbishop Camacho; but after he was transferred to the bishopric of Guadalajara in Nueva España the same thing happened as in La Puebla, so that the regulars have continued and still remain in the same abuse—which will cease by ordering them to obey the judgment secured by Camacho (or by the council, which is the same thing).¹⁵

SEVENTH ABUSE

Just as the bishops who live within their dioceses are bishops *in partibus*, the king is that in the Filipinas Islands. His Majesty resides in them by the authority communicated to his president and Audiencia, and to the alcaldes, governors, and corregidores of the provinces, in which the president, Audiencia, and other ministers do not command, but only the religious father.

The king is named as such, and is called upon as king, only in order that he may pay the stipends; beyond that his royal name is abhorred and persecuted.

It causes horror to see a religious, paid and maintained by his Majesty, with the character of apostolic missionary, no sooner arrived at Manila from these kingdoms than he immediately publishes and defends the assertion that the king is not master of the islands, but only they who have conquered them; that the Indian ought not to pay tribute; and that no bull [*i.e.*, of the Crusade] is needed. It is for this very reason that there are so many difficulties in collecting the tribute, and that the bull is not purchased excepting in Manila and its environs.

With these opinions, and their extolling, some the pontifical grants to their girdle, others those of the scapulary of Carmel,¹⁶ and others their exercises, they obtain vast contributions which they call alms; and the king is left with the bulls, for the religious assert and proclaim that they are not necessary.

In regard to jurisdiction, it is a well-known fact that no *gobernadorcillo* of Indians carries out any mandate of the president, Audiencia, or *alcalde* without the permission of the religious father—under penalty of one hundred lashes, which are given to him instantly if he obeys the royal magistrates and justices.

With these and other pernicious ideas in which the fathers abound, they surprise the poor Indian, strike him with terror, and make him believe that they are all-powerful, can do everything, and that the authority of the king is worth nothing. Thus the king becomes, like the bishops, a monarch *in partibus*, in name alone, and only in order to maintain certain persons who style themselves apostolic missionaries.

A few days after I had arrived at Manila, the archbishop-governor [*i.e.*, Rojo] despatched an order to the province of Pampanga; it fell into the hands of a father, and he tore it to bits with great calmness, the archbishop overlooking that act of disrespect. Hence, even in case that one obey any mandate of the royal jurisdiction, so many are the obstacles and difficulties that the fathers find for its execution, that they absolutely do not have any other endeavor or desire than to cause the Indian not to recognize any other sovereign than themselves. The worst is, that this idea has existed since the conquest of the two Americas, whence it passed to Filipinas, with the utter detriment and ruin of king, state, and religion. Hence the king is called king, and the president, Audiencia, and *alcaldes* by their own names; but, in reality, the fathers exercise these functions.¹⁷

Remedy for this evil

To order with the utmost strictness that the regulars restrain themselves within their limits as parish priests, under penalty of expulsion if they meddle with or embarrass the

royal jurisdiction.

EIGHTH ABUSE

From these so pernicious ideas fixed in the minds of the Indians, is born the monstrous result that a baptism, burial, or marriage costs them twelve, twenty, or more pesos, if the father asks it—and this is with all caprice, and no resistance or appeal can be made. But when it comes to demanding the tribute, although it is not more than one peso and two reals a year for the whole tribute, and five reals for the half-tribute, there are a thousand difficulties, and various stratagems are used, such as going to the mountains to hide, or feigning that they cannot pay; and, in such a case, they always have the father on their side against the king and the alcalde, on this point.

Remedy for this evil

To order that the fathers shall not meddle in worldly affairs, especially in the royal jurisdiction; that they shall not engage in trade;¹⁸ to establish collection of the tithes; and to compel them to observe very moderate tariffs [of parish fees]—under penalty of expulsion obliging them to undo the evil that they have wrought.

NINTH ABUSE

It is an abuse that the king pays the expenses of the voyage and support of the fathers in Filipinas, under title of apostolic missionaries, and they go there to become merchants and business men, to the harm of the poor Spaniards and of the Indian, besides their abandonment of the spiritual ministry which is in their charge.

In the environs of Manila—with the exception of the Franciscans, who have nothing, and of the Condesa de Lizárraga, who has a small estate—the religious orders possess the following estates: the Dominicans, Lolomboy, Panay, Navotas, Great Malabon, and Biñan; the calced Augustinians, Malinta and Pasay; the discalced Augustinians, San Pedro Tunasan, San Nicolás, Imus, and Tunasancillo; the Jesuits, Mayjaligue, Masilog, Nagtajan, Nagsubig, Mariquina, Indan, Silan, Marigondon, Payatas, and San Pedro Macati (where they have their earthenware factory, from which they make annually thirty thousand pesos fuertes net profit). These are the ones which I now have in mind,

although they have other estates in the provinces, of which I can give no exact account. But indeed I know, because I have seen it, that the Indians who cultivate those lands come to be virtually slaves, by which means the orders have aggrandized themselves, with their trade in sugar, cattle and horses, and rice. Although this last is the bread of all, that bread rises in price to such a degree that it can rise no further—to which is added the great export of these products to China and the coasts of Coromandel and Malabar.¹⁹

Remedy for this evil

To command, under penalty of expulsion, that they do not trade, as it is contrary to law; and, in respect to estates, they ought to sell them, even though they are the just owners, since such business is inconsistent with their ministry. It is certain that, by public report, if they had to show their titles to those lands it would be found that many, if not all of them, had been usurped from the Indians. On this account, without doubt, in regard to this point there was much talk in the time of Governor Arand[i]a. But nothing was gained in favor of the Indians, from whom, let the fathers allege what they please, the endowment of land which the law orders cannot be taken.

TENTH ABUSE

In the extreme parts of the mountains of the provinces of Pampanga, Pangasinan, Ilocos, and others, the regulars possess missions which they call active [*vivas*] missions. There has been a mission for forty, fifty, or sixty years, without paying tribute or acknowledging the king. If any *alcalde* has tried to visit them, they have had superabundance of witnesses and testimonies for their right to conduct it;²⁰ this means that the king supports the missionary, and escorts who guard him. This is a monstrosity; for if he wishes to know the condition and results of the mission the matter is reduced to a lawsuit, until the *alcalde* is ruined. In reality such missions are advance-posts or custom-houses toward the mountains of the heathen, whence the latter bring down to them their gold, cacao, wax, and other products. This is what employs and occupies the religious father. There are well-founded opinions which assert that the inhabitants of the mountains are not reduced to subjection because of the bad treatment which they know is given them in the missions—where from their foundation there has not been nor is there any Spaniard save the father. It follows from this that, where the father is, there is no lack for vexations against the Indians. Consequently, for the same, and even a stronger reason, the rigor of the decree and laws, and the censure of Fray Gaspar de San Agustin, which are cited in the following abuse, ought to include the regulars.

Remedy for this evil

To prohibit them from engaging in this trading, under penalty of expulsion; and under the same penalty, that they shall not hinder the Indians from going to Manila to sell these and other products which they have, and much less hinder the Spaniards from going to the provinces to buy them, to reside there, and to marry in them, if they wish. To order that the missions be visited, without hindrance, by the bishops in regard to spiritual matters, and by the government; and that, at the proper time, they must pay the tribute in accordance with the laws.

ELEVENTH ABUSE

It is an abuse that the fathers have in every way defended and protected, from the time of the conquest, the Chinese idolaters, apostates, traitors, and sodomites, without any benefit to the community,²¹ but with considerable harm in spiritual and temporal affairs; and that they have persecuted the poor Spaniard with so great rancor and eagerness. For it is seen that if any Spaniard goes, on account of misfortune, to the provinces to gain his livelihood, the father immediately orders him to leave, even if he does not lash him, etc.²²

This is the reason why, after so long a time, there is no other settlement of Spaniards than that of Manila; for in the provinces rarely or never does one see a Spaniard. And, pursuing the same reasoning, after the lapse of so many years we are as strange to the Indians as in the beginning, and even more so, as one can see in the history of the conquest compared with what we all saw during the war.

I venerate, as I ought, the justness of the laws, (xxi and xxii, book vi, título iii, and law i, book vii, título iv, of the *Recopilación*) which prohibit, in the words of the laws, “Spaniards, negroes, mulattoes, or mestizos from living in the villages of the Indians, for it has been found that some of the first are restless fellows, of evil life, robbers, gamblers, and vicious and abandoned people.” However, conceding for the present whatever crimes and stigmas these laws impute to the Spaniards, I declare and affirm that, with that ban, the regulars have committed more havoc in America and Filipinas than all the locusts together. These (the laws) the regulars order posted in the tribunal houses of the villages, and obey them with such rigor that if the laws concerning the missionaries were observed in the same way there would be no Christianity equal to that of those countries.

Let the evil Spaniard be punished; that is but justice: but the good man cannot and ought not to be punished. The fact is that by means of the said laws the father puts all [the Spaniards] on the same footing, and persecutes and punishes all without distinction until

he drives them out of the country. In this way, he is left alone in the village, and without witnesses for what only God knows, and the intelligent Catholics weep; and the Indian grows more alien every day, and becomes hostile to the Spaniard through the instruction which he receives from the father.

If the Spaniard is very bad, let him be punished by all means. But, if this is proper, why do they not only not ask the same in regard to the Chinese (who without comparison is worse), but defend, protect, and aid him, on account of trade and whatever else offers?

The Spaniard may be a robber, gambler, and vicious; but he is not an idolater, an apostate, or a traitor, a sodomite, and the father of all deceit, as is the Chinese. Nevertheless, the father keeps still about all this and shelters it, and reserves his hootings only for the poor Spaniard, who many times shames the father missionary himself by the regularity of his conduct.

What consolation can there be for the Spaniard, prohibited so rigorously from entering the domains of his king, when he sees that the Chinese are not only not hindered from such entrance, but also that they are encouraged; and that they rove about, and come and go, with more freedom than in their own country?²³

Is it possible that we must see laws so harsh against the people of our own nation, and yet, that although the Chinese are foreigners and so perverse in all ways, they have merited a special *título* in the *Recopilación* and in article 18, book vi, for their defense, trade, and increase in Manila and the provinces?

Fray Gaspar de San Agustin speaks as follows in his history of the conquest of Filipinas, book ii, folio 373 and verso, when speaking of the Chinese: "They are a race blinded by greed, and self-interest, and when these intervene friendship or relationship counts for nothing; for the son delights more in deceiving his father than the foreigner." He continues, and after noting that they are atheists, and that only by a miracle will it be seen that any of them is a good Christian, he concludes as follows: "finally, they are a nation who hope for no other blessings than those of this world, nor other glory than temporal goods; and they worship no other God than the metals of silver and gold, and keep faith with Money alone."

This is the character of the Chinese, according to the above-cited author.²⁴ And, granted that it was a very inadequate statement, it is necessary to remark that both he and the rest of his order, and the others, with no difference, have favored and protected such atheists and persecuted the Spaniards. The proof is *ad oculum* [i.e., ocular], until the destruction during the war; for Manila and the provinces were inundated by Chinese, married and protected by the fathers, but there was not, nor is there a Spaniard [in the provinces]. This was because they did not find themselves persecuted by those same fathers;

therefore the Chinese, according to the same historian, reached in time past the number of four hundred thousand. The most remarkable thing is, that the fathers administered to them in spiritual matters with as great serenity as if they were fathers of the deserts,²⁵ and yet Fray Gaspar confesses that they are atheists.

We cannot pass in silence the fact that after the war the Chinese religious²⁶ refused to confess the Chinese, for they said that they knew that their fellow-countrymen were idolaters. However, the Spanish religious found a moral rule by which to proceed without any innovation, as they proceed in their own administration; and in this way they have administered the Christian churches in those regions. Consequently, he who says the contrary deceives, and falsifies the truth in regard to certain facts which are public, and which all those of us who have been in those regions have seen.

In confirmation of the above, see the same historian, book iii, folio 426, in which, treating of the arrival of Governor Santiago de Vera, he says: “He brought very strict orders from his Majesty²⁷ to correct the great excesses which had come to his royal notice, and which had been committed by the encomenderos of the Indians—who, losing shame before God and the world, had descended to such dishonorable acts (perhaps for lack of punishment in the first encomenderos), which transgressed their obligation.” Leaving aside the truth of so great excesses and of the medium by which they came to his royal notice (which if investigated thoroughly must have been, without doubt, through the fathers themselves) it is a fact that a decree was despatched at Lisboa, March 27, 1583, in favor of the Indians, and against the excesses of the encomenderos.

The above-mentioned historian continues, and says that the governor deprived Bartolomé de Ledesma, encomendero of Abuyo, of his encomienda, as also others whom he found more guilty in similar crimes—whose names he omits, as it is not his intention to reveal or point out other persons who at present behave as they should; but he will not neglect to give the royal decree.

In fact he gives the decree literally, and in truth the crimes of the encomenderos are so atrocious that they become incredible. But granting their certainty, because the decree so says, one must wonder that the father inserts it so exactly after he has just said that he omits those excesses because it is not his intention to describe them. That being a manifest contradiction, proves that the mind of the fathers has always been, and will always be, to defame and make odious the Spaniard to the Indian, the council, and the king, in order that the fathers may be masters of everything, without opposition or witnesses.

The same historian concludes the matter on folio 427, with the following words: “But Doctor Santiago Vera made such judicious arrangements in regard to the evil doing of

the encomenderos, that, from the time of his government, that matter began to take better shape, and through the Infinite Pity is at present in better condition.”²⁸

This condition of affairs is what the fathers wish, for it has been many years since there has been any encomendero or Spaniard in the provinces. That has been their sole desire, and, having obtained it, he openly avows that the matter is at present in a better condition through the Divine Pity, because they are alone, absolute, and without rival.

But how could this fail to happen thus, if laws xxiii and xxiv of the same título and book only permit the Spaniard, even though he goes as a merchant, to remain in the villages of the Indians for three days; and if he exceeds that time, it must be with the penalty of fifty pesos of gold-dust for each day? It is to be noted here that the father is so exact in the observance of these laws that it can be said that he keeps others; and although he does not exact the fifty pesos because most of the Spaniards require the money for their food, what does it matter if he orders them to be lashed and imprisoned?

Let this point be taken in the sense which is desired [by the fathers], and let the Spaniard be considered most perverse; yet he is better than the best Chinese. Is it possible that so many privileges are conceded to the Chinese, that he is to live, marry, and trade freely in Manila and the provinces, and so great harshness must be exercised against the poor Spaniard? Is it possible that the latter can deserve so little that he is not indeed equal to the Chinese?²⁹

The condition of this matter reduces itself to a few points. First, that if, by scandals and evil example to the Indians, the Spaniards have to leave the villages, one ought to begin with the father. This is so notorious a fact that all who have been in América and Filipinas will testify to that effect in the official letters of the Council.

Second, in respect to the arguments which are alleged against the Spaniard, they are not what they seem, and one must subtract three-fourths of them; while it must be assumed as a well-known fact that, as they are his declared enemy, and all the regulars are pledged against the Spaniard, they have not hesitated to find witnesses and raise up false testimonies, in order to attain their plans. This idea is so generally practiced and current, that would to God there were no memory of it.

All these complaints and outcries are reduced to the fact that if the Spaniard is solicitous for women, to oblige him to marry an Indian woman is of infinite advantage to him; and, if he is vicious by another extreme, to punish him. If this remedy does not please the religious (and immediately it does not suit them) why, just as they are irritated against the poor Spaniard, do they not cry out in the same manner against the Chinese, who is so perverse, but defend him in whatever arises? Why do they not cry out against the negro,

mulatto, and mestizo who are such consummate rogues, but discharge all their spite upon the *Castila*?

The explanation of this mystery consists in the fact that the Spaniard treats the father with the urbanity that is used toward ecclesiastics in España; but he is not imposed upon by the kind of servitude which the former desires, and at the same time he is a witness of what occurs in the provinces that is not right, and which the fathers do not wish him to know. On the contrary, the Chinese, under pretense that they allow to him his liberty, keeps still, dissimulates, makes presents, and blindly submits to whatever is ordered of him.

Third, although we grant, as is right, the justice of the above-expressed laws in the time and the sense in which they were made, yet, as they are generally put in force against every Spaniard good or bad, it follows: first, that they punish the innocent; second, they prevent the settlement by Spaniards in the provinces, although it is so necessary; and, third, they hinder our union and friendship with the Indians, and consequently, marriages. And, supposing that the Indian women do not desire anything else, and that a Spaniard thus married has all the kindred of his wife favorable to him, I desire to know, according to good policy, whether there is any other remedy more rational and suitable than this, for the conservation of those domains? This is what law viii, título i, book vi, provides.

There are two alternatives: it is either advantageous for the nation to preserve them, or not. If the latter, let the Spaniards come, and let them be abandoned at once. If the former, there is no other means better than that of union between the two nations. And, besides the fact that this is the universal practice throughout the world, it is unnecessary to say anything more about the matter; for, let the regulars say what they will, they will not deny that if the Castilian language had not been precluded from the beginning, and had the Spaniards married the Indian women—which was the method of giving them good treatment, according to the laws—there would be little or nothing to conquer in the two Américas and Filipinas. Consequently, it seems indispensable to abrogate the above-cited laws, or to moderate them somewhat in favor of the nation, restraining the license of the fathers. That is quite in accordance with law xxiv, título i, book vi, which permits the Spaniard to trade freely with the Indians. That cannot be done if he is to be driven from the villages in three days' time.

Remedy for this evil

To abrogate the laws above cited, as being suggested without doubt, by the regulars, and if not, as being dangerous to the state; and to order that the Spaniards can come and go, and freely trade, in the provinces; to proclaim rewards for those who marry Indian

women, and to expel the father if he meddles with the Spaniard in what concerns his external conduct, since, if he is evil and commits crimes, there are justices to punish him.

TWELFTH ABUSE

It is an abuse that, contrary to the command of the laws and so many decrees, the fathers do not permit the Indians to talk Spanish, to which they are greatly inclined, and punish them if they do. This is the surest rule (although very pernicious to the state) of which the fathers have availed themselves, since the time of the conquest, to domineer over the Indians despotically with the king and the Spaniards, to the common prejudice of all.³⁰

From this policy it results that every convent of Manila is a Babel, for, when the fathers assemble in the capital, it frequently occurs that each one brings servants from his province to serve him. And since they follow a system, from which no religious order departs, to speak to each Indian in his own language, it happens that in one convent are found the Tagalog, Pampanga, Pangasinan, Ilocan, Cagayan, Zamboangan, Camarines, Igorot, Ilongot, and Visayan tongues, all in sight of the government, Audiencia, and Spaniards, with total contempt of what is ordered in this regard by his Majesty; and by this very proceeding they boast that we do not understand them, and that they alone command the wretched Indians.

Quite the contrary was the rule which the Portuguese followed in India from the beginning of their conquests. Hence one finds that there is no other language in Macao, Canton, Goa, the Malabar Coast, Coromandel, Ceilan, and Batavia, than their own. Surely, if that plan had been followed (as it ought to have been) in the two Américas and in Filipinas, so many hardships would not have been encountered [by the Spaniards] as were seen during the invasion of the English,³¹ and as will always be seen for this reason; and the king would be master of those domains with as much security as he is of these [in Spain], but, if the contrary be true, they will always be dependent on the will of the ecclesiastics.

In proof of this truth, one must not forget what we all witnessed during the war; for with the exception of the provincial of St. Francis, who was most loyal and of great service, and that of the Augustinian Recollects, all the rest were declared enemies—so much so that in the most critical time of the undertaking, they asserted that the governor was an insurgent. They held meetings to depose him, contrary to the express laws, and openly encouraged the opposing side.³²

All the above is confirmed by what was seen in the same system, namely, that notwithstanding the noble example of the loyalty of the two above-mentioned provincials, some of their subjects gave them much to suffer, and as much more to do, for the party of the king. This proves that neither to his Majesty nor to their superiors do they render submission, because of the absolute lawlessness with which they grow up.

Remedy for this evil

To command that the laws and decrees which order the Indians to be taught the Spanish language, be observed; and that the father who violates this, as they have done hitherto, be sent to España, which is the greatest punishment; and without doubt they will have care in the matter.

THIRTEENTH ABUSE

It is an abuse that all the curas oblige the *dalagas* (so are the girls called) to go to the house of the fathers (the latter, although contrary to law, call it “convent”) to pound the rice. That operation consists in removing the husks with certain mallets, by dint of their labor. If this service and labor—which would have to be done by their servants, or be paid for to the poor, in which case the work would be proper, and of value to them—is neglected, it is under penalty of lashes to the girl who does not render it. It is a shameful thing that these women, all marriageable, have to do so unsuitable and dangerous things, as daily experience affirms.³³

They are also obliged to sweep the churches and clear the grass away from the entrances, while in some places the fathers compel the *baguntaos* (who are the unmarried men) each to carry them a stick of wood every time they go to mass. In others they practice different burdens and vexations, so that the result of these continual acts is, that since these fathers do not content themselves with the generous stipend which they receive from the king, nor with their so abundant extra fees, they still burden the poor Indian in whatever way they please, always conspiring so that he shall have nothing of his own, not recognize or respect any other authority than their own.³⁴

Remedy for this evil

To order, under penalty of expulsion, the fathers not to meddle with the Indians except in their spiritual ministry; and that their household duties be performed by servants, for which they have much more than enough income.

FOURTEENTH ABUSE

Consequent upon this notion of theirs is this abuse, that when the gobernadorcillos of the villages (these are the deputies of the alcaldes) who exercise the royal jurisdiction, go to see the father, they have to leave their staffs or rods of justice at the entrance; for the fathers do not permit even tokens of the royal authority in their presence. The fathers compel those officials to accompany them quite to the sacristy, and, when they return to their house, make them serve them at table, and never allow them to sit down or to keep their hats on; and they address those officials by *tu* [*i.e.*, “thou”] as they do servants. Let one estimate what they will do with the other Indians.

Remedy for this evil

To order that, when the gobernadorcillos go to see the father, they be compelled to go into his house with their badges of justice, under penalty of [the father’s] expulsion if they are forbidden to do so; for, representing as they do the king, the father must treat them with suitable decorum, and must give them a seat, and under no pretext be served by them at table.

FIFTEENTH ABUSE

It is an abuse that, when the provincials go to visit, they make their so magnificent entrances into the villages at the cost of the Indians. That is, just as if they were bishops, the bells are rung for them, and they are accompanied by vast crowds from village to village; and the people go to receive them, and go to expense and make feasts, which only cooperate toward their absolute domination over those natives.

Remedy for this evil

That the regulars be subjected, as is decreed, to visitation by the ordinaries. By so doing, the latter will make use of their right without there being any necessity for visits by the provincials; and when the provincials wish to visit them purely as religious, and not as parish priests, to prohibit the Indians from great public feasts and expenses, under penalty of expulsion, since there is no other remedy.

SIXTEENTH ABUSE

It is an abuse that after the stipend or *sínodo*,³⁵ and large fees exacted by the father from a poor Indian in regular form, the Indians generally have to carry the [sick] Indian in a hammock or *parilusclas*³⁶ to the church in order that the father may administer the sacraments to him. On account of that abuse, and the motion, and the [effect of the] wind, most of them die; and the man's death is followed by a looting of his house for the burial fees. This is a fine way for the fathers to fulfil their duty and exercise charity.

Remedy for this evil

To order, under penalty of expulsion, that they fulfil their duty, as every good parish priest should, by administering the sacraments to the poor sick in their own houses; and such grave wrongs against the Indians and his Majesty will cease, by moderating the tariffs, with the establishment of the tithes.

SEVENTEENTH ABUSE

It is an abuse that, although the provincials are ordered to watch over the reduction of these peoples, so that the Indians, living within sound of the church-bell, may be directed and instructed in a Christian and civilized manner, the latter are today found (except those administered by the Franciscans, who are those most settled in villages) as scattered as they were in the time of their paganism. They have many of the vicious habits of their paganism, and are so stupid in their Christian belief and social life that it causes pity. So grave a wrong is followed by another against the royal treasury, namely that, as they live far away and in the recesses of the mountains, it is impossible for the alcalde to enumerate them for the payment of their tribute, and he is compelled to guide himself by the list or register which the father gives him. In that particular, considerable discrepancies have always been noted against his Majesty; for in Filipinas and América, it has been considered as an act of cleverness to defraud the king and persecute the Spaniard, and they never tire of it.

Remedy for this evil

To decree that the reduction into villages be carried out as is ordered, which can be secured at once if the father so wishes; and if he opposes the order, to expel him. By so doing, the wrongs stated above will be avoided.

EIGHTEENTH ABUSE

It is an abuse that the alcaldes in the provinces find it necessary to yield to the father in whatever the latter desires (this is always against royal authority) against the Indian and the Spaniard; and, if the alcalde does not thus act, that moment the fathers rise against him and prove, in part or in all, the following charges: “he lives in concubinage, is a drunkard, a thief, and does not observe his duties toward the church,” even though he be an anchorite. For the father causes the Indian to make depositions as he wishes, and if the Indian does otherwise, there are lashes. By this may be understood the doctrine which is taught to those ignorant people, and the condition in which the administration of his Majesty’s justice and authority is.

Remedy for this evil

To order that the father do not meddle with temporal affairs, under penalty of expulsion. This is certain, for otherwise there will never be peace. [By so doing] the alcalde can administer justice; and, if he should be unjust, the governor and the Audiencia will set the matter right.

NINETEENTH ABUSE

It is an abuse for some men of the religious estate, who are supported and maintained by his Majesty with the character of apostolic missionaries, to teach the Indians, instead of love for their neighbor, to hate and persecute the Castillas (thus they call us Spaniards). This is a practice as old as the conquest, and was seen with horror in the most cruel period of the war; and afterward this proposition was inculcated in a certain pulpit of Manila, to a great gathering of Spaniards and Indians, [saying], “To issue to a man a warrant as alcalde is the same thing as *que deleatur de libro vitæ*;³⁷” and in other pulpits were said other things not less scandalous against all the [Spanish] nation.

Remedy for this evil

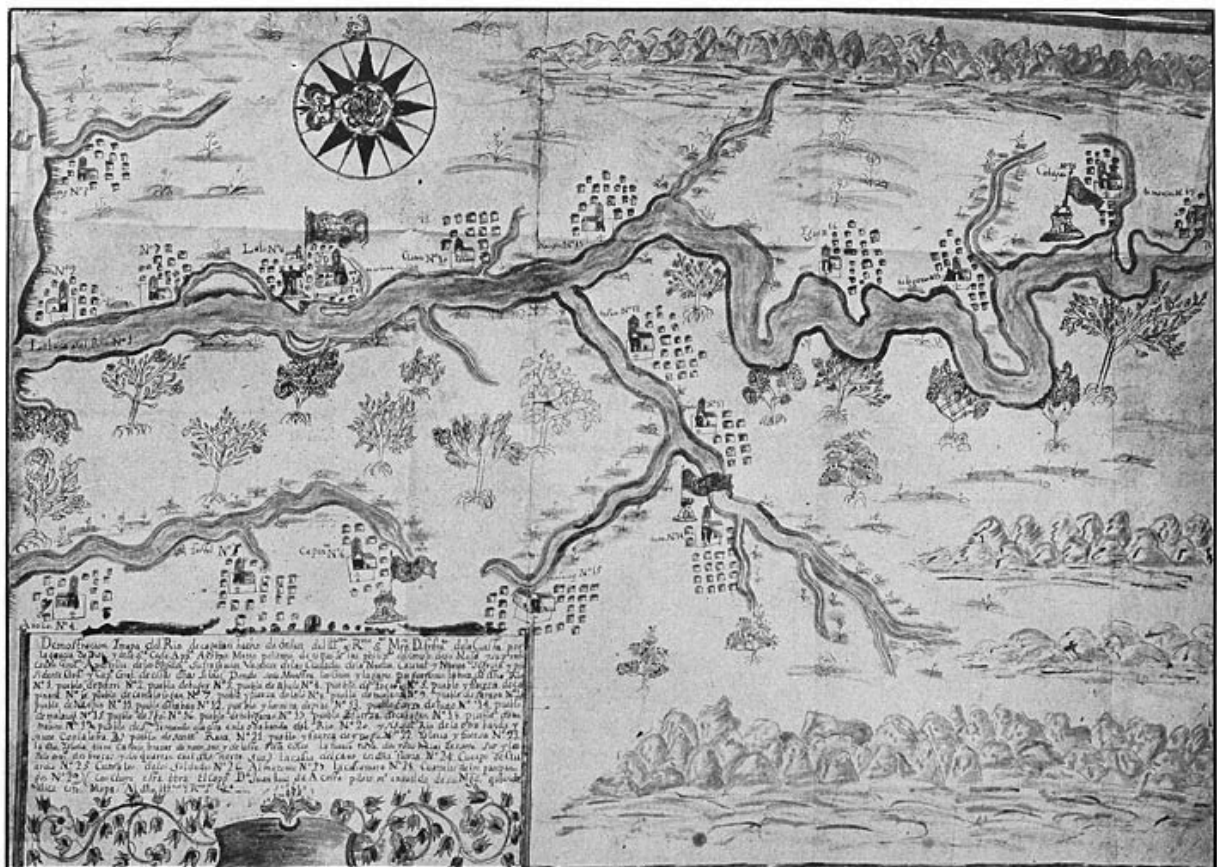
To ordain that there be no preaching contrary to the decalogue, under penalty of expulsion, which is justified by so cruel and scandalous an act.

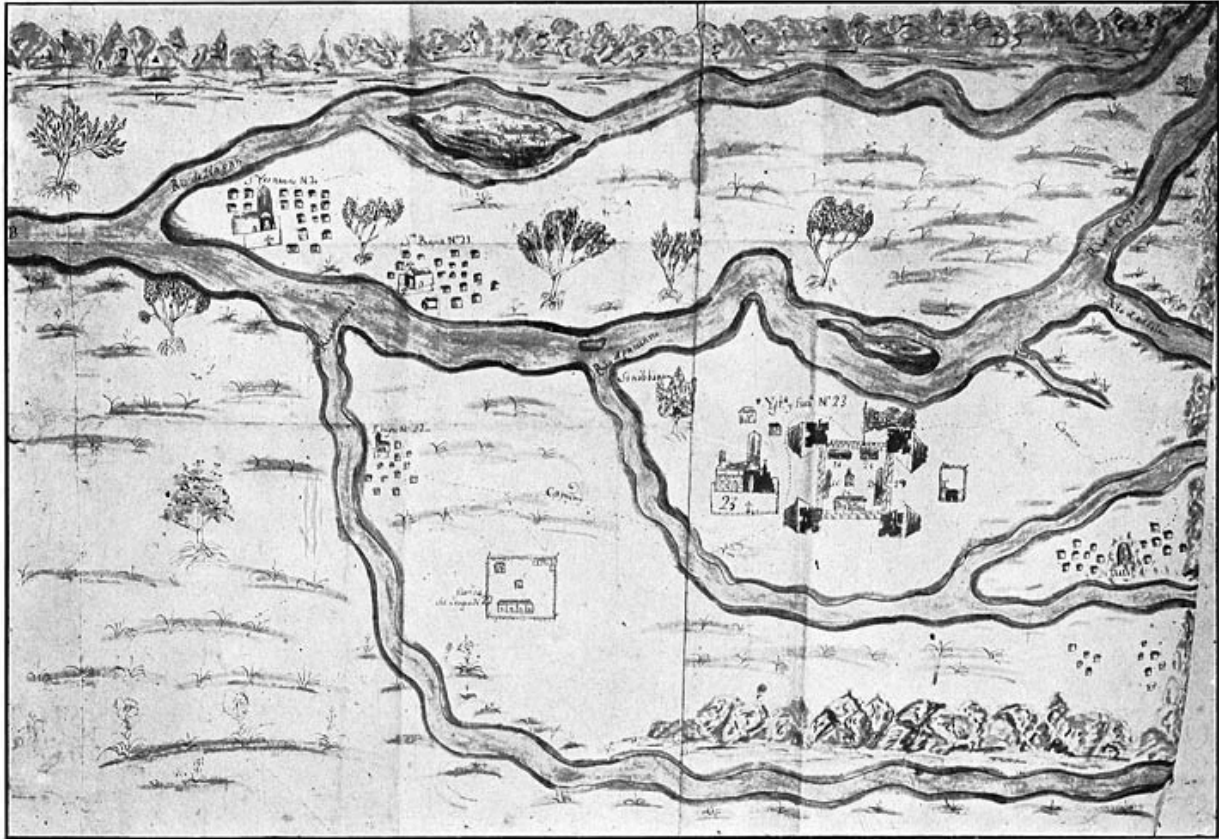
Another of the most grievous abuses is, that religious who have served as missionaries in the islands are generally chosen as bishops in those islands. They having been brought up under the conditions already stated, are influenced, even though they might desire to exercise their jurisdiction as ordinary in certain districts conquered centuries ago, most by the abuses and the domination of their respective orders. Consequently, they overlook wrongs, and keep silent, from which results the despotism of the orders over the two powers [*i.e.*, secular and ecclesiastical]. It is true that, even if they should wish to exercise their jurisdiction, the orders will not allow it; for they are so blind and obstinate in their sway and privileges that they are capable of killing any bishop who makes such an attempt. Doctor Fray Domingo de Salazar, first bishop of Manila, began that dispute with the Augustinians, as Fray Gaspar relates in the above-mentioned history. Others have defended the same idea, but, nevertheless, we see that the said fathers and other regulars still maintain their domination in opposition to the bishops—with detriment to both jurisdictions, and perhaps to Christianity, that cannot be exaggerated.

There are other abuses against the royal treasury worthy of the most prompt relief, such as that of the storehouses of Manila and Cavité, which cost the king huge sums on account of the lack of system therein.

Another abuse is that the post of commander of the Acapulco ship costs his Majesty four thousand pesos. Besides the enormity that such an office should be conferred for only one ship, the further abuse follows that neither the captain nor other officers are of any use, as the commander orders everything at his own caprice; in consequence, either he is superfluous, or they are.

Another abuse is that, after so many years in which so much gold has been produced in the islands, this precious metal makes no acknowledgment to its king in Filipinas by paying him the tenth, nor is it weighed in a mint, nor is it by any other expedient made useful to his Majesty; for the religious orders, the Indians, the Spaniards, and the mestizos make free use of this trade.





Map of the river of Cagayan, showing town sites along its banks, 1720(?); drawn by Juan Luis de Acosta

[Photographic facsimile from original MS. map in Archivo general de Indias, Sevilla]

Another abuse is, that there has been no thought of conquests in the mountains of Pangasinan, Ilocos, and Cagayan, where, according to accurate information by the fathers themselves, there have been more than three hundred thousand tributes. It would be an easy undertaking, according to the reports of the fathers themselves and the mildness of those Indians.

On account of the advantage which may result for his Majesty and his vassals there, the following points should be considered:

It is known (and I have information in my possession) that there are mines of a special copper, with a mixture of gold, in Ilocos and Catanduanes; and it would be an advantage to open and work them for the casting of artillery and other manufactures.

The iron mine of greatest yield was in operation until the time of the war, when the works were burned.³⁸ If they were placed in operation again, there is nothing more to do than to begin the work, and they will make whoever operates them wealthy.

The post of commissary of the Inquisition ought to be placed in charge of a secular priest, and withdrawn from the regulars, who have always held it and have practiced very many abuses.

Trade ought to be placed on another footing than that of the regulation of 1734, as it is impossible to subsist on that basis, for thus the islands will be ruined. After they had suffered a year and a half of war, which was one continual pillage, there remained no other wealth than that which was made safe in the “Filipino;” and that wealth has suffered greatly through the continual losses of the trade since that time, and the excessive rise in prices.

A ship ought to sail regularly every year for Manila, to carry secular priests for the object which I have explained, and laymen who are accustomed to the commerce here; for, to speak plainly, those in Manila are not Spaniards, but Chinese, in their customs, usuries, etc. It does not seem out of place to put the shipyard there into good condition for ship-building, and even to create a navy department, like those at Ferrol, Cartagena, and Cádiz.^{[39](#)}

The recoinage of the mutilated money of the islands ought to be considered, for the Sangleyes have pared and clipped it so much that it is almost half-size. On that account no one wants it, and all desire to get rid of it, with the loss of ten to twelve per cent, which is the usual discount. There is always fraud in that, although the greatest fraud is in the purchases which are made with that money, in which the goods are sold forty per cent dearer, so that the Chinese profits and cheats in everything; for, as he does not carry to his own country other money than that with the milling around the edge, he cheats by forty per cent more in the goods, and the discount does not cost him more than ten or twelve.^{[40](#)}

In the management of the royal treasury, and especially in that of the storehouses at Manila, Cavite, and other places; in the contracts and charters for the transportation of provisions from the provinces to the capital; in the care and conservation of arms and ammunition; in the collection of tributes; in the collection of all the royal duties; in the appraisals for the sales of offices; in the auction of the revenues leased and held by monopoly; and finally, in everything of advantage to his Majesty: there are most enormous frauds, which need instant correction by planting deeply the order, system, and method which justice and the laws demand, in order to suppress the thefts which have hitherto enriched the governors, royal officials, and other employees who have made a private patrimony out of what belongs to the king, destroying the royal revenues and ruining the islands generally by their insatiable greed. Consequently, although the country has resources for maintaining superabundantly all the obligations and business of the royal service, his Majesty has expended immense sums in the annual situados sent from Nueva España, without other benefit than that of feeding the avarice of faithless

ministers, both secular and ecclesiastical—who, although charged with the conservation and prosperity of those islands, abandon them without defense, and in the miserable condition which was made plainly evident in the last war, to our utmost grief, where even the hearts of those most honored and put under obligation by the king were alienated, and they forgot the loyalty and love due to both Majesties.⁴¹

For the radical correction of the above ills it is indispensably necessary to frame and send from here clear and full instructions for establishing the just method of procedure that is fitting, conferring on the governor all the authority necessary for its execution, by the means which prudence and the actual condition [*presencia*, misprinted *paciencia*] of affairs dictate to him.

Finally I direct attention to the undeniable assumption that the Filipinas Islands, on account of the natural wealth of their soil, their advantageous situation for carrying on the commerce of Asia with this Peninsula [*i.e.*, Spain], and still more as being the outpost which defends and insures the peaceful possession of the rich and extensive empire of the two Americas, Northern and Southern, on their Pacific coasts, in which is situated the greater part of their wealth—for all these reasons, they demand in justice, in reason, and in all good policy, that the greatest attention be given to them, without sparing any means or effort that may contribute to the conservation and success of so important a matter.

The choice of a zealous governor will contribute especially to erecting the foundations of that great work, but it is necessary to honor him and give him authority, so that he may work to advantage and without the obstacles that have many times frustrated the best and most carefully conceived ideas, by secret information, by tricky and criminal artifices, and in other evil ways.

The ideas expressed thus far are quite adequate, if they are carried into execution, and they become more important, on account of the persons by whom they must be carried out, many of whom have reached the end of their usefulness, and belong to different estates, and very opposing interests—the most influential of whom are accustomed to and have grown old in despotism and lack of restraint. In order to remove that despotism from the provinces, to make the city secure, and succeed in obtaining that one “render to God what is of God, and to Cæsar what is of Cæsar,” that governor needs a body of troops suitable to cause respect for the name of the king. This object can be attained only by being carefully followed up by a ruler who is disinterested and zealous for the royal service, it being well understood that such military force ought to be placed on the same footing of pay as that of Nueva España, since otherwise there will be no one who will serve in it.

The king has capable and zealous ministers who can examine the points which are here briefly indicated. They may be certain that what I have set forth is accurate and reliable in all its parts, and that I have had no other motive and impulse in exposing it than my love and zeal for the service of God and of the king. The latter will deign to determine what may be most to his royal pleasure. Madrid, April 12, 1768.

DOCTOR DON SIMON DE ANDA Y SALAZAR

Your Excellency, Dear sir and master:

I remit the enclosed extract of the points which, I have considered, require a positive and speedy remedy in the Filipinas Islands, so that your Excellency can more easily understand their condition in the toilsome labor of examining the representations which I made at the time upon the other points, from Manila.

Your Excellency may be assured that I have no private interest in the matter, for everything is for the king, my master. It is to be noted that, although this appears to be hostile to the religious estate, it is not so, nor have I any such spirit [of hostility]. I assure you that, if these recommendations are carried out (if your Excellency shall deem that best) the religious communities will thank you heartily, although at the beginning, and at first sight, they may show some anger.

May God preserve your Excellency many years, as I desire. Madrid, April 13, 1768.
Your Excellency, your humble servant kisses the hands of your Excellency.

DOCTOR DON SIMON DE ANDA Y SALAZAR

[Addressed: "His Excellency Bailio Frey Don Julian de Arriaga."⁴²

¹ To the text of this document we add most of the annotations thereon made by Dr. T. H. Pardo de Tavera, as found in his publication of this document (*Memoria de Anda y Salazar*, Manila, 1899); these are especially interesting, as coming from the pen of a native Filipino who is a scholar, a liberal, and an enlightened patriot. These notes—either translated in full, or condensed into a summary, citing his exact language whenever possible—are credited to him, stating the note-number and page where they are found. [↑]

² From the date of the foundation of the College of Santo Tomás, there was strife between it and the Jesuit college of San José. In 1648, the Dominicans triumphed for the time being, and the Jesuits were forbidden by the royal Audiencia to grant degrees in their university. That decision was reversed in Spain by a royal decree of March 12, 1653. San José was closed when the Jesuits were expelled. (Pardo de Tavera, pp. 43, 44, note 1.) [↑]

³ In note 2 (pp. 44–47), Pardo de Tavera gives a sketch of the history of the “secular university” of Manila. The royal decree founding it (dated May 16, 1714) states as its purpose, “that persons born there may have the comfort of being enabled to fit themselves for obtaining the prebends;” accordingly, three chairs were established at Manila, for

instruction in canon and civil law and Roman law. The first incumbents (appointed in 1715) were Julian de Velasco, Francisco Fernandez Thoribio, and Manuel de Osio y Ocampo. The institution was opened on June 9, 1718, and included also the chairs of medicine and mathematics, professors for these being appointed by the governor—who, finding that this enterprise was opposed by the religious orders, especially by the Dominicans and Jesuits, ordered that a building for its use should be erected near his palace; but lack of funds stopped this work in 1721. When the chairs became vacant in 1726, a competitive examination was held to fill them, at which only five men with the degree of bachelor of law were present. The lectures were but thinly attended, five or six students only being the usual audience; the royal decree suggested that these be reinforced by students from San José and Santo Tomás, but these colleges discouraged such attendance, and it availed naught. In 1726, the Jesuit Murillo Velarde was appointed to the chair of canon law, and then the Jesuits offered San José college to the new professors (at first, the lectures in the royal foundation had been given in a private house, because the archbishop declined to let them be given in the archiepiscopal seminary); this aroused the jealousy of the Dominicans. Finally a compromise was made between them, by agreeing that in each of the two universities there should be a chair of canon law in charge of a religious, and one of civil law in charge of a layman. The king, learning of this controversy and the ineffectiveness of his foundation, decreed (July 26, 1730) that it should be closed, thus saving to the treasury the annual cost of 2,000 pesos. Pardo de Tavera remarks that the name of “university,” given to it in Manila, does not appear in the royal decree of 1714, which simply established the three chairs mentioned. See also the account of “the college seminary of San Phelipe,” in VOL. XLV of this series, pp. 187–207, and some allusions to it in VOL. XLIV, pp. 145, 178; Velasco and Toribio were imprisoned by Bustamante at one time (VOL. XLIV, pp. 152, 155, 159.)

In reality, we must go back to the royal foundation in 1702, which was encroached on by Cardinal Tournon and the abbot Sidoti (1704–07); see San Antonio’s full account of this in VOL. XXVIII, pp. 117–122. Pardo de Tavera gives an outline of this account in his note 3 (pp. 48–50), and adds: “The power of the friars caused the organization of the seminary to be delayed until, toward the end of the past century, thanks to Señor Sancho de Santa Justa y Rufina, the seminary of San Carlos was created; it was installed in the former house of the expelled members of the Society of Jesus.” [↑]

⁴ “The religious orders in Filipinas have always been accused of opposing culture and the diffusion of human learning among the Filipinos, having assumed, according to their traditional policy, the role of monopolisers of public instruction, in order thus to present themselves as its defenders and partisans, proclaiming themselves the civilizers of the people, and the source and origin of their intellectual progress. In reality, having in their hands the public instruction they so conducted themselves that, as Don Simon says, they organized an instruction of mere ceremony, intended to maintain the Filipinos in a calculated ignorance, and keep them imbued with principles which tended to subject their conscience and reason to the absorptive power of the monastic supremacy.” (Pardo de Tavera, p. 50, note 4.) [↑]

⁵ It is to be remembered that Anda wrote this memorial at Madrid, where he was occupying a seat in the Council of Castilla. [↑]

⁶ “The idea of secularizing the university of Manila, suggested by Anda y Salazar, was contemplated a century later by Señor Moret, minister for the colonies [*de Ultramar*], and decreed by the regent of the kingdom on November 6, 1870. The college of San Juan de Letran was also secularized by the same decree; but in Filipinas orders of that sort were not executed. For the friars upset the whole matter, threatening the ruin of the colony if the decree were carried out, raising protests and petitions—in short, causing the bishops and the authorities to range themselves on their side,

in order to present to the government at Madrid the question from the point of view which suited the interests of the Dominican order. The execution of the regent's decree was suspended, writings were sent to Madrid in favor of the friars, and, as always, they gained their point, and continued to be owners and masters of the university and of the college of San Juan de Letran." (Pardo de Tavera, note 6, pp. 50, 51.) ¹

² "The friars have always been considered as poor and needy by the government of España, and in that notion—without stopping to consider that their ownership of land was continually extending further in Filipinas, and that through various schemes they had created for themselves a secure income in the country—the Spanish monarchs by various provisions (most of them despatched at the instigation of the friars) have ordained that their needs be supplied with wine, oil, various contributions, and cash donations, under the most flimsy pretexts." (Pardo de Tavera, note 7, p. 51.) ¹

⁸ "At the pleasure of the king, on account of the lack of clerics at the beginning." ¹

⁹ "In effect, it can be said the friars trained clerics in order afterward to employ the latter in their own service; for under the name of coadjutors each cura kept in his convent one or two clerics, according to the necessities of the parish, who served him as if they were slaves, and who suffered every sort of humiliation and annoyance. It was not only in those times [of Anda] that the situation of the Filipino cleric was so melancholy and abject; but, in the midst of the increasing prosperity of the friars and their curates, with equal pace increased also the wretchedness of their coadjutors and the intolerable misery of their existence. In order to justify their conduct toward the Filipino clerics, the friars resorted to the pretext of their unfitness; but not only is this argument calumnious, but, even if it were accepted as sound, it does not justify the bad treatment which they give the cleric, and would demonstrate, besides, that the education which he receives from the friars is incomplete and defective." (He cites Archbishop Santa Justa as rebuking the regulars for thus calumniating the clerics, saying, among other things, "Is it not notorious to every one of us here that the spiritual administration all devolves upon the coadjutor cleric, the father minister reserving to himself only the charge of collecting in his own house, without leaving it, the parochial dues. How can they deny this, when it is so public? If the clerics are incapable, how can the ministers in conscience allow and entrust to them the spiritual administration of their villages? If that be not so, how dare they discredit the clerics with the strange, not to say unjust, censure of their being unfit and incompetent?") "In these later times, the friars, since they could no longer rail against the clerics in that fashion—for they do not, at least so much now, insist on their old accusation of unfitness, because the Filipino clerics have proved that they include men of as great learning and virtue as the friars, and even more—resorted to a political reason, making the Spanish government believe that the Filipino clerics were every one filibusters. This weapon was of good results for the cause of the friars, but fatal for the Filipino clergy, who found themselves horribly trampled upon in 1870, on occasion of the famous rebellion of the Cavite Arsenal; for three of their most distinguished and revered members, Fathers Burgos, Zamora, and Gomez, were executed under the calumnious accusation of being leaders of the rebellion, and a great number of other distinguished Filipino priests were sent to the military posts or into exile. Public opinion flung back upon the friars the terrible responsibility of sentences so iniquitous; but since then the new and safe weapon of 'filibusterism' has been used more and more against the Filipino clerics." (Pardo de Tavera, note 8, pp. 52, 53.) ¹

¹⁰ "The contribution of wine and oil had been granted (as is stated in ley 7, tit. iii, book i of the *Recopilación de Indias*) to certain poor monasteries, so that they could illuminate the blessed sacrament and celebrate the holy sacrifice of the mass. It was likewise ordained that such contribution should be furnished in the articles themselves, both oil and wine, and not in money or bullion. This contribution was to be given to the conventual religious and not to the

ministers of doctrinas, that is, to the curas (ley 9). The escort of soldiers which was furnished to the missionaries was granted to them by a royal decree of July 23, 1744, the text of which I have not been able to find. According to Diaz Arenas (*Memorias históricas*), the royal decree of May 13, 1579, granted to each cura in a doctrina the sum of 50,000 maravedís, and half as much to the sacristans. Afterward, by a royal decree of October 31, 1596, the said stipend of missionary religious was fixed at \$100 and 100 fanegas of palay. On March 4, 1696, August 14, 1700, January 19, 1704, and July 14, 1713, the king had ordered the viceroys of his colonial possessions to send him a report in regard to the religious who were really in need of the contribution of wine, wax, and oil, in order that he might cease giving aid to those who had no need of it, 'or that the half or the third part might be deducted from their allowance, in proportion to the poverty of each one.' This is seen in the royal decree of September 22, 1720, in which the king insists that this information should be sent to him; but he could not obtain it, in spite of repeated orders." [Other attempts were made to secure such information, through the century, but without success.] (Pardo de Tavera, note 9, pp. 54–56.) ¹¹

¹¹ "The book of laws;" there is also an allusion to the generally adopted legal code or collection of laws, known as *Corpus juris*—literally, "body of law." The main reference in Anda's phrase is to the *Recopilación de Indias*, which provides for the collection of tithes in the Spanish colonies. ¹²

¹² "It is an exceedingly bad example." ¹³

¹³ Pardo de Tavera cites (note 11, pp. 56–58) a royal decree dated April 27, 1704, charging the governor (then Zaballburu) and Audiencia to restrain the friars from levying unjust exactions on the Indians. This decree was occasioned by the complaints on this score made (in 1702) by Archbishop Camacho; in it are enumerated the following acts of such injustice: "Besides the stipends which are paid to them from the royal treasury, they oblige every Indian in their districts to render them service in all their domestic necessities, and to furnish them with four fowls every day in each mission, and with fish, fuel, and everything else that the land (and even the water) produces. At the same time they collect from the Indians excessive fees, without observing the tariffs; for from an Indian whose property is worth four hundred pesos (which is the value usually of that belonging to the wealthier natives) they exact for a burial one hundred or two hundred, besides what they afterward receive for the funeral honors [*i.e.*, ceremonies for the welfare of departed souls]; and twelve pesos for the offering for [wearing] the cope [*del habito de la religión*], or, if the natives are very poor, six or eight pesos, the religious making it necessary to the burial that he shall wear the cope; and when they lack means to pay for these, they serve the religious like slaves until they have earned what they need to pay these impositions. As for the marriages, the religious receive thirteen pesos for what they call the altar fee, and thirteen reals for the cross, and eight for the offering for the mass, and four for the veiling; even when they are very poor, the religious exact from them at least six or eight pesos as a requisite [for the marriage]. The Indians are, for a long time, living in illicit intercourse, because they have not the means to pay [these exactions]. In the baptisms they have introduced another tax after the offering; the rich Indian must pay up to twelve pesos for the silver cross, and the poor one pays, as such, for the wooden cross. Besides this, they also receive three reals every year from each Indian for the feast of the patron saint of the village, honors for the dead, and wax for the monument; and, added to this, one or two reals when they confess the Indians at the Lenten season—without giving any care or attention to their instruction, or to the greater service of the churches in their charge. They are deficient in almost all which belongs to their obligations as missionary curas, excepting the religious of the Order of Preachers and those of the Society, who treat the natives more kindly and instruct them better." Cf. the "tariff of fees" drawn up by Camacho (VOL. XLII, pp. 56–64). ¹⁴

14 “The friars, in studying the Filipino languages, continually compared them with the Latin and the Castilian, to the grammar and genius of which they molded, whenever they could, those of the new language which they were learning. As a result, the grammars of the Filipino languages which they soon made created an artificial language, very different from that actually spoken by the islanders. Educated Filipinos distinguish perfectly this conventional language of the friars; and the latter in their turn make the charge, when they have noticed one of these observers, that the Indians when talking among themselves employ a different language from that which they use in conversations with the cura. The reverend father Fray Ramón Martínez Vigil (now bishop of Oviedo) has not failed to notice this difference; but in undertaking to explain it he falls into an error that is excusable if one considers his religious calling, which cannot admit that when there is a blunder the mistake is on the priest’s side. Speaking, then, as a priest, and doubly superior to the Indian by being a Spaniard besides, he confidently says: ‘All who have observed their familiar conversations (of the Indians) are agreed in affirming that they entirely lay aside the rules of grammar, in order to make their conversation more rapid and short—speaking among themselves a Tagalog quite different from what they use when they address the Spanish priest or any other European who understands their language.’ (*Revista de Filipinas*, t. ii, 1877, p. 35.) Every one who understands Tagalog has endured mortal torments thousands of times while hearing from the pulpit the sermons which a great number of religious utter in that conventional language. At present, however, the sermons that are preached are, as a rule, written in the old style, for the occasion, and then revised and corrected by coadjutors, or by citizens versed [in the native language], who shape and polish the discourse properly.” (Pardo de Tavera, note 12, pp. 58, 59.) ¹

15 An interesting sketch of the controversy in Filipinas over the episcopal visitation of the regular curas is given by Pardo de Tavera in his note 13, pp. 59–68. The strife began even with the first bishop, Domingo de Salazar, and continued for some three centuries; for as late as 1865 the archbishop of Manila and two of his suffragan bishops joined in sending to the Spanish government complaints against the friars of substantially the same tenor as those made earlier by Salazar, Camacho, and Santa Justa. Papal and royal decrees were issued at intervals, insisting on the right of episcopal visitation; but in most cases these were practically nullified by the influence or opposition of the friars, and the inadequate supply of secular priests. The friars several times threatened to abandon their curacies (and actually did so, on some occasions); and they claimed exemption from visitation on various grounds—claiming a privilege granted to them by Pope Pius V (which, however, was afterward annulled by Clement XI), the right to obey only the superiors of their respective orders, and the lack of any obligation on them to serve the curacies, which they claimed to be only a work of supererogation. ¹

16 “Apart from the religious fiestas and the surplice-fees, Filipinas pays to monasticism another tribute of incalculable amount for straps, rosaries, scapulars, girdles, and other objects rivaling one another in similarly miraculous qualities—which are issued for cash, and at a fixed price, which yields no less than a thousand per cent on the capital invested.” Instances of this are given; “a worn pair of trousers, which the students from whom it is asked give gratis, is transformed into hundreds of scapulars, and each scapular costs two and one-half reales fuertes, or perhaps thirty-one hundredths of a peso.” “Thousands, even hundreds of thousands, of hard dollars are paid as a tax by Filipinas on this account to the monastic coffers; and if Jesus Christ drove out the traders from the temple, in the country of miracles those persons are chastised who refuse to obtain the goods from the temple.” (Marcelo H. del Pilar, cited by Pardo de Tavera in note 14, pp. 68, 69.) ¹

17 Pardo de Tavera here cites in full (note 16, pp. 69–76) a letter from Governor Corcuera to the king complaining of the conduct of the friars. (This letter appears in VOL. XXVI of our series, pp. 116–125.) ¹

[18](#) “Some have believed that Anda y Salazar, whom they consider resentful against the religious orders in Filipinas, accumulated against them, in this memorial, accusations which he alone maintained; but in the preceding notes we have demonstrated that the charges which that upright magistrate made against them were not unfounded, nor much less were they recent. In regard to the commerce to which, according to him, the religious devoted themselves, it was a certain fact, scandalous and of long standing—with the aggravating circumstance that they continued to trade in opposition to the commands of the sovereign.” A decree dated February 2, 1730 is here cited which shows this plainly, accusing both seculars and religious of trafficking openly and scandalously, and using their sacred character as a cloak for this and for extensive smuggling; and ordering the archbishop and bishops, and the provincials of the orders, to restrain and punish those of their subjects who thus offend, and the president and Audiencia to proceed against the ecclesiastical authorities if the latter fail to do their duty. (Pardo de Tavera, note 17, pp. 76–78.) ¹

[19](#) “The economic ideas of Señor Anda were as erroneous as were those among the generality of the Spaniards in that period. The commerce of exportation was for them a wrong and a heinous act, with which they reproached him who did it; nor would they admit that he who sells his products has a right to carry them where he can obtain the highest price.” (Pardo de Tavera, note 18, p. 78.) ¹

[20](#) “It is now the general opinion that the religious orders cannot prove their right of ownership of all the income-producing properties which they hold in both town and country. It cannot be doubted that under the regime of government established by the United States this important question of ownership will be cleared up.” The writer here relates the controversy of Auditor Sierra with the religious orders over this question in the time of Archbishop Camacho; finally the governor intervened with his authority, terminating the dispute by declaring that the new visitor, Auditor Ozaeta, would accept as valid the titles to property presented by the friars. (Pardo de Tavera, note 19, pp. 78–80.) ¹

[21](#) “It is true that the Chinese could not have received worse treatment; they have always been laden with accusations of all kinds. As for their being of no benefit to the country, this assertion is entirely contrary to the facts. The Chinese have committed abuses, it is true; but it is only right to acknowledge that they are industrious, patient, respectful, and sober; and that with such traits they must necessarily be useful to the country in which they are.” (Pardo de Tavera, note 20, p. 80.)

The feeling against the Chinese in Manila after the English invasion was very bitter, as has been already noticed; it is reflected in Viana’s official opinions, as is evident in the following (*Respuestas*, fol. 127v): “It is a matter of public notoriety that nearly all the Sangleys of the Parián have been traitors to God and to the king, by having offered public sacrifices to their idols, aided the English enemies, and acted basely against the entire Spanish nation. Any representations made by the said Sangleys ought therefore to be regarded with suspicion, and more especially when they are not traders; for such persons cannot carry back to China the profits of the trade, but only the fears arising from their crime.” The Chinese in question had left the Parián in the late war, and gone to their own country; and now had returned to Manila, desiring to remain there on their former footing. Viana advises that a rigorous investigation of their previous status, actions, and character be made by the government, and any of them found to have acted treasonably toward the Spaniards be punished with the utmost severity; while those who had not been traitors, but had left the Parián on account of their trading or other like reasons, ought to be fined at least fifty pesos each for having done so without permission. Again (fol. 134v) he says of a certain widow (Gabriela Josepha by name), whose dwelling had been seized on account of her supposed disloyalty, that “as she is a Sangley mestiza, there is strong reason to suspect that she is the widow of some traitor.” After the English left Manila, the Sangleys there (in number 400 to 500) were

compelled to labor on the ditch and other defenses of the city, as a punishment for their previous revolt. In April, 1765, they offered to the government 12,000 pesos, as “a free donation, in view of the exhausted condition of the royal treasury;” and 8,000 pesos more to the Audiencia, in order that they might be relieved from the aforesaid labor, which sum was surrendered by the auditors to the royal exchequer. Viana recommended (*Respuestas*, fol. 125v, 126) that these donations be accepted, and the Sangleys relieved from the ditch-digging for such time as the 8,000 pesos would last; he estimated that the work might be completed with this sum, since the government could order that from the provinces all the criminals in the jails, and the “vagabonds and mischievous persons who abound in the villages,” should be sent in to Manila to work on the ditch—thus subserving at once the ends of justice, economy, and military defense. Viana in this paper sarcastically refers to the part taken by the Chinese in aiding the English against the Spaniards during the late war, when, he says, thousands of Sangleys performed all sorts of labors for the English, besides contributing money to aid them; he therefore considers it but just that they should now labor in the royal service, since it is quite enough favor to them that their lives have been spared by the Spaniards.—EDS. ¹

²² “In this, as in other points in the memorial, Anda is not the only one who points out the abuses committed by the missionaries.” (Here Le Gentil is cited; see our VOL. XXVIII, pp. 210, 218, where he speaks of the absolute power of the religious.) “The friars explained their attitude against the Spaniards by saying that those who went to the provinces served only to instruct the Indians in vices; but it is certain that, granted the sort of life led by the curas, and their absolute independence, the presence of a Spaniard in the town must have been vexatious to them. Besides, the latter could not tolerate their abuses without protesting against them; and his attitude would have served as an example and stimulus for the Indians to escape from the insupportable domination and tyranny of the fathers.

“At the end of this present century an intelligent and respectable Dominican friar says, in an official memorial, referring to the Spaniards of the provinces in Filipinas: ‘If they remain many years they live altogether like the Indians—dragging along a miserable and wretched life, a disgrace to the Spanish name in these islands—and become utterly slothful and vicious, deserving I know not whether pity or execration. For, since they come from España without education or ability to undertake even a simple commission—and it is a wonder if in their own country they ever knew how to plow or make a pair of shoes—here they are of no use whatever. And, as here all the Spaniards bear the title of Don, and are addressed as Señor, they are prone to desire to appear as such, establishing themselves with a white suit [*Americana*], which costs them half a peso, and giving themselves airs as gentlemen, and persons of distinction. There are very few of them who make some little fortune—a situation which, however little it can be bettered, is never to be envied—and almost all of them lead a life that is melancholy and wretched enough, having become idlers, and scandalizing the Indians of the villages wherever they go, being a disgrace to the Spanish name in these islands.’ Such is the opinion regarding the Spaniards residing in the provinces, expressed by the reverend father Fray José María Ruiz, in his *Memoria* prepared for the Exposition of Filipinas at Madrid in 1887, pp. 284, 285. In a decree dated August 4, 1765, the king, angered by the conduct of the friars who oppose the residence of the Spaniards in the provinces, issues strict orders that no hindrance shall be placed in the way of such residence.” (Pardo de Tavera, note 21, pp. 80–82.) ¹

²³ On July 9, 1765, Viana demanded from the Audiencia (*Respuestas*, fol. 167v, 168) that the Sangley traders of the Parián and the alcaicería be expelled from the islands and their goods confiscated, as a punishment for their late treason, and also because they have been getting control of the retail trade of Manila, and thus injuring the Spanish shopkeepers. He also renews his proposal that the married Chinese of the Parián be sent to Santa Ynes, as a sort of penal colony to work in the mines and cultivate the ground adjoining. ¹

[24](#) “Father Fray Gaspar de San Agustin judged the Chinese with the same prejudice as he did the Indians; yet he was less hard and unjust than he was against the latter, about whom he wrote so much evil that afterward it was not possible to find any more failings or offenses to hurl against them.” (Pardo de Tavera, note 23, p. 83.) [↑](#)

[25](#) In the text, *yermo* (“desert”), a conjectural reading by Pardo de Tavera. [↑](#)

[26](#) “There were in Manila some Chinese Dominican friars, who had come from the missions which the Order of Preachers maintained in the neighboring empire.” (Pardo de Tavera, note 24, p. 83.) [↑](#)

[27](#) See instructions for the new Audiencia, VOL. V, pp. 298–300. [↑](#)

[28](#) In the year 1583 some revolts by the Indians occurred, caused by the bad treatment they received from the encomenderos; some of these fancied that the Indians of their encomiendas were to serve them as slaves, and spared neither the lives nor the property of the natives in making themselves rich. The government intended to make some reforms, but delayed so long that the natives, having no other means of protecting themselves, thought they must revolt against the encomenderos. In 1584 the new Audiencia arrived at Manila, presided over by Santiago de Vera; “the state of things in which he found the country, the injustices which were committed on every side, the violent means to which the oppressed found themselves obliged to resort for self-defense, impressed him deeply—above all, when in 1585 rebellion was declared by the Pampango and Tagal Indians. That prudent magistrate comprehended that the first thing which he must do in order to rule with justice was to understand the usages and customs of the country which he was commissioned to rule; and it was then that, knowing the remarkable abilities of the virtuous Fray Juan de Plasencia, Dr. Vera wrote to him, asking that he would inform him in regard to the social and political organization of the Tagals. As for the abuses of the encomenderos, undoubtedly they were magnified and exaggerated by the friars, whose interest it was to disparage the former, in order that they themselves might be absolute masters of the country in place of the encomenderos.” Pardo de Tavera cites in full a letter from the king to Archbishop Salazar, dated March 27, 1583, in which the grievances of the Indians are enumerated. “We are informed that in that province [of Filipinas] the Indian natives are seen to be dying, on account of the bad treatment inflicted on them by their encomenderos; and that the number of the said Indians has been so diminished that in some places more than a third of them are dead. This is because the taxes are levied on them for the full amount, two-thirds more than what they are under obligation to pay, and they are treated worse than slaves, and as such many are sold by some encomenderos to others; and some are flogged to death; and there are women who die or break down under their heavy burdens. Others, and their children, are compelled to serve on their lands, and sleep in the fields; and there they bring forth and nurse infants, and they die, bitten by poisonous insects; and many hang themselves, and are left to die, without food; and others eat poisonous herbs. And there are mothers who kill their own children when they are born, saying that they do so to free them from the sufferings which they are enduring. And the said Indians have conceived a very bitter hatred to the name of Christian, and regard the Spaniards as deceivers, and pay no attention to what is taught to them; accordingly, whatever they do is through force. And these injuries are greater for the Indians who belong to our royal crown, as being under [official] administration.” The king, in view of all this, renews his instructions to the viceroys and governors to enforce the laws in behalf of the Indians, and urges the bishop and other ecclesiastics to use their influence for this same purpose. (Pardo de Tavera, note 25, pp. 83–86.) See also Salazar’s letter to the king (VOL. V, pp. 210–247). [↑](#)

[29](#) “That the Chinese should be more successful than the Spaniard in Filipinas is easily explained. In Anda’s time, the Spaniard who went to the provinces to devote himself to trade was a poor man who had no official situation, and for that reason an unlucky fellow who could not depend on support and influence in a country where favor was the

law; while the Chinaman, with his presents, trinkets, and bribes, secured everything.” (Pardo de Tavera, note 26, p. 86.) ¹

³⁰ “From the earliest days of the conquest of Filipinas, the monarchs displayed decided earnestness that the knowledge of the Castilian language should be diffused among their peoples; while the friars opposed to this a resistance as tenacious as it was hostile, not only to the interests of the civilization of these regions, but to the sovereignty of España.” (Here is cited a royal decree, dated August 4, 1765, as an example of many, strictly commanding that the natives be taught the Castilian language, and that no hindrance be placed in the way of the Spaniards freely traveling and trading in the provinces.) “A few years ago Señor Escosura, royal commissary—whose complaisance toward the friars, so well known, gives more force to the censures which he directs against them—said, in speaking of the education of the Filipinos: ‘That education, in the first place, if we except the city of Manila and its environs, is entirely reduced to instruction in the Christian doctrine, in Tagal or in the dialects of the respective provinces—and for the same reason, is in exclusive charge of the parish priests, either seculars or regulars (who are most in number and influence); and these pastors, to whom this country owes most important services, and whose usefulness and necessity I avow and proclaim, suffer, nevertheless, from some prejudice.... They assert that to teach the Indians Castilian would be to furnish them the means—which at present they lack, on account of the diversity of their dialects—to revolt against the Spanish authority; that from the moment when they can readily understand the laws and measures of the government they will discuss these and comment upon them, from the standpoint of their local interests, and therefore in opposition to those of the metropolis; that to give these natives an idea of their own rights is to inoculate them with the spirit of rebellion; and that, the foundation of race superiority, which now aggrandizes the Europeans, being thus destroyed, it would be impossible to govern these provinces without material force, as now.’ And, in order to promote the teaching of Castilian in the second half of the nineteenth century, Señor Escosura said that ‘it would be expedient to address urgent requests to the archbishops and bishops, impressing upon them the necessity of their obliging the parish priests to fulfil the commands that are given on this point in the laws of the Indias,’ because in three centuries of Spanish domination the laws and frequent decrees thereon had never been obeyed.” (Pardo de Tavera, note 28, pp. 87–90.) ¹

³¹ In the decree cited in the preceding note occurs the following statement: “If the Indians had been taught the said [Castilian] language, the calamities and vexations would not have occurred which were experienced by the Spaniards, of both sexes, who in their flight after the loss of this fortress attempted to find asylum in the mountains and the villages nearest to them.” ¹

³² Pardo de Tavera cites (note 29, pp. 90, 91) several statements by Rodriguez Ovalle (whose MS. account of the siege of Manila has been used by Marqués de Ayerbe in his *Sitio y conquista de Manila*) to show that a few of the religious tried to incite the Indians in the provinces to rise against the Spaniards, and some others became bandits; and that Rojo was jealous of Anda’s position and authority. ¹

³³ “Law 81, tit. xiv, book i of the *Recopilación de Indias*, issued in 1594, provides that ‘the religious may not be served by the Indians; but, in very necessary things, they may receive such service by paying them for it.’ The construction of the village churches has been accomplished by obliging the Indians to work gratis, to furnish the materials gratis, and to do everything gratis; the same procedure also served for building the convent or house of the cura.” See note 80, *ante*, p. 146; also the report made by Auditor Gueruela on his visit to Camarines in 1702, in VOL. XLII, pp. 304–308. ¹

[34](#) “The complaints against the sort of abuses which are mentioned in this section of Anda’s *Memorial* are precisely those which the Filipino people formulated; it was those abuses which drove the Filipinos to form the Katipunan, to rise in armed revolt, and to struggle against the Spanish government, in order to gain escape from friar dominion. Recent occurrences, and the publicity regarding the promoters of the Filipino insurrection, render it unnecessary for us to comment further on the words of Anda.” (Pardo de Tavera, note 31, pp. 91, 92.) [↑](#)

[35](#) *Sínodo*: here a synonym of *estipendio* (stipend), being the name of the stipend allowed to priests in America and the Philippines. [↑](#)

[36](#) “I do not recognize the word *parilusclas*, in the memorial; perhaps it is an error of the copyist. The fact is that the sick are conveyed in a hammock, a litter, or a sedan-chair to the door of the convent, where the cura comes down to confess them, give the viaticum, or apply the holy oils, as the case demands.” (Pardo de Tavera, note 32, p. 92.) [↑](#)

[37](#) “That his name shall be blotted from the Book of Life”—a statement made in the sensational sermon of the Jesuit Puch in 1764 (see pp. 24–26, *ante*). Pardo de Tavera says (note 33, p. 92) that this occurred in Lima; he cites also a letter by Corcuera in 1636 (see our VOL. XXVI, pp. 60–72) to show that the political use of the pulpit by the friars was a practice of long standing. [↑](#)

[38](#) See account of the Santa Ynes mine in note 55, *ante*, p. 107. [↑](#)

[39](#) See the first document of this volume, “Events in Filipinas,” for mention of this and other reforms made later by the Spanish government, which are recommended by Anda in this memorial. [↑](#)

[40](#) “As fractional currency was always exceedingly scarce in Filipinas, recourse was had, in order to remove the difficulty, to the proceeding of cutting into bits the pesos and half-pesos. It was undoubtedly for this reason that to the coins thus made were applied the Tagal names of *kahati* (*kalahati*, “the half”) for two reals, that is, the half of a half-peso; and *sikapat* (*si-kaapat*, “the fourth part”) for one real, or the quarter of a half-peso; and so on—and, for the same reason, this was called in Castilian *moneda cortada* [“cut money”]. These fragments of coin bore a stamp which indicated their value, and which was placed on them in Manila; but, as the stamp did not indicate the exact size of the piece of coin, the various hands through which it passed diminished the amount of metal as much as they could, thus reducing it to its least possible size. Governor La Torre published an edict on April 25, 1764, in which, with the object of mitigating the bad results of this, since ‘not only the Sangleys, but the Indians and mestizos, are unwilling to accept the cut money, on account of its debasement,’ he made the decision (certainly a *contraproductente* [*i.e.*, a measure producing effects contrary to what were intended]), to compel ‘all the cut money to pass current for its value according to the stamp on it.’ This remedy was evidently profitable for those who debased the money, because it was compulsory to take the money by its stamp, its debasement being treated with indifference. The term ‘milled money’ was applied to coin of proper standard and manufacture, full and exact weight, with milled edges; the Chinese exported it, plainly because it alone could be accepted in the regions to which they carried it, but this did not occur with the cut money, which could only be accepted as bullion outside of Filipinas. Then, as now, was verified the natural phenomenon of the expulsion of good money from a country by that which is debased, because no one outside desires it, as it is not current by law.” (Pardo de Tavera, note 39, pp. 101, 102.) [↑](#)

[41](#) “Whoever reads these last words of the auditor Anda will not fail to make the melancholy reflection that at the end of the nineteenth century when the Spanish domination in the Filipinas islands was definitely overthrown, the last governor-general could have written the same sad complaint, could have addressed to the [Spanish] nation the same

catalogue of abuses and disorders, which, by perpetuating themselves and increasing, effected the result which exactly suited [such causes], the loss of Filipinas!” (Pardo de Tavera, note 40, p. 102.) [↑]

⁴² Pardo de Tavera states (p. 6) that Arriaga (misprinted Arriola) was the king’s secretary of state. [↑]

ORDINANCES OF GOOD GOVERNMENT

ORDINANCES OF CORCUERA AND CRUZAT Y GONGORA, WITH LATER ADDITIONS

*Ordinances of good government (the original ones) by Governor-general Don Sebastian Hurtado de Corcuera in 1642. Revised by Governor-general Don Fausto Cruzat y Góngora in 1696. Enlarged later.*¹

Don Fausto Cruzat y Góngora, knight of the Order of Santiago, member of his Majesty's Council, his governor and captain-general of these Filipinas Islands, and president of the royal Audiencia and Chancillería resident therein, etc.:

Inasmuch as I have recognized that there has been considerable change in regard to the ordinances made by Don Sebastian Hurtado y Corcuera when he was governing these islands in the former year 1642, for the direction and good government of the alcaldes-mayor and corregidores of the provinces of the islands, both in those occasioned by time and because of some² ... having been seen in the observance of ... sections which then ... in harmony with reason ... some have been abolished and others added at different times; and since on account of the many numbers that are found to have been revised at present, confusion might be caused to the ministers who are to observe them, as has been experienced on some occasions; and desiring to avoid these inconveniences, and that everything may be clearer; and since I believe that it will be greatly to the pleasure of God our Lord, and the service of his Majesty (whom may God preserve), to reduce them to a less number, which the times render necessary, for their good direction according to the present condition of affairs: I order and command you, the said alcaldes-mayor and corregidores who are at present and shall be in the future in the provinces of the district of this government, that during the term of your offices, each one of you in your jurisdiction and district, shall observe the following order, sections, and instruction.

1. [On taking office, they must swear before the chief notary of the government to execute the laws according to justice; not to take bribes and excessive fees; and to abide by the laws of the kingdom, and any ordinances, and the present instructions.]
2. [Since the officials will serve as an example to the natives under them, they must see that their behavior morally and religiously is above reproach. They are also to watch carefully over the morals of those under them, and especially to see to it that blasphemy is punished.]
3. [The Indians must be well treated, and must be molested by no person, whatever his rank. The rich must not oppress the poor in any way, "and if anything should arise in this

that you cannot remedy in person, you shall advise me very minutely of it so that I may correct it and have it remedied in the most advisable manner. You shall not permit any encomendero or his collectors, or any other person, to borrow or get credit from the Indians in gold, reals, or any other ...; nor that the tribute be collected from them before it is ... the year when they are to pay it; and the collection, ... according to the last appraisal at the ages ordered; nor that, as a ransom or as a recompense for anything, or under cover of anything else, more be collected from the Indians than is due according to the said appraisal, namely, one toston in kind, and the hen at the price declared in the appraisal, and the rest in reals; nor that any collection be made from him who sowed and did not harvest; nor from anyone who was sick or occupied in the service of his Majesty, and was unable to sow, nor from old men of sixty years, who are by reason of that age reserved by this government [from the tribute]. You shall not consent under any consideration to the contrary of all the above; nor that the said encomenderos or their collectors live among the Indians of their encomiendas longer than the duration of the time of the collection, which at the longest must not be more than three months.”

Likewise the encomenderos and their collectors are to promptly pay what they owe to the Indians, both for personal services and for provisions and other supplies furnished at the time of the collection of the tribute, and these shall be paid at the current rates. Great care is to be exercised in the election of new *cabezas de barangay*, who are to be in the line of succession, and have the necessary qualifications therefor, and are to pay the media-anata before a legal title can be issued to them by the governor. When at death or for any other just reason it becomes necessary to elect other cabezas, “you shall send me the nomination of three chief persons suitable and capable for each barangay, and shall inform me of the reasons and causes for the removal, so that after I have examined them I may choose whom I please.” The non-observance of this method of election will bring its punishment. Each barangay must consist of forty-five to fifty tributes, and no more.³ Barangays with less shall be united.]

4. [The Indians must not be harassed with injurious taxes and assessments (as is so often the case). If such become necessary, the governor is to be informed thereof, the necessity therefor, and the sum to be assessed. A list of the citizens is also to be sent, “with mention of those who possess property, so that allowance may be given by this government to make the assessment, so that an equal charge may not rest upon those who have money and those who are destitute of it, but that each one contribute according to his several ability.” The imposition of a tax or assessment without the permission of the governor carries with it deprivation of office and satisfaction from the property of the one dismissed of the entire sum contributed, to those assessed, and a fine of 500 pesos for the treasury and fortification expenses.]

5. [In the management and disbursements of funds from the communal treasuries, there is much graft among the officials. An order sent to all the provinces the preceding year at the request of the fiscal ordering the alcaldes-mayor and corregidores to oversee and

manage the communal treasuries is to be strictly obeyed. All disbursements are to be by express order of the superior government. Disbursements made without such order shall be made good from the property of the one allowing them, or their bondsmen.]

6. [Alcaldes-mayor and corregidores are not to accept any presents, even of food, during the term of their office, as their hands will be bound thereby. They must pay a just price for what they purchase. During the term of their office they are not to purchase a ranch or any lands in the territory of their jurisdiction; neither are their secretaries or alguacils-mayor to buy them: for many evils follow therefrom. They are to build no sailing craft under any consideration, “under penalty of loss thereof and two hundred pesos, applied half to fines for the treasury and fortifications, because of the great harm caused to the natives by such constructions. For when you need any vessel, you can charter one.” Likewise they are forbidden to engage in any trade with the natives and citizens of their jurisdiction, either directly or through agents. They are not to take a portion of the fees and salaries of their notaries, interpreters, and other persons, “because of the harm resulting from the judges having such shares. Nor shall you allow your officials to take them; nor shall you make an agreement with anyone in regard to the abovesaid.”]

7. You shall visit your jurisdiction once each year, remaining twelve days in each large village of the chiefs, and six days in the small villages, visiting them and trying with justice the natives in whatever they plead, remedying all that you may find necessary and clearing away whatever injuries or injustices may have been committed. [During the visit or rather, during all their term, they are not to hale anyone into court to justify any slavery, but justice is to be meted to those who appear to plead of their own accord. They, their clerks, or other officials, shall not take fees from any fifths of gold paid them in their jurisdictions; neither shall fees be exacted for the visit. They must pay their own expenses during that period and not exact them from the Indians. Contravention of this last means restoration of the amount exacted to the Indians, and four times as much as a fine.]

8. [This regulates the manner of trials and the fees for the same. No process is to be made in cases involving sums up to twenty pesos, but such cases are to be briefly despatched, and the notary cannot receive a fee in excess of four reals from each party to the suit, under penalty of returning it, and a sum four times as large as a fine to the Manila court. If one Indian causes the arrest of another Indian, and the one arrested confesses his guilt, sentence is to be passed by virtue of the confession. Otherwise witnesses shall be called, and after their depositions are taken, the case shall be judged. If there is any appeal, the case is to be tried in second instance, and after examining the witnesses the records are to be sent to the Manila Audiencia. Criminal cases must be tried as soon as possible. Those involving sums not in excess of five pesos shall be tried summarily, and nothing more than a mere record of them shall be made for the archives of the notary. No fees are to be received for depositions of witnesses, and only the fee

adjudged by the tariff can be accepted for giving written records of the case to the parties involved. The tariff of fees is to be posted in a public place in the court, both in the Spanish and native language, in order that all may know the amount to be paid. Notaries are to record the amounts accepted as fees, which must not exceed the tariff. This method of trial was ordered for the purpose of saving time, expense, and trouble to the Indians.]

9. [Tariffs according to which food can be supplied to travelers are to be posted in all the villages along the line of travel; as well as of all aid furnished in sailing craft, men, and horses. “For which you shall unite with the father minister of the doctrina, and between you two, you shall make said tariff. In it you shall write that in Tondo and all along the coast of Manila, two reals must be paid for one hen, one real for a *dumalaga*,⁴ and one-half real for a chick; in Pangasinan, Ilocos, and Cagayan, one real shall be paid for a hen, one-half real for a *dumalaga*, and one cuartillo (four to the real) for a chick; in Tayabas, the tariff made and confirmed by this superior governor shall be kept, until otherwise commanded by it; in Pintados, Leyte, Cebú, Camarines, Catanduanes, Calamianes, and the other jurisdictions and provinces, each hen at one-half real, and in proportion each *dumalaga* and chick. The other food and other things necessary for travel, on the basis of such tariff shall conform to the usage of the country.” The fees to be collected by them and their notaries for making the tariff shall not exceed one real, and a copy of the same is to be sent to the governor for his examination and confirmation. Contravention of this order carries a fine of fifty pesos, to be applied in halves to the treasury and the fortifications.]

10. [Bridges are to be built and repaired, and rivers kept clean, especially those flowing from Laguna to Manila through Pasig and Taguig. All undergrowth, enclosures, and obstacles to the natural current are to be removed, in order that the waters may be confined to their beds, thus avoiding overflows and damage to crops. This must be done with the least possible trouble to the Indians, and all must share alike in the work.]

11. [In villages along the line of travel, the natives must not be made to act as porters (a prolific source of evil), even with light burdens. Each village must purchase immediately horses and cows, so that they may be available for travelers.]

12. [Natives must not become vagabonds, but must cultivate their land, both for their own good and that of the community. In some provinces, underbrush has sprung up and food is scarce because of the nomadic habits of the Indians, and their laziness. An edict is to be published to the effect that if all those who own lands do not cultivate and sow them within two years, such lands will be sold to the highest bidder. The official not obeying this law shall be fined fifty pesos, to be applied in halves to the treasury and the fortifications.]

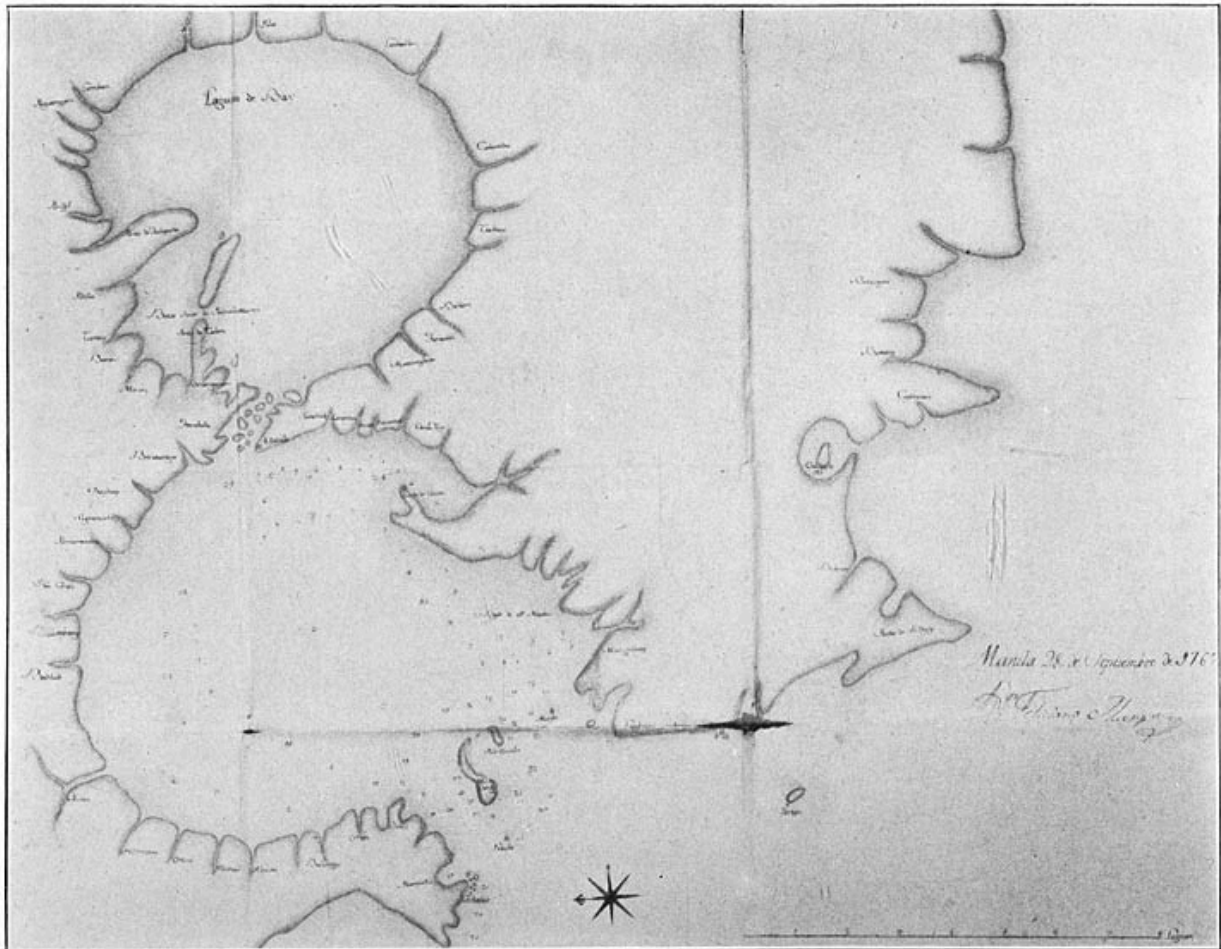
13. [The rearing of fowls and swine is obligatory on the inhabitants. Each Indian is to have at least six hens and one cock, and one sow. Each Sangley is to have a dozen hens, one cock, and two sows. This will avoid scarcity and dearness in price. Close inspection is to be made by the alcaldes-mayor and corregidores, under penalty of suspension from their office. For such inspection, no fees are to be charged by any person connected therewith, under penalty of returning said fee, and a sum four times as great for the treasury.]

14. [Great harm results from Spaniards, Sangleys, and Indians giving money to other Indians for their trading. No sum must be so given in excess of five pesos, not even under pretext that it is advance pay for rice or other products. If more is given, it shall be lost, and the Indian receiving it cannot be made to pay it. The prices current at the time of the harvest shall be paid to the Indians by all purchasers other than the king, who has a special rate. No purchases can be made by individual persons until those for the royal warehouses have been made, and the tributes paid. Notaries and Indian governors are forbidden to draw up any contract at the fixed rate or at the price paid by the king.]

15. [Inasmuch as Indian slavery is forbidden; and since the transfer of those called slaves by custom is also forbidden; as is also that their descendants born after August 18, 1692 (the date of the publication in Manila of the act of the royal Audiencia of Mexico, in accordance with the royal decree of Buen Retiro, May 1, 1686), should be slaves: the officials are to carefully carry this law into effect, and prevent such slavery.]

16. [Careful regulations are made concerning the Chinese. Because of the spiritually demoralizing effect of the Sangleys on the Indians, and the harm resulting from the wasting of the substance of the latter which is given in exchange for things of little value offered them by the wily celestials, great care is to be exercised in regard to both Christian and heathen Sangleys. None of the latter are to have residence among the Indians, and if any such are found in any village, they are to be immediately sent to the Parian in Manila, the penalty in case of non-compliance with this order being two hundred lashes and four years' service in the Cavite harbor. The married Christian Sangleys who prove detrimental to the Indians are to be sent to the villages of Santa Cruz and Binondo, and the single men to the Parian (these facts to be ascertained from the priests in charge of the various villages), in accordance with the laws of December 12, 1695, and January 16, 1696. Sangley traders may go to their trade in the jurisdictions of Tondo, Bulacan, Pampanga, Laguna de Bay, and the port of Cavite, provided they have the government license therefor, not being allowed to sleep in any village or house of the Indians, but in their own boats. Trade in any village is limited to twelve days. Any Sangley who shall be found sleeping in any village shall be sent to the governor, who may impose at will upon him the penalty of two years' service in the harbor of Cavite. Christian Sangleys shall not be allowed to reside in any village in excess of the number required for the service of the convents and the village, and unless married to Indian

women. Close lists of all such, with the necessary statistics, must be kept, and they must have the government license to remain in such villages. Any alcalde-mayor or corregidor allowing any Sangley to live in any village or to trade without the government license shall pay a fine of 200 pesos, and must pay besides the amount of the license for the period during which the Sangley has been without it.]



Map of Manila Bay, port of Cavite, and lake of Bay, showing depths of various parts of the bay, drawn by the engineer Feliciano Márquez, September 28, 1767

[From original MS. map (in colors) in Archivo general de Indias, Sevilla]

17. [Commerce is to be free to all Indians of whatever jurisdiction they be, throughout the Philippines; and no license is required, nor can any fee be charged them. This will ensure a good supply of provisions and other necessities, and promote the cultivation of the land. Good treatment must be shown to them, and their passage from one place to another facilitated, under penalty of a fine of 100 pesos, and a charge in the residencia of the one who transcends this order.]

18. [Large and small weights and measures are to be uniform in all the islands with those used in Manila, and shall have been sealed and marked in that city. All others shall be collected, and used under no consideration. Those using others shall restore all things sold with them, and a sum four times as great as a fine to the treasury.]

19. [This law lessens and defines those exempt from tribute, polos, and personal services. On account of so many reservations from these, the burden has fallen on the weakest of all the natives, namely, the timauas [*i.e.*, freedmen]. Those exempt shall include all sixty years old and above; the cabezas de barangay, and their eldest sons and successors; cantors, sacristans, porters, and cooks [of the church and convents], who have been exempted in accordance with the act of Governor Santiago de Vera; all officers of justice for the time they serve only; the Pampangos who serve as soldiers and in other capacities for the royal pay in Manila, Cavite, and other presidios, for the time they serve, and their wives in case that they are married. The due honors are to be reserved always for all ex-officials of justice, and they shall be given a special bench in the Audiencia, so that they need not stand, but exemption from all dues shall be only for the length of their actual service. All other reservations than those named above are null and void, among them those of men having more than six children, a practice that has been introduced in some parts, and which was ordered suspended, by request of the fiscal, by an order of December 24, 1695. Alcaldes-mayor and corregidores violating this law shall pay the amount of all injuries resulting therefrom, and a sum four times as great, as a fine.]

20. [This law concerns the matter of repartimientos among the natives for supplies for the royal magazines, and for the galleons and vessels despatched annually to Nueva España and the Marianas. Many injuries result because the repartimiento is divided among the Indians, and the Spanish and Chinese mestizos without regard to their material conditions, which gives rise to much suffering. Often “those who have nothing to give, are compelled to get the products elsewhere, and at times to buy them at a higher price than that paid them on his Majesty’s account.” The repartimiento is to be made among all who have had a harvest, according to their several ability, and after sufficient has been reserved for the support of their families, the next year’s sowing, and for the tribute. Those who have not been able to harvest, either through the inclemency of the weather, or because they have been unable to sow because of being absent or busied in the royal service, and the poor, shall be exempt from furnishing supplies. A sworn statement given before the priest of the village shall be necessary to secure exemption. Those furnishing supplies shall be paid immediately, the money being given to each seller in person, and not to the cabezas de barangay or the notables. If the royal funds of any district are insufficient to pay for the supplies furnished, the surplus will be sent on from Manila. Under no consideration shall any debt be left standing. The alcalde-mayor who shall violate this shall be deprived of any political office forever, and shall be compelled to pay all such debt from his own property and a sum three times as great, as

a fine, and he may become exempt from this penalty under no consideration. No repartimiento shall be made except at express order of the superior government, under penalty of a fine of 1,000 Castilian ducados.]

21. [A law of the kingdom prohibits repartimientos of Indian *tanores*⁵ for the service of the alcaldes-mayor, priests, or any other persons; or that contributions of fish be asked for the support of anyone, for vigils, or for Fridays and Saturdays. This law must be strictly enforced, and must be proclaimed in all the villages so that the Indians may be fully aware of it. If the alcalde-mayor is unable to prevent any person from violating this law, the governor shall be informed and he will take the proper measures. Any neglect in this shall be made a charge in the residencia. The alcalde-mayor who violates the law shall pay the just value of such services or fish, and a fine three times as great, and be deprived of all political office perpetually. Indians used as rowers by the alcaldes-mayor or priests in their official capacity shall not be paid, but at all other times they shall be paid as follows: between Mariveles and Manila, at the rate of one-half real per day and food; from Mariveles and beyond, at the current rate of the various districts.]

22. [Alcaldes-mayor, corregidores, priests, and other officials shall not be supported at any other than their own expense. Provisions shall be purchased at the prices current, and cash must be paid for them. The natives, however, are compelled to sell provisions to such persons for their support, but such purchases are not to exceed the amount needed. Violation of this law means loss of office.]

23. [Alcaldes-mayor and corregidores on assuming office shall receive from their predecessors an inventory of all papers in the archives (if there are no notaries in charge of them), and shall pass on the same with all that have accumulated during their term of office to their successors. This shall be a charge in their residencias, and they must present testimony that they have so done. No person is to be condemned to the galleys or to undergo any bodily mutilation, except with the advice of an assessor enrolled in the royal Audiencia. In case there is no assessor in any district, all cases involving such condemnation must be concluded, all except the sentence, and then prisoner and records sent to Manila for sentence in the royal Audiencia.]

24. [In prisons, women and men must be kept separate. If the complaint against women is slight, they shall not be confined in prison, but kept in the house of some relative. No prison fees shall be accepted by any official from the Indians imprisoned, under penalty of repaying them, and a fine four times as large.]

25. [No office can be resigned without governmental permission, under penalty of a fine of 100 pesos. Record books shall be delivered to the alcaldes-mayor and corregidores by the government secretary, in which shall be kept an account of the fines, expenses of justice, and fifths of gold. At the conclusion of anyone's term, this book shall be

delivered to the royal accountancy, and the amount of the fines and fifths to the royal treasury.]

26. [This law concerns the appointment of inferior officials by alcaldes-mayor and corregidores. No Spanish alguacil is to be appointed without government title. If any serious case demands such an officer, he shall be appointed only for the time necessary and when the immediate duty is concluded he shall be dismissed. Appointments as lieutenants, masters-of-camp, sargentos-mayor, captains, alferezes, sergeants and adjutants of native military companies, governors for the Sangleys and natives, and all other appointments to military and political posts (whether paid or not), shall not be made without government title. Appointments shall be made only when vacancies occur, and when necessary, three names shall be sent to the governor at Manila, who shall make the appointment therefrom. Without the government title, no one shall exercise any official duty, under penalty to that alcalde-mayor or corregidor who shall violate this law, of a fine of 500 pesos, the payment of the fees of media-anata and such title, while the violation shall become a charge in his residencia, and he shall be subject to all other penalties imposed for such violation. Notaries are prohibited under like penalties from drawing up such titles or countersigning the same, and shall not allow possession of any post to be taken without government title. All notaries shall be required to make full testimony of the observance of this law, and in districts having no notary, a certification must be made by the priest.]

27. [Methods of election for various jurisdictions are prescribed by this law. In the four jurisdictions of Tondo, Laguna de Bay, Bulacan, and Pampanga, considerable trouble has been experienced at the annual election of the district governor, which has resulted in much ill-feeling among the Indians, and lawsuits because of factions among them, as the elections have been participated in by all in common. Henceforth, the elections are to be held on the day assigned, by all the cabezas de barangay of each village (if there are twelve of them; if less than that number, notables of the village are to be appointed to that number), who with the retiring governor and with the intervention of the alcalde-mayor and priest of the village, shall proceed to the election. Having chosen three persons, their names shall be forwarded to the governor at Manila, in a sealed paper bearing the following title: "Election of such and such a village, which is sent to the governor and captain-general of these islands, through his government secretary." In accordance with the governor's choice from these three names the title of the new village governor will be expedited. In the jurisdictions of Calilaya, Balayan, Mariveles, and Cavite, elections shall be held as heretofore, and those elected shall go to, or send to, the governor in Manila for confirmation of their office. Elections shall occur between January 1 and February 28, and for each one the alcalde-mayor and the notary shall receive only three pesos. In all other jurisdictions, elections shall be held in the usual manner, and the appointment made by the alcalde-mayor, but no office shall be enjoyed without the government title. These titles shall be sent to each district, in accordance

with the order of September 23, 1693, made out by the government secretary, and signed by the governor and countersigned by the secretary; and on them shall be entered the names of the successful candidates. The names of those elected shall be sent for entry in the government books, and all media-anatas shall be paid, as well as title fees and cost of sealed paper. No newly-elected official shall hold office until he has received the government title, and the old official shall hold over until such time. Violation of this law shall incur the penalties of the preceding law, and it shall be made a matter of residencia.]

28. [No encomienda shall be granted nor any acts made in regard to them without the express command of the superior government. Any claims to encomiendas must be satisfied through the proper channels. Claims to any encomiendas obtained otherwise are null and void.]

29. [No Spaniards may live in any Indian village, except by permission of the governor at Manila, and where such permission is given, they must live decently and quietly. This includes both married and single men, and is to be enforced especially in the province of Pampanga, although all Spaniards married at present to Pampangas may remain. All other men married to Spanish women or to Indian women of Pampanga [in the future], and all single men must leave the province immediately, and may not return without permission. If Spaniards wish in the future to marry Pampangas, they cannot live among the natives, under penalty of a fine of fifty pesos.]

30. [A general treasury council held in April, 1696, rules that the Indians shall not be compelled to take the tribute to the capital cities at their own expense. In case they are ordered to take it to any place, they must be paid the proper prices for transportation. If after the stipends of the priests of the villages are met, any residue of the tribute remains from the encomiendas belonging to the royal crown, the alcaldes-mayor shall notify the superior government and the royal officials of the amount in each village, so that it may be ordered taken to the place deemed most advisable. Nothing spent for transportation shall be admitted unless an order has been given for such transportation. Encomenderos and collectors shall observe the same method in order to avoid the injuries suffered by the natives. Violation of this law shall be a matter of residencia, and those violating it shall be condemned to make good all the losses to the Indians in consequence thereof, and four times that amount as a fine.]

31. [A government act of March 22, 1657, ordered all the polo funds created in each village to be suppressed, as well as the need of each chief contributing annually one peso and each timaua one toston to them, for the expenses of his Majesty's service. Alcaldes-mayor and corregidores are ordered not to allow such funds to exist, or any contributions to be made for them, under penalty of suspension from political and military office for four years, service as a soldier, and a fine of 100 pesos.]

32. [Great care is to be taken to have the Indians plant cocoanut palms and set out abacá plants: the chiefs, trees to the number of two hundred and plants to the same number; and timauas, each to the number of one hundred. Those dying out are to be renewed, so that the number may always be kept up. This is to be a matter of personal care on the part of the alcaldes-mayor, who are to appoint a representative in each village to register the trees and plants and render account of neglect to observe this law. The palms are useful for the support of the Indians, while from its fruit are obtained oil, wine, and bonote for the furnishing of the galleons and other vessels, and the material for making rigging. For failure to prepare these supplies for the ships, a fine of 1,000 pesos shall be imposed for the purchase of oil and abacá, and the omission shall be made a charge in the residencia. Loss of office shall also be incurred, and for the inferior officials a penalty of two years in the galley without pay.]

33. [The Indians, both men and women, and the married Christian Sangleys must be made to destroy the locusts that do so great harm to the crops throughout the islands, especially the young, called *locton*, which are so destructive, and can be killed easily as they have no wings. Each person shall be charged during certain days or weeks to kill so many gantas of this destructive pest, under penalties that shall be imposed for neglect. Neglect by the alcaldes-mayor and corregidores in this law shall mean deposition from office, and a charge in their residencia.]

34. [No obstacle shall be placed to the Sangley craft that have government permission to trade in any province, during the time of said permission. But at the end of the term of their license, they must return to Manila, and the alcaldes-mayor and corregidores may not continue that period. Sangleys found without the government license, or with it, if outside the provinces of Tondo, Bulacan, Pampanga, Laguna de Bay, and the jurisdiction of the port of Cavite, to which the government license extends, shall be arrested and sent with their crafts to Manila, with testimony to that effect, so that they may be punished fittingly. If any license is given or continued unlawfully, a fine of 1,000 Castilian ducados shall be imposed, and perpetual deprivation of office.]

35. [A government order of September 13, 1688, in pursuance of a royal order of the ninth of the same month, arranged for “raids into the mountains of the provinces of these islands, for the reduction of the Indians in insurrection and the mountain-dwellers in the provinces of Cagayan, Caraga, Calamianes, the island of Negros, Oton, Camarines, and Leyte; and that in the said provinces of Cagayan, Caraga, Calamianes, and Oton, where Spanish and Pampanga infantry is garrisoned, whenever aid of money and rice is given on the account of his Majesty, the said raids shall be made with that part of the infantry that is deemed advisable, while the remainder shall be left for the usual matters for which it was intended. The alcaldes-mayor of Camarines and Leyte shall give aid from the royal property in their charge, in rice to the amount of one ganta of palay per day for every person taking part in the said raids, for the time of their duration, but he must not

forget to send a previous report to this superior government, with the testimony of the notary of each province and the certification of the father minister of the doctrina of the number of persons to be occupied in said raids, and at the end of said raids he shall send a report of them, and the time they lasted.” Otherwise the alcaldes-mayor will not be credited with the amount of rations they have supplied for such raids. In regard to the island of Negros, the corregidor of that island shall requisition the necessary troops from the alcalde-mayor of Cebú. This order shall be sent to all the provinces and shall be kept in the archives of the courts thereof, so that it may be exactly observed.]

36. [Lists of the persons sailing in any royal vessel to points in the islands shall be furnished by the pilot or master; as well as the time for which they are supplied with food. A month’s rations are to be allowed to such persons after supplies are exhausted. If they cannot return to Manila in that time because of some unforeseen event, another month’s ration shall be given them by the alcalde-mayor in whose jurisdiction they may happen to be, and the amount entered in their accounts, so that it may be made good. All repairs to such vessels as have to be made in the provinces, and the cost of the same shall be estimated by experts in the presence of the proper officials and the priest of the village. The alcalde-mayor shall pay the same from the royal funds, and, on the statement of the priest, the expense shall be admitted.]

37. Having been informed that the native vassals of his Majesty living in the villages of the provinces of these islands had intercourse and communication with the heathen, apostate, and fugitive Indians who dwell in the mountains and hills, by going to trade with them and selling them iron for their weapons, wearing apparel, and the other things lacking in said mountains, and necessary to them for the conservation of human life, on account of which their pacification and reduction to our holy Catholic faith and to the obedience of his Majesty is impossible, frustrating, because of the interest of said Christian natives in the gold and wax which they get through said heathens and apostates, the Catholic zeal of his Majesty, who is maintaining these islands at so vast expense to his patrimony, for the sole purpose of the extension of the holy gospel and the conversion of their natives thereto; and considering the only remedy to be the avoidance of such inconvenience: on the seventh of January last of this year, I sent orders generally to all the alcaldes-mayor and corregidores, commanding them to publish an edict in every village of their jurisdiction, forbidding all the natives thereof who are subject and recognize vassalage to his Majesty, to have intercourse, communication, or trade with the heathen, apostate, and fugitive Indians, negroes, and Zambals, who inhabit the mountains and hills, and are not reduced to the royal obedience, under penalty of one hundred lashes and two years’ service in the harbor of Cavite, with only their food. Said alcaldes-mayor and corregidores shall watch, and use great care in avoiding such intercourse, communication, and trade, and shall take all the measures that appear necessary therein. They shall report to this government the results and all that arises therein, in order to see whether it is necessary to enact any other measure. They shall do

this inviolably, without any pretense or tolerance, for it is not practicable that said heathens and apostates having been compelled by necessity, will become reduced to obedience to his Majesty and embrace our holy faith by means of the preaching of the father ministers of instruction. The latter shall for their part aid in a matter so to the service of both Majesties, as I have asked and requested of the reverend fathers provincial of the orders. Said alcaldes-mayor are advised that this prohibition is not to be understood in regard to the heathen Indians who live in the villages and obey and pay tribute to his Majesty; and that those of this kind shall not be prohibited from trading with the Christians, because they are subject to the obedience of the king, our sovereign, and pay him a recognition of vassalage, in the tribute which they give.

38. [An order given by Cruzat y Góngora, December 24, 1695, to alcaldes-mayor and corregidores, arranges for the appointment in each village of several notables, whose business it shall be “to seek out Indians who commit offenses against God, our Lord, in order to correct and punish them, and report thereof to the father ministers, so that they may be dissuaded from their errors, and directed along the path of salvation.” Great care is to be exercised in this, and those Indians called *vilitaos* and *casonos*⁶ are to pay tribute and render personal services. Report must be made as to whether the above classes still exist, and whether they pay anything to any person for exemption from tribute, polos, and personal services, and they shall be punished if of the secular court.⁷]

39. [This law, which was enacted by Cruzat y Góngora, May 14, 1697, and ordered to be included among the government ordinances, commands that the two cooks allowed to priests established in a district having five hundred whole tributes be no longer exempted from tribute, polos, and personal services. The ordinance enacted by Santiago de Vera, by which cantors, sacristans, porters, and cooks, are exempt from the above, shall be revised to read only the first three. This ordinance is made in pursuance with the decision of the royal Audiencia of February 22, 1697, that laws xli, and xlii, título xii, book vi of the *Recopilación* be obeyed. It was consequently ordered by Cruzat y Góngora’s decree of February 22, 1697, that no village shall against its will furnish any Indian *tanores* to the seculars, regulars, or other ecclesiastical persons, or to the alcaldes-mayor. (See *ante*, pp. 203, 204, ordinance 19.) Hence, that this order may be executed, the present ordinance follows.]

40. [An ordinance enacted by Governor Zabalburu, April 8, 1704, is given because of a communication received by him from Archbishop Camacho, under date of January 26, 1702. The letter asks that law vi, título i, book vi, of the *Recopilación* be enforced, because of the sins, both against chastity and justice, arising from natives serving in the houses of their prospective parents-in-law. It happens often, in addition to the sin against chastity that the marriage is not consummated, and the man loses his wages for the service he has rendered. The archbishop has published an edict ordering this practice to cease, but it is wise for both the civil and ecclesiastical power to act in concert in this

matter, “for it often happens, on not few occasions, that fear of the royal power is stronger than veneration for the holy laws of the Church.” The governor is asked to add to the penalties of the law, those penalties which he judges advisable. Consequently, he orders that in each native village, no Indian shall receive into his house or service any man who is about to contract marriage with his daughter, during the three festival days of the village, and that he shall not receive any money or products from him because of such matrimonial contract. Timauas violating this ordinance shall receive fifty lashes, be incapacitated from holding any office, and be compelled to restore to the treasury what may have been thus paid. Notables shall lose their rank and become timauas. The due performance of this ordinance shall be a charge in the residencia of alcaldes-mayor and corregidores.]

41. [An ordinance enacted by the same governor, April 28, 1704, cites an act of his predecessor, Cruzat y Góngora, April 30, 1697, ordering that when the priests of the villages need Indians for the necessary things of the divine service, the gobernadorcillos are compelled to furnish them, the priests paying such Indians at the rate of one real per week apiece and their food. According to the order of Governor Niño de Tabora, no priest was to have more than four Indians, in addition to the cantors, sacristans, and porters. In villages so small that the stipends received by the priests are insufficient to pay for the services of the four Indians, they are not under the necessity of paying them, if their residence there is a necessity, and they reside there at the petition of the Indians, in which case the latter shall pay for the services of the four Indians. Another act of Cruzat y Góngora, of August 31, 1697, rules that the offering to be contributed by the Indians for each of the three religious festivities of the patron of each village, Corpus Christi, and Holy Thursday, be one real for each whole tribute, and one-half real for each single man or woman, this alms being fixed at the request of the procurators-general of the four friar orders and the Society of Jesus. This offering is to be collected in a humane manner, and the gobernadorcillos and cabezas de barangay are not to exact a greater sum under pretense that it is for the church. These two acts Zabalburu orders to be included in the ordinances given to each alcalde-mayor on the assumption of his office. He also orders the observance of an act enacted by himself March 13, 1704, ordering that eight *bagontaos* be assigned in each village weekly for the service of divine worship, the church, and the ministry of the sacramental mass; and for the service of the priests when it becomes necessary to leave the village to administer the sacraments. In villages of less than three hundred tributes, there shall be only the eight bagontaos, under penalty of punishment to the gobernadorcillos who shall allow more. This ordinance is to be proclaimed in all the villages by the alcaldes-mayor on the festival days.]

42. [In accordance with the request of Archbishop Camacho that curas and missionaries be ordered not to exact larger fees than those allowed by the royal tariffs, and that the alcaldes-mayor enforce this, an order to that effect is issued to the latter. Violations by curas and missionaries are to be reported to the superior government, and alcaldes-mayor

are to get careful reports on this head from the native gobernadorcillos and their officials. Any omission in this shall become a charge in the residencia, and the alcalde-mayor shall be obliged to make good the excess fees from his own property, and pay a fine four times as large as the excess. This was ordered to be included in the ordinances, March 8, 1708.]

43. [This ordinance has to do with the government monopoly on playing-cards. On December 2, 1707, the governor orders that the department of that monopoly be taken from the control of the royal officials of the treasury and given into the charge of a special judge. Various ordinances enacted by Doctor Don Juan de Gárate y Francia are to be carefully observed. Alcaldes-mayor shall have the direction of this department in their respective jurisdictions, and in accordance therewith this ordinance is to be included among those given to them on assuming office. The special judge may appoint whom he pleases in the department, at salaries approved by the fiscal. Lastly all the packs of cards in the island are to be collected, and those bringing them are to be paid the price for which they are to be bought; and this as well as all other matters shall be done as the special judge deems best.]

44. [In consequence of two royal decrees (both of which are inserted), one dated September 30, 1714, and the other June 15, 1720, which forbid under severe penalties the manufacture and sale of brandy (made from sugarcane) in Perú and Nueva España, because of the many evils arising therefrom, Governor Toribio Joseph Miguel de Cosío y Campo orders the said decrees to be translated into the native languages of the Philippines, and proclaimed by order of the alcaldes-mayor and corregidores in their respective jurisdictions, and the strict enforcement of the same. If an Indian manufacture and sell brandy, for the first offense he shall be arrested, given two hundred lashes, and thrown into the galleys for six years; for the second offense, this shall be doubled; and for the third, tripled, besides exile from the province. The same punishment shall be meted out to the makers of instruments for the manufacture of brandy, if they are Indians. This law is made a part of the ordinances which are to be given to alcaldes-mayor, who are enjoined under severe penalties to break up this nefarious traffic.]

45. [The same governor, on May 16, 1724, in view of a report of the alcalde-mayor of Bulacan, of January 5, 1724, the writ of the fiscal, of January 20, and the vote of the royal Audiencia, forbids the alcaldes-mayor and others to exact fees from the natives for appointments, under penalty of a fine of 500 pesos and a sum four times as great as the fee exacted. All other fees are to be regulated according to law xxv, título viii, book v, of the *Recopilación*, and the government secretary is ordered to send a list of all fees that can be taken to all the provinces, which is to be strictly observed. All exaction of unjust fees by the royal accountancy is to cease. Copies of this ordinance are to be sent to all the alcaldes-mayor, in order that they may be affixed in the public place so that all may know of it.]

46. [On December 10, 1725, the same governor, in view of the report of the Recollect provincial, of September 20, 1723, and the deductions of the fiscal, October 7 and November 6, 1723, and January 14 and November 23, 1724, orders that all bandalas or purchases⁸ of wax, rice, and other products, be distributed among the natives according to the several ability of each one, and with regard to the fact of whether they have been able to reap a harvest, or to care for their crops after planting them (see ordinance 20, which is expressed in almost the same terms). The injuries done to the natives by the bandalas and purchases must cease. Copies of this ordinance are to be sent to all the villages and proclaimed in the native languages, in order that all the natives may be informed of it. It is also to be noted in the books of the royal accountancy, so that all purchases may be made according to the terms expressed therein, and that all exactions may cease.]

47. [The governor, after examining the report of Fray Benito de San Pablo, Recollect, formerly of the district of Romblon in the province of Panay, in regard to the exactions of the alcaldes-mayor from the natives, and the remarks of the fiscal, orders the alcaldes-mayor to collect from the Indians tribute only in the products which they possess; and but two gantas of rice, in place of the three which they have usually and unlawfully collected. This shall be made a matter in the residencia, and violations will be punished with fines and penalties.]

48. [Governor Valdés Tamon under date of July 28, 1730, orders instructions sent to the alcalde-mayor of Laguna de Bay and to all other alcaldes-mayor, commanding them to pay for the services of the natives according to the tariff (see ordinance 21), except in cases of the administration of justice and matters of the common welfare.]

49. [An ordinance of the same governor, August 9, 1730, orders the late alcalde-mayor of Ilocos to present himself in Manila within a month after being notified thereof, in order that he may hand in his accounts. He is to do this under penalty of a fine of 1,000 pesos. This ordinance arises from the report of the judge of the residencia that said alcalde-mayor, Captain Bernaldo Roldan, is building a large dwelling house in the capital city of the province, whence will ensue injury to the royal treasury from the detention of his accounts.]

50. [In order to remedy the neglect, inexperience, and laziness of alcaldes-mayor, castellans, and other officials of villages, forts, and presidios throughout the Philippines, the governor, Francisco José de Obando y Solis, on August 13, 1751, enacts that all such officials must perform their full duty promptly. Annual reports must be sent to Manila regarding the condition of villages, forts, and presidios, discipline, etc. The original reviews, which are to be made monthly, are also to be sent. All priests are urged to send separate reports concerning the same matters. Thus will the demoralized condition of the

Spanish forts and presidios—where the soldiers are totally undisciplined, and hence unprepared for any sudden call—and the injuries to the royal treasury, be remedied.]

51. [The same governor, on October 25, 1751, orders that cabezas de barangay cannot, while serving in that capacity, be proposed or nominated as gobernadorcillos or other officials of justice, for from this practice has arisen considerable harm to the royal treasury, because the collection of the tribute is in charge of the gobernadorcillos and officers of justice, and one man cannot well perform two distinct duties. Ordinance 27, governing the election of gobernadorcillos and officers of justice, must be understood with these limitations and restrictions. Alcaldes-mayor and priests are ordered and urged to watch carefully over this matter in order that all frauds against the royal treasury may cease.]

52. [The same governor, in view of the many things that demand immediate remedy, notwithstanding the many government ordinances that have been enacted by his predecessors (because new laws always give rise to new conditions and other abuses), orders governors, corregidores, alcaldes-mayor, and other officers of justice immediately to “issue, and cause to be issued, the most suitable measures, so that in the villages of their districts schools be erected, established, and founded, now and henceforth, where the sons of the natives and other inhabitants of their districts may be educated and taught (in primary letters, in the Castilian or Spanish language). They shall see to it and watch so that the people study, learn, and are taught in this language, and not in that of the country or any other. They shall procure its greatest increase, extension, and knowledge, without consenting to, or permitting any person, of any rank or quality, to violate or disobey this resolution, or schools of any other language to be erected or established, under penalty of five hundred pesos, applied at the discretion of this superior government. But as soon as it is ascertained or learned that any ecclesiastical or secular person is attempting or trying to violate this resolution, his purpose shall be prevented, hindered, and disturbed; and a report of the one disquieting and disturbing, if an ecclesiastic, shall be made, in order that he may be ordered to conclude and not continue [his purpose]; and if a layman, he shall be arrested, and a cause shall be formulated briefly and summarily, his property confiscated, and he shall be sent a prisoner, together with his property, so that the most severe and commensurate penalties may be applied.” Ordinance 29, forbidding Spaniards to live in the villages of the natives, is annulled, in order that this may have better effect; but the alcaldes-mayor and other officials must look after and correct their behavior. Such schools are to be established at the cost of the various villages, being paid out of the communal funds established for schools taught in the native language. These latter shall cease in proportion as Spanish schools are established. Future offices conferred on the natives shall be given to those with the best knowledge of Spanish. This ordinance was issued October 19, 1752, as were also ordinances 53–60, which detail the report to be made to the superior government.]

53. [This ordinance commands governors, corregidores, and alcaldes-mayor, now and henceforth, to report to the superior government within a year after taking office, concerning the products and manufactures of their provinces.]

54. [Also the report shall include “the condition of the province; its fortresses, weapons, and defenses; the number of troops in garrison, and their condition; the amount of artillery mounted; the amounts of war supplies, arms, ammunition, and other utensils;” in whose charge they are, and how they are looked after. Separate reports shall be sent from those in charge of the above. Also the best methods for correcting abuses shall be discussed.]

55. [The report shall also give details regarding pay and aid of officers and soldiers, the manner of paying them, their behavior in reviews, how often the latter are held, and by whom.]

56. What bodies of militia exist in the villages and hostile frontiers, and whether they are kept in readiness; with what powers and under what rules they have been created; and whether they must be maintained permanently or only on occasion.

57. [Whether pay is determined on the total number that ought to be enrolled, or whether the proper discounts are made for death and desertion.]

58. [The annual report shall include the census of each village, visita, or mission, the data for which can be secured from the parish priests and missionaries. Also a note must be made of all innovations that occur, and that are worthy of superior notice.]

59. What convents, colleges, and houses of shelter, for education and teaching, exist in each village; their size, construction, and building fund; with the number of religious, and those educated or being educated therein, and in the doctrinas and missions which they own.

60. [The report shall also contain the location of villages and their accommodations, the inclinations of their inhabitants, and whether any intelligent persons are found in them. A map of the province shall accompany the report for the greater intelligence of the superior government, and its use in dictating laws. This resolution (ordinances 53–60) carries with it a penalty of 500 pesos in case of violation, and others at the governor’s discretion. In the future, officials shall not leave their residences until they have received the approval of the government for the strict fulfilment of their duties.]

61. [A royal decree, dated Madrid, April 5, 1765, in view of the controversy that arose [in 1764] between Governor Alfonso Hernandez de Heredia and the Audiencia in regard to the opening of the despatches, orders, and instructions belonging to Joaquin de Aguirre, who died in America before he could take his post as governor of Guatemala, to

which he had been appointed; and in order that a fixed rule might be laid down: orders that whenever any appointee dies in any American village before he can assume a post to which he has been appointed, the corregidor, alcalde-mayor, or other justices, collect his papers, despatches, orders, etc., and with the notary make an inventory of them, but without examining them, and send the same sealed to the Audiencia of the district (or the governor of the district, if there is no Audiencia), with the first word of each document, its date, and signature, so that the proper measures may be taken, and the judges of the property of deceased persons shall have no authority to meddle in this. This decree is to be communicated to all the justices of the royal provinces, in order that they may so act. Account is taken of this decree in the Manila Audiencia, June 22, 1766. The fiscal, after examining the decree, June 28, 1766, advises that it be observed, and instructions be sent to the judges of the property of deceased persons and to alcaldes-mayor. At a meeting of the Audiencia, July 3, 1766, the advice of the fiscal is acted on fully.]

THE SO-CALLED ORDINANCES OF RAON

*Royal ordinances formulated by the superior government and royal assembly of these islands, February 26, 1768, for the proper direction of the governors, corregidores, and alcaldes-mayor of their provinces, relief of the natives, and observance of the laws; ordered to be observed and complied with, by royal act of the same date. Ordered to be printed and distributed by his Excellency Don Rafael María de Aguilar, governor-president and captain-general of the islands by the authoritative decree with which they begin.*⁹

[Under date of Manila, September 11, 1801, Governor Aguilar orders the printing of one hundred copies of the ordinances formulated February 26, 1768, and the distribution thereof to the alcaldes-mayor, corregidores, and governors of the provinces.¹⁰ By royal decree of January 17, 1797, an order was given for the revision, correction, and modification of those ordinances; but it has not been done, and only one copy of them is known to exist, and that is not attested. The ordinances are to be registered in the proper places. Copies are to be sent to the bishops and provincials of the orders, so that they may urge the obedience of the ordinances. Each alcalde-mayor is to pay the cost of the printing of the copy sent him. This decree is to precede the printed ordinances.¹¹]

[Raón revises the ordinances of Governor Pedro Manuel de Arandía,¹² in consequence of royal decrees of December 4 and 23, 1760, ordering ordinances for the direction of the alcaldes-mayor. The ordinances follow, mainly in synopsis.]

1. [Alcaldes-mayor and other justices are to receive their titles in the usual form, after giving bonds and taking the necessary oath to perform their duties lawfully, to administer justice without self-interest, and impartially, not to take excessive fees or

accept bribes, to observe these ordinances and those of the *Recopilación*, and to promote the welfare of the provinces.]

2. [Since the conduct of the superiors furnishes an example to inferiors, *alcaldes-mayor* and other judicial officers must furnish a good example to the natives, by carefully observing the laws and rites of religion, and by showing the due respect and veneration to all ecclesiastics. Those of evil disposition shall be rigorously punished in accordance with their offenses.]

3. [Under no consideration shall the Indians be ill-treated by the judicial officials or anyone else, and the laws of título x, book vi, of the *Recopilación* shall be strictly observed. If the *alcaldes-mayor* are unable to prevent ill-treatment of the Indians, they shall report the same to the superior government, according to law lxxxiii, título xv, book ii, and law iii, título x, book vi; or to the fiscal of the Audiencia, according to law vi, título xviii, book ii.]

4. [The *alcaldes*, *encomenderos*, or any other person, shall not collect gold or money, or accept a loan, or present, from the Indians, or collect more than the just amount from them (law xiv, título xxix, book ii, and laws xlviii, xlix, título v, book vi). Personal services must be paid, as well as the food purchased from them, at the prices of the tariff. If the Indians are forced to buy the products that they sell, they shall buy them at suitable prices.]

5. [The tribute shall be collected only when due, and to the proper amount, both in kind and in money, according to the instructions given out by the royal accountancy. Especial care shall be taken in the examination of the lists and ages of the Indians (law xxiii, título v, book vi), in order that unlawful exemptions from the tribute may not occur, thus wronging the royal treasury. Offenses either against Indians or the royal treasury shall incur a fine of four times the amount, besides a special fine of 200 pesos.]

6. [Exemptions from *polos* are more common than from tribute. With good reason some have been conceded to villages which have churches to build or to some private persons for distinguished services especially in times of war.¹³ All such concessions must be examined by the *alcaldes-mayor*, in order to ascertain whether they are to the prejudice of the rest of the people, and to inform the superior government thereof. No further exemptions must be granted under penalty of a fine four times the amount of the exemption—except to cantors, sacristans, and porters; to governors, lieutenants, and officers of justice, during their term of office; and to *cabezas de barangay*, their wives, and eldest sons, and all others exempted by the superior government since 1764. All others conceded before that date shall be revoked until confirmed by the government. Exemptions in the provinces of Cavite, Tondo, Laguna, Bulacan, Pampanga, and Bataan, shall be conceded directly by the superior government; in all other provinces through the

alcalde-mayor. The Indian claiming exemption from any payment must present himself with his proofs before the alcalde-mayor.]

7. [Collection of tribute in kind is often severe upon the Indians, because of epidemics (law xiv, título v, book vi), locusts, failure of crops, and other misfortunes. At such times it is quite proper that the Indians be not molested for what they do not possess (law xxii, título v, book vi). However, since the Indians often sham, when it is to their advantage to sell their crops, the alcalde-mayor shall see to it that neither the Indians nor the royal treasure suffer unjustly. If it is necessary to collect in money what ought to be collected in kind, an additional charge of five per cent must be made, in order to cover the increased cost to the government of the products elsewhere for the storehouses, and in order that the Indians may not avail themselves unjustly of excuses from paying in kind when that is to their advantage (law lxv, título v, book vi; law xvi, título ix, book viii).]

8. [This is similar to old ordinance 20 (*q.v.*, *ante*, pp. 204, 205). To it is added that the alcaldes shall send to each village an account, authorized by the provincial notary, of the distribution of the purchase or bandala so that this may be presented at the residencia, and compared by the judges with the orders given for that purpose, in order to ascertain whether the two tally, and whether there is any excess.]

9. [Whenever it becomes necessary to purchase more products than the amounts regularly fixed, orders to that effect must be issued by the superior government. Extraordinary purchases thus made shall be paid for at the prices current in that particular province where they are bought, and not at the regular price established for royal purchases.]

10. [By law xliv, título v, book vi of the *Recopilación*, and by ordinance 30 (*q.v.*, *ante*, p. 210) of the old ordinances, it was ordered that the Indians were to pay the tribute in their own villages, while the cost of transportation to the chief cities of the provinces was to be met by the royal treasury. But the above law treats of tributes in general, and hence includes those of private encomiendas, and is contrary to the laws regarding the royal tributes, namely, law x, título ix, book viii, and law lxiii, título v, book vi. These laws declare that tributes shall be paid in the chief cities of the provinces, or if paid elsewhere, cost of transportation shall be paid by the Indians, and not by the royal treasury. This ordinance therefore amends old ordinance 30, which will prevent the frauds committed by the alcaldes under the name of transportation expenses. Besides, this expense, being so moderate, will not be hard on the Indians.]

11. [This ordinance was intended for the simplification of the accounts of the alcaldes-mayor, and for the prevention of frauds to the royal treasury. By entering in the accounts the amount of the tribute in both money and kind (it being paid in both), there was a confusion of accounts, many back accounts, and frauds through the loss of vessels or

pretended fires, etc. The alcaldes-mayor are ordered to compute all the accounts in money, although the tribute shall be collected as heretofore. No certification that the collections have not been made will be received, as such documents are very suspicious. When alcaldes-mayor take office, they shall sign a contract to send in their accounts, and to store in the magazines the amount of the products necessary for the royal service, the value of which shall be reported in money. The rations that are given to the troops or crews of vessels in the various provinces shall be computed also in money, at the price established in each province. This regulation, in accord with the tenor of ordinances 4 and 5 formulated by Arandia, shall be enforced on the appointment of the new alcaldes-mayor to the various provinces.]

12. [The factor of the royal treasury shall make a chart of the products of each province which are needed for the annual provision of the royal magazines, and of the prices in each province, according to the appraisals of the tribute and of the freight that must be paid for transportation, in order to avoid confusion and doubt regarding the same. The freight is charged according to the distances and the risk in transportation. The chart shall also give the amount of the stipend for each province that is paid in kind, computed in money, as well as the prices for the food furnished to the royal vessels, and the rations for the troops. The alcaldes are to take receipts for all that they shall deliver, and place the same in their accounts in money value according to the chart.]

13. [Since the products of the royal bandala or purchase are to be brought to the royal magazines, another chart, expressing the prices paid in such purchases, transportation charges between villages, and sea freights to the royal magazines, shall be made for each province, in order to avoid fraud and confusion.]

14. The pay of their stipends to the curas and ministers of the missions, as well as the [payment for the] other ordinary expenses of each province, shall be made by the alcaldes-mayor, according to the instructions of the royal officials, and the orders of the superior government, and they shall be bound literally by those orders.

15. [The payment of the stipends of the curas and missionaries in money and not in kind is advised, in order to avoid all contentions such as are wont to occur between them and the alcaldes-mayor. The former always collect in the method most convenient to themselves, which is often to the prejudice of the royal treasury. Since there is no longer a reason, as at the beginning, for paying the stipends in both money and kind, law xxvi, título xiii, book i, of the *Recopilación* ought to be observed, according to which the stipend should be paid in money. The practice of paying the stipends in the villages hitherto practiced, and not compelling the curas and missionaries to have recourse to the royal treasury (according to law xix, of the above título and book), should be continued.]

16. [The *alcaldes-mayor* shall send annual reports to the superior government whether the sacrament has been administered in their houses to sick Indians, whether this has been neglected by any curas and missionaries, or whether the latter have caused the sick to go to the churches to receive it. If they have been thus remiss, the stipends shall not be given them, and if paid them by the *alcaldes-mayor* shall not be credited to them (which is in accordance with law xxvi, título xiii, book i, of the *Recopilación*, and the royal decree of June 11, 1704, which is, however, not to be observed in general).]

17. [The Indians are to have the administration, teaching, and instruction necessary, but are not to be molested and vexed unjustly by the curas and missionaries (see *Recopilación*, título xiii, book i). They must not be assessed anything, or such assessment shall be discounted from the stipends of the curas and missionaries.]

18. [In view of the poverty of the royal treasury, and the opulence of the curas and missionaries, who receive excessive stipends—since, although a village may have but one parish priest, he may collect two, three, four, or more stipends, according to the number of tributes—it is ordered that but one stipend be paid in each village, notwithstanding its size (in the same manner as if it had only five hundred tributes): The money saved thereby shall be paid out to the benefit of the public cause.]

19. [Law i, título iv, book vi, of the *Recopilación*, recommends that the communal fund of the native villages be an object of especial attention, and that one real from each whole tribute be paid into it. The collection for this is to be made by the *alcaldes-mayor* under bond, and they must report and send amounts to the royal treasury, distinctly stating the amount belonging to each village. The royal officials are to enter this account under separate headings, as provided by laws ix and xi of the above título; and this fund must be reserved for the purposes expressly stated by the superior government.]

20. [When the amount of the communal funds has reached a sufficient figure, one of the auditors especially appointed by the superior government shall with the fiscal and royal officials purchase annuities or invest the money in sea or land enterprises. The gain therefrom shall be applied to the maintenance of seminaries for Indians of both sexes, “which ought to be established in each province for the education and secular and Christian instruction of their natives, as the only means by which they can be instructed perfectly in the mysteries of our holy faith, and so that they may be good Christians and better vassals.” This is according to laws xvii-xix, título iii, book i, of the *Recopilación*.]

21. [Neither the *alcaldes-mayor* nor any other person may, without special government permission, spend anything from the communal funds, outside of the common obligations of each village—namely, expenses for cantors, sacristans, and the porter of the churches; the schoolmaster; the election fees of the *gobernadorcillos*, and their salaries; and the three per cent paid for the collections of the communal funds.]

22. [Each village shall have a chart showing the condition of its communal funds. This shall show receipts and the fixed expenses as above outlined.]

23. [Each alcalde shall leave his successor a record of said chart, taking a receipt for the same in order to present it to the royal accountancy. This shall be compared later by the royal officials with the accounts as handed in by his successor.]

24. [Villages of more than 500 tributes shall have eight cantors, two sacristans, and one porter, each of whom shall be paid from the communal funds the customary amount of rice annually, namely, 4 fanégas of palay of 48 gantas. Villages of 400 tributes shall have six cantors; 300, five; 200, four; and no village shall have less than the last figure. All churches having a cura or missionary shall have two sacristans and one porter. There has been much abuse in this matter, and the alcaldes-mayor are cautioned to have especial care in enforcing this ordinance, under penalty of a fine of 200 pesos.]

25. [It is important that each village have good teachers to instruct the Indians in the Spanish language; but the monthly salary granted to teachers by the communal fund, namely, one peso and one cavan of rice, is very little. Consequently, the alcaldes, with the aid of the curas and missionaries, are ordered to regulate the salaries in proportion to the tributes, reporting the same to the superior government and the royal accountancy, so that better teachers may be secured and law xviii, título i, book vi, of the *Recopilación*, may be better realized.]

26. [The law enacted by Governor Arandía, arranging for the expenses of media-anata and title of certain poor and old notables to be taken from the communal funds of the villages, in order that such men might serve as gobernadorcillos and the villages not be deprived of their services, is to be observed, the only condition being that the poverty must be very great, and such men very useful to the community.]

27. [No Indian *tanores* shall be set aside for the service of the curas, missionaries, alcaldes-mayor, or any other person, except those mentioned in ordinance 24. Those serving as cooks and servants shall not be exempt from tribute, polos, or personal services; nor shall they serve against their will. They shall receive the pay fixed by law, and accustomed to be paid to private individuals, according to law lxxxi, título xiv, book i, of the *Recopilación*.]

28. [If the curas and missionaries need rowers for the administration of the sacraments, and the alcaldes-mayor, for matters of the royal service, they shall not pay the Indians for such service, and shall allot said rowers by polos. Otherwise, each rower shall be paid one-half real per day and his food between Manila and Mariveles; beyond, the pay shall be regulated according to the tariffs of the various provinces.]

29. [Eight *baguntaos* shall be chosen in each large village each week to accompany the most holy sacrament, when it is taken to the houses of the sick, and to aid in the mass, and other matters of the divine service. Villages of five hundred tributes shall have six *baguntaos*, and smaller ones, four. They shall receive no pay, but shall not be employed in other matters, unless they are paid therefor, under penalty of deprivation of office to the gobernadorcillo or judicial official who permits it; and the alcalde-mayor who is aware of this and does not remedy it, shall pay the amount due such Indians, and a fine four times as great.]

30. [Girls and women must not be employed in the missions in pounding rice among the men; neither shall they be employed to sweep the cemeteries of the churches, or the houses of the curas and missionaries; for this results often in great sin, and is contrary to the laws of the kingdom, especially law xi, título xiii, book i, of the *Recopilación*. Alcaldes-mayor shall not permit this under a charge of the same in their residencia, and a fine of 500 pesos, in accordance with the ordinance of November 23, 1757, which was enacted because of the many complaints. Those suitable for such duties are the old and crippled who have been exempted from tribute, and the schoolboys (of whom the curas may make use freely so long as they are schoolboys, but no longer.) Alcaldes-mayor shall not employ women; and gobernadorcillos shall not make use of the services of schoolboys to the detriment of their instruction.]

31. [The Indians shall not be required to supply the curas, missionaries, or alcaldes with fish. If the latter permit this, they shall have to pay for the fish at a just price, and a sum four times as great as a fine, and shall be deprived of office perpetually, as transgressors of law xii, título xiii, book i, and law xxvi, título ii, book v, of the *Recopilación*.]

32. [In order that curas and missionaries may not be compelled to go without cooks and necessary servants because the Indians are unwilling to serve them, the gobernadorcillos of the villages shall furnish men for such service (not to exceed four in the large villages). From the stipend of the curas and missionaries, they shall be paid one real per week, and be given their food. In villages too small to warrant this expense on the part of the ecclesiastics, the village shall maintain the servants, and they shall not become an expense on the royal treasury.]

33. [Similar to ordinance 22 (*q.v.*, *ante*, p. 206). This ordinance adds that deprivation of office shall be the penalty to the secular person violating its orders, while the ecclesiastical person who violates it shall be proceeded against according to law.]

34. [Similar to ordinance 9 (*q.v.*, *ante*, pp. 197, 198). The prices in Tondo and the coast of Manila are as follows: "one hen, one and one-half reals; one dumalaga, three cuartillos; and one chick, four granos." This ordinance is in accordance with law i, título xvii, book iv.]

35. [This ordinance cites and reiterates ordinance 42 of the old regulations (*q.v., ante*, p. 219), and is in accordance with law xliii, título vii, book i of the *Recopilación*.]

36. [Alcaldes-mayor and census-takers shall not exact the two reals from the natives which they are accustomed to take as a fee for enumerating them, under penalty of a fine of 500 pesos, and a sum four times as great as that they shall be proved to have taken. This ordinance shall be a special charge in the residencia.]

37. [Alcaldes-mayor shall be governed by law xxix, título viii, book v, of the *Recopilación* in regard to fees for suits and other matters. The government secretary shall send a list of all fees that may be received to all the provinces, which shall be translated into the native languages and published by proclamation, and posted in the court, so that the Indians may know their rights and make the proper complaint at the time of the residencia. The employees of the royal treasury are liable for the fees which they also exact unlawfully, and which they are accustomed to take from the cabezas de barangay and the other natives.]

38. [Similar to ordinance 8, of the old ordinances (*q.v., ante*, pp. 196, 197).]

39. [Similar to ordinance 24, of the old ordinances (*q.v., ante*, pp. 206, 207). This ordinance in its several parts is in accordance with laws ii and xxi, título vi, book vii, of the *Recopilación*.]

40. [This ordinance forbids alcaldes, justices, gobernadorcillos, and officials of the villages to impose any tax on the Indians. It is similar to ordinance 5 of the old ordinances (*q.v., ante*, p. 195), and is in accordance with law vi, título xv, book iv of the *Recopilación*.]

41. [No tax shall be imposed on the Indians such as has been the custom, for taking clay from any common place with which to make vessels, or for the manufacture of salt, or an annual payment for each beast or tree that they own, or other unjust impositions. The alcaldes-mayor shall report all such exactions.]

42. [Similar to ordinance 11 of the old ordinances (*q.v., ante*, p. 198), which is in accordance with law xxii, título xiv, book i, law xi, título xvi, of the same book, and law xxxvi, título iii, book iii, of the *Recopilación*.]

43. [Similar to ordinance 14 of the old ordinances (*q.v., ante*, p. 199).]

44. [Because of the great losses resulting from loans to the Indians, all loans in excess of five pesos are prohibited. The Indians, through their great carelessness, and indolence, are prone to seek loans, esteeming the present moment only, and being unmindful of the future. In return for the loan, it is customary for the Indian to give his land in pledge, and

the creditor enjoys the usufruct thereof until payment of the sum borrowed is made. This is usury and a virtual signing away of the land, for the payment is seldom made, and hence, the land is lost permanently. Such contracts are declared null and void, and those making them shall lose the amount of the loan, and be fined a sum four times as great. It is forbidden to the Indians to sell their land by law xxvii, título i, book vi of the *Recopilación*.]

45. [It is against law to have Indian slaves, and any so-called by usage shall be set at liberty. The *alcaldes-mayor* shall send transgressors with the records of their cases to the royal Audiencia.]

46. [This ordinance cites ordinance 41 of the old ordinances (*q.v., ante*, pp. 217, 218). Since the method there outlined of collecting the three reals for the religious festivities, works prejudice, because the Indians generally believe that the holy sacrament of penitence is to be bought—as, under the system of collection by the priests, confession is often denied until payment is made—it is decreed that collection in the future shall be made by the *alcaldes-mayor*. The proceeds shall be deposited in a chest with three keys, one to be in possession of the father, another in that of the *alcalde-mayor*, and the third in that of the *gobernadorcillo*. It is quite proper that this tax be made, and that the royal treasury be exempt from payment of these church festivals, expenses which are increasing daily. This will result in good to the Indians morally and religiously, and to the royal treasury.]

47. [This ordinance merely reiterates the orders of old ordinance 31 (*q.v., ante*, pp. 210, 211).]

48. [Inquiry shall be made as to whether any *Bilitaos* and *Casonos* are exempt from the tribute, personal services, and other contributions of the Indians; and, if so, they shall be made to render them, and the *alcaldes-mayor* allowing such shall be punished. To make that investigation, and the investigation of idolatry, *maganitos* [*i.e.*, idolatrous feasts], and other sins, several Indians of good life shall be secretly appointed by the *alcaldes-mayor*. With the approval of the curas and missionaries, Indians guilty of sins shall be severely punished.]

49. [Ordinance 43 of the old ordinances (*q.v., ante*, p. 219), is reënforced. In addition, it is ordered that *alcaldes-mayor* shall not allow public houses for gambling in their jurisdiction; for the unjust tolerance of games of chance, which are forbidden by the laws, works injury to the Indians, spiritually and materially. This prohibition shall be published by proclamation, with its penalty, namely, fifty lashes to the Indian *timaua* for the first violation, and a month's imprisonment to the chief, and loss of the sum at play; for the second and third offense, the penalty shall be increased. This shall be made a charge in the *residencia* of the *alcaldes-mayor* and ministers of justice. The cooperation

of the father ministers in communicating notices to the alcaldes-mayor of those who engage in gaming is asked.]

50. [The terms of old ordinance 40 (*q.v.*, *ante*, pp. 216, 217), are reiterated briefly, and, if they are not observed in the future by alcaldes-mayor and other ministers of justice (for they have not been observed in the past), each violation will carry with it a fine of 100 pesos, while the violation shall be made a charge in the residencia, and inability to secure other posts in the provinces.]

51. [The orders of old ordinance 44 (*q.v.*, *ante*, pp. 219, 220) are briefly restated, and the penalties extended specifically to corregidores and justices who fail in the observation of the royal decrees of that ordinance. Proclamations are to be made in the jurisdictions where brandy is manufactured, and after three days, transgressors are to be proceeded against and the penalties for violation of the ordinance to be enforced. Manufacturers, sellers, and owners of the instruments used in the manufacture of brandy shall receive two hundred lashes and be thrust into the galleys for five years; for the second offense, they shall serve ten years; and for the third, another ten, and when that time is up, they shall not leave until they receive the express consent of the superior government. Their goods shall also be confiscated.¹⁴]

52. [Under no consideration shall more than the two gantas of unhulled rice be collected in Zamboanga,¹⁵ under penalty of paying a fine four times as large.]

53. [The territory of native reductions and villages is declared communal, and at the time of the erection of any village, lands must be apportioned to the Indians, according to law viii, título iii, book vi of the *Recopilación*. No land-tax or rent is to be paid for such land, it being the royal will (law xlv, título xii, book iv) that the Indians have lands allotted to them for planting and working, as ordered in laws xxi and xxiii, título i, book vi, and law xiv, título xii, book iv.¹⁶ These lands may not be sold without permission, some advantage gained thereby, and the intervention of the royal fiscal, as prescribed in law xxvii, título i, book vi, law xxxvi, título xviii, book ii, and law xvi, título xii, book iv. If claim is made to the lands by any Spaniard or mestizo, or any secular or ecclesiastical community, they shall prove their claims in a short limit of time before the alcaldes-mayor, who shall forward the records to the royal Audiencia for its decision. If their titles are not presented within that limit, the Audiencia shall also judge the legitimacy of the claim. It has always been the royal purpose that lands shall not be sold or apportioned to the injury of the Indians and their reductions; and it is prescribed by laws vii, ix, xvii, and xviii, título xii, book iv, that lands given to the injury of the Indians shall be restored to their owners. Lands belonging to Indians who die without heirs revert by law xxx, título i, book vi, to the king; and it is prohibited by law x, título xii, book iv, that lands allotted to explorers or settlers be sold to ecclesiastical communities or persons, under penalty of being confiscated and allotted to others. This ordinance is to be

observed by alcaldes and ministers of justice under severe penalties, and it is to be published by proclamation in the villages, for it is of great importance to the state that all the Indians have the necessary lands. Individual mention is to be made of those villages that do not have such lands and the government will provide them so far as possible, giving the lands to those who possess them with just title. In addition to the lands which the Indians ought to have in their private capacity, each village ought to possess communal lands which are to be cultivated for the common benefit, and the products of which are to be incorporated in the communal fund—from which roads can be repaired, highways and bridges built, the royal buildings repaired, and other necessary works carried on without any burden to the Indians.]

54. [Indians employed on any of the public works shall labor only from the rising to the setting sun, with one and one-half or two hours for rest at midday. The rest of the time they must be made to work diligently. If any pressing necessity requires, however, such as the making of rigging, or other things for the royal service, alcaldes-mayor are empowered to lengthen the hours of labor, making the work as easy as possible for the Indians, and increasing the pay proportionally with the hours. Likewise, if the hours are diminished, the pay shall be proportionally diminished.]

55. [Much trouble is caused by the actions of various officials in regard to the allotment of Indians for the cutting of timber and other royal services, because they accept a money payment of five pesos, three reals from many who are thereby excused from taking part therein—a sum which is kept by the said officials. Besides, they collect from the royal treasury the amount of the rations that the total number of Indians would use. In order to stop this practice, it is commanded that all the Indians allotted to any royal service, or their substitutes, take part in it. This is the only way in which to prevent the frauds practiced by the cabezas de barangay and the foremen of the cutting gangs. Alcaldes, justices, and officials of the villages are to obey this ordinance strictly, under penalty of deprivation of office, a fine four times as great as the amount of the loss occasioned by them, and a further fine of 500 pesos, imposed on the alcaldes. The latter shall get a statement from the father chaplain and the foreman of the cutting gang, of the number of Indians of his province who take part in the cutting, and shall report the same to the superior government]

56. [The Indians are prohibited from wearing gold and silver ornaments on their clothes, unless the gold and silver is wrought by a goldsmith or by a silversmith, under the penalty that the Indian timaua wearing such shall be punished with fifty stripes, and confiscation of the clothes so ornamented; while the chief shall be imprisoned for one month, and his clothes so adorned shall be confiscated. The second offense shall be double this, besides some money fine.]

57. [Similar to old ordinance 10 (*q.v.*, *ante*, p. 198). Stress is laid on the rivers coming to Manila from the provinces of Laguna, Pampanga, and Bulacan.]

58. [Similar to old ordinance 33 (*q.v.*, *ante*, p. 211).]

59. [Similar to old ordinance 23 (*q.v.*, *ante*, p. 206).]

60. [Similar to old ordinance 25 (*q.v.*, *ante*, p. 207).]

61. [In part the same as old ordinance 26 (*q.v.*, *ante*, pp. 207, 208). This ordinance provides in addition as follows. Alcaldes-mayor, in whose charge, according to the new rules, the distribution of the bulls of the Crusade have been placed, are to appoint as collectors and treasurers (prescribed by ordinance 11 of the Crusade instructions) either the gobernadorcillo or one of the cabezas de barangay of the respective villages, and not any Indian who pays tribute; for since the former are the most prominent men in the village and the responsibility of the tributes, as collectors and treasurers, devolves on them, this will result in greater profit to the royal treasury. Each appointment made by the alcaldes in violation of this order shall incur a penalty of 100 pesos.]

62. [Similar to old ordinance 7 (*q.v.*, *ante*, p. 196). This ordinance adds: “And if the alcaldes do not comply with all the contents of this section, and of laws xi, xiii, xv-xvii, xix, xxii-xxiv, xxvi, xxviii, xxix, and xlii, título ii, book v, of the *Recopilación de Indias*, a charge as infractors of this section will be made against them in their residencia.”]

63. [This ordinance contains the prescriptions of old ordinances 53–60 (*q.v.*, *ante*, pp. 224–226).]

64. [Alcaldes-mayor, within three months after having suffered their residencia, shall go to Manila, and their successors shall compel them to this step, in order that they may present their accounts of the royal revenues. If they stay in the provinces thirty days after the conclusion of their residencia, they and their successors shall be fined 1,000 pesos.]

65. [This ordinance cites old ordinance 36 in full (*q.v.*, *ante*, p. 213), and prescribes its observance.]

66. [Since but little profit has been obtained from the raids allowed to be made according to old ordinance 35 (*q.v.*, *ante*, pp. 212, 213), as they are made with Indians who have friendship and trade with those of the mountains, and who, consequently, always give warning of such raids to the latter, while expenses roll up rapidly to no advantage, it is ordered that no raids be made in the future unless by order of the superior government. In case of necessity, the alcalde-mayor shall report to the superior government the necessity for the raid, the number of men necessary, the time it will take, and the expense, his report to be accompanied by a certified statement of the cura or missionary.

In case time will not permit the awaiting of special orders from the superior government, the alcalde-mayor may, with the consent of the cura or missionary, make the raid; after which he shall send full reports of the same to Manila, with certifications of the father minister, in order that the expenses may be allowed. Alcaldes-mayor shall mutually aid one another on all raids.]

67. [Alcaldes-mayor or their agents shall not buy houses, lands, or ranches in the territory of their jurisdictions during the time of their office, nor allow their notaries or alguacils to do so, under penalty of 500 pesos' fine. They shall not build nor allow to be built any boat for transportation without the express permission of the superior government; and the work of Indians thereon shall be paid at the rate of the tariff. Such construction shall be made in places having the spiritual and temporal administration, under the above penalty. The alcalde-mayor obtaining government permission, shall inform the gobernadorcillos of the villages of his province of all the conditions, so that the Indians may lodge complaint of all injuries offered them during the construction, and obtain justice therefor. The same rule holds good for all work done for the alcalde-mayor, and payment shall be with the intervention of the father minister. Likewise work done for the latter shall be paid by him in the same manner with the intervention of the alcalde-mayor, and in absence of the latter, with that of the gobernadorcillo of the village, who shall report fully to the alcalde-mayor, so that he may remedy all abuses. This is in accord with law xi, título xiii, book i, of the *Recopilación*.]

68. [Alcaldes-mayor, corregidores, and other officials are allowed (by a royal decree of July 17, 1751) to trade in their provinces by reason of a payment made to the government, and mistakenly called an excise tax. They shall not, on account of that privilege, injure the trade of the Spaniards and Indians of their jurisdiction, but shall allow them to trade freely, without exacting from them any payment under pretense that it is an excise tax. Nor shall they be allowed to buy at rates lower than the others. Violation of this ordinance, which is to be proclaimed annually in the villages, and to be a charge in the residencia, incurs the penalties of deprivation of office, a fine of 500 pesos, and other penalties that may be imposed.]

69. [Similar to old ordinance 18 (*q.v.*, *ante*, p. 203). The penalties assigned are restoration of what has been weighed or measured by unjust weights and measures, and a fine of 500 pesos to the alcalde-mayor allowing the use of such weights and measures, and the payment of the amount lost, with four times as much to the treasury.]

70. [Interprovincial trade of the various products shall not be prohibited, as such prohibition is in violation of law viii, título xviii, book iv and law xxv, título i, book vi, in accordance with which laws trade is to be encouraged. The Indians may cut timber in accordance with law xiv, título xvii, book iv. The desire for gain, however, shall not be allowed to cause the Indians to send out of any province the products necessary for its

conservation. This may be prohibited with the consent of the father minister, from whom the alcalde-mayor shall ask a certification for his own protection. Without that certification, he shall not make such prohibition, under penalty of the penalties of the preceding ordinance. The natives shall pay no fees for the privilege of interprovincial trade; and, if any alcalde-mayor violates this, he shall incur a fine of 100 pesos, besides the responsibility of making good all the loss occasioned by his action. This shall also be a charge in the residencia.]

71. [This ordinance relates to the encouragement of the increase of the produce of each province, for which all alcaldes-mayor and other officials must work, under penalty of punishment for neglect and disobedience. The products best suited for each province are to be especially encouraged, whether of useful trees, wheat, and other grains, vegetables, cotton, pepper, etc., or domestic cattle. Each Indian shall have at least twelve hens and one cock, and one sow for breeding purposes. Factories for the making of textiles and rigging shall be encouraged and increased. Alcaldes-mayor shall strive especially to wipe out the vice of laziness—which is the chief vice among the Indians, and the origin of all their other vices—by mild means, but if necessary by harsh ones, as this is so important for the general good, in accordance with law xxi, título i, book vi. Those who do not, within two years, work in their fields and gardens and cultivate their lands shall lose them. Especial care shall be taken of this during the visit, and annual reports shall be made by the alcaldes-mayor, who shall be careful to state increase.]

72. [Similar to old ordinance 32 (*q.v.*, *ante*, p. 211).]

73. [Since the laziness of the Indians is so prejudicial and the origin of many vices, especially incontinence and theft; and since it is against law xxi, título i, book vi of the *Recopilación*, to permit laziness among them: it is ordered that all Indians engage in some work, either the cultivation of land or the rearing of cattle, as outlined in ordinance 71. Gobernadorcillos shall be ordered to watch carefully to see that this ordinance is obeyed, and alcaldes-mayor shall verify their statements at the time of the visit. Lazy Indians shall be forced to labor at the public and royal works of the province for so long a time as the alcalde-mayor shall determine. Lands of the villages allowed to lie uncultivated for one year shall be taken from their owners, and given to other Indians who are more industrious, in accordance with law xi, título xii, book iv.]

74. [Alcaldes-mayor shall prefer for all honorable posts, such as that of gobernadorcillo, those Indians who are most industrious in the cultivation of their lands, the planting of trees, and manufactures, reporting the same to the superior government.]

75. [In view of the many infractions of old ordinance 37 (*q.v.*, *ante*, pp. 213–215), that ordinance is repeated with strict orders of observance, under penalty of loss of office, a fine of 500 pesos, and charge in the residencia.]

76. [This ordinance cites old ordinance 16 (*q.v.*, *ante*, pp. 199–203), but adds that the new order of the royal decree of April 17, 1766 must be observed. This decree orders that all the Catholic Sangleys who committed excesses during the time when the English occupied Manila shall be expelled from the Philippines, only true Christians being allowed to remain, according to law viii, título xviii, book vi of the *Recopilación*. These Sangleys are to be assigned to the respective territories and villages which are deemed best. They shall not be allowed to carry weapons of any sort, and shall be employed only in agriculture and the trades. They shall not be allowed to leave their respective villages except by permission of the justice, governor, or alcalde-mayor to whom they are subject, under penalty of perpetual exile from his Majesty's domains.]

77. [Old ordinances 20 and 21 (*q.v.*, *ante*, pp. 204–206), which are in accordance with law xxii, título iii, book vi, of the *Recopilación* are repealed by ordinance 52 of the present ordinances; and Spaniards are permitted to live among the Indians (as seems in harmony with law xviii, título xv, book i), the alcaldes being ordered to see that they live as good Christians. Since experience demonstrates that the residence of Spaniards in the provinces is advantageous for the instruction of the Indians in the Spanish language, for the cultivation of their products, and for the encouragement of their trade (in accordance with law xxiv, título i, book vi), the alcaldes-mayor are ordered to aid the Spaniards resident in their provinces as much as possible, and to forbid residence therein only of those who are vicious and mischievous.]

78. [Similar to old ordinance 28 (*q.v.*, *ante*, p. 209).]

79. [This ordinance prescribes the method of holding the elections for gobernadorcillos (see old ordinance 27, *ante*, pp. 208, 209). Elections shall be held at the beginning of each year, in the royal buildings, and nowhere else. If held elsewhere, they shall be considered null and void, according to Arandía's ordinance no. 11; and the alcalde or justice violating this order shall be fined, and the notary making the records shall lose his office. The voters in the elections shall be the twelve senior cabezas de barangay. If any of these are absent, by reason of sickness or other cause, the number shall be completed from the other cabezas de barangay, observing strict seniority always. If there are not enough cabezas de barangay, the number of twelve voters shall be completed from the senior notables of the village. With these the retiring gobernadorcillo shall vote, and they shall nominate three trustworthy persons for the post of gobernadorcillo, reporting the number of votes received by each. These nominees must be able to read, write, and speak Spanish. The ballot shall be secret, and be attested by the notary. The alcalde-mayor or the justice shall preside at the election, and the father minister may be present "if he please, in order to represent what he considers advisable, and for no other end." The results of the election shall be sent, stamped and sealed, to the secretary of the superior government, and the appointment of gobernadorcillo shall be made from Manila, and the proper title despatched, while the other officials necessary shall be

appointed as heretofore. This applies to the provinces of Tondo, Laguna, Cavite, Balayan, Mariveles, Bataan, Pampanga, and Bulacan. In other provinces distant from Manila, elections shall be held in the same manner, and appointments made by the alcaldes-mayor or justices, who shall be furnished with blank titles, which they shall fill out. No man shall assume office without the proper credentials. Names of all appointees shall be sent to the superior government and entered in the proper books, as well as the fees of the credentials and stamped paper. The fees of media-anata shall be collected from all gobernadorcillos and other officials, the amount of such fees being entered in the royal treasury annually. The royal officials, on their part, shall see that all fees are paid, and shall ascertain from the alcaldes and justices the number of gobernadorcillos in the various jurisdictions, so that they may check up the records properly.]

80. [Retiring gobernadorcillos shall hold office until all fees have been met by the newly-elected gobernadorcillos.]

81. [Cabezas de barangay may be elected to the post of gobernadorcillo without ceasing to act in the former capacity, according to Arandía's ordinance, no. 21.]

82. [Those becoming cabezas de barangay by inheritance shall obtain their credentials from the superior government, asking for the same with the accompanying report of the alcaldes, or the persons by whom they shall have been proposed. The district of each cabeza de barangay shall contain not less than forty-five or fifty tributes.]

83. [Since the houses of the Indians are so scattered, and there is so great lack of zeal in reducing them "under the bells," as is ordered by the laws and by many royal decrees, many spiritual and temporal wrongs are caused the Indians. For they do not attend church, and it is impossible often to attend the sick and give them the sacraments, so that many of them die without the consolation of religion. It is impossible to learn the sins committed, or the exact number of those who should pay tribute. Under penalty of being punished as enemies to the state, alcaldes-mayor are ordered to reduce the natives into villages. They shall not allow any house to be more than one-half league from a church; and, on the other hand, shall not allow them to be built so close together that there is danger of fire. Reports of what has been done in this shall be sent to the superior government annually, under penalty of a fine of 100 pesos. The ecclesiastical superiors are requested (in accordance with laws ii and iii, título iii, book vi of the *Recopilación*), to order their subjects to lend all the aid possible in the reduction. Any opposition offered shall be considered just cause for the ends proposed in law xiii, título xv, book i.]

84. [When the reduction of the villages is completed, the gobernadorcillo of each village shall take charge of the collection of the tribute, as compensation for which he shall be given one-half of one per cent. He shall report promptly to the alcaldes, under pain of loss of office, to which the deputies shall succeed. This method will relieve the cabezas

de barangay from the collection, and the latter shall be included in the lists and pay tribute also, which will amount to a considerable increase to the royal treasury.]

85. [To obviate the harm resulting from the father ministers meddling in concerns of temporal government (contrary to law lxvi, título xiv, book i of the *Recopilación*), alcaldes-mayor are ordered not to allow any usurpation of their office. All measures advocated by the father ministers in behalf of the Indians, spiritually and temporally, shall be presented to the alcaldes-mayor and other justices in a respectful manner, and shall receive respectful consideration, so that the Indians may receive a good example thereby, and pay the proper respect to each one. If the alcaldes are unable to check attempted usurpation, they shall report the same to the superior government, which will take the necessary measures. The father ministers shall, on their side, present grievances against the alcaldes and other justices who do not attend sufficiently to their recommendations for the spiritual and temporal welfare of the Indians, to their superiors, if they do not wish to do so directly to the government, who shall take the matter up with the proper authorities. Observance of this ordinance is urged on the secular and regular superiors.]

86. [Alcaldes-mayor must treat the gobernadorcillos with all the respect due their office, such as never allowing them to stand, in their houses or other places. Also gobernadorcillos shall be punished if they do not fulfil their duties with honor, and properly.]

87. [Alcaldes are also ordered to see that the gobernadorcillos are treated respectfully by the father ministers, “and shall not allow the latter to lash, punish, or maltreat them, nor leave them standing, or cause them to leave the baton at the street-door when they go to see the father curas or missionaries, as this is contrary to the honor and respect of justice. Neither shall they allow them to serve the plates in the masses of said fathers, as ministers of justice ought not to be employed in that service, or others like it, which are suitable only for servants.” All ecclesiastical superiors are ordered to charge all their subjects not to violate these regulations, and all the gobernadorcillos and officers of justice shall be notified that they are not to remain standing before the father ministers; that they are to go to visit them without leaving the baton of justice behind; not to serve at the masses; and not to leave the territory of their respective villages, even under pretext of accompanying the father minister, the alcalde, or any other person—under penalty of loss of their post, disqualification from holding any office of justice in the future, and two months’ imprisonment.]

88. [On their part the alcaldes, while preserving the necessary respect toward justice, must maintain due respect for the priestly office, and seek always to promote good relations with the father ministers.]

89. [Arandía's ordinance, no. 10, ordering alcaldes and justices to treat with the father ministers only in writing and to visit them only when accompanied, is repealed, as it is contrary to law lxv, título xiv, book i, of the *Recopilación*. The ecclesiastical superiors shall do their utmost to restrain their subjects within the bounds of moderation. Frequent visits between the alcaldes, gobernadorcillos, and other justices, and the father ministers are recommended. In this intercourse, however, the gobernadorcillos shall be ruled in temporal affairs by the orders and commands of the alcaldes-mayor, but are to maintain due respect to the father ministers—who shall not meddle with matters of secular government, but shall take the measures advisable for the spiritual welfare of the Indians.]

90. [Ecclesiastical superiors shall be requested to order their subjects to preach frequently to the Indians concerning their obligation of paying the tribute, and the indulgences that they obtain by taking the bull of the holy Crusade, in view of the many troubles arising from the lack of instruction in these two points “so important for their salvation, so in accordance with the intention of our Catholic monarch, and suitable to the zeal of good ministers of instruction, and of faithful vassals of his Majesty.”]

91. The sumptuousness of the buildings, the churches, and houses of the missionaries, mistakenly called convents, is one of the burdens which the Indians unjustly suffer, and which, according to a very laudable opinion, contributes greatly to their desolation. Moreover, since it is apparent by the experience of the past war, what harm said buildings have occasioned, as they serve as shelter and defense to enemies, it is declared that buildings of stone and tile shall not be permitted in the provinces where there is danger of enemies, but only those of boards and nipa;¹⁷ and where it is considered advisable by the superior government to permit them, a fixed rule shall be given, ordering that the houses of the missionary ministers be of moderate style, and in harmony with the plan which must be sent to each alcalde-mayor—with orders to demolish those which shall be built new without the necessary licenses, in case that they exceed the limits of the said plan. [This is in harmony with the royal decree, dated Madrid, June 18, 1767. The terms of ordinance 67 shall be observed until other regulations are provided.]

92. [While there is great excess in the sumptuousness of the houses of the missionaries, there is a corresponding degree of ruin and dilapidation in the royal buildings throughout the islands. Many are in so poor condition that they are unfit for habitation, and travelers and alcaldes-mayor are caused great hardship in their journeys through the villages. Often it is impossible for the latter to visit their jurisdiction for the lack of royal buildings; and, because of trouble with the missionaries, they cannot live in the convents. Still more disagreeable is it for ministers of the royal Audiencia to exercise their commissions in the provinces, for it is not in harmony with their dignity or good for their health for them to lodge in places unsuitable for habitation; while law lxxxix, título

xvi, book ii, forbids them to take lodging in the convents. In consequence of this it is ordered that all villages, especially the capitals of the provinces, erect suitable royal buildings, in accordance with plans that will be issued by the superior government. These shall be kept in repair, and in them the *gobernadorcillos* shall hold their courts and shall have their prisons.]

93. [According to old ordinance 52 (*q.v.*, *ante*, pp. 223, 224), and to Arandia's ordinance, no. 17, it is strictly ordered that the *alcaldes-mayor* request the father ministers to exert themselves, so far as it concerns them, to establish schoolmasters in all villages, who shall teach the Indians to read and write in Spanish, and the Christian doctrine and other prayers, in accordance with the royal decree of June 5, 1574. The pay of the masters shall be one peso and one cavan of rice per month, but may be increased at the option of the *alcaldes-mayor*; and it shall be paid from the communal treasuries of the villages (see no. 25 of the present ordinances). If the masters do not teach and instruct the Indians in Spanish, they shall make restitution of all the pay that they have received, be incapacitated from all employment in the islands, and punished at the will of the *alcaldes-mayor*. This matter shall constitute a factor in the visits of the *alcaldes-mayor*, and if any persons oppose the teaching of Spanish, they shall be proceeded against according to law. Neglect on the part of the *alcaldes* shall incur punishment in proportion to its degree. As yet but little zeal has been shown in this matter, and there has been a total lack of observance of law xviii, título i, book vi, of the *Recopilación*, which is in harmony with many royal decrees.]

94. [The *visitas* or chapels in villages, besides being unnecessary for divine worship, which is to be held in the churches where the Indians can attend, are a burden on the Indians, by reason of the expenses incurred in their building and repairs, and the increase of feast days (although there should only be the three permitted by the government), fees, and alms, which must be paid to the *curas* and missionaries. Consequently, *alcaldes-mayor* are ordered, at the time of their visit, to report to the superior government all the *visitas* in their jurisdictions where the sacrifice of the mass is celebrated; with what authority and license they are established; the distance from each *visita* to the church of the village; the advantages derived from them; the expenses, fees, and alms contributed by the natives; and all other matters connected with them. No *visita* shall be established without the sanction of the superior government.]

All the above sections contained in this royal ordinance shall be observed and complied with by the governors, *alcaldes-mayor*, and *corregidores* of the provinces of these islands, and by each of the persons mentioned therein—with warning that, if they do not execute them, they shall be punished according to the penalties imposed in them. Given in the city of Manila, and the royal hall of the assembly thereof, February 26, 1768.

DON JOSE RAON
FRANCISCO ENRIQUEZ DE VILLA CORTA
MANUEL GALVAN Y VENTURA

Registered,
JOSÉ RAON (seal)

By the grand chancellor,
JOSÉ RAON

[Then follows the short statement of the government secretary, Ramon de Orendain, who had the ordinances written down at the order of the Audiencia. This is succeeded by an act of the Audiencia, dated February 26, 1768, enjoining strict observance of these ordinances which were ordered to be formulated by royal decrees of December 4 and 23, 1760. Those decrees ordered the revision of the ordinances of Governor Arandía. In order that all persons may not plead ignorance of them, they were ordered to be registered in both accountancies, and in the government secretary's office, and copies were to be sent to each alcalde-mayor, corregidor, and justice.¹⁸ These copies were to be translated into the native languages of the different jurisdictions, and the archives of each village was to have a copy. Other copies were ordered to be sent to the bishops and the father provincials of the several orders, so that they might order obedience on the part of their subjects, who are not to meddle in governmental matters. Last is the attestation of Orendain as to the accuracy of the copy, which bears date Manila, June 14, 1768, and which was sent to the castellan of the port of Cavite.]

¹ Del-Pan considers the ordinances of Corcuera and Cruzat much superior to those of Raón. (See his introduction, p. 20.) These ordinances (only 1–38) are synopsized very briefly by Montero y Vidal, *Historia general*, i, pp. 380–385.

As here presented, the ordinances are translated partly in full and partly in synopsis, the latter indicated by brackets. [↑]

² The leaders indicate that the text is illegible or lacking, because of the poor condition of the MS. (See Del-Pan, p. 117, note). [↑]

³ Crawford calls attention (*Dict. Indian Islands*, p. 345) to the resemblance between the Philippine barangay and “our Anglo-Saxon tithings and hundreds.”

On the civic administration of Philippine communities, see appendix in Jagor's *Reisen*, pp. 298–302. [↑]

⁴ The Tagálog equivalent of *polla*, a chicken or young hen. [↑]

⁵ Filipinos who serve as domestic servants. [↑]

⁶ Noceda and Sanlucar's Tagálog *Vocabulario* defines *casonó* as “a servant or companion who lives at home;” but it does not contain the word *bilitao*. This apparently is compounded from *bili*, “to buy, or sell,” and *tauo* or *tao*, “man.” [↑]

7 At this point the ordinances proper of Corcuera, revised by Cruzat, end. The revision was signed by Cruzat at Manila, October 1, 1696; and he orders alcaldes, chief justices, corregidores, and war captains, to obey strictly all of the regulations contained in it, under penalty of the punishments and fines mentioned therein. A copy of the ordinances is to be sent to each official, and a certified copy in triplicate to the supreme Council of the Indies. The following ordinances (39–61) are in the form of decrees of the Manila government or of royal decrees, and contain many orders quite foreign to the mission of provincial chiefs, and, consequently, out of place in the ordinances. The last one is of the time of Raón (1766), who in 1768 revised the ordinances of Arandía. (See Del-Pan’s introduction, p. 22, and p. 153 of the ordinances of Corcuera and Cruzat.) ↑

8 Noceda’s (also Santos’s) Tagalog *Vocabulario* gives *compra* (Spanish, meaning “purchase”) as the equivalent of the native word *bandala*, meaning a compulsory purchase by the government of rice or other products from the natives, who evidently adopted the Spanish word directly. (See VOL. XLVII, p. 119.) ↑

9 These ordinances are published also in *Autos acordados* (Manila, 1861), i, pp. 29–71; and in Rodríguez San Pedro’s *Colección legislativa*, i, p. 245. ↑

10 When the ordinances were printed in 1801, the superiors of three of the religious orders immediately petitioned for the revocation of ordinances 16, 18, and 46, because they contained ideas injurious to the ecclesiastical estate. (Del-Pan, in his introduction, p. 7.) ↑

11 This decree was registered in the accountancy-mayor of the royal tribunal and Audiencia of accounts in Manila, September 16, 1801; in the accountancy of the royal treasury of Manila, September 18; and in the secretary’s office of the royal Audiencia, September 23. Since only a simple copy of the ordinances existed in the secretary’s office, the secretary asked the governor to order the castellan of Cavite to send an attested copy in case he possessed one. The governor issued such an order September 7, which was complied with on the twelfth, the receipt of which is noted by the secretary on November 5. ↑

12 The ordinances of Governor Pedro Manuel de Arandía were formulated in 1758, but no copy of them is known to exist. The ordinances of Raón were formulated for the purpose of revising them, and had it not been for the castellan of Cavite, it is to be feared that no authorized copy of them would be in existence. (Del-Pan, in his introduction to the ordinances, p. 7.) ↑

13 A considerable number of these requests for such exemption are discussed in Viana’s *Respuestas*; sometimes this privilege was granted, and sometimes it was refused.

In March, 1765, the natives of Tayabas petitioned for exemption for that year from the annual *bandala* of oil levied on them. Viana recommends (*Respuestas*, fol. III v) that this be granted, but that the amount due from Tayabas be levied on other provinces in proportion to their production of oil. ↑

14 Ordinance no. 51, it is to be noted, is only against brandy made from sugarcane; and the use of and traffic in other brandy was allowed and even stimulated. (Del-Pan, in his introduction, p. 17.) ↑

15 This is the “Zamboanga donation,” made by the Indians for the maintenance of the fort there (see VOL. XLVII, pp. 119, 120). In 1765, the regular situado for Zamboanga was 15,975 pesos (Viana, *Respuestas*, fol. 111). ↑

16 “By royal order of September 21, 1797, issued in virtue of an *expediente* which, in the preceding year, gave full information in regard to the tenor of article 53 of the ‘Ordinances of good government,’ his Majesty decreed that ‘the privilege of the Indians to enjoy freely the use of the lands, waters, and pastures which they need for their tillage and

stock-raising, ought to be understood to be limited to the lands (joining and close to their villages) which are or may be assigned to them, the rest of the land remaining subject to the rules that have been established for the sale and adjustment of the crown lands. And in order to avoid the abuses which are committed, under the pretext of the Indians' privileges, in the leasing of the lands within the boundary of the villages, this will not be tolerated hereafter; but the lands assigned to the villages must be cultivated invariably by the Indians in their own villages.'” (Montero y Vidal, *Hist. de Filipinas*, ii, pp. 353, 354.) ¹

¹⁷ In April, 1765, the royal engineer Gomez asked that the churches of San Anton, Dilao, San Lazaro, and the Parián be demolished, as dangerous to the safety of the city in case they should fall into the possession of enemies; also the houses of bamboo and nipa, “which have extended up to the esplanades of Puerta Real and the Parián.” Viana seconds this (*Respuestas*, fol. 119–121), and adds to the list the churches of Malate, La Hermita, San Miguel and others; he cites from *Recop. de Indias* the law forbidding any edifice within three hundred paces of the walls. He also advocates the removal of the aforesaid houses, and the formation of new villages, with a careful and regular arrangement of streets and houses, the inhabitants being placed therein according to their occupations—each guild [*gremio*] being aligned to a certain street; this would also enable the authorities to drive out all miscreants, collect the tributes to better advantage, and preserve order and justice. On March 22, 1765, Viana recommended to the Audiencia (*Respuestas*, fol. 106v, 107) that the open country from Bagumbayan to La Hermita be cleared of everything thereon, no matter how light or combustible it might be, within the space of one month; and that the natives in the village of Santiago be transferred to La Hermita, or to any other of the neighboring communities, and dwelling-places be assigned to them from the communal lands of those villages, in recompense for the homes taken from them in Santiago. ¹

¹⁸ In 1838, the Spanish government considered seriously the formulation of some new ordinances of good government for the Philippines, the commission for the same being given to Señor Otín y Duazo, a member of the royal Audiencia. The motives for this are thus given in the memorial of the above, as follows: “The attention of your Excellency has been justly called to the confusion and irregularity with which the *alcaldes-mayor* proceed in their government of these provinces, for the want of a uniform and general statute to serve as a standard in the performance of their duties; since the ordinances promulgated in 1768 have become entirely extinct through the abuses and vicious practices introduced by greed, caprice, or the indolence of the subordinates entrusted with their observance, and through the reforms rendered necessary by lapse of time and experience.” It is not known that Otín y Duazo ever drew up any ordinances. Seven years later, another lawyer, Señor Umeres, drew up a new project for ordinances of good government, in 252 articles. These ordinances contain many good matters, but cannot properly be called ordinances of good government. They contain matter on the following: general instructions to the provincial chiefs, similar to that circulated in Spain by Francisco Javier de Burgos in 1834, entitled *Instruccion á los Subdelegados de Fomento*, containing general principles and a true plan of administration; a letter from the vice-patron to the diocesan prelates and to the superiors of the orders, concerning the relations of the parish priests with the administration; regulations of the native municipality, detailing the form of the elections and the duties of *pedáneos*, lieutenants, *cabezas de barangay*, and other purely local agents; regulations concerning the order and security in the villages, comprising restrictive clauses regarding gambling and vagrancy; regulations on the city policy; regulations concerning the *polos*, personal services, and other duties imposed by the local administration; and regulations concerning primary instruction, agriculture, stockraising, internal trade (treating of weights and measures, transportation, etc.). (See Del-Pan's introduction, pp. 35–37.) ¹

INSTRUCTIONS TO THE SECULAR CLERGY

1. Retirement and abstraction [from the world]; the priests shall not enter any house except to administer the sacraments, or to perform some function proper to one who has the care of souls.
2. They shall explain the Christian doctrine and the gospel, using at least half of the time for this holy exercise in the Castilian language.
3. They shall visit, both afternoon and morning the schools for boys, which our curas shall be under obligation to promote in their villages with every endeavor; and, if it be possible, the schools for girls.
4. [They shall pay] all respect and courtesy to the governors of their villages and the officials of justice, not allowing the latter to remove their caps when in the presence of the priests, and much less to serve them at the table—warning them that they must not leave their wands or insignia of justice on the stairs or in any other place, but always and everywhere carry these with them.
5. They shall not meddle with elections; and the affection and reverence of the people will be won if they attend solely to the welfare of souls and give personal advice.
6. They shall promote peace among their parishioners by all means; and shall exhort them to shun idleness and cultivate their lands.
7. They shall strive to banish the sport of cock-fighting, not sparing any effort for this, and the same with drunkenness.
8. They shall not allow the dalagas [*i.e.*, young girls] or any woman to clean the church; the sacristans must perform this duty.

9. Any cura who shall not attend to the adornment and cleanliness of his church will be punished with the utmost severity.

10. No woman shall enter the clergyman's house.

11. The priests shall spend the day in prayer and study, after having celebrated mass and divine service.

12. The conferences on moral subjects and on the church rubrics¹ shall be inviolably observed.

13. They shall conform, without any exception, to the tariff in the exaction of parochial fees; but if the parishioner shall be poor, the cura shall not for that reason neglect the administration of the sacraments, the burial ceremonies, etc.

14. They shall proceed to remove the abuses in [furnishing] cross and candlesticks of wood for the poor man, and of silver for him who pays the fees.

15. They shall immediately propose, in a kind and gentle manner, the [formation of] settlements [for their people], and shall expatiate to their parishioners on the advantages which will result to them from living in a settled community and village.

16. Games of cards are prohibited to our curas, even among themselves.

17. They shall be careful to reside in their respective villages; and they shall leave these only for conferences or for hearing one another's confessions, when they have [in charge] no sick person in danger; but under no pretext shall they pass the night outside their own parishes.

18. On all occasions they shall wear their long robes.

19. Each priest shall forthwith prepare a book, in which these our decrees shall be written—as well as those which we shall again issue in person, or

which our provisor and vicar-general shall enact; or measures which shall be taken by our vicar forane,² as the one who keeps all things in his view.

20. Even within the house they shall go dressed and shod through the day; and any one who shall descend to saying mass in a tipsy condition [*con la turca*], or shall take his seat in the confessional without collar and cassock, shall undergo severe penalties.

21. In every respect they shall render obedience to our vicar forane.

22. Finally, mindful of the duties of their ministry, and of the very exact account which God will demand from them for the souls of every one of their parishioners, they shall instruct their people, by deed and by word, until the true idea of Christian life is formed in them—stimulating in them love and obedience to our Catholic monarch, who has conferred upon them so great benefits and loves them with a father’s tenderness, and to the venerable ministers who govern them in the name of God and of so great a king. At the archiepiscopal palace in Manila, on the twenty-fifth of October in the year one thousand seven hundred and seventy-one.³

¹ These conferences of the clergy originally were held monthly, for consultation on difficult cases of conscience and the like, the investigation of crimes, etc.; they lasted from the ninth to the thirteenth century. They were revived by St. Charles Borromeo, but on a more modern plan, for the discussion of questions in morals, ritual, etc., with the object of providing that the clergy should have the knowledge necessary for their duties. These conferences prevailed in the Catholic countries until the end of the eighteenth century, when they fell into disuse; but they have been once more revived in many countries, and are regularly held in all the dioceses of England. The rubrics are directions to be followed in mass and other sacred rites. (Addis and Arnold, *Catholic Dictionary*.) ↑

² Vicar forane: “either a dignitary or, at least, if possible, a parish priest, who is appointed by the bishop to exercise a limited jurisdiction in a particular town or district of his diocese; an appeal lies from his decision to the bishop, who can also remove him at pleasure.” (Addis and Arnold, p. 841.) ↑

³ These instructions come at the end of a pastoral letter, headed thus: “We, Don Basilio Sancho de Santa Justa y Rufina, by the grace of God and of the holy Apostolic See metropolitan archbishop of these Filipinas Islands; councilor and preacher to his Majesty; and deputy vicar-general of the royal

forces by land and sea in these Eastern regions, etc.” (They are obtained from Ferrando’s *Hist. PP. dominicos*, v, pp. 59–60.) [↑]

THE EXPULSION OF THE JESUITS, 1768–1769

[This subject is one of profound and far-reaching significance in history, especially that of Europe; but the exigencies of our limited space forbid us to do more than suggest some of the more important aspects of this matter, and to furnish references to historical works in which it is treated at length. Our chief attention is necessarily given to the expulsion of the Jesuits from the Philippines, which will concern us mainly with the facts of the case; and for this we must have recourse largely to Montero y Vidal's account of it as given in his *Historia de Filipinas*, ii, chapters v–vii. (Ferrando says nothing about the banishment of the Jesuits, save in a few incidental allusions which we have cited in previous notes.) To this relation we add a few contemporaneous documents, and other matter from various historical writers, presenting as far as available actual facts, and the views of both sides, impartially.]

The expulsion from the Spanish dominions

“The controversy between the Catholic nations and the court of Rome in regard to the limits of the right of jurisdiction of the State and of the spiritual authority of the Church goes back to an early date. The clergy, who in the Middle Ages possessed both moral and intellectual supremacy, held España in perpetual tutelage; and so greatly abused their power that the journals of the early Cortes record numerous petitions, constantly set aside, now in regard to ecclesiastical amortization, now about the creation of the religious orders; exemptions and privileges for the clergy, multiplication of benefices, and concessions to foreigners; excessive imposts claimed in Roma for favors and dispensations; and innumerable abuses introduced in the discipline of the Spanish church. Until the clamor of battle ceased and

the national unity was realized, the sovereigns did not preoccupy themselves with recovering the prerogatives of the royal power, and the Catholic monarchs [*i.e.*, Fernando and Isabel] were the first who undertook to maintain with care the so-called *regalías*¹ [*i.e.*, prerogatives] of the crown.” [From that time many controversies arose between the courts of Madrid and Rome, and even their diplomatic intercourse ceased entirely at times. A concordat was formed in 1737,] “which, instead of settling the pending disputes, deferred them until January 11, 1753, at which time the royal right of patronage was decided in favor of the kings of España; and questions referring to pensions and other claims of the Roman curia were settled by the conveyance of 23,066,660 reals, which the Marqués de la Ensenada delivered in Roma before the concordat was signed. Carlos III, who as king of the two Sicilies had had a similar controversy with the court of Roma, and had in 1741 secured the solemnization of a concordat, found the principal disputes terminated in España; but he could not prevent time and circumstances from originating others, which were settled in due time.” [With this controversy between Church and State, the Jesuits were necessarily as well as of choice involved. “During two centuries, and under different aspects, two diverse principles came into open opposition: the principle of authority, essential in the Catholic Church, which was the banner of the Society of Jesus; and the principle of rebellion against the past, proclaimed by Protestantism, converted afterward into the encyclopedistic philosophy, and still later taking the form of a social, religious, and political disintegration. To the propaganda of false ideas which was causing so much corruption among the youth, the Society of Jesus opposed solid and Christian education, the defense of its doctrine, and the preaching and example of its members.” Carlos III had come from Italy with a dislike to the Jesuits, and with various opinions which were more radical than those then current in España; and the influence of French philosophy and political thought in that country (see note 4, *ante*, pp. 25–27) enabled him to secure advisers who were willing to second his ideas—although at first he made the mistake of appointing too many foreigners in his cabinet. The king and his ministers formed plans of reform for the country which have made Danvila call him “the first revolutionary monarch of España.” It became evident that these plans could not be made effectual

unless the influence of the Jesuits against them could be neutralized. That order had been expelled from Portugal and all her dominions, by decree of January 12, 1759; and it was suppressed in France by Louis XV in November, 1764. Permission to settle in Spain and Naples was denied to the French exiles by Carlos III. In March, 1766, a popular uprising took place in Madrid, directed against one of Carlos III's ministers (Leopold de Gregorio, Marqués de Squilace, a Sicilian by birth) who, besides the prejudice against him as a foreigner, had made himself unpopular by certain sumptuary regulations; it resulted in his banishment from Spain. Soon afterward, the king found it necessary to make changes in his ministry. The presidency of the Council of Castilla was conferred upon Pedro Pablo Abarca de Bolea, Conde de Aranda, an Aragonese noble; and five new places therein were created, making twelve in all. All these councilors were Spaniards, and five of them were archbishops and bishops.² "After the Madrid riot, everywhere resounded complaints against the court and its nobles, the priests and the friars, and especially against the Jesuits," the last-named being accused by many of having incited the riot. "The appointment of Aranda was praised, as taking from an ecclesiastic the custody of the royal prerogatives." The disturbance quieted, the royal Council took measures to ascertain, through a secret investigation, the causes of this uprising; and their conclusion is thus stated in a letter sent by order of the king to the government of Naples, June 23, 1767:] "The result of all [the evidence] was, that the Jesuits were either the principal or the only inciters [of the riot]; they stirred up the flames on every side, roused aversion in the minds of all classes of people, and detached them from their affection and subordination to the government. The Jesuits printed and scattered about papers and writings that were seditious, and opposed to the royal authority and to the sovereignty and its legitimate rights; they preached against Portugal and France in their sermons to the public, and in the parlors of the nunneries, insinuating themselves to confess and direct the nuns without authority and against the wills of the superiors of the convents; even in the cloisters of the religious women, the Jesuits instilled, by their lectures and conversations, pernicious ideas and unworthy suspicions against the religious belief of the king and his ministers; and both before and after the tumult they threatened calamities and tragedies. They complained of all the

decrees that were issued, on account of the [government] offices and dignities not devolving on their partisans and the followers of their school; they murmured against all the measures of the government, because they had no part in these, as being opposed to their ideas and their advantage. Their perverse [ideas of] moral practice in España and the Indias, the laxity of their morals, their sordid commerce, their intrigues, their cunning schemes, and, finally, everything that has been written or published by those whom the Society fancies to be its rivals and enemies: all these have been verified, and found convincing, with facts and instances of the present time (and which cannot be denied), without the necessity of resorting to the many and enormous excesses of former times or of foreign countries.³ Their hatred to the house of Bourbon, and their aversion to the ‘family compact,’⁴ their partiality to the English, and their desire that the latter should subdue France; the greater satisfaction and confidence which they feel toward Protestant princes, preferring these to the Catholics; and other designs of theirs that are abominable, and contrary to the spirit of religion, of honor, and of humanity: these have been proved to us by many and irrefutable means, which their own acts and writings have furnished to us. Time and paper would fail me if I tried to specify to your Excellency the facts and proofs of the many charges which have accumulated against them.” [Finally—as a result partly of this investigation, and partly of the growing alarm and distrust felt against the Jesuits, especially as they were securing new privileges from the Holy See—Carlos III issued decrees dated at El Pardo, February 27, 1767, for the banishment of the Jesuits from Spain and the Indias. “The instructions for the measures to be taken by the persons commissioned to carry out the banishment of the Jesuits in España and the Indias, and to take possession of their goods and estates;⁵ the information as to their colleges, residences, and missions in the Western Indias, the Filipinas islands, and the kingdoms of the Indias; and the circular letter of Conde de Aranda to the viceroys and governors of the Indias providing for what they might decide for themselves, without asking any questions: this bears the date of March 1.” On March 12 this decision was known in Rome; and four days later despatches from Aranda gave fuller details, and included a copy of a royal decree which charged him to “display to the other religious orders the confidence, satisfaction, and esteem which they merited

for their fidelity and doctrine, their observance of the monastic life, their exemplary service of the Church, their creditable instruction, and their withdrawal from the affairs of government as being alien to and remote from the ascetic and monastic life.” On March 20, Aranda determined to appoint April 3 as the date on which this expulsion of the Jesuits should go into effect; and on the thirty-first Carlos III wrote a letter to Pope Clement XIII, stating that he found it necessary to expel the Jesuits from his dominions, and would send them to the States of the Church, to be under the direction of his Holiness as the father of the faithful. The Spanish ambassador at Rome, to whom this letter was sent for delivery to the pope, was also notified that all the expelled Jesuits would be pensioned, as long as they remained outside of the Spanish territories, at the following rate: to the ordained priests, 100 pesos annually; to the laymen, 90 pesos; and to all, a half-year’s salary in advance.⁶ The pope was overcome with grief at this news, and in reply (April 16) remonstrated with the king against this measure, protesting that the Jesuit order was innocent of disloyal or evil acts, and urging the king to suspend the execution of the decrees against them. This of course had no effect, and the pope refused to receive the banished Jesuits into his territory, hoping thus to compel Carlos to take other steps; but the latter sent the exiles to Corsica instead. On January 23, 1776, Pius VI directed the nuncios in the Catholic countries to enforce the law of silence in regard to the extinction of the Jesuit order—a measure especially directed against the publication of libels and satires, which at that time abounded in the larger cities, and were often indecent and infamous. In that year, also, harmony was restored between the Holy See and the Catholic powers.]

[The above general account of the causes leading to the expulsion of the Jesuits from the Spanish domains is obtained from various places in the account furnished by Danvila y Collado in his *Reinado de Carlos III*, t. ii, iii, to which the reader is referred as being probably the most full, accurate, and scholarly account now available of this important historical episode. He uses a great variety of material, obtained largely from the original documents in the Spanish archives, which he cites directly (and often in full), with careful references to his sources; and, although his sympathies are with the Jesuit order, which he thinks was unjustly maligned, he is

evidently too thorough a scholar to suppress or distort the facts in the case. The following outline of his work in regard to this subject will give the reader an idea of his thoroughness therein, and of the places where one may find special information on various aspects of the subject. *Tomo ii*: Chapter v, "Controversies with Roma," relates those which occurred under Carlos III over the royal prerogatives, the measures for canonizing the venerable Palafox,⁷ ecclesiastical amortization, the banishment of the inquisitor-general by the king, the expulsion of the Jesuits, and other burning questions of that time. Chapter vi treats, with much fulness of detail, of the Madrid uprising of 1766, with its causes and effects. Chapters vii-ix form a history of the Jesuit order from its first establishment to 1766. *Tomo iii*: Chapter i, "Causes of the expulsion;" chapter ii, "The Execution of the expulsion;" chapter iii, "The monitory decree of Parma," a brief issued by Clement XIII on January 30, 1768, which attempted to assert the temporal power of the pope;⁸ chapter iv, "Origin of the extinction of the Society of Jesus," showing how the plan for this measure was initiated by France, and how the other powers rapidly fell into line for her support; chapter v, "The election of Clement XIV," relating the important part played therein by the question of suppressing the Jesuit order, and the political scheming by the various powers interested; chapters vi-viii, "Extinction of the Society of Jesus;" chapter ix, "Consequences of the extinction;" chapter x, "Rehabilitation of the Society of Jesus," which ends with the brief of Leo XIII (July 13, 1886) abrogating that by which Clement XIV put an end (July 21, 1773) to the Jesuit order.]

[In the appendix to tomo iii are various important documents, presented in full, as follows: Official report to Carlos III of the proceedings on April 30, 1767, of the Council committee [*Consejo extraordinario*] which advised the expulsion of the Jesuits, in regard to the pope's remonstrance against that measure. Another letter of remonstrance from the pope, May 6, 1767; and the king's brief and resolute reply thereto, June 2 of same year. Letter written (June 23) by one of the Spanish ministers, Manuel de Roda, stating "the reasons which his Majesty has had for decreeing the expulsion." Another report of the Council committee, dated November 30, 1767, long and interesting, on the proposal made to Spain by Portugal for concerted action by the powers to secure the extinction of the Society. A report from

the full session of the Council, dated March 21, 1767, recommending the extinction of the order; the signatures include those of the archbishops and bishops.⁹ “Brief statement of the infractions of law committed by the Jesuits, which was sent to Roma for delivery to the pope;”¹⁰ it was drawn up, in 1769, by José Moñino, Conde de Floridablanca, another of the Spanish ministers.]

[In Crétineau-Joly’s *Histoire de la Compagnie de Jésus*, volume v is devoted to the expulsion of the Jesuits successively from Portugal, France, Spain, and other countries, and the results of that measure. In regard to Spain, see pp. 236–254. We present here the leading points of interest therein. According to Crétineau-Joly, Carlos III was “a prince who was religious and able, upright and enlightened, but impetuous and obstinate; he had most of the qualities which promote the welfare of peoples. His character entirely accorded with that of his subjects; like them, he pushed to the utmost degree family spirit and the honor of his name. At Naples, as well as at Madrid, Carlos III always showed himself devoted to the Society of Jesus.” In the uprising at Madrid in March, 1766, the popular irritation made the situation exceedingly dangerous, “when the Jesuits, all-powerful over the minds of the people, flung themselves into the mêlée and succeeded in appeasing the tumult. The people of Madrid gave way to the entreaties and threats of the fathers; but, in dispersing they undertook to show their affection for the latter; and from all sides the cry of ‘Long live the Jesuits!’ resounded in the pacified city. Carlos III, humiliated at having taken flight [to Aranjuez], and perhaps still more humiliated at owing the tranquillity of his capital to some priests, returned to the city. He was received with joy; but he had around him men who, affiliated with Choiseul and the party of [French] philosophy, felt it necessary to mingle poison with the facts. The Marquis de Squillaci was replaced in the ministry by the Count d’Aranda, and, after a long time, the Spanish diplomat made common cause with the Encyclopedists.” “The Duke of Alva, a former minister of Fernando VI, shared his ideas, and became the apostle of innovations, and the exciter of hatred against the Jesuits.¹¹ Portugal and

France had just expelled them; Alva and Aranda dared not remain behind. The pretext of the revolt at Madrid for the cloaks and broad hats¹² had produced the effect which was to be expected; it inspired the king with suspicions of the Jesuits. The prince could not explain to himself the fact that there, where the majesty of the sovereign had been defied, the moral authority of the Jesuits had so easily overcome the popular fury. The people had massacred his Walloon guards, and accepted the intervention of the fathers of the [Jesuit] Institute. This mystery, to which the contact of the disciples of St. Ignatius with all classes of people so easily supplied the key, was exaggerated and distorted for the ear of Carlos III. The king was favorable to the Society of Jesus, but [his ministers] succeeded in rendering him indifferent to it; then one day, a net woven long before wrapped the Society in its meshes.” “Those who favor the destruction of the Order of Jesus, and the partisans of that same order, while they agree entirely as to the result, differ essentially in regard to the causes. The former claim that the ‘hat insurrection’ opened the king’s eyes, and made him suspect that this society of priests aspired to dethrone their protector, or at least to make themselves masters of the Spanish colonies. The others affirm that Aranda was only the stone-setter [*metteur en œuvre*] of a plot organized in Paris. This plot, they say, had for its foundation the pride of a son who was unwilling to have to blush for his mother.”¹³ Several Protestant writers are cited to show that the king’s decision to expel the Jesuits was caused mainly by his resentment at the Madrid uprising (which he was made to believe was incited by the Jesuits), and at the statements made in a pretended letter by Ricci, the Jesuit general—a letter which the French minister, Duke de Choiseul, was accused of fabricating—to the effect “that he had succeeded in collecting documents which proved incontestably that Carlos III was the child of adultery; this absurd invention made such an impression upon the king that he allowed the order for the expulsion of the Jesuits to be wrested from him.” “This fact is confirmed by other contemporaneous testimony, and by the documents of the Society of Jesus.” “The order is not touched anywhere [in the proceedings of the Council]; the discipline or the morals of the Jesuits are never incriminated.” “The suppositions which cause the decision of the Council extraordinary are not proved; they are not even expressed.” “All that the government of Fernando VII afterward admitted

was, that ‘the Society of Jesus was expelled forever, in virtue of a measure wrested by most crafty and unrighteous underhand dealings from his magnanimous and pious grandfather Carlos III.’” “The pragmatic sanction is as reserved as the sentence of the Council extraordinary; it throws no light on the nature of the crimes imputed to the Jesuits.” “The mandate of the king was pitiless; the authorities, both military and civil, conformed with it, without understanding it. There were at that time unspeakable sufferings, bitter regrets, and cruel outrages to humanity. It was directed against six thousand Jesuits scattered in Spain and the New World; they were carried away by force, insulted, confined, and crowded on the decks of vessels. They were devoted to apostasy or to misery; they were surprised in their houses, despoiled of their property, their books, and their correspondence; they were torn from their colleges or their missions. Young or old, well or sick, all were obliged to submit to an ostracism of which no one had the secret. They departed for an unknown exile; under threats and insults, not one let a complaint escape him. In their most private papers there was never found a line which could make them suspected of any plot.”]

The expulsion from Filipinas

[An account of this is presented by Montero y Vidal in his *Hist. de Filipinas*, tomo ii; he relates the causes of this measure, and the execution of it in España and the colonies in general (pp. 141–179), and the expulsion from Filipinas (pp. 181–228), which latter account is here given:]

The Conde de Aranda, who was especially entrusted by Carlos III with all that related to the banishment of the Jesuits and the seizure of their property, addressed to the governor-general of Filipinas the following letter, dated March 1, 1767:

“Inside the annexed letter from Señor Marqués de Grimaldi, secretary of the affairs of state, you will receive another from the king our sovereign, in which his Majesty deigns to confer authority on me for the purpose of

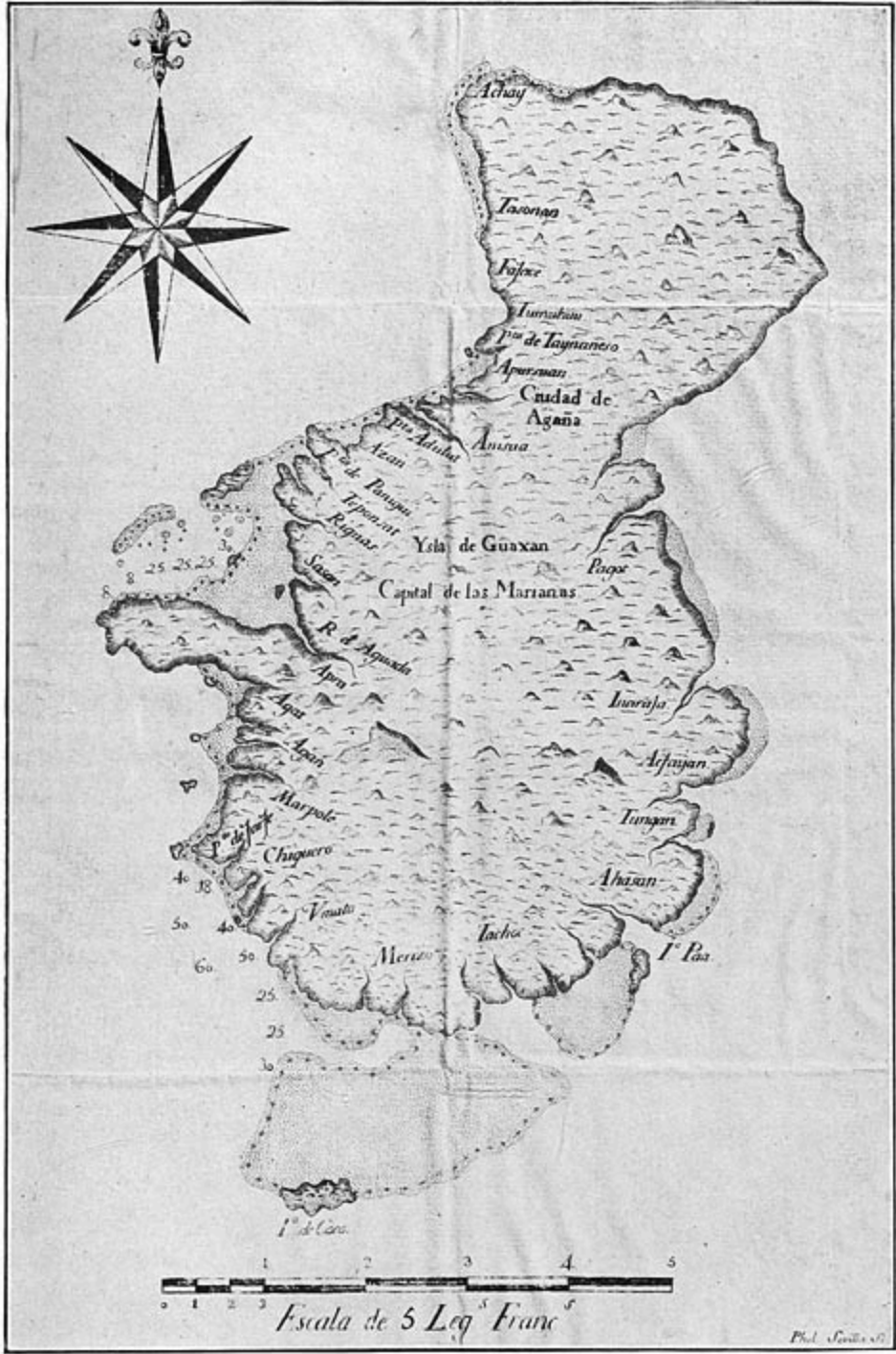
which this despatch treats—which, in short, is the banishment of the order of the Society of Jesus from all the royal dominions, in the manner and form provided in the royal decree, of which I enclose a printed copy. The very fact of the special honor which the king confers on you of [a letter with] his own signature [*puño*, “fist”] will convince you of the importance of the matter and of secrecy, and of the king’s resolute determination for the most punctual fulfilment [of the decree].

“As for its execution, you will be guided by the instructions framed for España and by the additional ones that apply to the Indias, availing yourself of both, to the end of selecting from each that which is best adapted to your purpose. As I have taken into consideration the distance of those countries from this one, and the difference in their mode of government, I have decided to entrust to you all discretionary power [necessary] to change or add details of circumstance, so that the [desired] result may be attained with that completeness which so important a matter requires. I think that your clear-sightedness and prudence will peaceably bring about obedience to the royal decision—without, however, neglecting guards and the use of moderate force, in order not to risk the failure of the enterprise; but in any event if, contrary to what is usual, you should encounter resistance from the religious concerned in this, or find among their adherents any inclination or resolution to oppose you, you will employ the authority and force of military power, as you would in case of rebellion.

“It will be important that in the villages where there is a college or house of the Society measures be taken (as soon as the royal decree has been made known to them) to inform the other religious orders and the secular clergy of those places that the decree of his Majesty is limited to the Jesuit religious; for it is very proper that all the other ecclesiastics, both seculars and regulars, contribute with their persuasions, so that the people generally shall reverence the decrees of his Majesty, since they must be considered as always based on important and just grounds. The king our sovereign has the greatest confidence in your fidelity and ability, and consequently I have the same. I only desire, therefore, your complete fulfilment [of this commission], and that you write to me in order to keep me informed of the results, without making any inquiries on doubtful points; for if these should

arise you must decide them for yourself, being governed by the sense and idea which the royal decree and instructions themselves, as a whole, produce. May God preserve you many years. Madrid, March 1, 1767.”

Paragraphs 1 and 2 of the “Additional instructions regarding the banishment of the Jesuits from the dominions of his Majesty, for what belongs to the Indias and the Filipinas Islands,” to which the preceding document refers, say: “(1) In order that the viceroys, presidents, and governors of my domains in the Indias and the Filipinas Islands may know that they have, in virtue of the royal decision, for this purpose, the same powers that reside in me, I entrust to them those which are mentioned in the instructions for España, so that they may issue the orders designating the depositaries [for papers, goods, etc., belonging to the persons expelled], and the ports [of departure for them], and promptly make ready the necessary vessels for the transportation of the Jesuits to Europa and the port of Santa María, where they will be received and equipped for their destination. (2) As the authority of those officials will be ample, they will remain responsible for the execution of the decree—for which they may select a suitable time, and will fix the day on which it may be carried out in all parts of their territory, issuing the proper orders with the utmost promptness, in order that no information may reach any of the [Jesuit] colleges of what is being done at others in this regard.”



Map of Guam, one of the Marianas Islands, in Concepción's *Historia general*
(Sampaloc, 1788–1792)

[From copy in Library of Harvard University]

The preceding documents were accompanied by a list of the colleges, houses, and residences of the Jesuits, certainly not a very accurate one. The colleges, residences, and curacies which at that time they possessed in Filipinas were as follows: In Manila (jurisdiction)—the colleges of San Ignacio and San José, and that of San Ildefonso at Santa Cruz; also the following curacies. In the province of Tondo (Manila), which includes the present district of Morong—San Miguel, San Pedro Macati (college and novitiate), Cainta, Taytay, Antipolo, Bosoboso, San Mateo, and Mariquina. In the province of Cavite—Cavite (where they had a college), Cavite Viejo, Silan, Indan, Maragondon, Naic. In the corregidor's district of Mindoro—Boac, Santa Cruz de Napó, Marinduque Island, Gapan. In the province of Cebú—Cebú, with a college, and the curacies of Mandaue and Liloan. In Bohol—Inabangan and Talibón (where was situated the residence of Bohol), with the villages and ministries of Loboc; Baclayon, Dauis, Malabohoc, Tagbilaran, Santísima Trinidad, and (on the coast farthest from Luzón) the curacy of Hagna. In the island of Negros—Ilog, Cabancalan (with the mission of Buyonan, Himamaylan, Cavayan and the mission of Sipalay). In the province of Otón (Iloilo)—Iloilo (with a college), Molo, Arévalo. In the island of Sámar—Catbalogan, Paranas, Humavas, Calviga, Boac, Bangajon, Tinagog, Calvayog; in the island of Capul, the ministry of Abac. In the province of Ibabao, or coast of Sámar farthest from Luzón—Palápag, Lavan, Catubig, Catarman, Bobón, Sulat, Túbig and Borongan. On the southern coast of the same island—Guiguan, Balanguigan, Basey and Lalaviton. In the island of Leyte—Carigara, Barugo, Jaro, Alangalang and Leyte. On the farther coast of the same island—the residence of Ilongos, and the ministries of Palompón, Poro, Ogmug, Baybay, Maasin, Sogor, Liloan, Cavalian and Hinondayan. In the northern part of the same island—the residence of Banigo, Palo, Tanavan, Dulac and Abuyog, and (in the interior) Dagami and Burabuen. In the island of Mindanao—the presidio of Zamboanga, with a college and ministry; Bagonbayan, Dumalon, Siocon, Catabangan, Caldera, Polombato and Siraguay. In the northern part of the same island—Dapitan, Iligan, Lavayan, Langaran, Lubungan, Disacan; Talingan, and various visitas and missions along the same coasts and the bay of Pangue. In the Marianas islands—Agaña, with a college and Indian seminary; Agat, Merizo, Pago, Guajan, Yuarajan, Umata, Rota and Saipan.

The first communication addressed to Raón by Conde de Aranda in reference to the manner of effecting the expulsion of the Jesuits was sent to him through the viceroy of Méjico, in order that the latter might despatch the letter from Acapulco. Lest this should go astray or be delayed, a second copy was sent to him by way of Cádiz and the French ships of their Company of the Eastern Indias, its bearer being an official appointed for this purpose, under the pretext that he was going there to discipline the troops. In this latter communication (on the same date of March 1), Conde de Aranda added these words to Raón: “I think that when this reaches you the very reverend archbishop will have already arrived in Manila, as he sailed from Cádiz a month ago in a Swedish ship. If that is the case, your Lordship can inform him confidentially of this despatch; and you can count on his illustrious Lordship in whatever your Lordship may deem necessary, in his opinion or his aid. For his Majesty esteems him, and I know him intimately; and I am certain that he will coöperate with whatever measures may conduce to the success of this enterprise, and to the greater service of the king.” In another and third despatch was repeated what had been previously explained to Raón, informing him that the bearer of the second despatch was his Majesty’s courier Pedro Santillac—who was to embark in Holanda, in order to go to Batavia, and thence to Manila, chartering a vessel, if there was none available, for this object.

Raón, who was an extraordinarily avaricious and venal man,¹⁴ and not conscientious in the performance of his duties, saw in this matter a business out of which he could obtain profit; and he utilized it for his own advantage, revealing to the Jesuits, for a large sum of money, the secret of their expulsion. Thanks to this perfidy, they were able to place in safety a large part of their wealth, at least what they possessed in gold and silver, and in valuables that were easy to hide; and they caused the disappearance of documents and papers which compromised them, or, if these were seized, would be proof of their plans and pernicious intrigues in certain matters. Notwithstanding this despicable proceeding, Raón sent the following answer to the letter of Carlos III:

“Sire: As soon as I read, pressed to my lips, and placed on my head the respected royal letter of your Majesty giving orders relative to the expulsion

of the Jesuits who were settled in all these domains of your Majesty, and the seizure of their goods, I employed the means that occurred to my loyalty and zeal for the accomplishment and fulfilment of this important business. In consequence, there are sailing as passengers on the ship named “San Carlos Borromeo” sixty-four individuals, including the principal Jesuits of this mainland [of Luzón] and the island of Marinduque; and for the removal of a like number of missionaries from the Bisayas Islands four vessels are employed. Meantime I have the aid of the other holy religious orders in occupying temporarily the ministries there—as I fully informed your Majesty in greater detail through Conde de Aranda. May our Lord preserve the royal Catholic person of your Majesty, as these remote regions need. Manila, July 23, 1768. Sire, [I kiss] your Majesty’s royal feet.

DON JOSEPH RAÓN”

The faithlessness of Raón, information of which reached the court, caused his successor, Don Simón de Anda, to receive orders to commence legal proceedings against Raón, for the purpose of proving this grave offense and punishing it severely. That upright and severely just magistrate did so; and nothing will aid more the exact understanding of one of the most far-reaching events in the history of Filipinas than to insert here, complete, the summary drawn up by Anda of the above-mentioned lawsuit, since in it are shown in great detail the particulars of what was done in these islands in the expulsion of the Jesuits. Here is the exact copy of this important document:

[Space will not permit us to present this summary in full, but we make an outline of it sufficient to preserve all the facts of main importance; it may be found at pp. 187–216 of Montero y Vidal’s account. Charges were brought against Raón and three others; these were Francisco Henriquez de Villacorta and Domingo Blas de Basaraz, members of the Audiencia, and Juan Antonio Cosio, the governor’s secretary. Raón was proved guilty on the charge of having given information to the Jesuits of the measures to be taken against them, on the next day (May 18) after receiving the royal commands; “and immediately they began, and continued without ceasing, the concealment of their wealth and the burning of papers. Circumstantial evidence shows that it was Raón who told them, and various persons

declared that this ‘was worth to him many pesos.’” He made an outward show of obeying the decree, by sending (at 10 a. m.) troops to surround and guard the Jesuit college; and also his secretary, to tell the fathers that the soldiers had gone there for purposes which would afterward be explained to them by Auditor Galvan. The latter, however, he kept busy otherwise, until the twenty-first. On May 18 he sent Galvan to the Jesuit college of San Ildefonso, outside the walls, to carry out the decree, and Raón waited until he finished these duties before he sent Galvan to the main colleges within the city; this gave the Jesuits from three to five days to hide their treasures and burn their papers,¹⁵ in which they occupied themselves both day and night. Raón failed to require the superiors of the colleges to call in their absent priests, and to remove the Jesuits, as soon as they were notified of the decree, from their colleges to some other place of detention till they could be sent from the city. They also possessed eleven farms and ranches; Raón is charged with having left the Jesuits in these undisturbed, for several months or even more than a year, without any check on their doings, or inventory of the property, which they stated as they chose; and even that he sent cavalry to these farms, to be at the orders of the fathers there. In the provinces outside of Manila, Raón neglected to carry out his instructions for the expulsion; and in consequence “there was not a college or a town in which the Jesuits did not have notice beforehand of their expulsion.” Accordingly, they also concealed their wealth and burned their papers, and they even found their way into their colleges at Manila; and Raón so neglected his duties that it was four months after the royal decree was published at Manila before the first orders for the expulsion from Visayas were sent thither.¹⁶ In order to shield himself, he had his secretary Cosio draw up a false statement, duly attested, that the governor had duly executed the royal commands regarding the Jesuits, in accordance with his instructions; and this was sent to Aranda, with a letter in which he threw the blame upon Galvan for any defects which might be found in the conduct of the expulsion. Other secondary charges were brought against Raón: he had allowed the Jesuits to prepare their outfits for their voyage as they chose, and for this to leave the college in which they were detained, and to have intercourse with various people, all this contrary to his instructions; he had displayed negligence, lack of system, and extravagance in the shipment and

supplies of food for the exiles; he neglected to look after the interests of the obras pías which the Jesuits had administered, thus causing serious damages to those foundations. He did not make provision, for two years after the expulsion, for the administration of the temporalities occupied by the Jesuits; thus the collection of debts due to them was “absolutely neglected, until measures for this were taken by the present government; so were the estates, houses, obras pías, and moneys at interest, and left without any person to call to account the individuals who were managing them; and from this ensued the arrears and losses that may be inferred.” Raón was also charged with having conspired with Cosío, Basaraz, and Villacorta to persecute and harass Galvan, Viana, and Santa Justa—from which persecution Galvan suffered so much that, worn out and depressed by it, he finally died; but they, not content with that, tried to defame his reputation. In most of these charges, Raón tried to make excuses for his conduct, or to throw the blame on Galvan or Villacorta; but Anda declares that they were all partly or wholly proved, and that Raón neglected everything in his official position “which did not involve the handling of ‘Mexican grease [*vnto mexicano*],’” that is, of bribes. His secretary Cosío was naturally included in all the charges made against Raón (in some of which he was declared more to blame than his master); but he is especially denounced for having drawn up and attested the false declaration that Raón had obeyed his instructions and performed his duty faithfully in the expulsion of the Jesuits, and as having done more than any one else to cause the death of Galvan; Anda concludes by saying, “he is more subtle and malevolent than can be expressed.”¹⁷ Villacorta was charged with having been more intimate with the expelled Jesuits than was becoming in an auditor; with having censured the archbishop for his insistence on episcopal visitation of the regulars; with having conspired against Galvan and the others; and with perjury. It was also proved that he had lived in open immorality, having two illegitimate daughters; that he engaged in trade, with dummy partners [*testas de Ferro*]; that he had, contrary to his obligation of secrecy, informed the friars of the government’s decision in regard to the diocesan visitation of their curas, before it could be carried out, and had complained of the archbishop to the king. The charges against Basaraz were similar to those against Raón, in regard to the expulsion of the Jesuits and the

conspiracy against Galvan, and are not repeated in detail, especially as he had died before the conclusion of the legal process against him. He was also an intimate friend of the Jesuits, being a “third brother” of theirs, that is, affiliated to them through a third or lay order, like those of other regular corporations; he prevented the execution of some measures against them, and allowed them to take whatever they desired from their archives which had been seized; he was in constant and secret communication with the expelled priests, and spent money for them as they directed him; he allowed them to carry money and papers on board the ship; he spoke disparagingly of the king and his ministers, and their proceedings against the Jesuits; he falsified records, and compelled the notaries to make false entries; and, besides all these, he was drunken, licentious, and extravagant. Raón and Basaraz died soon after the beginning of proceedings against them; “and Villacorta did not raise his head after he saw the charges, and that all of them were documentary; and finally he also showed the bad taste to go to accompany the others, at the very time when he finished making his defense;” accordingly, Cosio was the only one left to send to Spain. Anda recounts the aid and kindness which he showed to all the accused, allowing them abundance of money, attendance, and liberty, and sending Basaraz to a hospital, and afterward to one of the best houses in the city, for the sake of his health; Cosio is the only one who experienced any severity, being sent to Fort Santiago. Nevertheless, Anda expects that many will try to make trouble for him, by misrepresenting or calumniating him, and accusing him of having caused those deaths by undue severity; he desires, however, that “those malicious acts be not attributed to him which, as he has known, have been represented at the court by the friars, and the prisoners, and especially the blessed [*bendito*, ironically] Father Serena.” Another auditor, Juan Antonio de Uruñuela, was also accused of voting at Raón’s dictation, and being concerned in the conspiracy against Galvan; he also brought to the islands 3,000 pesos, which he placed in charge of the friars, who included it and other property of his with their own money, as all being “for their missions in China,” so that he might not have to pay duties on it. Cosio and Raón’s friends attempted to show that the archbishop had warned the Jesuits of their expulsion; but Raón’s own testimony had disproved that accusation. Anda was unable to conclude the proceedings against the accused, for when he reached Manila he found that the Audiencia contained only Villacorta,

Basaraz, and Uruñuela; “and although two auditors came in company with him, Don Francisco Ignacio Gonzalez Maldonado and Don Juan Francisco Anda (his own nephew), the former gave indications of perversity in the residencia of Villacorta, which he conducted, and it was necessary to reserve the second to succeed Basaraz in the post of commissioner of the Jesuit properties—for the governor knew, extra-judicially, that Uruñuela and Maldonado would decline to accept it, and, in order to avoid a dispute, he would not propose it to them.” Anda mentions various ways in which the relatives of the accused had endeavored to hinder the legal proceedings, means which they afterward used too successfully at court to involve him in trouble with the home government, although he had faithfully followed the instructions given him by that very government to bring the guilty parties to justice.]

In execution of the orders of the court, the properties which the Jesuits possessed in the islands were confiscated, their administrations being afterward entrusted to a special commission appointed by the governor-general. In order to give some idea of the amount of the said property, we will insert here a curious document written by a person of undeniable veracity, not at all unfriendly to the Jesuits, who on account of the offices which he held in Manila had at his disposal the respective *expedientes* [of the above suit]; he writes thus:

“The possessions of the Jesuits in Filipinas.—I have personally examined the voluminous expedientes drawn up for their expulsion from these islands; I have gone through the itemized inventories of all the colleges, houses, residences, and ministries; I have examined the appraisement, leases, and sale of the estates, buildings, cattle, furniture, and valuables, besides [a statement] of what was rendered useless and of the large remittances made in kind to the Peninsula; and all this has furnished me official data so accurate that I can make a statement without fear of being charged with falsehood in the matter. To enter into details would be exceedingly tedious; but to the end that all may not remain buried under the dusty cases of the Government archives, I am going to set down here a résumé which shows, with only a glance, all that was taken possession of from the Jesuits at their expulsion from Filipinas.

[Effects]	Pesos
In ready money, interest that was collected, and obras pías	463,882
Produce from the sale of various estates and houses	721,553
<i>Idem</i> , from furniture and chattels sold in the various colleges, residences, and ministries	128,735
A printing-office, adjudged to the [archiepiscopal] seminary, and valued at	4,035
A drug-store, turned over to the royal hospital, and valued at	2,660
All these amount to the sum of	1,320,865

“But it should be kept in mind that the articles of merchandise, provisions, furniture, and other articles amounted to a large sum which were placed in the royal storehouses without appraisal or valuation, as appears from their respective appraisements.¹⁸ Also in Marianas there was adjudged to the royal treasury a drug-store and the estate of Tachona, eleven leguas in circumference, with cattle, house, and outbuildings; and the college of San Juan de Letrán, with all that pertained to it, was handed over to the Recollect fathers with the same informality. The same thing occurred with two ranches which the college of Cebú possessed in the island of Bojol, and two others belonging to the college of Iloilo. Then the estate of Zamboanga alone, on which there were 2,139 head of cattle, horses, etc., and which also was applied to the treasury without appraisal, yielded in nine [*sic*] years from August, 1768 (when the government took possession of it) to 1779 the amount of 17,561 pesos, from which the value of the estate may be calculated. The royal college of nobles of San José, with its building and everything pertaining to it—including the three estates of Tunasan, Liang, and Calatagan—was given up without appraisal to the new rector who was appointed, Don Ignacio de Salamanca, a magistral canon; it was only known that the said estates, after deducting all the expenses of administration, repairs, etc., yielded a net profit of 27,336 pesos, in the first eight years. Not only was handed over to the new curas all that belonged to divine worship in the various ministries which the Society had in its charge, and in the archbishopric alone were the cathedral and twenty-two poor churches enriched with the ornaments and sacred utensils which came from

the great college of San Ignacio¹⁹ and other houses; but a great quantity of valuables, jewels,²⁰ etc. were sent to España which had no immediate connection with the holy sacrifice, and which, according to the instructions sent around by his Majesty, were placed in the second class—as candelabras, frontals [for the altars], lamps, etc., of gold and silver, which were used on solemn occasions for greater magnificence—also of those articles which were classified as profane. Finally, we must consider the enormous deterioration [of the valuables placed] in the royal storehouses, and the infinitely greater amount lost by selling the goods at forced sale, in many different and remote places, and when there was a scarcity of buyers. Considering all this, I think that I can affirm that the product of the secular properties that were seized from the Society of Jesus reached the amount of 2,000,000 pesos. How much this immense capital has produced to the royal treasury it is not possible to ascertain. I will say, however, that the 252,442 pesos alone to which the capital of the obras pías amounted at the time of the expulsion increased in December, 1796, to the sum of 513,168 pesos—that is to say, they increased in eighteen years by 260,726 pesos, or more than half of that capital; and, in this century, from 1820 to 1837 this fund yielded an increase of 420,849 pesos. It is important to note that as soon as the Jesuit estates were seized his Majesty reduced those foundations from 45 to 26, abolishing the rest, and leaving a capital of [only] 151,626 pesos; it is this which has furnished so wonderful results.”...

It is fully understood that the Jesuits of Filipinas felt profound grief at having to abandon a country in which they had gathered so rich a harvest, considering their excessive regard for worldly possessions—as is affirmed by the venerable Palafox, the bishops whose opinions we have cited, and Pope Clement XIV, who suppressed the Society, and all persons who have been occupied with this special idiosyncrasy of the Jesuits.

The incidents connected with the expulsion of the Jesuits from Filipinas were among the most productive of scandal which, in matters of that sort, the history of that country records. At that time the Jesuits enjoyed so great a predominance, and realized such enormous gains throughout the archipelago (with their well-equipped industrial enterprises, their lucrative trade, and the produce of their vast estates), and they kept the [Spanish]

natives of the country so thoroughly exploited and so subjected to their domineering influence—cajoling the vanity of some with the hypocritical deference with which the fathers treated them, and favoring the notions of independence in others, giving them to understand that they [the Jesuits] were not Spaniards, but citizens of the world (which is the aspect under which they make themselves more congenial to the islanders than the friars do, for the latter never fail to make it known that they are Spaniards)—that their wrath was unutterable when the decree for their expulsion from the islands was made known to them. They attempted to evade the royal mandate, and to disparage and criticise the monarch's authority and his acts, unloosing against these the passions of their fanatical partisans; and with their infamous conduct they presented a most melancholy spectacle, in which the royal authority was questioned, religion made light of, and vices and faults which it would have been expedient for them to keep secret were displayed to the public.

In 1769 there came to Manila on the frigate “Venus” various printed books which sharply attacked the Jesuits, and censured their conduct and teachings, while they extolled the expulsion decreed against that order by Carlos III. These books began to circulate, and pass from hand to hand, to the great satisfaction of the Jesuits' enemies and the furious anger of their partisans; and a magistrate [*i.e.*, Basaraz] who was a friend to the Jesuits proceeded, without authorization, charge, or commission from any one, to seize and prohibit the said books, and arrested the person who was distributing them. [The archbishop then wrote, besides the edict which follows this résumé, an indignant letter to Raón, both of which are cited at some length by our writer.] The fury of the Jesuits' partisans against the archbishop was extraordinary; and they disseminated reports that he was a heretic, and that his edict ought to be suppressed, with a thousand other insults against his person and dignity. A friar theologian wrote a confidential letter in defense of the Jesuits, and contradicting the [aforesaid] printed books; the Jesuits had a multitude of copies of this letter circulated. The archbishop immediately printed a long answer (or refutation) to the said letter, and likewise circulated it in profusion through the country. [The next feature of this controversy was the circulation of a voluminous MS.

document, defending the theologian's letter and the teachings of the Jesuits.^{[21](#)}

Decree by the archbishop of Manila



We, Don Basilio Sancho de Santa Justa y Rufina, by the grace of God and of the holy Apostolic See archbishop of Manila and metropolitan of these Philipinas Islands; councilor and preacher to his Majesty, and apostolic subdelegate; deputy vicar-general for the royal forces on sea and land in this archdiocese and its suffragan dioceses for his Eminence the lord Cardinal de la Cerda y San Carlos, the patriarch of the Indias; chief almoner of the king our sovereign; chief chaplain and vicar-general of the said royal forces in all his domains and lordships; etc.:

To all the persons of both sexes who exist and dwell in our archbishopric, of whatever state, rank, and condition you may be, greeting in our Lord Jesus Christ, who is the true salvation.^{[22](#)} We cannot deny the great pleasure and satisfaction with which our heart is filled at beholding, in our own experience, the loyalty, obedience, and fidelity with which our beloved subjects, in proof of their most profound and humble vassalage to the royal person of our august sovereign and lord, Don Carlos III (whom may God preserve), have accepted the most just decisions of his Majesty in regard to the expulsion of the regulars of the association named the Society of Jesus from all his dominions of España, the Americas, the Philipinas Islands, and others adjacent. And this first royal decree having been followed, among others, by that one in which his Majesty, as a prince who professes the soundest doctrine with the purest religion, issues effectual orders that in all his kingdoms may be suppressed that most pernicious and consequently abominable doctrine which the said regulars taught even from the beginning of that order—in regard to which we were thoroughly instructed years ago,

and now, in order to secure the general conviction of this truth, there has just been published by order of his Majesty a pastoral by our brother dignitary his most illustrious Lordship the present archbishop of Burgos—we have learned that by the coming of the ships from Europa directly to these islands there have been made public in this city various printed documents²³ relative to the pernicious maxims and teachings of the aforesaid regulars. These documents, according to the uniform answers of persons who have come in the said ships, are publicly distributed in Madrid and other cities of our España; and we have even noticed in the *Mercuries* of public news which have reached our hands (and the said *Mercuries* are not printed without previous notice to and permission from the court) the aforesaid documents conspicuously announced. We know that in this city they have produced in the minds of many persons who have read them the same good effect as there in España—that is, to confirm them more and more in that just judgment which they have formed of the uprightness, and of the justness of the reasons, which could induce our Catholic sovereign to decide upon the expulsion of the aforesaid regulars. And we have been informed that the circulation of those documents has ceased²⁴—(we know not why, and only know that such is the fact), without the intervention of the public, superior, and legitimate authority—a singular thing, which of itself is sufficient to occasion a most pernicious result, that those who have read them will doubt the truth of what is said therein, at the same time depriving those who have not read them of the important information which they furnish in regard to the lax and mischievous nature of the moral maxims which are encountered at every turn in the books written by the said regulars; and in some of the said documents these statements are mentioned, the works where they are found being cited, and their original authors. [Moreover], we, as our beloved people have seen, have not lost (in fulfilment of our official pastoral letter) any opportunity since our safe arrival in these islands—both in private conversations and in sermons, and even in public theses—to inveigh against laxity in matters of morality; and, since our obligation is so pressing, not only to teach good and sound doctrine, in order that it may be embraced, but also to point out emphatically what is pernicious and evil, in order that men may flee from it as from poisoned food, which slays the soul. The aforesaid documents have

greatly aided us in this, forasmuch as they open the eyes of their readers, in order that they may learn the source from which have issued the wrong and dangerous doctrines which have occasioned so many injuries and losses to the holy Church—which, as opposed to the spirit of the Church, have always aroused against them the antagonism of the supreme head who rules it, of the holy fathers, and of all the true teachers of the gospel religion which our heavenly Master, Jesus Christ, imparted to us. Accordingly, in view of all this, we would be guilty of a very culpable omission if we should keep silence, in neglect of so excellent reasons, and should not explain our opinion to our beloved people on this occasion when the aforesaid documents have ceased to be current—from which it may result that many of our beloved subjects continue in their former false ideas and dangerous prepossessions, for lack of means so opportune for leading them out of these. Therefore, for all the aforesaid reasons (and after having examined the said printed documents), and to dissipate whatever uncertainties upon this point may have arisen in some minds, we have resolved to declare, as using our episcopal authority for the edification of souls, and by the present we do declare, that our subjects are authorized to read the aforesaid printed documents with security of conscience, and without prejudice to sound doctrine, in which assertion we have in mind the pious objects above stated. Indeed, far from being opposed thereto, it is very expedient to read them, in order to disabuse the mind of many prejudicial errors by which the conscience is endangered, and to arrive at a knowledge of the holy truth, to which end the matters which are treated in these books evidently conduce. For there is no reason to doubt, with appearance of prudence, that everything which is contained in them is strictly true, when it immediately occurs to everyone that, in giving this assurance, the men agree in all parts of the Catholic world who are most worthy of confidence on account of their piety, high standing, and wisdom—and among these are many Spaniards who are distinguished in both worlds for their virtue, and in both are no less noted for their learning. In the number of these are also found the supreme pontiffs, innumerable bishops and clergymen, an endless number of religious in other orders, and the universities; and even various individuals of high character, and who are prominent in the Society, have with one voice been calling, at all times, for the reparation of the spiritual decline which has, by dint of force and

through sheer obstinacy, been introduced in the Church universal by those who are now expelled. [This they have done] by their arbitrary opinions, destructive to the gospel of Jesus Christ, for they were the first to carry these into practice; and through a practice so detestable they have given amply sufficient reasons to the Christian princes who with their kingdoms form the greater part of the Roman Catholic Church—and, above all, to her eldest son, our most pious, ever august, and Catholic monarch Don Carlos III (whom may God preserve)—for banishing them forever from all their vast domains. And as this is an indubitable fact, and notorious to all the world, such likewise are the arguments set forth [in the aforesaid documents]; and any person who for lack of profound study and of discernment between sound and wrong doctrines, or for want of opportunity, or through undue affection for those expelled persons, has been either unable or unwilling to observe seriously their iniquitous proceedings—whether as perpetually displaying, under the pretext of obedience, their reluctance to obey and submit to the sovereign decrees of the vicar of Christ; or persecuting everywhere the bishops; or making war on the other venerable and most holy religious orders; or poisoning good morals and even the faith itself, especially in the missions of China and Malabar (having been also the cause of the ruin of the Japan mission, notwithstanding the zeal of the missionaries of other orders and of the noble martyrs of the seraphic order,²⁵ whose memory will endure in the Church): or intriguing against the governments and the lives of princes; and attempting to turn, this way and that, the entire world at their pleasure—he who, we again say, in ignorance of all that has occurred in this matter, may remain in doubt as to the reasons which have, by divine ordering, caused the downfall of these regulars, is under obligation of conscience to lay aside this doubt, and to admit that such causes were urgent in order that so many Christian and Catholic princes should unite in the same and so momentous a judgment. For, their hearts being in the hand of God (as the Scriptures expressly declare to us), they have herein assured the success of the measures that they take, and uprightness and justice in their proceedings—and much more in things of greater importance; for as vicars of God, each one in his own domain, they issue commands, impose laws, and govern in pursuance of justice, with special assistance from God himself. And

therefore it would be impiety, and a sort of blasphemy, to try to excuse and justify those who have been expelled; since this would be the same as wounding in the most conspicuous point of their honor the sovereignty of the kings, and especially of the [preëminently] Catholic among them all, who is our king—for whose defense every vassal ought to stand ready to lose his life; how much more so, to sacrifice personal desires and affections, or to keep silence and read in order that he may be undeceived from error and instructed in the truth of things, or not to utter insults regarding the Head [of the Church] in order to defend some members whose corruption had increased to such an extent that it was necessary to sever them entirely in order to save the body.

This and no other is the sound doctrine which upon this point we desire our beloved faithful to bear well in mind; and in order that it may come to the knowledge of all, and that no one can allege ignorance at any time, we command that the present edict be published in the customary churches, and posted in public places, where it can be read by all. Given in our archiepiscopal palace at Manila, signed by us, stamped with the seal of our coat-of-arms, and countersigned by our undersigned secretary; on the first day of November in the year one thousand, seven hundred and sixty-nine.

BASILIO, archbishop of Manila.

By command of his illustrious Lordship the archbishop of Manila, my master:

Father Don ILDEPHONSO GARCIA, secretary.

¹ “All the disputes between España and Roma regarding the nature, extent, and limits of the civil and ecclesiastical jurisdictions—commonly known by the name of the *regalias* of the crown—are reflected in the continual conflicts with the nuncio, the inquisitor, and the confessor; and from them arose the *pase regio* and the disamortization [of corporation lands], in order to make themselves manifest in the *expediente* for the beatification of the venerable Palafox, and to endeavor to find a definitive solution in the expulsion of the Jesuits. Carlos I and Felipe II of Castilla alike considered themselves set apart by God to defend eternally the true faith, with the mission of guarding and

protecting the Church; and, like the ancient Roman emperors, in temporal affairs they acknowledged no superiority or limitations on the earth. The king was regarded as a living law, a permanent tribunal, the supreme master and legitimate lord of all his vassals; in one word, the crown was looked upon as the defender of the Church. The conflict of the Middle Ages ended, España aspired to a double social ideal, unity of power and religious unity; and this thought produced concentration, and the desire to separate what was spiritual and concerned with dogma from what was temporal and belonging to the government of peoples. Two distinct ideas strove together in the field of doctrine; one, supported by the submissions in former days of the Eastern Empire, claimed to subject temporal monarchs to the supreme political direction of the head of the Catholic Church; and the other, derived from primitive traditions, claimed that the Catholic sovereigns ought to exercise, equally with the pontiffs, the external government of the Church, as its natural protectors. A persistent and obstinate strife arose between the two ideas, and after several centuries the controversy was settled, by limiting the rights of the Holy See to that which concerned dogmas and the spiritual power, and leaving to the royal authority all that referred to discipline and the exercise of government, in whatever relates to the security of the State and the welfare of the people. It is this which with some unfitness has been called *regalías*; and at bottom it has been nothing more than the recovery of the proper character of the civil power, and the demarcation of the attributes of the power of the Church and the State. This demarcation, the strife over which lasted for entire centuries, was recognized in España by the concordat of 1753, in which is declared the right of [ecclesiastical] patronage of the kings of España; and to it the *exequatur*, disamortization, and the reform of both the regular and secular clergy, served them as a complement.” (Danvila, *Reinado de Carlos III*, ii, pp. 270, 271.)

The *pase regio* (Latin, *exequatur*) above mentioned refers to the prerogative assumed by the Spanish kings of the right to “pass” or confirm papal edicts or briefs, or those issued by other foreign ecclesiastics, or by the superiors of religious orders, before these could be valid in the Spanish dominions; several instances of this have already been mentioned in documents of this series.

“Disamortization” (a word which, as the standard English lexicons contain no single word which expresses exactly the idea conveyed in the Spanish *desamortización*, we are obliged to coin for this purpose, simply transferring it, in English form, from the Spanish) means the act of setting free any lands which had been conveyed, in mortmain, to the corporations (mainly religious), that is, enabling other persons to acquire such lands. The *exequatur* is called by Danvila (ii, p. 281) “the most transcendent of the *regalías* of the crown.” ¹

² It may be noted that all these high ecclesiastics signed the reports of the Council justifying the expulsion of the Jesuits, and that the archbishop of Manila (Santa Justa) is cited in various documents as having counseled the king to banish that order from his dominions. ¹

3 “It is known that the Society of Jesus was, more than a religious association, in reality a great mercantile company, from a very short time after its institution until its extinction by Clement XIV. Its vast commercial transactions in Europe, America, and Oceania furnished to it immense wealth; and, infatuated with their power and the dominion which they exercised over the minds of their ardent followers; having gained possession as they had done of the confessional and directing the consciences of kings and magnates; and strengthened by the affection (which they exploited with great ability) of women—upon whom they always have exercised, as they still do, a magnetic influence—the Jesuits considered themselves absolute masters of the world; and they devoted themselves to intervention in political affairs, managing with cautious skill political dealings in almost all countries, according to the degree in which these concerned their particular purposes. Their insolent and illegal acts, their despotism, their ambition, the iron yoke with which they oppressed both kings and peoples; their disputes with the other religious associations, who could not look with pleasure on the predominance and wealth of the new society which so audaciously gathered in the harvest from the fertile vineyard of the Lord; their dangerous maxims in regard to regicide, their demoralizing system of doctrine, their satanic pride and insatiable greed, their hypocrisy and corruption: all these raised against them a unanimous protest. Mistrust of them awoke in kings and peoples; men of sincere purpose and true Christian morals were alarmed; and on every side arose enemies of their order, and irrefutable proofs of their abominable aberrations were brought forward.” (Montero y Vidal, *Hist. de Filipinas*, ii, pp. 142–146.) ↑

4 See detailed account of the so-called “family compact” and the secret agreement which accompanied it, in Danvila, *op. cit.*, ii, pp. 101–167. At the end he says: “The celebrated ‘family compact’ was never an *affaire de cœur*, but an alliance offensive and defensive in order to check the progress of the British arms in Europa and America, and to dispute with England the maritime supremacy of which she had possessed herself.... The ‘family compact,’ and the secret agreement which completed it, were from the beginning an alliance offensive and defensive of España and France against Great Britain.” ↑

5 Montero y Vidal makes numerous citations (*Hist. de Filipinas*, ii, pp. 142, 143, 147–159) from letters written to Pope Innocent X in 1647 and 1649 by the noted bishop of La Puebla, Juan de Palafox y Mendoza, showing how great wealth and power the Jesuits had attained in Nueva España, their hatred toward him and their conspiracies and even open attacks against him for doing his official duty, and their lawless, scandalous, immoral, and irreligious acts, as he has seen them. ↑

6 In November, 1779, letters were received by the Spanish government from their ambassador at Rome, asking that, in view of the poverty and suffering endured by the ex-Jesuits there, their pensions might be increased. Inquiries were made as to their numbers, with the following results; “On April 1, 1767, there existed in España 1,660 priests, 102 scholastics, and 965 coadjutors, making

a total of 2,727. From the seven provinces of the Indias there arrived at the port of Santa María 1,396 priests, 327 scholastics, and 544 coadjutors, making a total of 2,267. The pensions of both classes amounted to 7,264,650 reals. On April 1, 1779, there existed in Italia 1,274 priests and scholastics, and 664 coadjutors belonging to the four provinces of España [*i.e.*, those of the Jesuit order in that country, being designated as Toledo, Castilla, Andalucía, and Aragón], and, confined in them, sixteen priests and five coadjutors, the life-pensions of all these amounting to 2,852,600 reals; and from the seven provinces of Indias there were 1,197 priests and 279 coadjutors, the yearly sum of whose pensions was 2,255,750 reals, including those assigned to the Jesuits confined in España. Thus the difference between 1767 and 1779 was that of 2,151,300 reals, on account of the flight to foreign lands or the [ecclesiastical] suspension of 242 priests, 4 scholastics, and 145 coadjutors, and the death of 1,038 priests and 516 coadjutors. The twelve colleges and the procuradoría of the provinces of Méjico and of Filipinas, and of the college of Navarra, yielded 3,665,133 reals, 15 maravedís, leaving a surplus of 1,111,408 reals. The expenses for pensions, maintenance in España, clothing, and others which had arisen with the ex-Jesuits from the Indias, up to the end of June, 1779, reached the sum of 45,321,439 reals, 20 maravedís; and adding to this 3,086,767 reals, 14 maravedís, the value of a certain contribution given by order of his Majesty to the royal hospital of this court, and the payment of debts contracted by some colleges in the Indias, the total is 48,408,207 reals. The temporalities of the Indias were therefore indebted to those of España in 7,077,836 reals, 16 2–3 maravedís.” In view of these statistics, the Council did not feel able to increase the amount of the pensions, but agreed to send to the Spanish ambassador at Rome the sum of 1,500,000 reals, to be distributed among the ex-Jesuits in such manner as would best relieve their poverty. (Danvila, *op. cit.*, iii, pp. 614, 615.)

(The above passage is carefully copied from Danvila, but there are some discrepancies in the figures given; these cannot be verified, of course, without reference to the original document in the Simancas archives cited by the author. These discrepancies are in all probability due to careless proof-reading, some instances of which we have seen in Danvila’s admirable work.)

“Some of the expelled [Jesuits] did not content themselves with removing [from Corsica] to the States of the Church and the Italian cities, but ventured to make their appearance in Barcelona and Gerona; and when the Council committee had notice of this fact they assembled, and decided that the observance of the pragmatic sanction [for the expulsion] ought to be decreed, imposing the penalty of death on the secular lay-brothers, and perpetual confinement on those ordained *in sacris*.” (Danvila, *op. cit.*, iii, pp. 114, 115, 117.) The “suspension” referred to above evidently applies to certain persons who returned to secular life and occupations, some coadjutors even marrying wives. ¹

² It has been seen (note 135, *ante*) that the Jesuits were bitter enemies of the visitor Palafox; and the proposal to canonize him, which was made by Carlos III to the pope in 1760, aroused the strong opposition of that order. His letters to the pope in 1647 and 1649 had led to papal decrees enforcing

the episcopal authority against the encroachments of the Jesuits, which, after attempting to oppose them, the latter were finally compelled to obey. It was not until 1694 that the ecclesiastical authorities began to examine the writings of Palafox; and it appears that his letter of 1649 was prohibited in the *Index expurgatorius* in 1707 and 1747, and that by an edict of the Inquisition of May 13, 1759 certain letters attributed to him were seized and publicly burned by the hangman—not because there was in them anything deserving theological censure, but on merely technical charges of having been published without the necessary “red tape” prescribed in such cases, and “in order to renew controversies already finished, with the sole object of calumniating and discrediting among the faithful the order of the Society of Jesus, against the intention and good fame of that prelate to whom they were attributed.” The Spanish rulers Felipe V and Fernando VI, and later Carlos III, had all at various times made efforts to have Palafox’s writings examined by the Roman Congregation of Rites; for they regarded him as one of the defenders of the royal right of patronage in America. This was finally accomplished, the Congregation declaring unanimously that they found therein nothing contrary to the faith or to good morals, or to sound doctrine; and that the process for his beatification might now be undertaken. The Pope approved this finding, on December 9, 1760, and on February 5 following the supreme Inquisition of Spain published a decree annulling the above-mentioned prohibitions of his writings. It was thereupon made known to the Spanish ministers that in the Council of the Indias no document remained which favored the cause of Palafox; the records had been cut out and carried away. This mutilation was ascribed to the Jesuits. The beatification of Palafox was approved by the Congregation of Rites, and the pope confirmed this on September 6, 1766; but its execution forthwith encountered delays, showing that his enemies in Rome were the same whom he had pointed out in his letter of 1649. (Danvila, *op. cit.*, ii, pp. 255–270.) ¹

² This decree, “if we view the occasion of its publication, and the terms in which it is expressed, accepted in the name of the court of Roma the war to which all the Catholic nations were provoking it; and accepted that war without sufficient power to defend itself. The attitude of France, España, Portugal, Naples, and Parma, and later of Vienna, was the result of a new policy which strove to limit the power of the pontificate and to take away its temporal power; and the latter ought not to have begun hostilities without weighing well the consequences, and, above all, without estimating the forces on which it might depend for the combat. The monitory decree of Parma, as the brief of January 30 is called, in which his Holiness protested against all the measures which the Catholic courts were putting into execution, was the origin and cause of the expulsion of the Jesuits by the duchies of Parma and Plasencia; of the prohibition of the circulation in the Catholic states of the bull *In cœna Domini* and of obedience to it; of the reëstablishment in those states of the *pase regio*, which had been suspended in España since 1763; of barring from circulation the monitory decree, because it was considered hostile to the regalías of the crown and to the rights of the sovereigns; of the

publication by order of the Council, and at the cost of the Spanish government, of the ‘Imperial judgment,’ in which the rights of the Holy See were limited exclusively to the faith, to matters of dogma, and to purely spiritual matters; of the reprisals with which the pope was threatened if he did not revoke the monitory decree; of the occupation of Benevento and Pontecorbo (which was an actual outbreak of hostilities), and the attempt to do the same with Castro and Ronciglione; of a mutual understanding between all the courts hostile to the Holy See; and of the establishment of a general agreement that the extinction of the Society of Jesus would be an indispensable condition for the continuance of correspondence with the court of Roma. The monitory decree of January 30 will signify, in the view of history, the termination of the secular dispute which Roma kept up during two centuries; the triumph of a new policy; and the menace against the temporal power of the popes, which constituted the essential part of the controversy. With the monitory decree, Roma was conquered, and the revolution made rapid advance.” (Danvila, *op. cit.*, iii, pp. 228–230.) [↑]

⁹ Danvila’s researches in the archives of Simancas brought to light the opinions of the Spanish prelates on the expulsion of the Jesuits from that country; out of sixty, forty-six approved the suppression of the Jesuit order, eight were opposed to it, and six excused themselves from expressing their opinions. (Danvila, *op. cit.*, iii, pp. 428, 429.) [↑]

¹⁰ Among the charges made in this paper is the following: “From Filipinas comes evidence of not only their predictions against the government, but the illicit communication of their provincial with the English commander during the occupation of Manila.” [↑]

¹¹ A note by Crétineau-Joly (p. 237) declares that Alva, when on his death-bed, confessed to Felipe Bertram, bishop of Salamanca, the general of the Inquisition, that he “was one of the authors of the uprising of 1766, having incited it in hatred to the Jesuits, and in order to cause it to be imputed to them. He also avowed that he had composed a great part of the supposed letter by the general of the Jesuits against the king of Spain.” A Protestant writer is cited as saying that Alva made this same declaration to Carlos III, in writing. [↑]

¹² Spanish, *capas y sombreros*; an edict had been issued forbidding these to be worn by the inhabitants of Madrid. [↑]

¹³ Alluding to accusations against the personal character of Isabel Farnese, Carlos’s mother and wife of Felipe V. [↑]

¹⁴ “Don Joseph Raon was one of the most shrewd of the governors of Manila in enriching himself without causing any one to complain; but he did nothing whatever for the service of the king. In 1768, Manila was at the same point where the English left it in 1763, without cannon or gunpowder, the troops ill-fed and ill-paid.” (Le Gentil, *Voyage*, ii, p. 167.) It will be remembered that the French scientist was in Manila at the same time when Raón was. [↑]

[15](#) In *Política de España en Filipinas*, 1894, pp. 175, 176, Retana describes a collection of documents which he had recently acquired, relating to the expulsion of the Jesuits from the islands. Among these were the official *expedientes*, and a series which contained the inventories of all the property which the Jesuits possessed. The list of the papers and letters found in the college of San Ignacio formed a folio volume of more than 600 pages. (There was also a list of all the books which the Jesuits kept for sale. Among these were more than 200 copies of Noceda's *Diccionario*, the first edition, of which copies are now considered exceedingly rare. "In this inventory appear books of which I believe not a single copy is now in existence.") The collection thus acquired by Retana contained original letters from Anda and Santa Justa to Conde de Aranda, and others by the Jesuit Clain, Camacho, Raón, Anda, Basco, and other noted persons. At the time, according to Montero y Vidal (*Hist. de Filipinas*, ii, p. 222) this collection, which contained more than 20,000 folios, was deposited in the Colegio de Agustinos at Valladolid. [↑]

[16](#) It is interesting to compare with this episode that of the banishment of the French Jesuits in Louisiana (1763), as related by Father François P. Watrin; see *Jesuit Relations and Allied Documents*, lxx (Cleveland, 1900), pp. 211–301. Some of those exiles took refuge in the Spanish-American colonies; others proceeded to France, but found that their order was being driven out of that country. [↑]

[17](#) Le Gentil states (*Voyage*, ii, p. 167) that Cosio was banished to Africa. [↑]

[18](#) Doubtless referring to appraisals and inventories made afterward by Anda, who caused this to be done with great exactness. [↑]

[19](#) Buzeta and Bravo say (*Diccionario*, ii, p. 250) of the great college of San Ignacio: "It is said that the building of this church of the Society, its great convent, and the college of San Jose (which it has close by) cost 150,000 pesos;" also that it occupied 34,000 square varas of space (or more than six acres). [↑]

[20](#) At a fiesta held in the Jesuit church at Manila, in 1623 the statues of canonized Jesuits were placed at the altar. "Their garments were richly embroidered with gold and silver thread in intricate designs, and were all covered with jewels—diamonds, pearls, rubies, emeralds, seed-pearls, and other precious stones—arranged in such a manner that their luster and varied colors gave them a most pleasing and beautiful appearance. On the image of St. Xavier were faithfully counted more than 15,000 precious stones and pearls, among them more than a thousand diamonds. On that of St. Ignatius there were more than 20,000 jewels, and of these over 800 were diamonds." (Murillo Velarde, *Hist. de Philipinas*, fol. 41b, 42.) [↑]

[21](#) A royal decree printed at Lima in 1777 orders the presidents and auditors of the audiencias in those regions and Filipinas, and archbishops and bishops in all the Spanish dominions beyond the

seas, to exercise great care and vigilance that no person shall talk, write, or argue about the extinction of the Society of Jesus, or the causes which led to it. [↑]

[22](#) There is a play on words here, *salud* meaning both “greeting” and “salvation.” [↑]

[23](#) Contemporaneous documents preserved with this decree by Santa Justa show that the imprints to which he refers were as follows (their titles being here translated):

1. “Instruction to the princes regarding the policy of the Jesuit fathers, illustrated with extensive notes, and translated from the Italian into Portuguese, and now into Castilian, with a supplement on the orthodox belief of the Jesuits. With permission of the authorities. At Madrid, in the printing-office of Pantaleon Azuar, Arenal street, the house of his Excellency the Duke de Arcos. In the year one thousand, seven hundred, and sixty-eight. This will be found in the bookstore of Joseph Botanero on the said street of Arenal, corner of Zarsa street.”
2. “Reflections on the memorial presented to his Holiness Clement XIII by the general of the Jesuits, in which are related various deeds of the superiors and missionaries of that order in all parts of the world, intended to frustrate the measures of the popes against their proceedings and doctrines, but which demonstrate the absolute incorrigibleness of that body. Translated from the Italian. Madrid; by Joachim de Ibarra. In the year one thousand, seven hundred, and sixty-eight. This will be found in Francisco Fernandez street, in front of the steps of San Phelipe el Real.”
3. “Continuation of the portraiture of the Jesuits, drawn to the life by the most learned and illustrious Catholics, etc. Third edition, with permission of the authorities. At Madrid, in the shop of the widow of Ericeo Sanchez. In the year one thousand, seven hundred, and sixty-eight.”
4. “Portraiture of the Jesuits, drawn to the life by the most learned and most illustrious Catholics: authorized judgment formed of the Jesuits, with authentic and undeniable testimonies by the greatest and most distinguished men of both Church and State, from the year 1540, in which their order was founded, until 1650. Translated from the Portuguese into Castilian, in order to banish the obstinate prejudices and voluntary blindness of many unwary and deluded persons who close their eyes against the beauteous splendor of the truth. Third edition. With permission of the authorities, at Madrid. At the shop of the widow of Elicio Sanchez. In the year one thousand, seven hundred, and sixty-eight.” [↑]

[24](#) It seems that Auditor Basaraz prohibited the circulation of these books, in which he was supported by Raón; consequently the books that had been seized were held back, notwithstanding Santa Justa’s protest, and the matter was not settled in court, as it should have been. (Montero y Vidal, *Hist. de Filipinas*, ii, pp. 196, 224.) [↑]

[25](#) Referring to the Order of St. Francis, since many of its members were martyred in the Japanese persecutions. (About the time of the expulsion of the Jesuits, their enemies declared that, while martyrs abounded in the other religious orders, the Jesuits escaped that fate among the heathen.) In the other missions, the allusion is to the noted controversy over the Chinese rites, in which the Jesuits were accused of undue laxity and connivance with heathen customs; the same accusation was also made against them in some of the American missions. [↑]

THE COUNCIL OF 1771

*Letter of a missionary father of the Order of St. Francis to a Spanish father of the Society of Jesus, written from the city of Manila in the Philippine Islands, December 13, 1771, and communicated not long ago to Father Aloysius Knapp.*¹

The provincial Council which was held this year by the archbishop of this place with his three suffragans has given rise to the greatest discord.² For therein the archbishop and the governor of the islands sought to have abolished the solemn votive Mass (of the Blessed [Virgin]) and the Salve Regina—which from the first christianizing of these islands it has been the custom to chant every Saturday in honor of the Blessed Virgin as well as other devotions to the Blessed Virgin, for the preservation and spread of the Catholic religion—under the pretext that the Indians might not [thereby] be led into idolatry and the worship of Mary as a goddess.³ This purpose and decision of the two they gave in writing to the three suffragans. Two of the suffragans—one of whom was a secular, the other belonging to the Order of St. Dominic—yielded assent, or at least showed no displeasure thereat. But the third, by name De Luna, of the Order of St. Francis, bishop of Camarines, a man worthy of honor for his advanced age and uprightness, rose in indignation at the dastardliness of the motion, and with apostolic zeal declaimed against the written decision. On recognizing, however, that his endeavor was wholly fruitless, with the declaration that the council was a scandal he left the assembly, subsequently sending [a copy of] this scandalous mandate to the royal Audiencia—a body consisting of three magistrates, to whom an appeal may lie against the governor—from whom he requested an official statement in writing to that effect, in order that he might send this scandalous decree to Madrid. On being apprised of his action, the governor and archbishop in a rage sent soldiers to force from Bishop de Luna the statement of the royal Audiencia and the written decree, even under threat of death, should he refuse to surrender them. But as the whole city was deeply indignant at this insolent proceeding, the soldiers,

dreading greater evils, desisted from their violent purpose, whereupon Bishop de Luna received orders to leave the city. Soon after his return to his episcopal see he issued a pastoral letter to his clergy, religious and secular, wherein he declared the council⁴ null and scandalous. This declaration of the bishop was accepted by all except the Dominican fathers, who sided with the archbishop and the governor, who, quite unmoved by tumults, scandals, and bloodshed, continued this council of theirs. In the meantime Bishop de Luna put himself in hiding, and, it is said, took passage for Spain on a ship sailing for China, in order to present the case to his Majesty. In this council it furthermore was decreed, that Bishop de Luna should be wrested from his see, and all the Augustinian fathers driven from their parishes. Accordingly, on October 22 and 28 of the year 1771, a large body of soldiery, sent therefor from the city of Manila by the governor, gave to thirty-one Indian clerics⁵ the parishes of the Augustinian fathers, whom they led away as prisoners after having pillaged their homes in the name of the king, and substituted the said Indian clerics in their place. The same fate that befell the Augustinian fathers was destined for us Franciscans; but, rather than be taken away as prisoners, we all abandoned our homes and our parishioners, and went up to our convent on a mountain, where we purposed to struggle with hunger and hardships until God should otherwise dispose of us. The father provincials of both orders sent word in writing to their religious who were not yet in captivity, to return to Spain, in any way and, in fine, by whatever road they could. It is said that before long soldiers are to be sent to pillage all our convents, both inside and outside the walls of Manila. The governor is intercepting all letters addressed to Spain; he forbids any to be sent thither. Accordingly, since he recently got hold of four letters which were intended for Spain, which had been written by the commander-in-chief of the troops, he had him thrown into jail and deprived of his command; another Spaniard, who sided with the Spanish religious and clerics, he fined three thousand dollars [*taleros*]. For the governor and the archbishop declare that Spanish religious or clerics will no longer be tolerated, since with their masses, sodalities [*instituts*], and prayers in common [*comprecationibus*],⁶ they are tricking the people, and with their devotions bleeding them of their money. During this persecution the Moros, the enemies of the Christians, are fishing in muddy waters; from the

neighboring islands of Xolo and Mindanao they are making raids in every quarter, pillaging and setting afire churches and houses; they have slain many; many more they have carried away into slavery, as happened three days ago when they captured five hundred Christians a short distance from the city of Manila. All these miseries and the immense slaughter of Christians the governor and the archbishop view with unconcern, pleased with this conceit alone that thereby they are harassing the religious and are strong enough to persecute them—whose sorrowful fate, moreover, they rejoice at, when, in the midst of banquets and revelry [*jocando*], they intone the [invitatory] of the [divine] office: *Regem, cui omnia vivunt, venite adoremus, venite exultemus*,⁷ etc.

They rejoice since they have driven very many religious away from their ministries; but it is greatly to be feared that their joy will soon be turned into mourning. For all the Pampangos, the people who occupy the most fertile and extensive region about the city of Manila—who are the bravest of all the Indians, and excel all the rest in religious fervor—are stirring up a revolt against the governor, the archbishop, the Indian clerics, and all their partisans, all of whom they threaten with death. They seem already to have leagued themselves with the Moros, to whom they have already given as captives five of the Indian clerics thrust upon them, in exchange for five Spanish soldiers, besides asking for the Augustinian fathers who were taken away from them by force.

Before opening the said council [*conciliabulum*], the archbishop made the charge that all religious were unfit and unworthy to attend the council—a statement that he insisted each one of them should subscribe to in his own handwriting. Such as refused were [punished], some by being thrown into prison, others by being very grievously distressed. Two fathers of the Pious Schools, however, as being members of his own order,⁸ he chose as secretaries of the council.

¹ *Marginal note*: “Father Aloysius Knapp was born at Rheinfelden, canton of Aargau, in Switzerland, in 1720; entered the Society (in the province of Upper Germany) in 1740, and professed in Mexico in 1749. Thence he went to the Philippines; after exile therefrom he returned to his native land, where he died in 1775.” ↑

2 See account of this council on pp. 41, 42, *ante*. At that time the governor was Anda, and the archbishop was Santa Justa. ↑

3 Archbishop Santa Justa's scheme of doing away with all popular church devotions (under the plea presented in this letter) had, singularly, its exact counterpart in several European countries, where, in almost the very same year, that identical movement was inaugurated in many places throughout all the dominions of Joseph II of Austria—in Austria itself, the Low Countries, Tuscany, Naples, etc. The mass of existing documents clearly show that the courts of Vienna, Paris, Madrid, and Lisbon were openly enlisted with the powers of irreligion to undo all Christian belief even among the poor people at large. Another point to be considered in connection with this is the social ferment and disquiet of that period.—REV. T. C. MIDDLETON, Q.S.A. ↑

4 Latin, *conciliabulum* (cf. Spanish *conciliabulo*); see VOL. XLII, p. 109, note 36. ↑

5 Latin, *clerici* (Spanish, *clerigos*); it always means secular priests, in contradistinction to the “regulars,” or “religious,” of the monastic orders. The same distinction is found in the use of *presbyter* and *sacerdos* (Spanish, *presbítero* and *sacerdote*), the former meaning a secular priest, the latter a regular priest. ↑

6 As here used, *institutis* means literally “their proceedings,” or “devices,” or “schemes;” and *comprecationes*, “their prayer-meetings,” and the like—which have been rendered by the words which seem to convey the meaning intended. The friars (the “Padres,” as the Indians called them) established many sorts of sodalities, brotherhoods, fraternities, etc., to keep their natives straight; they also furnished all sorts of attractions in the church—music, chants, prayers, etc.—to keep them engaged during divine service. In this way the padres kept the natives fairly Christian.—REV. T. C. MIDDLETON, O. S. A. ↑

7 “Come, let us adore the King, for whom all things live; come, let us exult,” etc. The invitatory is the opening part of Matins, which is here parodied *à la Voltaire*.—REV. T. C. MIDDLETON, O. S. A. ↑

8 These were Ildefonso Garcia de la Concepción and Joaquín Traggia. ↑

BIBLIOGRAPHICAL DATA

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8. *The council of 1771*.—From a copy of the original Latin MS. (which is conserved in private archives), sent to the Editors by a friend in Germany.

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Abbreviations

Overview of abbreviations used.

Abbreviation Expansion

O.S.A. Ordo sancti Augustini

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